ADMINISTRATIVE APPEALS TRIBUNAL
NATIONAL DISABILITY INSURANCE SCHEME DIVISION
PERTH REGISTRY **2023/3361**

VIDA REID
Applicant

COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

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Lodged on behalf of the Respondent, the Commissioner of the NDIS Quality and Safeguards Commission

Prepared by: Karlie Dickinson
AGS lawyer within the meaning of s 55I of the *Judiciary Act 1903*

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SIMON REID
Applicant

COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

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FORWARD FOCUSED GROUP PTY LTD
Applicant

COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

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Administrative Appeals Tribunal

Application for Review of Decision (Individual)

This form is for use in the AAT's General Division, Freedom of Information Division, National Disability Insurance Scheme Division, Security Division, Small Business Taxation Division, Taxation & Commercial Division and Veterans' Appeals Division.

Please read the *Guide to applying for review* before completing this form. You must complete the fields and answer the question marked with an asterisk (*).

SECTION 1 APPLICANT (INDIVIDUAL)

Personal details *	Mr ☐ Mrs ☒ Ms ☐ Miss ☐ Other:		
	Family name: Reid		
	Given name(s): Vida		
	Female ☒ Male ☐ Unspecified ☐	Date of birth	11 / 01 / 1987
	Are you of Aboriginal or Torres Strait Islander origin?	Yes ☐	No ☒
Street address *	% Tom & Co Legal, 45 Delawney Street, BALCATTA	State: WA	Postcode: 6021
Postal address * 'As above' if also your street address	As above	State:	Postcode:
Email	info@tomandcolegal.com.au		
Telephone * / Fax	Landline: (08) 6255 5737	Mobile:	Fax: ( )
Preferred method for receiving correspondence Please select one *	Email: ☒	Fax: ☐	Post: ☐

Representative If someone will represent you, please fill in these details	Name: Mr Tom Monks		
	Organisation: Tom & Co Legal		
	Postal address: 45 Delawney Street, BALCATTA	State: WA	Postcode: 6021
Email	info@tomandcolegal.com.au		
Telephone / Fax	Landline: (08) 6255 5737	Mobile:	Fax: ( )
Preferred method for receiving correspondence Please select one	Email: ☒	Fax: ☐	Post: ☐

Interpreter *	Do you need an interpreter?	Yes ☐ No ☒	If yes, for which language or dialect?	

Turn to page 2 ➔

Assistance	If you have a disability or other special need and would like some assistance, please indicate the type of disability/need and assistance you require:		
	Physical (e.g. wheelchair user)	☐	
	Sensory (e.g. hearing or sight)	☐	
	Other, please specify	☐	

SECTION 2 DECISION

Date you received the decision you want reviewed * 21 / 04 / 2023

Are you sending us a copy of this decision? *

Yes	☒	Go to section 3 – **attach a copy of the decision**
No	☐	Complete all of section 2, then go to section 3

Briefly describe the decision

Internal review decision of s 100 of the *National Disability Insurance Scheme Act 2013*. Original decision made on 20 December 2022 to issue a 5 year Banning Order against Mrs Vida Reid under s73ZN(2)(a)(i) of the above Act.

Who made the decision? Name and address of organisation

Name:
Sian Leathem, Complaints Commissioner, NDIS Quality & Safeguards Commission

Address:
Level 1, 200 St Georges Terrace, PERTH

State: WA Postcode: 6000

Date the decision was made 21 / 04 / 2023

Decision reference IR (6) 22/23 and ICM 23/99

SECTION 3 REASONS FOR THE APPLICATION

Why do you claim the decision is wrong? * Please read the 'Reasons you are making an application' section in the *Guide to applying for review* before answering this question.

The NDIS Quality and Safeguards Commission failed to provide Mrs Reid with disclosure on allegations made and what evidence was relied on to make the original decision. Mrs Reid was unable to properly address any allegations and was not given the opportunity to work with the Commission during their investigative stage. Mrs Reid provided a submission based on the little evdience made available by the Commission on 20 March 2023 to assist with the internal review process. The Commission refused to give any weight to Mrs Reid's submission. The Banning Order is unfair based on the lack of evidence provided and denying Mrs Reid the opportunity to respond to the allegations made against her.

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SECTION 4 TAX DECISIONS ONLY

Please answer both of these questions if you are applying to us for review of a tax decision.

Please refer to the 'Tax Decisions' and 'Application Fees' sections in the *Guide to applying for review* for more information before answering these questions.

1. Does the decision relate to a small business entity?

   Yes ☐

   No ☐

2. Is the amount of tax in dispute less than $5,000?

   Yes ☐

   No ☐

   If yes, please state the amount of tax in dispute:

   $

SIGNATURE

Signature Tom & Co Legal **Date** 10 / 05 / 2023

Print name Tom Monks

* Mandatory field/question

GUIDE TO APPLYING FOR REVIEW

The Administrative Appeals Tribunal (AAT) can review a wide range of decisions made under Commonwealth laws by the Australian Government and some non-government bodies. We also review decisions made under Norfolk Island laws.

You should use this guide if you want to apply for a review of a decision in the AAT's General Division, Freedom of Information Division, National Disability Insurance Scheme Division, Security Division, Small Business Taxation Division, Taxation & Commercial Division or Veterans' Appeals Division.

The five parts of this guide will:

- help you choose which application form to use (Part 1)
- help you complete the application form (Part 2)
- help you work out if you must pay an application fee and, if so, how much (Part 3)
- give you some other information about applying to the AAT (Part 4) and
- show you where to send your form and how to contact the AAT (Part 5).

If you want to apply for a review of a decision in the AAT's Migration & Refugee Division or Social Services & Child Support Division, go to www.aat.gov.au and follow the links on the website.

PART 1: CHOOSING WHICH APPLICATION FORM TO USE

The AAT has three application forms to apply for a review of a decision in the AAT's General Division, Freedom of Information Division, National Disability Insurance Scheme Division, Security Division, Small Business Taxation Division, Taxation & Commercial Division or Veterans' Appeals Division.

Application for Review of Decision (Individual)
Use this form if you are an individual, unless you want to apply for a second review of a decision of the AAT's Social Services & Child Support Division.

Application for Review of Decision (Organisation)
Use that form if you are an organisation.

Application for Second Review of Decision
Use that form if you want to apply for a second review of a decision made by the AAT's Social Services & Child Support Division:

- about a Centrelink decision (except an employer-related paid parental leave decision)
- to refuse an extension of time to apply for a child support review
- about a person's percentage of care for a child in a child support review.

For information about completing this form, see Part 2 of this guide.

PART 2: COMPLETING THE APPLICATION FORM

Read this guide and the form carefully. If you need more space to answer a question, continue your answer on another sheet of paper and attach it to the form.

If you need help filling out the form or if you need more information, ask us. When you have completed the form, you can bring it to the AAT in person or send it to us by post, email or fax. Our contact details are at the end of this guide.

APPLICANT

CONTACT DETAILS

The form asks you to give us your address, phone numbers, and any email addresses or fax numbers. Please tell us your preferred method for receiving written information from us by ticking the box. If you have given us an email address and you do not tick a box, we will email the documents to you.

REPRESENTATIVE

You can represent yourself at the AAT or any person you choose can represent you. If you tell us that you have a representative, we will send the letters and other documents about your case to your representative instead of sending them to you.

INTERPRETER

If you need an interpreter, we will arrange for a qualified interpreter to assist you free of charge.
If you speak a particular dialect, please include this in the form.

DISABILITY

If you have a disability or special need and would like some assistance, we will try to make appropriate arrangements for you. Our offices (known as registries) have portable hearing loops and are wheelchair accessible.

DECISION

DATE YOU RECEIVED THE DECISION

We ask you to tell us on the form when you received the decision. We need this information so we can check if your application has been lodged within the time limit.

The time limit for lodging an application for a review of a decision is usually 28 days after you receive the decision. For some types of decisions, the time limit is longer and for others it is shorter. The time limit is usually stated in the information given to you by the decision-maker about your review rights.

If the time limit has expired, you can apply for an extension of time to make your application. We can extend most, but not all, time limits. You can use the *Application for an Extension of Time for Making an Application for Review of Decision* form which is on our website.

SEND US A COPY OF THE DECISION

If you can, send us a copy of the decision you want us to review. If you cannot, describe the decision briefly, for example: ‘The Tax Office decided that I have to pay a tax debt’.

WHO MADE THE DECISION

If you are not sending us a copy of the decision, you need to tell us the name and address of the department or organisation that made the decision.

DATE THE DECISION WAS MADE AND DECISION REFERENCE

If you are not sending us a copy of the decision, please tell us on the form when the decision was made and to give us a decision reference number. You will usually find a reference number on a covering letter or in the decision itself. Giving us these details helps us to identify the decision quickly.

REASONS YOU ARE MAKING AN APPLICATION

You must tell us briefly why you want to have the decision reviewed. For example, you may think the decision is wrong and a different decision should be made, or the information you provided was not taken into account, or the law was not applied correctly. We cannot start the review if you do not answer this question.

TAX DECISIONS

If you are applying for review of a tax decision, we need additional information to decide how the AAT will handle your application and the application fee you must pay.

If the tax decision relates to a small business entity, we will handle the review in our Small Business Taxation Division. In general, you are a small business entity if you were carrying on a business and your aggregated turnover was less than $10 million. In most cases, the letter from the Australian Taxation Office (**ATO**) telling you about its decision will state whether or not they consider you are a small business entity. For more information, please read the AAT's *Guide to the Small Business Taxation Division* which can be found on our website.

If the decision does not relate to a small business entity, we will handle your review in our Taxation & Commercial Division.

The application fee you must pay depends on:

- the type of tax decision you want us to review, and
- the amount of tax in dispute, and
- whether the decision relates to a small business entity.

Please read the next section to find out what fee you must pay.

PART 3: APPLICATION FEES AND REFUNDS

You do not have to pay a fee when you apply to us for review of some types of decisions, such as applications about Commonwealth workers' compensation, family assistance or social security payments, military compensation, the National Disability Insurance Scheme or veterans' pensions.

For the review of other types of decisions, you must pay an application fee.

STANDARD APPLICATION FEE

The standard application fee is $1,011.

APPLICATION FEES FOR REVIEW OF TAX DECISIONS

A lower fee of $100 is payable for the review of the following tax decisions:

- the amount of tax in dispute is less than $5,000
- the ATO has refused your request to be released from paying a tax debt (regardless of the amount involved)
- the ATO has refused to extend the time for you to lodge an objection.

If the decision relates to a small business entity and you are not eligible to pay the lower fee of $100, the application fee is $543.

For other applications for review of tax decisions, the standard application fee of $1,011 is payable.

CONCESSIONAL FEE

You can pay a reduced fee of $100 instead of the $1,011 fee or the $543 fee if:

- you have been granted legal aid for your application
- you hold a health care card, pensioner concession card or Commonwealth seniors health card
- you are in prison or lawfully detained in a public institution
- you are under 18 years of age or receiving youth allowance, Austudy or ABSTUDY, or
- we decide that paying the full fee would cause you financial hardship.

To apply for a fee reduction on the grounds of financial hardship, you must fill out the *Request for Fee Reduction* form, which is on our website, and send it to us.

APPLICATIONS FOR REVIEW OF MORE THAN ONE DECISION

If the same person (an individual, organisation or other entity) applies for review of more than one decision that relates to them and we decide that the applications can be dealt with together, we can order that you only have to pay one fee.

If you are applying for review of more than one tax decision and different application fees would be payable if the applications were handled separately, you must usually pay the highest of the fees. However, if one of the fees is the $1,011 fee and the other is the $543 fee, you pay the $543 fee.

WHEN THE FEE MUST BE PAID

Application fees must be paid when the application is lodged. The AAT may dismiss your application if you do not pay the fee within six weeks after lodging the application.

HOW TO PAY A FEE

You can pay a fee in cash or by cheque, money order, EFTPOS or credit card. We accept payment by MasterCard and Visa.

All payment types are accepted at our registries. Credit card payments can also be made by phone.

REFUNDS

We will refund:

- the entire application fee if you were not required to pay it
- the difference between the fee you paid and a lower fee if the lower fee was payable
- if you pay the $1,011 fee or the $543 application fee and the application is resolved in your favour, the difference between the fee you paid and $100. There is no refund if you pay the lower application fee of $100 or the reduced fee of $100.

For more information about fees, including when there is no fee and whether you are eligible to pay a reduced fee, go to the AAT website or contact your local AAT registry.

PART 4: OTHER INFORMATION ABOUT APPLYING TO THE AAT

APPLYING TO SUSPEND A DECISION

In general, a decision continues to operate while we are reviewing it. In some cases, we can order that the decision be suspended while the review is taking place.

If you want to ask us to suspend the operation of the decision, you must complete a *Request for Stay Order* form, which is on our website, and send it to us.

STEPS IN A REVIEW

In most cases, we use alternative dispute resolution (ADR) to help the parties – you and the department or organisation that made the decision you want reviewed – try to reach agreement about how the case should be resolved. Many cases are resolved at this stage. ADR processes are held in private.

If agreement cannot be reached, we will hold a hearing and make a decision. Hearings are usually open to the public.

Our procedures and the time needed to complete the review vary from case to case. We aim to have cases finalised within 12 months.

PRIVACY – WHAT DO WE DO WITH INFORMATION GIVEN TO US?

We collect information from you to process your application and to carry out the review under the *Administrative Appeals Tribunal Act 1975*.

We give a copy of the form to the department or organisation that made the decision you want reviewed. We may also give a copy to any other person that is a party to the review.

If you give us other information during the review that another party does not have, we will usually give them a copy.

Limited information about cases in the AAT's General Division, Freedom of Information Division, National Disability Insurance Scheme Division, Small Business Taxation Division, Taxation & Commercial Division or Veterans' Appeals Division is usually made available to the public on request and can be accessed using *eCase Search* on our website. This information includes the names of the parties and any representatives, the type of application, dates of conferences, hearings or other case events, the types of key documents lodged by the parties and the outcome of an application.

More information is usually made publicly available if we hold a hearing and make a decision. If we prepare a written statement of the reasons for our decision in your case, it will usually be made public and published on the internet, including on the AustLII website (www.austlii.edu.au). For more information about the decisions we publish, see our Publication of Decisions Policy on our website.

We can order that information be kept confidential if we believe there is good reason to do so. You can apply for an order by writing to us stating what information you want kept confidential and why. In some cases, legislation requires that information be kept confidential.

For more information see our fact sheet, *Privacy and confidentiality at the AAT,* and our Privacy Policy. Our Privacy Policy includes information about how you can access and seek correction of your personal information, make a complaint about the way we have handled your personal information and how we will deal with such a complaint. *Privacy and confidentiality at the AAT* and our Privacy Policy are on our website or are available from your local AAT registry.

MORE INFORMATION ABOUT THE AAT

For more information about the AAT and how we conduct reviews go to our website or call us. Our staff can give you information about procedures but cannot give you legal advice.

PART 5: CONTACT THE AAT

How do I submit this form?

You can send us your form by email, post, or fax, or deliver it to a registry.

Email: generalreviews@aat.gov.au

Post: AAT, GPO Box 9955, Your capital city *(Northern Territory residents should write to Adelaide)* or *Norfolk Island residents:* AAT, c/- Supreme Court of Norfolk Island Registry, Kingston, Norfolk Island 2899

In person or by fax:

ADELAIDE Level 2 1 King William St ADELAIDE SA 5000 **FAX (08) 8128 8099**	**BRISBANE** Level 6 295 Ann St BRISBANE QLD 4000 **FAX (07) 3052 3001**	**CANBERRA** Level 8 14 Moore St CANBERRA CITY ACT 2600 **FAX (02) 6243 4600**	**HOBART** Edward Braddon Building Commonwealth Law Courts 39–41 Davey St HOBART TAS 7000 **FAX (02) 9276 5597**
MELBOURNE Level 4 15 William St MELBOURNE VIC 3000 **FAX (03) 9454 6998**	**NORFOLK ISLAND** Supreme Court of Norfolk Island KINGSTON Norfolk Island 2899 **TEL +61 2 9391 2400** **FAX +61 2 9283 4881**	**PERTH** Level 13 111 St Georges Terrace PERTH WA 6000 **FAX (08) 6222 7299**	**SYDNEY** Level 6 83 Clarence St SYDNEY NSW 2000 **FAX (02) 9276 5599**

If you want more information or assistance, call us on **1800 228 333** (calls are free from landline phones, however calls from mobiles may be charged). Residents of northern NSW (postcodes 2460–2490) will be connected to the Brisbane registry and residents of the Northern Territory will be connected to the Adelaide registry.

Non-English speakers can call the Translating and Interpreting Service on 131 450 and ask them to call the AAT.

If you are deaf or have a hearing or speech impairment, contact us through the National Relay Service. For more information visit www.relayservice.gov.au

Website: www.aat.gov.au

NDIS Quality and Safeguards Commission

Our ref: IR (6) 22/23 and ICM23/99

Tom & Co Legal Pty Ltd
PO Box Z5567
Perth WA 6000

Attention: Mr Tom Monks

By email to: info@tomandcolegal.com.au

Notice of internal review decision
Section 100 of the *National Disability Insurance Scheme Act 2013* (NDIS Act)

Dear Mr Monks

I refer to the email received by the NDIS Quality and Safeguards Commission (the NDIS Commission) on 25 January 2023 requesting an internal review of the decision made on 20 December 2022 to impose a banning order against your client, Ms Vida Reid, for a period of 5 years under section 73ZN(2)(a)(i) of the NDIS Act (**the original decision**).

I am the delegate of the NDIS Commissioner for the purposes of section 100 of the NDIS Act, and am authorised to make a decision on this internal review.

The internal review decision
I have decided to **vary** the original decision. This means the banning order made against Mrs Reid remains in place, however, it is changed or altered in some respect.

The variation I have decided to impose is to:

1. change the legislative basis for the banning order from section 73ZN(2)(a)(i) of the NDIS Act to section 73ZN(2)(a)(iii) instead; and

2. broaden the scope of the banning order to make it explicit that Mrs Reid is to have no involvement with or in the NDIS sector, in any capacity. This includes Mrs Reid being prohibited from:
    a) providing disability supports and services, directly or indirectly, to NDIS-funded participants;
    b) providing labour hire workers to support NDIS providers; or
    c) providing support, funding, guidance or assistance of any form to an NDIS provider.

The banning order (as varied) remains subject to the exception of Mrs Reid being able to seek disability supports or services for herself and her son, Mr Alex Reid.

I enclose the banning order as varied, and the reasons for my review decision at **Attachment A** to this notice.

Consequences of review decision
The original banning order made against Mrs Reid is not disturbed and continues to have effect from **5:30pm on 20 December 2022 (AWST).**

The variation takes **effect from 12.00am on 22 April 2023 until 12.00am on 21 December 2027 (AWST).**

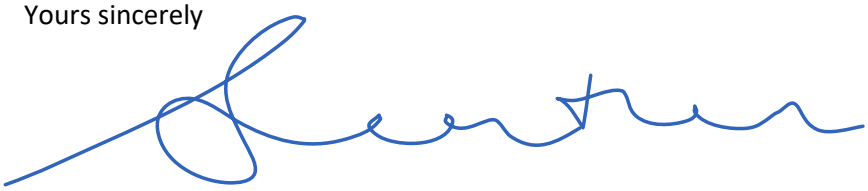
Engaging in conduct that breaches a banning order is a contravention of section 73ZN(10) of the NDIS Act. A contravention of a banning order attracts a civil penalty of 1,000 penalty units for an individual ($275,000).

External review rights
If Mrs Reid is dissatisfied with my review decision, she may apply to the Administrative Appeals Tribunal (AAT) for a review of the decision. She must apply within 28 days after receiving this notice of decision. Further information about applying to the AAT for a review can be found at https://www.aat.gov.au/apply-for-a-review/national-disability-insurance-scheme-ndis or by contacting the AAT on 1800 228 333.

Variation or revocation of banning order
Section 73ZO of the NDIS Act allows the NDIS Commissioner to vary or revoke a banning order at any time, on her own initiative, or in response to an application by the person against whom the order was made. If Mrs Reid is minded to request a variation or revocation of the banning order against her, an application must be in accordance with the matters set out in section 73ZO of the NDIS Act.

Contact details
Should you have any queries about this matter, please do not hesitate to contact Pascal Moussa, Lawyer, on 02 9942 5726 or at pascal.moussa@ndiscommission.gov.au.

Yours sincerely



Sian Leathem

Complaints Commissioner

NDIS Quality and Safeguards Commission

21 April 2023

Encl: Attachment A – Statement of Reasons for Internal Review Decision

NATIONAL DISABILITY INSURANCE SCHEME ACT 2013 (CTH)
SECTION 73ZN BANNING ORDER

I, Sian Leathem, as delegate of the Commissioner of the NDIS Quality and Safeguards Commission under the *National Disability Insurance Scheme Act 2013* (the NDIS Act), make this banning order with respect to **Vida Reid** of 96 Amethyst Crescent, Mount Richon, WA 6112.

I make the order believing on reasonable grounds that Vida Reid is not suitable to be involved in the provision of supports or services to people with disability.

Pursuant to section 73ZN(2)(a)(iii) of the NDIS Act, I prohibit Vida Reid from having any involvement with or in the NDIS sector, in any capacity, for a period of five (5) years. This includes Vida Reid being prohibited from:

a) providing disability supports and services, directly or indirectly, to NDIS-funded participants;
b) providing labour hire workers to support NDIS providers; or
c) providing support, funding, guidance or assistance of any form to an NDIS provider.

This banning order is subject to the exception that Mrs Reid is able to seek disability supports or services for herself and her son, Mr Alex Reid.

My reasons for making this order are set out in the enclosed statement of reasons.

This order, which varies the banning order made on 20 December 2022, takes effect from 12.00am on 22 April 2023 until 12.00am on 21 December 2027 (AWST).

The original banning order made on 20 December 2022 remains effective from that date to the date of this variation.

Sian Leathem

Complaints Commissioner

NDIS Quality and Safeguards Commission

21 April 2023

Attachment A

Statement of Reasons

Internal review decision – section 100 of the *National Disability Insurance Scheme Act 2013 (*NDIS Act)

Preliminary matters

1. This statement of reasons outlines why I have decided to vary the banning order made on 20 December 2022 under section 73ZN(2)(a)(i) of the NDIS Act, which prohibited Ms Vida Reid from providing supports and services, directly or indirectly, to NDIS-funded participants for a period of 5 years, effective from 5:30pm on 20 December 2022.

2. In this statement of reasons, I refer to the banning order made on 20 December 2022 as **the original decision**.

3. Section 99(1), table item 15 of the NDIS Act confirms the original decision can be subject to internal review (as it is identified as a 'reviewable decision').

4. Section 100(2) of the NDIS Act requires a request for review of a decision to be made within three months after receiving notice of the decision. I note Mrs Reid requested an internal review of the original decision within the statutory deadline.

5. Section 100(6A) of the NDIS Act requires an internal reviewer to make a decision either:

    a. confirming the reviewable decision;

    b. varying the reviewable decision; or

    c. setting aside the reviewable decision and substituting a new decision.

Role of the internal reviewer

6. In reviewing the original decision, my task was to make the correct or preferable decision in accordance with the law and any relevant policies of the NDIS Commission. In doing so, I considered the evidence that was before the original decision-maker, as well as any new evidence that was before me at the time of making my decision.

7. In deciding what is the correct or preferable decision, I needed to be satisfied on the balance of probabilities of any findings of fact that I made.

Decision

8. I have decided to **vary** the original decision.

9. The original decision is varied such that:

    a. the legislative basis of the banning order is changed from section 73ZN(2)(a)(i) of the NDIS Act to section 73ZN(2)(a)(iii) to reflect my view that Mrs Reid should be banned on the basis she is not suitable to be involved in the provision of supports or services to

people with disability (as opposed to any previous, current or likely contravention(s) of the NDIS Act she may be linked to); and

b. the scope of the banning order made against Mrs Reid on 20 December 2022 is broadened to prohibit Mrs Reid from having any involvement with or in the NDIS sector, in any capacity. This includes Mrs Reid being prohibited from:

   i. providing disability supports and services, directly or indirectly, to NDIS-funded participants;

   ii. providing labour hire workers to support NDIS providers; or

   iii. providing support, funding, guidance or assistance of any form to an NDIS provider.

10. However, the banning order (as varied) remains subject to the exception that Mrs Reid is able to seek disability supports or services for herself and her son, Mr Alex Reid.

11. The banning order made on 20 December 2022 (and varied on 21 April 2023), therefore, will remain in place until **12.00am on 21 December 2027 (AWST)**, unless it is varied or revoked earlier.

Materials on which my findings are based

12. In coming to my decision, I had regard to the following material:

    a. the notice and statement of reasons for the original decision, dated 20 December 2022;

    b. the NDIS Act;

    c. the NDIS Quality and Safeguards Commission Compliance and Enforcement Policy, version 2.0 dated June 2019;

    d. the NDIS Quality and Safeguards Commission Banning Order Policy, version 1.0 dated April 2022 (**the NDIS Commission Banning Order Policy**);

    e. the submissions of Mr Tom Monks (Legal Practitioner Director from Tom & Co Legal Pty Ltd), made on behalf of Mrs Reid, dated 30 November 2022;

    f. materials which were before the original decision-maker, particularly:

       i. Briefing note (EC22-002000) relating to the notice of intention to make a banning order against Mrs Reid;

       ii. Briefing note (EC22-002581) relating to the decision to make a banning order against Mrs Reid;

       iii. the Magistrates Court of Western Australia Prosecution Notice, signed on 18 October 2022, in relation to the charges laid upon Mrs Reid;

       iv. the Statement of Material Facts, dated 19 October 2022, prepared by the NDIA and lodged in the criminal proceedings against Mrs Reid;

v. Australian Securities and Investments Commission (ASIC) Company Extracts for Hybrid Hive Pty Ltd and Forward Focused Group Pty Ltd;

g. correspondence between the original decision-maker and Mr Monks, specifically:

i. the letter from Mr Monks to the original decision-maker, dated 31 October 2022, seeking an extension of time to make submissions and further information from the NDIS Commission;

ii. the letter from original decision-maker to Mr Monks, dated 15 November 2022, granting an extension of time to make submissions and refusing the request for further information; and

h. new evidence that arose during the course of the internal review, namely the sworn statement of Ms Cassandra Burke, dated 16 February 2023.

Relevant legislation

13. Section 73ZN(2) of the NDIS Act gives the Commissioner the discretion to make a banning order prohibiting or restricting a person employed or otherwise engaged by an NDIS provider as follows:

'The Commissioner may, by written notice, make an order (a banning order) prohibiting or restricting a person who is or was employed or otherwise engaged by an NDIS provider, or a person who is or was a member of the key personnel of an NDIS provider, from engaging in specified activities if:

(a) the Commissioner reasonably believes that:

i. the person has contravened, is contravening, or is likely to contravene this Act; or

ii. the person has been involved in, or is likely to become involved in, a contravention of this Act by another person; or

iii. the person is not suitable to be involved in the provision of supports or services to people with disability, having regard to any matters prescribed by the National Disability Insurance Scheme rules for the purposes of this subparagraph; or

iv. there is an immediate danger to the health, safety or wellbeing of a person with disability if the person continues to engage in the specified activities; or

(b) the person is convicted of an offence involving fraud or dishonesty; or

(c) the person becomes an insolvent under administration.'

14. Under section 73ZN(3) of the NDIS Act, a banning order may apply generally or be of limited application, and may be permanent or for a specified period.

15. Section 73ZN(7) of the NDIS Act states that the Commissioner may only make a banning order against a person after giving the person an opportunity to make submissions to the Commissioner on the matter (except in certain circumstances outlined in section 73ZN(8) which are not relevant to this matter).

16. Section 73ZN(9) sets out the various requirements surrounding any banning order made as follows:

'The Commissioner must:

(a) give the banning order to the person against whom the order is made; and

(b) include in the banning order a statement of reasons for the order; and

(c) if the banning order is against a person who is employed or otherwise engaged by an NDIS provider or is a member of the key personnel of an NDIS provider—notify the NDIS provider of the order as soon as possible.'

Background and procedural history of matter

17. From 28 August 2020 to 1 November 2022, Mrs Reid was, at various periods, the sole director or co-director of Forward Focused Group Pty Ltd (**FFG**), which was a registered NDIS provider.

18. On 19 October 2022, the original decision-maker issued Mrs Reid with a notice of intention to make a banning order against her. In the letter, the original decision-maker invited Mrs Reid to make submissions in relation to the proposed banning order by no later than 5pm (AWST) on 16 November 2022.

19. On the same date, the original decision-maker also decided to:

    a. suspend the registration of FFG for a period of 30 days until 19 November 2022; and

    b. issue FFG with a notice of intention to revoke the registration of, and make a banning order against the NDIS provider.

    The evidence supporting the proposed banning of Mrs Reid and the regulatory actions against FFG was similar or overlapped considerably.

20. On 31 October 2022, Mr Monks wrote to the original decision-maker to:

    a. confirm he represented Mrs Reid (and FFG);

    b. seek an extension of 28 days for Mrs Reid (and FFG) to provide submissions; and

    c. seek a copy of the information held by the NDIS Commission in determining to suspend the registration of FFG. Given the evidential similarities in the matters noted above, it appears the original decision-maker interpreted this request to consequentially be seeking the material that also supported the banning order proposed to be made against Mrs Reid.

    Mr Monks requested the original decision-maker provide a response in relation to these requests within 7 days.

21. The original decision-maker did not provide a response within the requested timeframe.

22. On 15 November 2022, the original decision-maker wrote to Mr Monks granting an extension of time for Mrs Reid (and FFG) to make further submissions. The new deadline for providing submissions was by 5pm (AWST) on 30 November 2022. The original decision-maker declined to provide the further information sought by Mr Monks on the basis that the original decision-maker was satisfied the evidence supporting the various regulatory actions against FFG and Mrs Reid had been adequately disclosed in the notices dated 19 October 2022.

23. On 30 November 2022, Mr Monks provided a single, joint submission for Mrs Reid and FFG. Those submissions allege the original decision-maker did not respond to Mr Monk's requests for an extension of time and further information. This is not correct. I have been provided with a copy of an email, dated 15 November 2022, sent at 6:04pm, from WACompliance@ndiscommission.gov.au to info@tomandcolegal.com.au, which attached the letter described above at paragraph [22], granting an extension of time and declining the request for further information.

24. On 20 December 2022, the original decision-maker made a banning order against Mrs Reid, prohibiting her from providing supports and services, directly or indirectly, to NDIS-funded participants for a period of 5 years, under section 73ZN(2)(a)(i) of the NDIS Act, on the basis that he had reasonable grounds to believe that Mrs Reid had contravened, was contravening or was likely to contravene the NDIS Act. The banning order took effect from 5:30pm (AWST) on 20 December 2022.

25. On 25 January 2023, Mr Monks, on behalf of Mrs Reid, requested an internal review of the decision to make a banning order on 20 December 2022.

26. On 6 February 2023, the NDIS Commission emailed Mr Monks a letter of acknowledgement in relation to the request for an internal review. The letter invited Mrs Reid to make submissions to be considered as part of the internal review by 5pm on 20 February 2023. No submissions were received from, or on behalf of, Mrs Reid.

27. On 22 March 2023, I wrote to Mr Monks to inform him that, in the course of conducting the internal review, I had become aware of information not considered by the original delegate. I provided Mr Monks with a copy of the new information and informed him of my intention to vary the banning order against Mrs Reid in light of such material. The letter invited Mrs Reid to make submissions to be considered as part of the internal review by 5pm on 5 April 2023. No submissions were received from, or on behalf of, Mrs Reid.

Findings and Reasons

28. I have considered the original decision made on 20 December 2022.

29. I am of the view that the original decision was the correct and preferable decision to be made, however, I disagree with the basis for the original decision, namely the original decision-maker forming a reasonable belief that Mrs Reid had contravened, was contravening, or likely to contravene the NDIS Act. Section 73ZN(2)(a)(i) allows for a banning order to be made against a person in such circumstances.

30. In my view, the original decision should have been made pursuant to section 73ZN(2)(a)(iii) of the NDIS Act, which provides a banning order can be made where a decision-maker forms a reasonable belief that a person is not suitable to be involved in the provision of supports or services to people with disability.

31. A banning order on this latter basis accords with the usual approach followed by the NDIS Commission in matters where a person is alleged to have engaged in fraudulent activity against the NDIS (particularly where criminal charges are laid) and is also more consistent with the NDIS Commission's Banning Order Policy.

32. In the paragraphs below, I set out my reasons for reaching this decision.

Consideration of material before original decision-maker

33. I acknowledge the original decision-maker had a wide range of material before him.

34. In conducting this internal review, I relied upon a circumscribed amount of that material as noted above at paragraph 12.

35. As a result, I made the following findings:

    a. FFG and Hybrid Hive Pty Ltd (**Hybrid**) are NDIS providers with whom Mrs Reid is (or was) associated.

    b. FFG was formerly a registered NDIS provider operating in Western Australia, until 20 December 2022 when a delegate of the NDIS Commissioner revoked the registration of FFG, and made a banning order prohibiting FFG from providing supports or services to NDIS-funded participants for a period of 10 years.

    c. In relation to FFG, Mrs Reid was:

        i. the co-director from 28 August 2020 to 3 January 2021;

        ii. the sole director from 4 January 2021 to 20 October 2022; and

        iii. the co-director from 21 October 2022 to 1 November 2022.

    d. Hybrid was formerly an unregistered NDIS provider operating in Western Australia, until a delegate of the NDIS Commissioner made a banning order on 21 December 2022 permanently prohibiting Hybrid from providing supports and services to NDIS-funded participants.

    e. In relation to Hybrid, Mrs Reid was:

        i. the sole director from 1 December 2021 to 16 February 2022; and

        ii. the co-director from 17 February 2022 to 21 August 2022.

    f. On 19 October 2022, Mrs Reid was arrested and charged with several offences under sections 135.1(3) and 400.9(1) of the Criminal Code (Cth), which is contained in the Schedule to the *Criminal Code Act 1995* (Cth). Those charges related to Mrs Reid allegedly defrauding the National Disability Insurance Scheme (**NDIS**).

    g. Specifically, the charges were that:

        i. between 1 December 2021 and 17 May 2022 at Perth in the State of Western Australia, Mrs Reid dealt with money or other property, it being reasonable to suspect that such money or other property was proceeds of crime and at the time of dealing the value of the money or property was more than $100,000, contrary to section 400.9(1) of the Criminal Code (Cth);

        ii. between 26 December 2021 and 23 June 2022 at Perth in the State of Western Australia, Mrs Reid dealt with money or other property, it being reasonable to

suspect that such money or other property was proceeds of crime and at the time of dealing the value of the money or property was more than $100,000, contrary to section 400.9(1) of the Criminal Code (Cth);

iii. between 30 November 2021 and 8 April 2022 at Perth in the State of Western Australia, Mrs Reid caused payment requests to be submitted, which she knew to be false, to the NDIA, a Commonwealth entity, with the intention of dishonestly causing a loss, contrary to section 135.1(3) of the Criminal Code (Cth); and

iv. between 18 November 2021 and 19 April 2022 at Perth in the State of Western Australia, Mrs Reid caused payment requests to be submitted, which she knew to be false, to the NDIA, a Commonwealth entity, with the intention of dishonestly causing a loss, contrary to section 135.1(3) of the Criminal Code (Cth).

h. In the criminal proceedings relating to these charges, the NDIA lodged a Statement of Material Facts, dated 19 October 2022, which outlined the relevant facts underlying the charges (**the SoFM**). The SoFM provided that:

i. Mrs Reid (along with Mr Simon Reid, her husband and business partner) are joint signatories to company bank accounts for FFG and Hybrid, namely:

- ANZ Bank account numbered 016253 154173449 (**the Hybrid ANZ account**);
- ANZ Bank account numbered 016253 152003884 (**the FFG ANZ account**); and
- Westpac Bank account numbered 036032 736973 (**the FFG Westpac account**).

ii. between 3 February 2021 and 18 April 2022, 40 separate complaints were made to the NDIA in relation to the conduct and claiming patterns of FFG and Hybrid.

iii. between 20 May 2022 and 1 September 2022, 29 separate complaints were made to the NDIA in relation to the conduct and claiming patterns of FFG and Hybrid.

iv. on 1 September 2022, the NDIA commenced an investigation into the claims submitted by FFG and Hybrid. The investigation discovered the matters set out below.

v. on 30 November 2021, the NDIA issued a new plan for NDIS participant, Ms Meghan Goodwin. On the same day, Ms Reid contacted the NDIA and requested a copy of the new plan for Ms Goodwin, which was emailed to her. Within an hour of making that call, FFG made three separate claims for payment in relation to supports and services purportedly provide to Ms Goodwin. The claims were submitted against the plan expiring on 30 November

2021 and, in my view, appeared to be excessive and falsified. For example, the claims submitted included 398 hours of house cleaning between 15 October 2021 and 30 November 2021 – this equates to 8.46 hours of cleaning every day for 47 days. On 1 December 2021, the NDIA made a payment of $43,004.60 into the FFG ANZ account, for which Mrs Reid is a joint signatory.

vi. Zettai Pty Ltd (trading as Assist Plan Managers) (**Assist**), a registered NDIS provider that performs the services of a Plan Manager, at various times received invoices from FFG and Hybrid for supports or services purportedly provided to various NDIS participants. Assist would then make claims to the NDIA for those supports or services, receive funds from the NDIA, and then forward those funds to FFG or Hybrid.

vii. between 30 December 2021 and 20 April 2022, Assist submitted 14 separate claims to the NDIA for supports or services purportedly provided by FFG to Ms Goodwin. The claims resulted in the payment of $5979.64 to Assist, who subsequently transferred those funds to the FFG ANZ Account, for which Mrs Reid is a joint signatory.

viii. between 25 January 2022 and 10 May 2022, Assist submitted 20 separate claims to the NDIA for supports or services purportedly provided by Hybrid to an NDIS participant, Ms Meghan Goodwin. The claims resulted in the payment of $78,491.06 to Assist, who subsequently transferred those funds to the Hybrid ANZ account, for which Mrs Reid is a joint signatory.

ix. Ms Goodwin has provided a witness statement that she did not receive the supports or services purportedly provided in the claims referred to above.

x. an NDIA forensic accountant examined (among other things) the statement of Ms Goodwin, NDIS payments records and banks statements for the FFG ANZ account and the Hybrid ANZ account. The NDIA forensic accountant calculated that the value of claims submitted by FFG and Hybrid where no support or service was provided to Ms Goodwin to be $127,475.30.

xi. as a result, the NDIA alleges that Mrs Reid received money reasonably suspected of being the proceeds of crime to the sum of $127,475.30.

xii. between 24 November 2021 and 22 April 2022, Assist submitted 14 separate claims to the NDIA for supports or services purportedly provided by FFG to another NDIS participant, Ms Sarah-Jane Clulow. The claims resulted in the payment of $86,192.60 to Assist, who subsequently transferred those funds to the FFG ANZ Account, for which Mrs Reid is a joint signatory.

xiii. between 24 November 2021 and 22 April 2022, Assist submitted 14 separate claims to the NDIA for supports or services purportedly provided by FFG to another NDIS participant, Ms Sarah-Jane Clulow. The claims resulted in the payment of $86,192.60 to Assist, who subsequently transferred those funds to the FFG ANZ Account, for which Mrs Reid is a joint signatory.

xiv. between 25 May 2022 and 22 June 2022, Assist submitted 14 separate claims to the NDIA for supports or services purportedly provided by FFG to Ms Clulow. The claims resulted in the payment of $33,816.88 to Assist, who subsequently transferred those funds to the FFG Westpac account, for which Mrs Reid is a joint signatory.

xv. Ms Clulow has provided a witness statement that she did not receive the supports or services purportedly provided in the claims referred to above.

xvi. an NDIA forensic accountant examined (among other things) the statement of Ms Clulow, NDIS payments records and banks statements for the FFG ANZ account and the FFG Westpac account. The NDIA forensic accountant calculated that the value of claims submitted by FFG where no support or service was provided to Ms Clulow to be $120,009.48.

xvii. as a result, the NDIA alleges that Mrs Reid received money reasonably suspected of being the proceeds of crime to the sum of $120,009.48.

xviii. between 26 August 2022 and 21 September 2022, Assist submitted to the NDIA 11 separate reports of suspicious invoices it had received from FFG and Hybrid.

Section 73ZN(2)(a)(iii) of the NDIS Act – the suitability of Mrs Reid to provide supports and services to people with disability

36. In light of the above information, I am of the reasonable belief that Mrs Reid is not suitable to be involved in the provision of supports or services to people with disability.

37. In forming this view, I have taken into consideration and balanced the following factors:

    a. The allegations against Mrs Reid, though unproven, are extremely serious. Some of the offences which Mrs Reid has been charged with carry a maximum penalty of 10 years imprisonment. The alleged conduct falls well below the standard and quality of care expected from a member of the key personnel of an NDIS provider, particularly a director.

    b. I acknowledge Mrs Reid has considerable experience in, and links to the disability care and support sector. Whilst these matters are relevant to an assessment of Mrs Reid's suitability to be involved in the sector, I find that they do not outweigh the other factors that favour the making of a banning order, particularly the fact that Mrs Reid engaged in the alleged criminal conduct whilst she was the director of two NDIS providers. In fact, the position she held within those NDIS providers significantly facilitated the commission of the alleged fraud.

    c. Section 3 of the NDIS Act contains the objects of the NDIS Act, which includes:

        i. supporting the independence and social and economic participation of people with a disability;

ii. enabling people with a disability to exercise choice and control in the pursuit of their goals and the planning and delivery of their supports;

iii. promoting the provision of high quality and innovative supports that enable people with a disability to maximise independent lifestyles and full inclusion in the community; and

iv. protecting and preventing people with disability from experiencing harm arising from poor quality or unsafe supports or services provided under the NDIS.

In giving effect to the objects of the NDIS Act, section 3(3)(b) of the NDIS Act requires regard to be had to the need to ensure the financial sustainability of the NDIS.

Similarly, as set out in section 4(17)(b) of the NDIS Act, it is the intention of Parliament that the Commissioner, amongst others, has regard to the need to ensure the financial sustainability of the NDIS, in performing her functions and exercising her powers under the NDIS Act.

The allegations made against Mrs Reid by the NDIA are likely to cause harm to, or jeopardise, public trust in the NDIS and, if made out, are likely to impact the financial sustainability of the NDIS.

d. The need to protect the interests of people with disability, who may be particularly vulnerable, and ensure that they are kept safe, requires that in matters of this kind, a person facing such serious criminal charges must be prevented from having access to the NDIS plans of people of disability and delivering supports or services to them. Allowing Mrs Reid to continue working in the NDIS would undermine the objects of the NDIS, which includes protecting people with disability from experiencing harm.

e. I acknowledge the making of a banning order in respect of Mrs Reid will impact her ability to earn an income in the disability services sector, and I have taken this into account. However, I consider that the competing interest of ensuring NDIS participants, who may not be able to fully protect their own interests and who have a statutory right to safe services and protection from violence, abuse and exploitation, is paramount and takes precedence over the detriment Mrs Reid may experience if banned.

The submissions of Mrs Reid

38. I have considered the submissions made by Mr Monks, on 30 November 2022, on behalf of Mrs Reid.

39. As already noted, Mr Monk made a single, joint submission that addressed the allegations against, and regulatory action proposed to be taken in relation to, **both** FFG and Mrs Reid.

40. For the most part, the submissions were framed with a focus on FFG (as opposed to Mrs Reid), however, I have interpreted them as having been intended to apply or relate to Mrs Reid too given the degree of similarity between the allegations against FFG and Mrs Reid.

41. In summary, the submissions made by Mr Monks deny all allegations that Mrs Reid had contravened, was contravening or likely to contravene the NDIS Act, and include various

explanations and evidence in support of those assertions. Given my approach to this internal review from a suitability perspective (as opposed to contraventions of the NDIS Act), it is not necessary or conducive to go into a detailed examination of the submissions *which related to contraventions of the NDIS Act*.

42. This internal review was determined on the basis of Mrs Reid's suitability to engage in the NDIS sector. The submissions made by Mr Monks that relate to the question of Mrs Reid's suitability (or the criminal charges against her) are found on pages 7 and 11 of the submissions.

43. In summary, those submissions were that:

    a. Mrs Reid emphatically denies the allegation that false claims were submitted for payment to the NDIA with the intention of dishonestly causing a loss to a Commonwealth entity, the NDIA;

    b. the matter is currently the subject of criminal proceedings and it is inappropriate for the NDIS Commission to pursue the allegations until the criminal proceedings have been determined;

    c. in the interests of *'procedural and substantive justice'*, FFG's *'fitness to hold an NDIS registration'* should not be determined until the criminal proceedings are determined;

44. I gave significant weight to these submissions as I acknowledge that the allegations against Mrs Reid have not been proven to the criminal standard.

45. I also acknowledge and respect the presumption of innocence in favour of Mrs Reid in relation to the criminal charges.

46. However, the submissions of Mr Monks ultimately did not dissuade me from my view that a banning order should be made against Mrs Reid. In the context of criminal proceedings, the standard of proof that applies is that allegations must be proven beyond a reasonable doubt. However, the making of a banning order, which is an administrative decision, only requires that I be satisfied on the balance of probabilities that Mrs Reid has engaged in the conduct alleged, which, I am, given the strength of the evidence referred to above (which indicates the alleged fraudulent conduct was systemic in nature and occurred over a prolonged period of time).

47. Furthermore, for the reasons already set out above at paragraphs at 37(a) to (e), I consider there would be a significant and indefensible risk associated with Mrs Reid being allowed to continue to engage in the NDIS sector until her criminal proceedings are determined; the likelihood of further harm to other NDIS participants to whom Mrs Reid may provide supports or services warrants the NDIS Commission taking regulatory action at this time to safeguard NDIS participants.

Procedural fairness

48. The notice of intention to make a banning order against Mrs Reid (dated 19 October 2022) and the subsequent statement of reasons in support of the original decision (dated 20 December 2022) made reference to the criminal conduct Mrs Reid is alleged to have engaged in. However, neither document included the level of detail I have set out in this statement of reasons in relation to the alleged criminal conduct.

49. In particular, the original decision-maker did not list the precise criminal charges laid under the Criminal Code (Cth) nor reference the SoFM lodged by the NDIA.

50. It is worth noting that I do **not** consider this poses a procedural fairness issue for the following reasons:

    a. the information provided by the original decision-maker to Mrs Reid was sufficient to enable her to understand the nature and substance of the matters the original decision-maker was referring to, and taking into account, in making his decision. Supporting my view that Mrs Reid was sufficiently informed of the criminal allegations are the submissions of Mr Monks (specifically pages 7 and 11) where it is clear Mr Monks was able to identify the allegations of fraudulent conduct that the original decision-maker was alluding to, and provided a response that addressed the relevant criminal proceedings; and

    b. the information I have referred to in this statement of reasons (i.e. the criminal charges and NDIA SoFM) are matters which Mrs Reid would already be aware of, and possess information in relation to. For example, Mrs Reid was given a copy of the prosecution notice detailing the criminal charges against her as well as a copy of the NDIA SoFM in the course of the criminal proceedings. She was, therefore, well placed to make submissions in relation to those matters.

Consideration of new evidence that arose after the original decision was made

51. In the course of undertaking this internal review, I became aware of new information that indicated Mrs Reid may be involved in a business (other than FFG and Hybrid) that has links to the NDIS, namely Dream Big Employment Pty Ltd (**Dream Big**). Mrs Reid's involvement in this entity seems to have commenced around the time the NDIS Commission began taking regulatory action against the NDIS providers that she was a director of, as well as against Mrs Reid in a personal capacity. For example, on 19 October 2022 the registration of FFG was suspended by the NDIS Commission and Mrs Reid was notified that the original decision-maker was intending to make a banning order against her personally.

52. The 'new' material before me was a sworn statement by a former employee of FFG, Ms Cassandra Burke, dated 16 February 2023. The statement relevantly notes that:

    a. On or around 15th November 2022, whilst working for a new employer (Access Disability Services), Ms Burke was informed by a client (NDIS participant, Mr Jonathon Shapiera) that he would be moving to another support co-ordinator, Mr Blake Sadler, who was going to be running a company for Mrs Reid (and her husband) called Dream Big; and

    b. On 9 December 2022, Ms Burke received an email from Ms Pamela Cricelli (the mother of NDIS participant, Mr Giuseppe Cricelli) stating that she wished to cancel her son's contract with Ms Burke as she was 'going back to Vida and Simon'; and

    c. On 1 December 2022, Ms Burke encountered Ms Reid outside an office in Jull Street and Ms Reid said to her "I would like you to come and work for my new company", which Mrs Burke understood to be a reference to Dream Big.

53. On 22 March 2023, I extended to Mrs Reid an opportunity to make submissions in relation to these allegations. No submissions were received from, or on behalf of, Mrs Reid.

54. In the absence of any information or evidence to negate the veracity of Ms Burke's statement, I attribute considerable weight to the allegations contained in the statement.

55. I find it concerning that Mrs Reid seems to have attempted to remain involved in the NDIS sector in circumstances where she (and the NDIS providers she was associated with) were subject to significant regulatory action that was specifically intended to prohibit them from engaging in the NDIS. In particular, the establishment of Dream Big, which I understand occurred in affiliation with associates of Mrs Reid, who have been appointed as the officeholders for the company instead of Mrs Reid, indicates to me that Mrs Reid may be finding strategic or tactical ways to circumvent the terms of the banning order made against her and that it is necessary to broaden the scope of the banning order accordingly.

The NDIS Commission Banning Order Policy

56. The *NDIS Commission Banning Order Policy* contemplates that a banning order can be *'issued pending the determination of [criminal] charges'* if, in the circumstances, the information and evidence obtained by the NDIS Commission supports a view that a banning order is warranted and appropriate.

57. In practice, this is ordinarily operationalised by the NDIS Commission making the banning order under section 73ZN(2)(a)(iii) of the NDIS Act as opposed to the other grounds set out in the NDIS Act. The reason being that criminal wrongdoing (whether alleged or proven) directly relates to the suitability of the relevant person to engage in the NDIS sector and section 73ZN(2)(a)(iii) is therefore the most relevant statutory provision in those circumstances.

58. Therefore, for the reasons noted above (particularly in paragraphs 37(a) to (e) and 51 to 55), I consider a banning order against Mrs Reid to be warranted and appropriate.

59. In my view, there is no compelling reason to diverge from the usual practice of the NDIS Commission making such an order under section 73ZN(2)(a)(iii) of the NDIS Act and aberrantly relying upon a different statutory basis.

Requirement to take proportionate and risk responsive action under NDIS Act

60. The NDIS Commission is required to conduct compliance and enforcement activities in a risk responsive and proportionate manner (section 181D(4)(b) of the NDIS Act).

61. The NDIS Commission's Banning Order Policy notes that a banning order can have a significant impact on the recipient and on people with disability, and as such, it will be reserved for circumstances where it is needed to protect people with disability from the risk of being exposed to conduct that falls well short of acceptable standards. However, a banning order should not be for a longer period than is considered necessary.

62. Having regard to the criminal proceedings presently pending against Mrs Reid, and in particular the serious and systemic nature of the allegations raised in those proceedings, I consider Mrs Reid is not suitable, at this time, to be an NDIS provider.

63. I consider that a banning order is appropriate in this case. The banning order will remain in place until **12:00am (AWST) on 21 December 2027**. The period of the banning order corresponds with the amount of time it is reasonably expected to take for the criminal proceedings to be finally determined by the court. Upon the determination of those proceedings, the banning order can be revisited and consideration given to whether it should be varied or revoked entirely.

64. In the meantime, the banning order will protect NDIS participants from the risk of being exposed to fraudulent claims and having the funds in their NDIS plans depleted.

Conclusion

65. The NDIS Provider Register published on the NDIS Commission's website will be updated to reflect the varied banning order made against Mrs Reid.



Sian Leathem

Complaints Commissioner

Delegate of the NDIS Quality and Safeguards Commissioner

NDIS Quality and Safeguards Commission

21 April 2023

ADMINISTRATIVE APPEALS TRIBUNAL
NATIONAL DISABILITY INSURANCE SCHEME DIVISION
PERTH REGISTRY **2023/3361**

VIDA REID
Applicant

COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

STATEMENT PURSUANT TO SECTION 37 OF THE *ADMINISTRATIVE APPEALS TRIBUNAL ACT* 1975

1. An application has been lodged (**T1**) for review of a decision of the respondent dated 21 April 2023 (**T1.1**), which varied the determination/banning order of 20 December 2022 to change the legislative basis for the banning order to section 73ZN(2)(a)(iii) and broaden the scope of the banning order under s 73ZO of the *National Disability Insurance Scheme Act 2013* (the NDIS Act).

DETERMINATION OF 20 DECEMBER 2022 (T14)

2. On 20 December 2022, a delegate issued a Notice of Banning Order to the applicant under s 73ZN of the NDIS Act. The delegate reasonably believed that the applicant had contravened, was contravening, or was likely to contravene the NDIS Act in accordance with s 73ZN(2)(a)(i) of the NDIS Act.

3. The banning order prohibited the applicant from being involved in the provision of supports or services to people with disability for a period of five (5) years.

4. The banning order did not apply in relation to any supports or services that the applicant may seek for herself or that she may provide to her son.

5. On 25 January 2023, the applicant requested reconsideration of the determination dated 20 December 2022 (**T16**).

REVIEWABLE DECISION OF 21 APRIL 2023 (T1.1)

6. On 21 April 2023, a delegate of the respondent varied the determination of 20 December 2022 to:

    6.1. change the legislative basis for the banning order from section 73ZN(2)(a)(i) of the NDIS Act to s 73ZN(2)(a)(iii) instead; and

    6.2. broaden the scope of the banning order to make it explicit that the applicant is to have no involvement with or in the NDIS sector, in any capacity. This includes the applicant being prohibited from:

Lodged on behalf of the Respondent
Contact: Karlie Dickinson

Prepared by: Karlie Dickinson
AGS lawyer within the meaning of s 55I of the *Judiciary Act 1903*

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(a) providing disability supports and services, directly or indirectly, to NDIS-funded participants;

(b) providing labour hire workers to support NDIS providers; or

(c) providing support, funding, guidance or assistance of any form to an NDIS provider.

6.3. The banning order (as varied) remains subject to the exception of the applicant being able to seek disability supports or services for herself and her son.

BACKGROUND TO CLAIM AND REASONS FOR DECISION

7. The reasons for the reviewable decision and the material relied upon to reach the decision are set out in the reviewable decision at **T1.1**.

Date: 8 August 2023



.....

Oliver Young
AGS lawyer
for and on behalf of the Australian Government Solicitor
Solicitor for the Respondent

NDIS Quality and Safeguards Commission

Compliance and Enforcement Policy

V2.0 – June 2019

NDIS Quality and Safeguards Commission
PO Box 210, Penrith NSW 2750.

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Compliance and enforcement

Monitoring and compliance is important to the NDIS Quality and Safeguards Commission's work as a regulator. It is one of the ways that the NDIS Commission can encourage best practice among NDIS providers and manage risk to NDIS participants.

The NDIS Commission will work with NDIS providers to help them comply with the new quality and safeguards requirements, including through education and training about their obligations.

The NDIS Commission will monitor registered providers for compliance with the conditions of their registration. Most registered providers must undergo a periodic audit that assesses their performance against the NDIS Practice Standards.

By knowing more about what happens in the NDIS marketplace, the NDIS Commission can work to support ongoing improvement.

The NDIS Commission will also investigate complaints and reports of non-compliance with the NDIS Practice Standards, Code of Conduct and other quality and safeguards requirements where they apply.

The NDIS Commission has the power to investigate any matters relating to registered and unregistered providers and workers. It can impose penalties, including, in the most serious cases, banning workers, de-registering providers and seeking civil penalties.

In determining its response to non-compliance, the NDIS Commission and Commissioner considers a range of factors including:

- the impact of non-compliance on the person with disability, and the broader community
- whether there is any immediate or ongoing risk to the well-being of the NDIS participant
- the seriousness of any non-compliance and the actual or potential harm or consequences
- how far below acceptable standards the conduct falls and the extent to which the person contributed to the risk, including whether it was intentional, reckless, negligent or a mistake
- potential to return the provider to full compliance, and as soon as possible.

Regulatory framework

The NDIS Commission's regulatory powers and functions are set out in the *National Disability Insurance Scheme Act 2013* (the Act) and associated Rules.

These functions are developmental, preventive and corrective, and target individuals, the workforce and providers to:

- strengthen and build capacity
- prevent harm and improve the quality of services
- resolve problems and provide oversight.

Non-compliance may be handled using a mix of tools including education, capacity building and development for people with disability (and their NDIS providers and workers), complaints handling, compliance and enforcement functions and related powers.

The NDIS Commission will take a responsive and proportionate approach to regulation, applying the strongest actions to the most serious issues and breaches.

Human Rights

The NDIS Commission will undertake its regulatory functions in accordance with the Act and with due regard to the United Nations Convention on the Rights of Persons with Disabilities (the Convention).

The NDIS Commission aims to uphold the rights of people with disability, as part of Australia's commitment to the Convention, to prevent exploitation, violence and abuse of people with disability. The NDIS Commission achieves this through:

- balancing the need to provide appropriate protections, with the need to enable people with disability to exercise choice and control
- focussing on building the capacity of people with disability, their families and carers to make informed decisions about NDIS providers and pursue concerns or complaints
- supporting a responsive and effective NDIS market for disability supports and services.

Procedural fairness

In exercising compliance, investigation and enforcement powers, the NDIS Commission will adhere to the requirements of procedural fairness which means:

- the Commissioner and staff of the NDIS Commission will avoid actual and perceived conflicts of interest and act in an impartial and objective manner
- affording a person an opportunity to be heard before making a decision affecting their interests.

Compliance and enforcement strategy

The NDIS Commission aims to achieve a balance between supporting people with disability to make informed choices, while also promoting high quality supports and services with appropriate safeguards to support the development of a responsive and effective NDIS market.

To achieve these objectives, the NDIS Commission will engage the following integrated strategies:

- encourage compliance with the law by educating and informing providers, participants and others about their rights and responsibilities under the Act
- work with other agencies to implement these strategies, including through coordinated approaches and appropriate referrals
- analyse emerging risks to identify potential market risks to inform compliance and enforcement measures, and identify priorities for regulation

- enforce the law, including through the use of administrative action and by initiating formal enforcement proceedings where that is necessary and appropriate.

If the NDIS Commission has concerns that an NDIS provider may not be complying with legislative requirements, or may become unable to comply, the initial focus of the NDIS Commission's approach, where appropriate, is to engage with the NDIS provider to support compliance.

Relevant considerations for the NDIS Commission in determining what, if any, further actions are to be taken will include: whether the provider has an understanding of the problem; whether the provider demonstrates a willingness to act to address the problem; whether the provider has a history of non-compliance; whether the non-compliance appears to be serious or systemic.

The compliance pyramid

A wide range of tools, methods and powers are available to the NDIS Commission. The actions to be taken will be determined on a case by case basis, including:

- the seriousness of the issue
- the appropriateness of the person's response
- the likelihood of further harm.

The compliance and enforcement actions available to the NDIS Commission are:

- administrative (these actions include education, formal warning letters, complaints resolution, compliance notices, infringement notices, revoking registration, and bans) or
- court-based (these actions include injunctions, taking action to enforce an undertaking, and civil penalties).

Administrative measures may enable earlier resolution than court action, and may also lend themselves to achievement of appropriate and timely outcomes that are in the participant's, provider's and/or public interest.

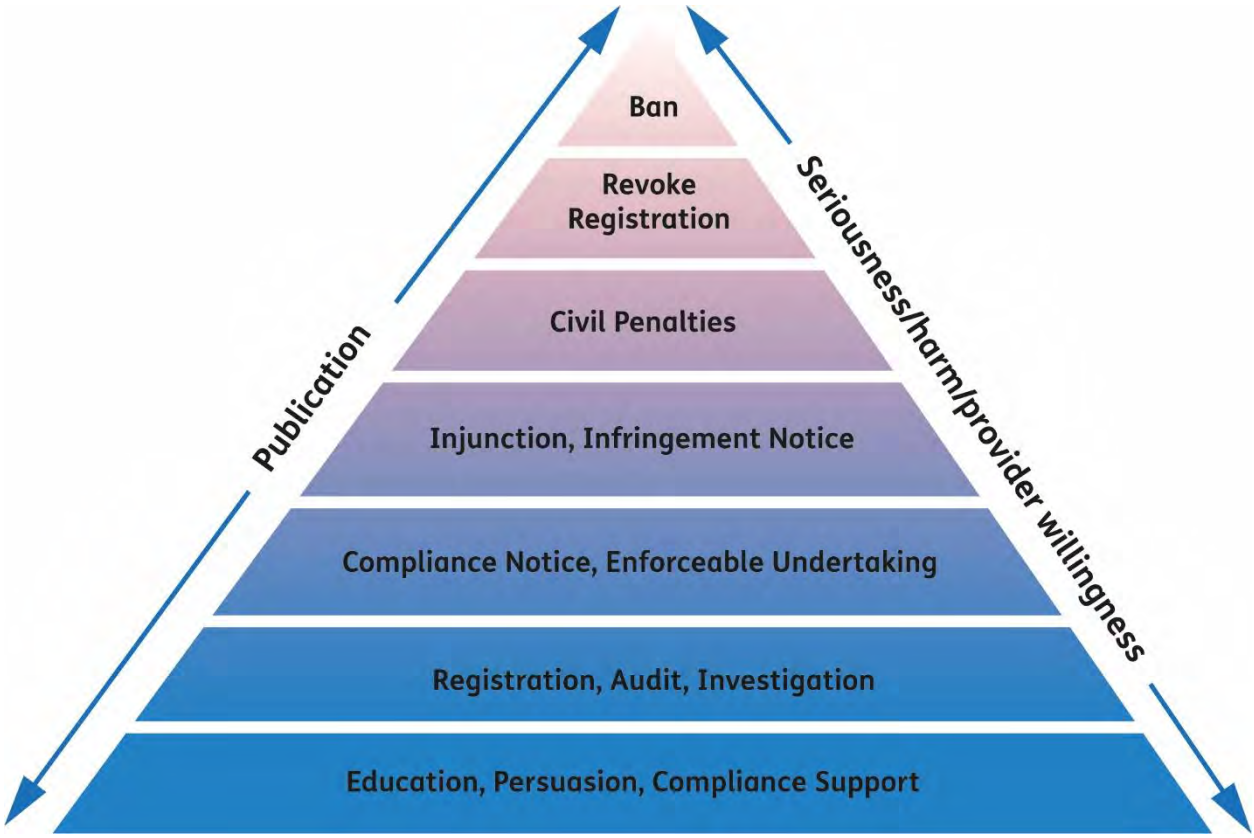
Information gathering, inquiry and monitoring powers will be used to help prevent people with disability from experiencing harm arising from poor quality or unsafe supports or services.

A monitoring activity, such as a site visit or regular contact with people working in the NDIS market, may assess compliance with the Act generally or may target particular responsibilities or obligations. This will help the NDIS Commission to make decisions about any further regulatory actions or support that may be necessary.

The Ayres & Braithwaite regulatory pyramid[1] helps to illustrate how the NDIS Commission works to support participants' choice and control and to support a responsive and effective NDIS market.

[1] I. Ayres and J. Braithwaite (1992) Responsive Regulation: Transcending the Deregulation Debate. New York: Oxford University Press. http://johnbraithwaite.com/monographs/

Figure 1: Compliance Pyramid



The pyramid helps to show how the NDIS Commission takes a responsive and proportionate approach to regulation, applying the strongest actions to the most serious issues and breaches. It also demonstrates the ability to escalate actions if an initial response does not achieve the intended outcome.

Some actions or regulatory tools are alternatives, while others are used in combination. Using a range of tools from the base of the pyramid may often achieve compliance fairly quickly without needing to escalate to more serious enforcement action, if appropriate. However, it is also open to the NDIS Commission to proceed directly with the strongest actions in a particular case.

Educate and persuade

The primary approach to achieving ongoing compliance and building the capacity of the sector is to educate, advise and encourage NDIS providers and workers to identify and understand their obligations and improve their practice.

Measures may include practical advice to improve outcomes, targeted education and outreach activities, engaging with the regulated community at the earliest possible stage, and providing timely information and advice through the NDIS Commission website, social media, and information sessions.

Such measures help to:

- raise awareness of the benefits of compliance, and the various measures that will be taken to address non-compliance

- remove barriers to compliance, such as lack of awareness about obligations, confusion with other regulators, or particular accessibility needs
- promote the objects of the Act, Practice Standards and NDIS Code of Conduct
- support a reduction in restrictive practices
- reduce the risk that people will inadvertently take action that constitutes a breach.

Having provided advice or guidance to achieve compliance and being satisfied a provider has taken timely and satisfactory steps to remedy a breach, the NDIS Commission may decide to take no further action.

If a provider is not making timely progress to rectify non-compliance the NDIS Commission will consider what additional action may be required to ensure the provider meets their responsibilities.

Investigations

The NDIS Commission will work with NDIS providers to support compliance with the new quality and safeguards requirements, including through education and training about their obligations.

The NDIS Commission may also investigate complaints and reports of non-compliance with the NDIS Practice Standards, NDIS Code of Conduct and other legislative requirements. The NDIS Commission can commence an own motion investigation into any matter relating to compliance by registered and unregistered providers and workers.

The NDIS Commission can exercise monitoring investigation powers (under Part 2 of the *Regulatory Powers (Standard Provisions) Act 2014* (Regulatory Powers Act) to check compliance with the Act or whether any information provided pursuant to the Act is correct. Broader investigation powers under Part 3 of the Regulatory Powers Act can be used where there is a suspicion that there has been non-compliance with any civil penalty or offence provision.

The NDIS Commission's information gathering powers under section 55A of the Act can be utilised regardless of whether or not there has been non-compliance in accordance with the functions of the NDIS Commission.

An investigation is the process of seeking information about alleged, apparent or potential non-compliance, and may support, precede or follow other action taken by the NDIS Commission.

NDIS Commission staff follow the Australian Government Investigations Standards and a range of other statutory requirements and policies, including:

- Regulatory Powers Act
- Prosecution Policy of the Commonwealth
- Guidelines on Disclosure to CDPP by Investigative Agencies
- Legal Services Directions under the *Judiciary Act 1903*
- Australian Public Service (APS) values and APS Code of Conduct
- Australian and New Zealand Risk Management Standards (AS/NZ ISO 31000:2009)
- *Crimes Act 1914*

Compliance notices

A compliance notice is a direction to a provider to do specified things or refrain from doing specified things where the NDIS Commission believes or suspects that there has been non-compliance with the Act.

Where there is a history of non-compliance or of the provider failing to co-operate and engage with the NDIS Commission, or where the non-compliance poses a significant risk to the health, safety and wellbeing of people with disability, a compliance notice may not be appropriate.

A compliance notice:

- must briefly set out the non-compliance or suspected non-compliance together with the action to be taken by the provider
- must also set out a reasonable time for the provider to take remedial action to rectify the non-compliance
- may also require the provider to produce evidence of the action taken to address the non-compliance.

Failure to comply with the requirements of a compliance notice may result in a civil penalty.

Enforceable undertakings

An enforceable undertaking is a legally binding agreement that may be entered into as an outcome of compliance activity, a complaints resolution process, such as conciliation, or as an alternative to civil penalty proceedings.

An enforceable undertaking is a written agreement committing the provider to a specific action (or inaction) in order to prevent, or respond to, the contravention of a provision of the Act. It provides an opportunity for significant improvement and/or reform to occur. An enforceable undertaking can be entered into in relation to a contravention or alleged contravention of the Act.

Undertakings provide a remedy other than financial sanctions, such as those that may be applied as a result of civil penalty proceedings. The NDIS Commission is able to apply to the Federal Court to have the undertaking enforced. The court may make any order it sees fit, including orders that the provider comply with the undertaking or pay a pecuniary penalty.

The availability of an enforceable undertaking in connection with a contravention will involve consideration of a number of factors, including:

- the nature and extent of a contravention
- the quality of the remedial action proposed and the extent to which it achieves measurable improvements for the safety of people with disability;
- the person's capacity and willingness to meet the undertaking
- the likelihood that the enforceable undertaking will deliver real benefits to people with disability, the NDIS market or community beyond that which would normally be expected of a provider.

An enforceable undertaking will generally not be accepted in circumstances where there has been a serious contravention causing harm to a person with disability.

Injunctions

An injunction can be used to compel a person to take certain action, or to refrain from taking certain action.

The NDIS Commission may seek an injunction from a court where:

- there is a serious risk to the health, safety or wellbeing of people with disability that has not been remedied
- other mechanisms available to the NDIS Commission have not resulted, or are not likely to result, in compliance being secured.

Injunctions may be used to restrain a provider from contravening a provision of the Act, or to compel compliance with a provision of the Act. Injunctions can be sought from a court to prevent conduct, require a provider to engage in certain conduct whether or not the specified conduct is occurring, has occurred in the past, or is likely to give rise to an imminent danger to people with disability.

This ensures that a court can prevent or require conduct to uphold the purposes of the Act without having to wait for non-compliance to occur.

Infringement notices

The NDIS Commission may give a person an infringement notice in response to an alleged breach of a civil penalty provision of the Act and as an alternative to taking court action. An infringement notice gives a person a chance to avoid court action over an alleged contravention by paying the penalty stated in the notice.

Paying an infringement notice is not an admission of liability. Payment of the penalty within the time specified means that court proceedings seeking a civil penalty cannot be brought against the person in relation to the alleged contravention.

If the person given an infringement notice chooses not to pay the penalty, then the NDIS Commission may bring court proceedings to have the court order the person to pay a financial penalty (which may be a greater amount than that stated in the infringement notice).

See the NDIS Commission's Infringement notice policy.

Civil penalties

A civil penalty is a financial penalty imposed by a court. Civil penalties are not criminal matters and do not result in a person being convicted of an offence. The aim of civil penalties is to deter people from breaching the law. The sections of the Act which carry a civil penalty for non-compliance are as follows:

Table 1 - Civil Penalty Provisions

Requirement	Maximum Penalty Units
Registered NDIS providers must comply with conditions of registration	250 units (individual) 1250 units (corporation)
Failure to comply with NDIS Code of Conduct	250 units (individual) 1250 (corporation)

Requirement	Maximum Penalty Units
Requirement to be a registered NDIS provider	250 units (individual) 1250 (corporation)
False or misleading information or documents in application to become a registered provider	60 units (individual) 300 (corporation)
Record keeping by registered NDIS providers (because it is a condition of registration)	250 units(individual) 1250 (corporation)
Record keeping by former registered NDIS providers	60 units (individual) 300 (corporation)
Victimisation of a person who discloses information (whistle-blower) prohibited	500 units (individual) 2500 (corporation)
Failure to comply with a compliance notice	60 units (individual) 300 (corporation)
A person engages in conduct that breaches a banning order made against that person	1000 units (individual) 5000 (corporation)

The maximum penalty units (as set out in the table) applicable to each provision demonstrate the seriousness of the breach. Where the person who has breached a civil penalty provision is a body corporate the maximum penalty payable is 5 times the prescribed penalty units. Currently, one penalty unit equals $210.

Any conduct that is ancillary to the contravention of a civil penalty provision is taken to be a contravention of the provision. Ancillary conduct includes any attempt to contravene a provision, aiding or inducing a contravention of a civil penalty provision, or conspiracy to contravene a civil penalty provision.

A provider is responsible for the actions of any of its workers in relation to the contravention of a civil penalty provision.

Vary, suspend or revoke registration

The NDIS Commission may decide to vary, suspend or revoke a provider's registration in order to deal with inappropriate conduct or practices. Such action is a protective measure and may be undertaken even where steps have been taken to remedy a contravention or where a provider has otherwise been the subject of more formal compliance action.

The NDIS Commission may vary the registration of a registered NDIS provider at the NDIS Commission's own initiative at any time. Possible variations to a registered NDIS provider's registration include:

- imposing, varying or revoking conditions to which the registration is subject
- reducing the period for which the registration is in force
- placing limits on the supports or services the provider is authorised to provide.

As the variation, suspension or revocation of a provider's registration may have serious consequences for people with disability and the provider, the NDIS Commission will balance these considerations with the paramount need to prevent harm to people with disability when making a decision.

Banning orders

The NDIS Commission may make a banning order that prohibits or restricts specified activities by a provider or a person employed or otherwise engaged by a provider.

A banning order is one of the most serious regulatory responses to prevent a person from providing supports or services in the NDIS market. It is intended to apply to an NDIS provider or person employed or otherwise engaged by an NDIS provider in circumstances where it is the most appropriate regulatory option available to prevent people with disability from experiencing harm arising from poor quality or unsafe services provided under the NDIS. The civil penalty in relation to this provision of the Act is therefore substantial, to indicate the serious nature of non-compliance with a banning order.

A banning order may only be made, in accordance with natural justice principles, where the person has been given an opportunity to make submissions to the Commissioner on the matter, except in the following circumstances:

- where there is immediate danger to the health, safety or wellbeing of a person with disability
- where the NDIS Commission has revoked the registration of the NDIS provider.

Where the NDIS Commission is satisfied that it is appropriate to do so, it may vary or revoke a banning order. This may be done on the NDIS Commission's own initiative or on application by the person against whom the order was made.

Reviewable decisions

A person can seek review of certain types of decisions if they are directly affected by the decision. When the NDIS Commission undertakes this review, it is known as an internal review.

An internal review must be undertaken by an officer of the NDIS Commission who was not involved in making the original decision.

A request for review may be made to the NDIS Commission by:

- sending or delivering a written request by mail or email
- making an oral request, in person or by phone, or other means to the Commissioner.

A person affected by a decision who is not satisfied with the outcome of an internal review may apply for the decision to be reviewed by the Administrative Appeals Tribunal (AAT).

The decision stays in place until and unless another decision is made. However, a person may request that the AAT make an order staying or otherwise affecting the implementation of the decision.

Table 2 - Decisions Subject to Review

Decision	Section
A decision to refuse to register a person as a registered NDIS provider	s 73E
A decision to impose conditions to which a person's registration as a registered NDIS provider is subject	s 73G
A decision to vary, or refuse to vary, the registration of a registered NDIS provider	s 73L

Decision	Section
A decision to suspend the registration of a registered NDIS provider	s 73N
Aa decision to revoke, or not to revoke, the registration of a person as a registered NDIS provider	s 73P
Aa decision to give a compliance notice to an NDIS provider	s 73ZM
A decision to make a banning order	s 73ZN
A decision to vary, or to refuse to vary or revoke, a banning order	s 73ZO

From: Simon Reid <simon@ffg.net.au>
Sent: Wednesday, 1 December 2021 6:17 PM
To: MITROVIC, Mirjana
Cc: Vida Reid; Grant Williams
Subject: Fwd: NDIS Response
Attachments: Conflict of Interest Policy.pdf; Privacy Policy.pdf; Feedback and Complaints Criteria for Complaint Manager or Incident Manager.pdf; Complaints Register.pdf; Feedback and Complaints Assessment_ Investigation and Resolution Considerations.pdf; Feedback and Complaints Form.pdf; Conflict of Interest Declaration.pdf; Conflict of Interest Policy.pdf; Conflict of Interest Register.pdf; Feedback and Complaints Form.pdf; Privacy Policy.pdf; Complaints Register.pdf

Hi Mirjana,
Please find below our responses to the questions outlined to us. As per our discussion, we can only provide generic responses to the questions. Rest assured we take complaints seriously, and in the spirit of constant improvement to our business of providing the best care possible for participants, we will always act in good faith in taking onboard feedback from the commission.

Since we are a relatively new provider in the space but growing quickly, we know we will make mistakes from time to time, but we actively work hard at upskilling and training our staff in our ethics and best practice standards.

Please feel free to call or email me if there is anything else we can assist you with.

From: Grant Williams <grant.w@ffg.net.au>
Sent: Wednesday, December 1, 2021 9:43:14 AM
To: Simon Reid <simon@ffg.net.au>
Subject: NDIS Response

1. Evidence of your incident reporting, risk management and complaints management practices and how they are communicated and understood by participants and staff. Please provide evidence of how this is working, not just the policy and procedures

   FFG Have incident, risk management and complaints registers in place and used appropriately. We keep detailed case notes on all interactions between coordinators and participants and our staff have daily buzz meetings with management to ensure that our culture promotes use of these tools in all situations they may be necessary.

   FFG staff have access to Brightsafe which allows staff to report risks/hazards via a mobile telephone App.

   The complaints management is managed by the NDIS Business Development Manager. All complaints are entered to complaints register (attached). All complaints investigations are initiated within 1 business day. A outcome will be given within 5 business days. FFG policy states that the manager of complaints should be impartial and free of actual or apprehended bias. The policy states the test for apprehended bias is whether a fair-minded observer might reasonably suspect that the investigating Manager s not impartial.

See attached our registers for all three and demonstrated examples where we have used them.

2. Information regarding how you are transparent to participants and stakeholder regarding your organisational structure in regard to running a family business.

   FFG is owned entirely by Simon and Vida Reid and are its only directors. This information is commonly shared. Our newly designed website will give clear direction who the owners of the company are.

   FFG policy states that the manager of complaints should be impartial and free of actual or apprehended bias. The policy states the test for apprehended bias is whether a fair-minded observer might reasonably suspect that the investigating Manager not impartial.

3. Evidence of organisational processes and/or communications that explain to NDIS participants the kinds of information that will be held on them and why, who will have access to it and how it is used/stored;

   FFG explain to all participants the information access requirements of the organisation, who has access to it and how it is stored in our consent to share information forms that are signed by all participants before commencement of service.

   FFG have secure systems and CRM record keeping software that restricts who has access to private information to necessary stakeholders to facilitate our work. Our CRM record keeping timestamps all information shared and keeps copies of these service agreements, consents to act and consents to share.

   FFG policy states Management of each participant's information ensures that it is identifiable, accurately recorded, current and confidential. Each participant's information is easily accessible to the participant and appropriately utilised by relevant workers. Each participant understands and agrees to what personal information will be collected and why, including recorded material in audio and/or visual format.

4. Evidence of how Forward Focused Group Pty Ltd provides transparent quotes for services and sets expectations for NDIS participants regarding service times, capacity and costs;

   FFG clearly provides a transparent price quote and outlines our expected scope of work in a detailed service agreement, which we also provide a copy of to the participant and give a cooling off period to allow a change of mind. Copy is attached

5. Evidence of how Forward Focused Group Pty Ltd ensures that services and funds are expended according to a NDIS participants' plan only and does not offer inducements or rewards that could be perceived to influence people to take up or continue with provider services;

   FFG staff are constantly being trained in best practice to assist participants to assess whether the supports they are sourcing meet the goals and would be considered reasonable and necessary under the act. These services also reflect value for money.

   We provide training by best practice bodies to all staff such as DSC training, and have daily buzz meetings with staff to ensure staff adhere.

   We have a conflict of interest register in place for when conflicts of interest are unavoidable, but as a practice prefer to remove conflicts wherever possible. Training certificates attached.

6. Evidence of how Forward Focused Group Pty Ltd manages potential or perceived conflicts of interest that may affect delivery of services;

   As above, conflicts of interest involving staff are removed at FFG whenever they are discovered. Conflicts with FFG providing secondary services are recorded in our conflict register and a procedure followed whereby participants are made aware of the conflict and offered alternative services.

7. Evidence of organisational processes that support NDIS participants to understand their right to make a complaint, including how Forward Focused Group Pty Ltd implements and maintains incident and complaint management systems to identify, assess, manage and resolve incidents and complaints as they occur. This

must include procedures for acting on allegations of breaches against the NDIS Code of Conduct and reporting incidents to the NDIS Quality and Safeguards Commission as appropriate;

Rights and procedures for making complaints are clearly outline in our service agreement document and anonymous complaint channels are available through our website and paper documents provided to participants at initial meeting. We record all complaints and outcomes in our constant improvements register and use these rare instances as training tools on how to improve our practices to meet best standard.

8. Any internal investigation reports completed; and

   Any other relevant documents that will support your response attached



Grant Williams
Business development manager at Forward Focused Group

A 2/210 Jull street, Armadale, WA 6112 [Next to Dome Cafe]
P 08-61177786 **E** grant.w@ffg.net.au
W https://forwardfocusedgroup.com.au

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FORWARD FOCUSED
YOU ARE OUR FOCUS

I ndis Registered NDIS Provider

Forward Focused Group ABN 98 643 878 639

Complaints Register

This Complaints Register should be interpreted and completed in accordance with the Feedback and Complaints Management Policy

Date and time of complaint	Mode of complaint	Complaint Form completed?	Complainant Name, Phone Number and Email Address	Description of the complaint	Desired outcome for complainant	Date actioned	Date completed	Reasons for action/decision	Complainant notified of outcome	Complainant response and any further action	Complaint Manager signature
Date and Time	*Phone/In person/via website/by post*	*Y/N and provide reference to form*	*Name* *Phone Number* *Email Address* *Relationship of complainant to Forward Focused Group*	*Include a full description of the complaint. Update as new information is provided in accordance with Complaints Process set out in Feedback and Complaints Management Policy*	*Set out desired outcome for complainant in full and update as required*	*Date*	*Date*	*Give detailed reasons for action/decision*	*Y/N and by what mode(s) of communication and on what date(s).*	*Provide detailed notes of response*	*Details, signature and date of signature for Complaint Manager*

Approved By:	The board of Forward Focused Group Pty Ltd	**Version**	1
Approval Date:	January 2021	**Next Scheduled Review**	January 2022

Conflict of Interest Declaration

1. Introduction

1.1 General

When conducting support coordination services in addition to other necessary supports for a Client, to ensure that any perceived or actual conflict of interest is managed, Forward Focused Group will:

(1) explain our Conflict of Interest Policy to Clients in a manner that the Client is most likely to understand.

(2) to ensure there is no conflict of interest, when Forward Focused Group proposes to provide services that the Client requires, in addition to support coordination, endeavour to always provide 3 quotes (if possible) from other businesses, in addition to our own. It is then the Client's decision if they would like to choose our supports (in addition to support coordination) or go with another provider.

(3) make clear to the Client that their decision to choose an alternative provider will not affect their support coordination services at all, as they operate independently from each other, and that the Client need not be worried about any repercussions.

(4) document, in case notes and/or below, the choice of providers offered to a Client and/or their nominee for each support category where a provider is to be engaged.

(5) document, in case notes and/or below, the rationale for the Client's choice of provider for each support category where a provider is engaged.

(6) where a Client has chosen another Forward Focused Group service for service provision, a request for capacity or quote is documented by the support coordinator in respect of such service proposed to be offered by Forward Focused Group.

(7) provide information to the Client and/or their nominee at the initial meeting of the process for requesting a change in service provider, including support coordination.

2. Declaration by Client

I, ……... ,
Client name (printed)/Guardian on behalf of Client

have been explained the key terms of the Forward Focused Group Conflict of Interest Policy (including the terms set out above) and understand that a conflict exists if Forward Focused Group was to provide support coordination supports and other supports to me.

Accordingly, I acknowledge, agree and otherwise consent to:

☐ Forward Focused Group providing support coordination supports and other supports to me, notwithstanding that a conflict may exist

☐ Forward Focused Group providing only support coordination supports to me

☐ Forward Focused Group providing only providing other supports to me (and not support coordination supports to me)

_____ DATED this……...day of……..20……...
Signature

_____
Full name (printed)

3. Declaration by Forward Focused Group Staff Member:

I declare that I have explained the Conflict of Interest Policy to the Client, including how a conflict may arise in the provision of supports by Forward Focused Group.

If Forward Focused Group proposes to provide services that the Client requires, in addition to support coordination, we obtained and provided quotes from alternative, in addition to our own. The key terms of those quotes, including our own, are set out below:

Relevant Supports	**Relevant Provider**	**Quote**

_____ DATED this……...day of……..20……...
Signature

Forward Focused Group ABN 98 643 878 639

Conflict of Interest Register

Date of Notification	Worker Name	Nature of any conflict or interest arising	Authorisation Granted? (Y/N)	Date of authorisation granted	Authorisation granted by?

1. Introduction

1.1 Purpose

This Policy and the Policies and Procedures and related documentation set out in section 1.5 below (**Related Documentation**) supports Forward Focused Group to apply the Governance and Operational Management NDIS Practice Standard.

1.2 Policy Aims

Forward Focused Group is committed to ensuring each participant's support is overseen by robust governance and operational management systems relevant (proportionate) to the size, and scale of the provider and the scope and complexity of supports delivered.

1.3 NDIS Quality Indicators

In this regard, Forward Focused Group aims to demonstrate each of the following quality indicators through the application of this Policy and the relevant systems, procedures, workflows and other strategies referred to in this Policy and the Related Documentation:

(a) Opportunities are provided by the governing body for people with disability to contribute to the governance of the organisation and have input into the development of organisational policy and processes relevant to the provision of support and the protection of participant rights.

(b) A defined structure is implemented by the governing body to meet a governing body's financial, legislative, regulatory and contractual responsibilities, and to monitor and respond to quality and safeguarding matters associated with delivering support to participants.

(c) The skills and knowledge required for the governing body to govern effectively are identified, and relevant training is undertaken by members of the governing body to address any gaps.

(d) The governing body ensures that strategic and business planning considers legislative requirements, organisational risks, other requirements related to operating under the NDIS (for example Agency requirements and guidance), participants' and workers' needs and the wider organisational environment.

(e) The performance of management, including responses to individual issues, is monitored by the governing body to drive continuous improvement in management practices.

(f) The provider is managed by suitably qualified and/or experienced persons with clearly defined responsibility, authority and accountability for the provision of support.

(g) There is a documented system of delegated responsibility and authority to another suitable person in the absence of a usual position holder in place.

(h) Perceived and actual conflicts of interest are proactively managed and documented, including through development and maintenance of organisational policies.

1.4 Scope

(a) This Policy applies to the provision of all services and supports at Forward Focused Group.

(b) All permanent, fixed term and casual staff, contractors and volunteers are required to take full responsibility for ensuring full understanding of the commitments outlined in this Policy.

1.5 Related Documentation

The application of the above NDIS Practice Standard by Forward Focused Group is supported in part by and should be read alongside the Policies and Procedures and related documentation corresponding to this Policy in the Policy Register.

2. Definitions

2.1 Definitions

In this Policy:

Forward Focused Group means Forward Focused Group Pty Ltd ABN 98 643 878 639.

Client means a client of Forward Focused Group (including an NDIS participant).

Legislation Register means the register of legislation, regulations, rules and guidelines maintained by Forward Focused Group.

Policy Register means the register of policies of Forward Focused Group.

Principal means Vida Reid and Simon Reid.

Related Documentation has the meaning given to that term in section 1.1.

Worker means a permanent, fixed term or casual member of staff, a contractor or volunteer employed or otherwise engaged by Forward Focused Group and includes the Principal.

3. Policy Statement

3.1 General

(a) Forward Focused Group and its Workers will ensure that when providing support to Clients under the NDIS, any conflict of interest is declared and any risks to Clients are mitigated.

(b) All Workers will act in the best interests of its Clients, ensuring that they are informed, empowered and able to maximise choice and control. Workers will not (by act or omission) constrain, influence or direct decision-making by a person with a disability and/or their family so as to limit that person's access to information, opportunities, and choice and control.

(c) Workers will ensure that Forward Focused Group proactively manages perceived and actual conflicts of interest in service and support delivery. Workers will:

(1) manage, document and report on individual conflicts as they arise, and

(2) ensure that advice to a Client about support options (including those not delivered directly by Forward Focused Group is transparent and promotes choice and control.

(d) All Clients will be treated equally, and no Client shall be given preferential treatment above another in the receipt or provision of supports.

3.2 Managing conflict of interest in Support Coordination

(a) Clients will be presented with a range of choices about providers of support. Forward Focused Group will not seek to influence the Client to select itself.

(b) As Forward Focused Group provides support coordination as well as other supports to Clients, Clients are always informed of other alternative providers available to provide necessary support, enabling Clients and families to exercise their choice and control in the support received. Clients and families are also informed of any relevant conflicts with other providers who may have a relationship with Forward Focused Group, where this is relevant.

(c) Specifically and where conducting support coordination services to a Client, to ensure that any perceived or actual conflict of interest is managed, Forward Focused Group will:

(1) explain this Policy to Clients in a manner that the Client is most likely to understand.

(2) to ensure there is no conflict of interest, when our support coordinators obtain quotes for services on a Client's behalf, endeavour to always provide 3 quotes (if possible) from other services, in addition to our own. It is then the Client's decision if they would like to choose our services and support or go with another provider.

(3) make clear to the Client that their decision to choose an alternative provider will not affect their support coordination services at all, as they operate independently from each other, and that the Client need to be worried about any repercussions.

(4) document, in case notes, the choice of providers offered to a Client and/or their nominee for each support category where a provider is to be engaged.

(5) document, in case notes, the rationale for the Client's choice of provider for each support category where a provider is engaged.

(6) where a Client has chosen another Forward Focused Group service for service provision, a request for capacity or quote is documented by the support coordinator.

(7) provide information to the Client and/or their nominee at the initial meeting of the process for requesting a change in service provider, including support coordination.

3.3 Relevant Legislation, Regulations, Rules and Guidelines

Legislation, Rules, Guidelines and Policies applies to this Policy and Related Documentation as set out in the Legislation Register.

3.4 Inconsistency

If and to the extent that the terms of this Policy are or would be inconsistent with the requirements of any applicable law, this Policy is deemed to be amended but only to the extent required to comply with the applicable law.

3.5 Policy Details

Approved By:	The board of Forward Focused Group Pty Ltd
Approval Date:	January 2021
Next Scheduled Review:	January 2022
Version:	1

Feedback and Complaints Assessment, Investigation and Resolution Considerations

This is a six-step strategy that can be used by a Complaint Manager, Incident Manager or external investigator to investigate a complaint. This can be adapted to meet the needs of a particular complaint. Many complaints are unlikely to require a full investigation but complex or serious complaints will need to be investigated, including where serious misconduct allegations have been made about an identifiable Worker.

1. Step 1: Assessment

(a) Make sure that you understand the complaint and the support or services that caused the concern to be raised or complaint to be made.

(b) Develop an understanding of the complaint from the complainant's perspective and the perspective of any person with disability. Think about how you would be feeling if you were in each of their respective situations.

(c) If you are unsure about what the complaint is about or what the complainant expects from you, give them a call, email them or arrange to meet with them.

(d) Know when and how you can resolve a complaint straight away. If you can take prompt action to resolve the complaint, do so – and confirm with the complainant (and any person with disability affected) the action you have taken.

(e) Know when and how you escalate or refer a complaint. If you do not have the authority or knowledge to handle or resolve the complaint, make sure that you promptly refer or escalate to another staff member. But, make sure the complainant (and any person with disability affected) is kept informed.

(f) Some additional factors to take into account:

(1) Who can provide assistance, advice or the answers you require to resolve the complaint? Colleagues, management, other Workers or contractors.

(2) Keep track of the time allowed for your evaluation and assessment of the complaint.

(3) Develop a checklist of major and minor issues.

(4) Check the status of any third parties involved – be aware of confidentiality and privacy issues.

2. Some consumer vulnerability issues that might be considered

(a) Is the complainant having difficulty in communicating their complaint to you?

(b) Do they need an interpreter or translation help or information in a different format like Braille or audio-tape?

3. Step 2: Investigation

(a) Get to know the service or supports you are reviewing. What policies, processes, codes of practice, client information, complainant (and any person with disability affected) literature or service charters are relevant?

(b) Share details of the complaint with those colleagues or staff members who need to know about it (on a confidential basis).

(c) Gather files, correspondence (letters and emails), statements, incident notes and any meeting or telephone call notes

(d) Allocate time to investigate the complaint fully.

(e) Describe the chronology of events that gave rise to the problem that lead to the complaint – and any subsequent events following the complaint being made.

(f) Identify any areas of dispute between the complainant (and any person with disability affected) and the organisation.

(g) Target any areas that may need further investigation – and consider the time implications.

4. Requesting comments from colleagues and partner organisations

(a) If you need to request comments from a colleague, internal team or partner organisation – agree a deadline date with them for providing those comments back to you.

(b) Corroborate any statements received – in some situations; you may need to request additional comments or statements based on the comments and information collected.

(c) Identify areas for further questioning or interviews.

(d) Request any further action required to mitigate the problem, where necessary.

(e) Keep records in the complaint register

5. Interviewing

Interviews can be carried out by phone or in person. When interviewing:

(a) Establish who you need to interview, where and when.

(b) Think about what information you need.

(c) Keep a record of your discussion and highlight any key points.

(d) Be sensitive to any vulnerability issues.

(e) If interviewing the complainant (and any person with disability affected), make sure the complainant (and any person with disability affected) knows who you are and how to contact you.

(f) Listen carefully.

(g) Do not promise the unachievable – to either the complainant (or any person with disability affected) or colleagues.

(h) Ask relevant questions and guide the conversation.

6. Summarise and agree on the next action steps before ending the interview.

Keep the complainant (and any person with disability affected) informed. If your response to the complaint is going to be delayed for any reason let them know, and give reasons for the delay, such as a need to get information from other agencies.

7. Step 3: Weighing the evidence

When you have collected your evidence:

(a) Challenge it!

(b) Look behind it!

(c) Do you need more?

Look out for common pitfalls, such as:

(a) Incorrect information.

(b) Staff members have been mistakenly working to old versions of policy manuals or process documents.

(c) Gaps in policy or process.

(d) Failure to relate to mitigating circumstances (especially where a consumer vulnerability has been identified).

(e) Misfiling of correspondence or incorrectly allocated transactions.

(f) Check the complainant (and any person with disability affected) history, they may be confused and be referring to another matter.

(g) Incorrect progression of a case – missing out a key process step.

(h) Client able to provide evidence of the product being collected for return – but not registered as having been received within the organisation.

Measure the evidence against:

(a) Legislation, regulations and guidance circulars (including as released by the NDIS Quality and Safeguards Commission).

(b) Internal policies and procedures: make sure you are up to date on local policies and procedures.

(c) Product literature: Does your consumer information clearly explain how the product should be used?

(d) Service charters: was the service delivered to the required standard?

(e) Precedent: has reasonable action already been taken when similar complaints have been handled?

(f) Service Agreement: what do the terms of the Service Agreement say about the subject matter of the complaint?

If your evidence is not clear-cut:

(a) You can re-interview to confirm details and focus on any contradictions.

(b) You can look for more evidence.

(c) You can get a legal opinion.

(d) You can ask for advice from another team or department or organisation (or ombudsman or a regulator where appropriate).

If you need more time because you need to gather more evidence or hold further discussions, phone the complainant and send a holding response – but make sure that you explain why your response is being delayed.

Your actions should build the complainant (and any person with disability affected)'s confidence in your handling of the complaint – and improve the complainant (and any person with disability affected)s' view of your organisation. If you have to get advice or evidence from any third parties, you should set deadlines for this information to be returned to you. This will help to get the information on time.

Don't twist the circumstances – this can damage the position of your organisation at a later date.

8. Step 4: Correcting mistakes

Your investigations are going to uncover mistakes. You may discover that a mistake has been made, a product has failed, or something has simply gone wrong with a process. This is the benefit of complaint handling – the complainant (and any person with disability affected) is giving you the opportunity to find out why something has gone wrong and take action to put things right and prevent the same problem from occurring again.

(a) Talk to your Workers so that they will know what to expect in advance.

(b) Try to sort out the mistake.

(c) Take positive steps to avoid repetition of the problem.

9. What mistakes do you need to make right?

(a) Providing a poor-quality service or a faulty product.

(b) Unreasonable delay in providing a service or product.

(c) Failure to provide a service to a published standard.

(d) Failure to comply with regulations or the law.

(e) Failure to follow a policy, rule or procedure.

(f) Unfair discrimination against a complainant (and any person with disability affected).

(g) Failure to tell complainant (and any person with disability affected)s about their rights or entitlements.

(h) Inaccurate or misleading advice being given to a complainant (or any person with disability affected).

(i) Unsuitable or inappropriate service knowingly being provided to a client.

(j) Poor or unclear communications with the complainant (or client).

10. Step 5: Putting things right

Putting things right at an early stage gives you a greater chance of satisfying a complainant (and any person with disability affected) – and saves you time!

A complaint should be used as an opportunity to look at what you can do to improve the way things are done – even if a mistake has not been made.

Finally, be prepared to carry a feeling of uncertainty… but do not doubt that you have acted unfairly!

11. What can you do to put things right?

The specific actions that can be taken will be dependent on your organisation but might include:

(a) Say sorry to the complainant (and any person with disability affected).

(b) Provide information or an explanation to the complainant (and any person with disability affected).

(c) Review client-related literature.

(d) Review an operational process.

(e) Arrange training or guidance for staff members.

(f) Take action to address under-performance.

(g) Make a goodwill gesture or give a refund.

The objective – when putting right a mistake – must be to put the complainant (and any person with disability affected) back to the position that he or she would have been in but for the mistake. If the complainant (and any person with disability affected) made a mistake, you will need to be tactful and give guidance for the future.

12. Assessing financial redress

When assessing financial redress think about the following:

(a) Have the complainant (and any person with disability affected)'s own actions or lack of action added to the problem?

(b) Has our mistake caused the complainant (and any person with disability affected) to, quite reasonably, incur costs?

(c) Has our mistake caused the loss of a non-monetary benefit for the complainant (and any person with disability affected)?

(d) Has our mistake caused inconvenience, stress, anxiety, frustration, worry or uncertainty to the complainant (and any person with disability affected)?

(e) Has our mistake led to the complainant (and any person with disability affected) having to pay for professional advice?

(f) Have you checked whether any statutory regulations or contractual agreements require the payment of compensation to the complainant (and any person with disability affected)?

(g) Has the complainant (and any person with disability affected) been put to considerable time and trouble in pursuing the complaint?

(h) How long did we take to resolve the matter?

(i) How much time and effort was required by the complainant (and any person with disability affected)?

(j) What difficulties did the complainant (and any person with disability affected) experience?

(k) How inadequate were our previous responses?

(l) Did we act deliberately as opposed to simply getting things wrong?

(m) Did the complainant (and any person with disability affected) incur any minor or generally un-quantified expenses? (significant postage or telephone costs, travel costs, loss of earnings and so on)

13. Step 6: Respond

(a) An effective response has the ability to reassure a complainant (and any person with disability affected) and demonstrate the professionalism and commitment to complainant (and any person with disability affected) service of your organisation.

(b) A response should concentrate, where possible, on the positives and show the complainant (and any person with disability affected) that you understand their feelings.

(c) If you are writing a letter or email to communicate the findings of your investigation and respond to the complaint:

(1) Open with a clear statement to show that you are responding to the complaint.

(2) Definition of the complaint: this shows the complainant (and any person with disability affected) that you have understood his or her complaint.

(3) Give your understanding of the complaint in a logical sequence.

(4) Summarise the facts you have considered and your findings – explain what you have found and give reasons.

(5) Explain the use of any precedent or attempts to consider the balance of probability when weighing the evidence being considered.

(6) Explain your decision – give any good news first – and clear up any queries raised in the complaint.

(7) Close with a goodwill statement.

(8) Include responses to 'signpost' the contact point for any escalation of the complaint (including to the NDIS Commission).

14. A quality response

(a) Your responses should always be proofread and revised.

(b) Always read through your response (ideally, more than once) and, if possible, someone else should look at it before the response is sent to the complainant (and any person with disability affected).

15. Style guidelines

(a) Use a strong, clear typeface: such as Arial

(b) Use a font size around point 10-12

(c) Never use full CAPITALISATION (unless you want your words to shout at your complainant (and any person with disability affected)!)

(d) Use bold type to emphasise words

(e) Use open punctuation

(f) Use headings if the letter needs to be split into sections

(g) Choose everyday plain English words: use words like "try" instead of "endeavour"; "home" instead of "dwelling"; "about" rather than "with regard to"

(h) Avoid lots of legal words: such as “at your earliest convenience”, “enclosed herein”, “your good selves”.

(i) Try not to be sexist: avoid writing that carries a bias towards one gender or another

(j) Avoid abbreviations: use “for example” instead of “e.g”.

Feedback and Complaints Criteria for Complaint Manager or Incident Manager

1. A Complaint Manager or Incident Manager should be impartial and free of actual or apprehended bias. The test for apprehended bias is whether a fair-minded observer might reasonably suspect that the Complaint Manager or Incident Manager is not impartial.

2. Apprehended bias can be inferred from a person's conduct, comments, associations or other relevant circumstances. Examples of apprehended bias can include situations in which a Complaint Manager or Incident Manager (or person conducting an inquiry):

   (a) has a conflict of interest or personal stake in the matter to be resolved, or a relationship with one of the parties that casts doubt on the appearance of fairness;

   (b) displayed hostility or favouritism to one of the parties involved in a matter;

   (c) made comments that suggest the Complaint Manager or Incident Manager has prejudged a disputed issue and will not approach the evidence with an open mind;

   (d) was involved at an earlier stage of the process, for example, in making the allegation to be investigated or providing a statement in support of one of the parties.

3. The actual or apprehended bias of a Complaint Manager or Incident Manager can undermine both the integrity and legal validity of the decision making process and outcome. The responsibility rests on the Complaint Manager or Incident Manager to ensure there is no actual or apprehended bias, and if necessary to withdraw from the process and assign the decision making responsibility to another person. If that is not practical (for example, it is a small organisation) another option is to outsource the inquiry/assessment role to an external professional to prepare a report for the Complaint Manager or Incident Manager. Forward Focused Group in its capacity as an NDIS provider has flexibility in deciding how to deal with bias and conflict of interest concerns.

4. It is good practice to clarify bias and conflict of interest concerns before the process commences. It is open to the parties, once informed of a potential issue, to waive any objection and to allow the Complaint Manager or Incident Manager to continue. On the other hand, a Complaint Manager or Incident Manager should not be chosen or withdrawn merely because one of the parties raises a bias objection: the test of the 'fair-minded observer' should be followed. It is common that decision makers will know or work with one or other of the parties, have some familiarity with the issues to be decided, or have expressed a preliminary view on or more of those issues.

5. If a bias issue arises during the course of an inquiry after evidence and submissions have already been collected, these can generally be made available to the new inquirer/decision maker, subject to ensuring procedural fairness. It is good practice to consult the parties about this option before doing so.

Feedback and Complaints Form

If you have a concern or complaint about your current NDIS support or services provided by Forward Focused Group, it's important to talk about it. Fill out this complaint form below and we will respond to you within 3 business days.

A complaint may be made on an anonymous basis. You can make an anonymous complaint:

(a) by calling us on on +61478889648 and stating that you wish to make an anonymous complaint (so we don't ask you to identify yourself); or

(b) by filling out this Feedback and Complaints Form but not including your name and the other details in the table below as these may identify you and post it to 96 Amethyst Crescent, Mount Richon WA 6112.

1. Please provide your details:

Today's date	
First name	
Last name	
Telephone (e.g. 0299999999)	
Email address (e.g. name@company.com)	
I am a	Client / Family member or friend / Advocate / Carer / Staff Member / Other

2. Are you making this complaint on behalf of a person with disability? *

- ○ **Yes**
- ○ **No**

3. Do you require any help with communication or any other form of support? e.g Interpreter?

- ○ **Yes**
- ○ **No**

If you require help, please provide details of the help you need	

4. Please provide details of your complaint.

Details of your feedback/complaint	*(Please attach further pages to this form if your description does not fit in this box)*

5. Agreement

I agree that the information included in this Feedback and Complaints Form is true and correct:

_____

Signature

6. Rights to access advocates

You may seek support from family, a friend or an independent advocate in making a complaint. If you require an advocate or representative, please let us know and we would be pleased to cooperate with, and facilitate arrangements for, advocates (including independent advocates) and other representatives.

7. How to make a complaint to the NDIS Commission

For NDIS Clients in New South Wales, South Australia, the Australian Capital Territory, Northern Territory, Queensland, Victoria or Tasmania, a complaint can be made to the NDIS Commission by:

- Phoning: 1800 035 544 (free call from landlines) or TTY 133 677. Interpreters can be arranged.
- National Relay Service and ask for 1800 035 544.
- Visiting https://www.ndiscommission.gov.au/about/complaints and completing a complaint contact form.

The NDIS Commission can take complaints about:

- services or supports that were not provided in a safe and respectful way
- services and supports that were not delivered to an appropriate standard

8. More information

- Fact sheet: How to make a complaint
- Video: Understanding complaints

The NDIS Complaints Management Resolution Guidance provides more detailed information about the NDIS Commission's complaints process.

1. Introduction

1.1 Purpose

This Policy and the Policies and Procedures and related documentation set out in section 1.5 below (**Related Documentation**) supports Forward Focused Group to apply the Privacy and Dignity and Information Management NDIS Practice Standards.

1.2 Policy Aims

Forward Focused Group is committed to ensuring that:

(a) each participant accesses supports that respect and protect their dignity and right to privacy.

(b) management of each participant's information ensures that it is identifiable, accurately recorded, current and confidential. Each participant's information is easily accessible to the participant and appropriately utilised by relevant workers.

1.3 NDIS Quality Indicators

In this regard, Forward Focused Group aims to demonstrate each of the following quality indicators through the application of this Policy and the relevant systems, procedures, workflows and other strategies referred to in this Policy and the Related Documentation:

Privacy and Dignity

(a) Consistent processes and practices are in place that respect and protect the personal privacy and dignity of each participant.

(b) Management of each participant's information ensures that it is identifiable, accurately recorded, current and confidential. Each participant's information is easily accessible to the participant and appropriately utilised by relevant workers.

(c) Each participant understands and agrees to what personal information will be collected and why, including recorded material in audio and/or visual format.

Information Management

(a) Each participant's consent is obtained to collect, use and retain their information or to disclose their information (including assessments) to other parties, including details of the purpose of collection, use and disclosure. Each participant is informed in what circumstances the information could be disclosed, including that the information could be provided without their consent if required or authorised by law.

(b) Each participant is informed of how their information is stored and used, and when and how each participant can access or correct their information, and withdraw or amend their prior consent.

(c) An information management system is maintained that is relevant and proportionate to the size and scale of the organisation and records each participant's information in an accurate and timely manner.

(d) Documents are stored with appropriate use, access, transfer, storage, security, retrieval, retention, destruction and disposal processes relevant and proportionate to the scope and complexity of supports delivered.

1.4 Scope

(a) This Policy applies to the provision of all services and supports at Forward Focused Group.

(b) All permanent, fixed term and casual staff, contractors and volunteers are required to take full responsibility for ensuring full understanding of the commitments outlined in this Policy.

1.5 Related Documentation

The application of the above NDIS Practice Standard by Forward Focused Group is supported in part by and should be read alongside the Policies and Procedures and related documentation corresponding to this Policy in the Policy Register.

2. Definitions

2.1 Definitions

In this Policy:

Forward Focused Group means Forward Focused Group Pty Ltd ABN 98 643 878 639.

Client means a client of Forward Focused Group (including an NDIS participant).

Key Management Personnel means Vida Reid, Simon Reid and other key management personnel involved in Forward Focused Group from time to time.

Legislation Register means the register of legislation, regulations, rules and guidelines maintained by Forward Focused Group.

Personal information means information or an opinion (whether true or not and whether recorded in a material form or not) about an individual who is identified or reasonably identifiable from the information.

Policy Register means the register of policies of Forward Focused Group.

Principal means Vida Reid and Simon Reid.

Related Documentation has the meaning given to that term in section 1.1.

Sensitive information is a subset of personal information that is generally afforded a higher level of privacy protection. Sensitive information includes health and genetic information and information about racial or ethnic origin, political opinions, membership of a political association, religious beliefs or affiliations, philosophical beliefs, membership of a professional or trade association or trade union, sexual preferences or practices, criminal record and some types of biometric information.

Worker means a permanent, fixed term or casual member of staff, a contractor or volunteer employed or otherwise engaged by Forward Focused Group and includes the Principal.

3. Policy Statement

3.1 Communication of Privacy and Dignity Policy

To ensure Clients understand the subject matter of this Privacy and Dignity Policy in a manner which is responsive to their needs and in the language, mode of communication and terms that the Client is most likely to understand, Forward Focused Group will:

(a) use respectful, open, clear, and honest communication in all professional interactions (e.g., spoken, written, social media).

(b) communicate effectively with Clients to promote their understanding of the subject matter of this Privacy and Dignity Policy (e.g., active listening, use of plain language, encouraging questions).

(c) identify potential barriers to effective communication and make a reasonable effort to address these barriers including by providing information and materials on how to access interpreter services, legal and advocacy services.

(d) work with bilingual assessment staff, interpreters (linguistic and/or sign), communication specialists and relevant advocacy agencies/services that can also assist Client participation, inclusion, informed choice and control.

(e) encourage Clients to engage with their family, friends and chosen community if Forward Focused Group has been directed to do so.

3.2 The personal information that Forward Focused Group collects

The personal information that Forward Focused Group collects from a Client includes their:

(a) name, address, telephone and email contact details;

(b) gender, date of birth and marital status, information about their disability and support needs;

(c) health and medical information;

(d) Medicare number and other identifiers used by Government Agencies or other organisations to identify individuals;

(e) financial information and billing details including information about the services individuals are funded to receive, whether under the NDIS or otherwise;

(f) records of interactions with individuals such as system notes and records of conversations individuals have had with Forward Focused Group's employees; and

(g) information about the services Forward Focused Group provides to individuals and the way in which Forward Focused Group will deliver those to individuals.

Typically, Forward Focused Group does not collect personal information in the form of recorded material in audio and/or visual format.

3.3 Sensitive information and protection of dignity

Forward Focused Group only collects sensitive information where it is reasonably necessary for Forward Focused Group's functions or activities and either:

(a) the individual has consented; or

(b) Forward Focused Group is required or authorised by or under law (including applicable privacy legislation) to do so.

For example, in order to provide Forward Focused Group's services to a Client or to respond to a potential Client's inquiries about services, Forward Focused Group may be required to collect and hold their sensitive information including health and medical information and information relating to their disability and support requirements.

A Forward Focused Group will treat Clients with dignity and respect and as far as reasonably practicable protect the privacy and dignity of each Participant and, in particular, their sensitive information.

3.4 What if a Client doesn't provide a Forward Focused Group with their personal information?

The nature of the business carried on by Forward Focused Group means that, generally, it is not possible for Forward Focused Group to provide services or support to Clients or otherwise deal with individuals if a Client does not provide their personal information to Forward Focused Group.

3.5 How Forward Focused Group collects personal information

Forward Focused Group collects personal information in a number of ways, including:

(a) through Forward Focused Group's website;

(b) when individuals correspond with Forward Focused Group (for example by letter, fax, email or telephone);

(c) on hard copy forms;

(d) in person;

(e) from referring third parties (for example, the National Disability Insurance Scheme or a support coordinator);

(f) at events and forums; and

(g) from third party funding and Government Agencies.

3.6 Why does Forward Focused Group collect personal information?

The main purposes for which Forward Focused Group collects, holds, uses and discloses personal information are:

(a) providing individuals with information about Forward Focused Group's services and supports.

(b) answering their inquiries and delivering service to Clients.

(c) administering Forward Focused Group's services and supports and process payments.

(d) conducting quality assurance activities including conducting surveys, research and analysis and resolving complaints.

(e) complying with laws and regulations and to report to funding and Government Agencies.

(f) promoting Forward Focused Group and its activities, including through events and forums.

(g) conducting research and statistical analysis relevant to Forward Focused Group's activities (including inviting individuals to participate in research projects and activities).

(h) reporting to funding providers.

(i) recruiting employees, contractors and volunteers.

(j) processing payments.

(k) answering queries and resolving complaints.

(l) evaluating Forward Focused Group's work and reporting externally.

(m) carrying out internal functions including administration, training, accounting, audit and information technology.

(n) other purposes which are explained at the time of collection or which are required or authorised by or under law (including, without limitation, privacy legislation).

(o) purposes for which an individual has provided their consent.

(p) for research, evaluation of services, quality assurance activities, and education in a manner which **does not identify individuals**. If individuals do not wish for their de-identified data to be used this way, they should contact Forward Focused Group.

(q) to keep individuals informed and up to date about Forward Focused Group's work, for example, changes to the National Disability Insurance Scheme or information about disability supports, either where Forward Focused Group has their express or implied consent, or where Forward Focused Group is otherwise permitted by law to do so. Forward Focused Group may send this information in a variety of ways, including by mail, email, SMS, telephone, or social media.

(r) where an individual has consented to receiving marketing communications from Forward Focused Group, that consent will remain current until they advise Forward Focused Group otherwise. However, individuals can opt out at any time.

(s) to manage and improve users' experience on the Forward Focused Group website using "cookies". A cookie is a small text file that Forward Focused Group's site may place on their computer as a tool to remember their preferences. Individuals may refuse the use of cookies by selecting the appropriate settings on their browser.

(t) to tailor advertising, both on Forward Focused Group's website and through advertising networks on other websites, based on their visits or behaviour through cookies on their device. Individuals can control how cookies are used and for what through the settings on their chosen browser.

(u) to track visits to the Forward Focused Group website, using this information to track the effectiveness of the website. While this data is mostly anonymous, sometimes Forward Focused Group will connect it to individuals, for instance in personalising a webpage, or pre-filling a form with their details. For more information on Forward Focused Group's analytics tools, read Google's privacy policy.

3.7 Can I withdraw or amend my consent to the use of my personal information?

A Client may withdraw or amend their consent to Forward Focused Group using their personal information at any time by written notice to Forward Focused Group. The nature of the business carried on by Forward Focused Group means that, generally, it is not possible for Forward Focused Group to provide services or support to Clients or otherwise deal with individuals if a Client withdraws or amends their consent.

3.8 What third parties does Forward Focused Group disclose personal information to?

Forward Focused Group may disclose personal information to third parties where appropriate for the purposes set out above, including disclosure to:

(a) Forward Focused Group's funding providers;

(b) government and regulatory bodies, including the National Disability Insurance Agency, Medicare, the Department of Social Services, the Department of Health & Human Services, and the Australian Taxation Office;

(c) people acting on their behalf including their nominated representatives, legal guardians, executors, trustees and legal representatives;

(d) the police, or to the Disability Services Commissioner, or to comply with compulsory notices from courts of law, tribunals or Government Agencies;

(e) financial institutions for payment processing;

(f) referees whose details are provided to Forward Focused Group by job applicants; and

(g) Forward Focused Group's contracted service providers, including:

(1) information technology service providers

(2) invoice processing service providers

(3) marketing and communications service providers including call centres

(4) freight and courier services

(5) external business advisers (such as recruitment advisors, auditors and lawyers).

In the case of these contracted service providers, Forward Focused Group may disclose personal information to the service provider and the service provider may, in turn, provide Forward Focused Group with personal information collected from individuals in the course of providing the relevant products or services.

3.9 How is personal information stored and used?

(a) Forward Focused Group holds personal information in a number of ways, including in hard copy documents, electronic databases, email contact lists, and in paper files held in drawers and cabinets. Paper files may also be archived in boxes and stored offsite in secure facilities.

(b) Forward Focused Group must take reasonable steps to:

(1) make sure that the personal information that Forward Focused Group collects, uses and discloses is accurate, up to date and complete and (in the case of use and disclosure) relevant;

(2) protect the personal information that Forward Focused Group holds from misuse, interference and loss and from unauthorised access, modification or disclosure; and

(3) destroy or permanently de-identify personal information that is no longer needed for any purpose that is permitted by the Australian Privacy Principles, subject to other legal obligations and retention requirements applicable to Forward Focused Group.

(c) Forward Focused Group employees must only access and use personal information for a valid work purpose. When handling personal information, employees should:

(1) confirm recipient details before sending faxes or emails;

(2) always store any hard copies of confidential information that is not being used in a secure cabinet or room;

(3) be aware of the surroundings and people nearby;

(4) limit taking hard copy information away from secure sites;

(5) secure information when travelling e.g. in briefcase, folder etc.;

(6) dispose unneeded copies of information securely; and

(7) ensure the information is available to people who need to access it.

(d) Forward Focused Group employees may only share personal information as set out under this policy and in circumstances permitted under law.

3.10 How is personal information kept secure?

The steps Forward Focused Group takes to secure the personal information Forward Focused Group holds include:

(a) website protection measures (such as encryption, firewalls and anti-virus software);

(b) security restrictions on access to Forward Focused Group's computer systems (such as login and password protection) and cloud based storage (using Google Drive and OneDrive),

(c) controlled access to Forward Focused Group's premises

(d) personnel security (including restricting the use of personal information by Forward Focused Group employees to those who have a legitimate need to know the information for the purposes set out above); and

(e) training and workplace policies.

3.11 Information retention

Unless otherwise required by law, all Client records and personal information will be retained for at least seven years after a Client ceases to be a client.

3.12 Information disposal

(a) Employees should ensure record retention requirements have been met prior to the disposal of any personal information.

(b) When disposing of personal information, employees should:

(1) Place unneeded working documents or copies of information in secure bins or adequate shredders.

(2) Ensure any electronic media including computers, hard drives, USB keys etc. are sanitised when no longer required.

3.13 Privacy incidents

Privacy incidents may result from unauthorised people accessing, changing or destroying personal information. Examples of situations from which incidents may arise include:

(a) the accidental download of a virus onto an agency computer;

(b) discussing or sharing of personal information on a social networking website such as Facebook;

(c) loss or theft of a portable storage device containing personal information;

(d) non-secure disposal of hard copies of personal information (i.e. placing readable paper in recycle bin or hard waste bin);

(e) documents sent to the wrong fax number or email address; and

(f) documents sent to a free web-based email account such as Yahoo!, Gmail or Hotmail.

Privacy incidents can:

(g) occur due to accidental or deliberate actions;

(h) result from human error or technical failures; and

(i) apply to information in any form, whether electronic or hard copy.

3.14 Incident reporting

It is vital all privacy incidents are reported as soon as possible so that their impact may be minimised. Employees should be aware of:

(a) how to identify potential privacy incidents

(b) the reason for reporting incidents is so their impact can be minimised - not to punish individuals

(c) the need to report all incidents to their manager as soon as they become aware of them.

Forward Focused Group must report all Client related privacy incidents to the:

(a) NDIS Commission

(b) Office of the Australian Information Commissioner,

as applicable, within one business day of becoming aware of, or being notified of a possible privacy incident, or within one business day of an allegation being made of a potential breach.

A breach of Client privacy may have a major impact, a non-major impact, or be a near miss or an incident with no apparent impact on a Client. In each case, the incident has to be reported and managed in accordance with the Incident Management and Reporting Policy.

3.15 Access and Correction

Clients have a legal right to request access or correction of their personal information held by Forward Focused Group.

Clients may ask individuals to verify their identity before processing any access or correction requests, to ensure that the personal information Forward Focused Group holds is properly protected.

3.16 Complaints

If a Client has a complaint about how Forward Focused Group has collected or handled their personal information, it will be managed in accordance with the Forward Focused Group Feedback and Complaints Management System.

4. General

4.1 Relevant Legislation, Regulations, Rules and Guidelines

Legislation, Rules, Guidelines and Policies apply to this policy and supporting documentation as set out in the Legislation Register.

4.2 Inconsistency

If and to the extent that the terms of this Policy are or would be inconsistent with the requirements of any applicable law, this Policy is deemed to be amended but only to the extent required to comply with the applicable law.

4.3 Policy Details

Approved By: The board of Forward Focused Group Pty Ltd

Approval Date: January 2021

Next Scheduled Review: January 2022

Version: 1

Statement

Sensitive

Statement of

Name	Paul Ndubueze Ugwunali
Occupation	Director of Access Disability Services WA
Address	Known to National Disability Insurance Scheme (NDIS)
Date	8 February 2022

STATES:

1. This statement made by me accurately sets out the evidence that I would be prepared, if necessary, to give in court as a witness.

2. My full name is Paul Ndubueze Ugwunali.

3. My residential address is known to the National Disability Insurance Scheme.

4. I began my career as a support worker in the disability sector in 2013 working for various providers in Western Australia.

5. I am now the manager and director of Access Disability Services WA (ACCESS), a service provider located in Jull Street Armadale, which I successfully registered, with the NDIS in March 2022.

6. In June 2022, I was delivering pamphlets to advertise the services of my new company, ACCESS in the shopping precinct area in Jull Street Armadale. At the time, I was in the process of signing my own lease for an office in the same area.

7. I walked into the Forward Focused Group (FFG) office in Jull Street Armadale and was greeted by a woman named Jenny who introduced me to the owner /director Vida Reid. I explained to Vida I was a new service provider looking for clients and

opening an office nearby. Vida seemed interested in my new business and assisting me.

8. As my office was located in the same shopping centre, over the next few weeks/months we would see each other often as Vida would drop by my office to chat.

9. On 20th September 2022 Vida knowing I was in need of clients, during one of our discussions asked to be the provider to provide support services for her 11 year old son Alex Reid who has a diagnosis of Autism.

10. Alex has a NDIS plan for support for five days a week; I was using my staff Isaac before Vida told me she would like me to sign Alex's 2 existing support workers.

11. I offered a contract to Ousman Kamara (Aussie) and Alex Bowler to work as support workers for ACCESS.

12. Alex's current support workers worked 2 shifts Monday to Friday, 6.30am to 9.30am and 2:30 to 6:30 assisting him with self-care, including making and feeding breakfast, preparing lunch and driving Alex to school by 8.30am.

13. The afternoon's shifts were from 2.30pm to 6.30pm; the support worker picked Alex up from his school at 2.30 pm and drive him home from school, cared for him until Vida arrived home at 6:00pm.

14. On September 27th, 2022, Vida emailed her requirements for the support workers and her expectations along with Alex's medical and physical diagnosis, this included Autism level 3, ADHD, ADD, GDD, semi verbal, intellectual disability and Borderline Diabetes. refer (exhibit PU001)

15. I signed a service agreement between Access and Vida Reid to supply 35 hours of support care a week per staff. refer (exhibit PU002)

16. Sometime in September/October 2022, Vida asked me if I would sign an agreement to be her service provider as she has Multiple Sclerosis (MS) and a NDIS plan approved for 80 hours of support a fortnight. refer (exhibit PU003)

17. Vida told me she had an existing support worker named Ally Olesuik and she preferred to keep her, Ally also worked in the FFG office as her personal assistance.

18. At this stage, I was unaware of any restrictions or investigations Vida Reid had been imposed under by the NDIS.

19. I provided Support services to Vida by employing Ally Olesiuk who in turn supported Vida working 80 hours a fortnight, Monday to Friday. Ally continued as Vida's personal assistant in the FFG offices in Jull Street. Vida did not tell me who her provider was previously.

20. At that time, I was providing casual support workers on a subcontract basis to provide care in a Supported Independent Living (SIL) house in Cottesloe, I did not sign a formal agreement or contract, and it was a verbal agreement only. I only supplied workers for approximately 3 shifts in October 2022.

21. The sole occupant in the SIL house was Annette Ogden who had Alzheimer's.

22. On 24th October 2022, Vida called me in her office asked me to take on 2 of her support staff, coordinators Cassandra Burke (Cassie) and Ashleigh Olesiuk as employees to ACCESS. In return, Vida offered 35 existing FFG's participants, which she had provider agreements to transfer over to have their support provided by ACCESS.

23. Vida told me because of the current issues with the NDIS, she could not keep her staff and she could not pay their wages. This was the first time I became aware of the investigation and involvement of the NDIS/ NDIA.

24. It was around this time I saw on the news the arrest and court appearance of Vida Reid on television, when I asked her about it she said, “I don’t want to speak about it”.

25. I was keen to attract participants as I had overheads to pay, I agreed subject to seeing the list of 35 participants; however, Vida stalled and I did not see the list. I signed a contract with both Cassie and Ashleigh on 25th October 2022 as permanent employees for ACCESS.

26. The bone of contention between Vida Reid and myself began immediately after I signed employment contracts with Cassie and Ashleigh, as soon as Vida was aware her 2 former workers had signed the contract, she immediately locked access to the participant records for the clients she had agreed to transfer.

27. Prior to this, Cassie and Ashleigh had full access to these records in their Surface Pro (Laptop).

28. I continued asking Vida numerous times when she was providing the names and agreements for the 35 participants; I discovered later Vida was purposely delaying transferring clients to me as she had other plans.

29. I was desperate as I had 2 permanent employees that I had signed employment contracts and very few participants. I approached Vida, and days later, she sent me the list, but because of the negative publicity and the public knowledge of the revoking of registration of FFG, most had found other providers.

30. I now know it was a deliberate act of Vida to delay showing me the participant list as she promised.

31. Toward the end of October 2022, Simon Reid started visiting my office with Vida, previously she always came alone. They discussed a profit share arrangement,

with ACCESS and the “Hybrid Hive” or the “The Hive” for a profit share of 50% for 2 participants living in SIL accommodation, Annette Ogden and Jonathan Shapiera.

32. I knew they were both involved with ‘Hybrid Hive’ but prior to this I did not know what services Hybrid Hive actually offered I now know Hybrid Hive was to only provide accommodation only.

33. On 28th October 2022, I received an email from Vida Reid from (vida@ffg.net.au) clarifying the discussion in the earlier days meeting that I would look after her 31 clients, including herself and her son, as she was no longer permitted. In addition, was for an agreement to be the provider of the 2, SIL homes on a profit share agreement, she attached a list of the 31 participants. Refer (exhibit004)

34. I eventually signed a profit share agreement between ACCESS and Hybrid Hive Pty Ltd on 2nd November 2022 as Vida said she would not hand the 2, SIL clients over to me unless I signed.

35. My understanding at the time was Hybrid Hive was providing accommodation and ACCESS would provide support services.

36. My discussions with the profit-sharing arrangement were always with Vida and Simon Reid though I knew Vida was not permitted to provide support services.

37. I also met Tory Fitton who worked in accounts at the FFG office and who later sent the service agreement to me.

38. I met with Graeme Ogden and discussed his wife Annette Ogden’s specific plan and her specific needs and the service agreement between Annette and ACCESS.

39. I became the service provider for Annette Ogden who ACCESS had provided casual support for 3 shifts previously at the SIL house in Cottesloe. The other ex FFG participant was Jonathon Shapiera who lived in a SIL house in Safety Bay.

40. I met with Vida and Simon and they tried to coax me into forming a partnership with them with my company ACCESS, we had several meetings discussing this but I had no intention to collaborate with them, as I wanted to run my own business.

41. On 9th November I received an email from Virginie Fanny Dulloo who to my knowledge was the Housing Manager at the Hive, the email contained an excel document with the Hive's current support workers. refer (exhibit PU005)

42. I also became the provider for 6 clients that were previously with FFG, these are Heather Ankor, Jacob Bonasera, Jonah Bonasera, Jasiah Bonasera and King Tin (Aaron) Chan and Giuseppe Cricelli.

43. On 17th November 2022, I emailed Vida asking for a copy and transfer of Annette Ogden's NDIS plan as I had not seen the plan and was only told the specifics verbally by Vida. I had requested this many times and I could not pay the staff until I had the plan transferred to me. Refer (exhibit PU006)

44. On the 17th November 2022 at 9:57am, I received an email from (vida@ffg.net.au) Vida was cancelling the provider agreement for support services for both Alex and herself. She stated she could not work with the fights back and forth. In her email, she wrote, "I simply do not wish to continue as it is causing me more problems than help to be honest. I am happy to help you where I can but submitting and asking questions about our own plans/ndis/ fighting with support staff/ support staff advising they are going to quit etc… is too much for me whilst I have a lot on my plate. She advised from 18th November 2022 she no longer needed required my services. refer (exhibit PU007).

45. Later that day Vida emailed back, saying she was providing 4 weeks' notice and during the 4 weeks she didn't require ACCESS'S services or supports and no deductions or payments were to be made against her or Alex's plan. refer (exhibit PU007)

46. Since taking on her son Alex and herself a participant I had questioned Alex's support workers Ousman Kamara (Aussie) and Alex Bowler hours as often Alex was finishing his shift early and working in Vida's office working for her. I was concerned as the participant was not getting his full support from the support worker as he was supposed to finish at 9:30 and was already in Vida's office before 9am for a different shift.

47. I did not support or condone this, and Vida did not like me questioning her or making her justify the support workers in her office.

48. Vida's reasoning was her son had wanted the support workers to leave and he had the right to request this. I told her if that was the case, she should notify me and Alex, and Aussie the support workers should contact me to make me aware of the change of shift times.

49. This was brought to my attention, as I would often see Alex in her office when I drove past, and my staff can confirm this.

50. I was invoiced by Hybrid Hive for the profit share agreement, the first invoice, #1433 for $19, 580 was later replaced by a second invoice for $14,328.66. Tory Fitton told me later the first invoice was an error; I did not pay either of these invoices.

51. On 6th December 2022 at 12:03pm, an email was sent from Vida Reid (vida@ffg.net.au) to myself and Tori Fitton (tori.f@ffg.net.au) giving notification that no ACCESS staff would be permitted to enter the property, she stated the reason was she did not want to continue the business venture, and the agreements were to end. refer (exhibit PU008).

52. That same day, Cassie in the office received an email from a participant's mother Pamela Cricelli advising her son Giuseppe one of ACCESS's participants no longer wanted Access as his provider as "going back to Vida and Simon" refer (exhibit PU009).

53. Guiseppe Cricelli had signed a contract with ACCESS on 3 November 2022 and ceased service on 10 December 2022; he was one of the former FFG participants.

54. During a conversation in the ACCESS office, I heard between Cassie and Jonathan Shapiera, I heard him saying he was going back to Blake when he returned from holidays. He was referring to Blake Sadlier.

55. I ceased all dealings with Vida and Simon Reid and their associated companies; I still have not received the funds from the NDIS for the weeks of service I provided to Vida Reid and the amount of $9323.07 remains outstanding.

56. I sent an email to the NDIA asking them to look into the outstanding 3 invoices for services provided to Vida Reid after she cancelled her Services with ACCESS on the 17/11/2022 to move to another Provider without prior notice. refer (exhibit PU010).

57. I attached the 3 outstanding invoices, invoice 0042, invoice 0039 and invoice 0019 totalling $9323.07. refer (exhibit PU010a, PU010b and PU010c).

58. I had paid all support staff; wages who provided care, ACCESS remains out of pocket, as the funds have not been released by NDIS.

59. I have made this statement knowing that, if it is tendered in evidence, I will be guilty of a crime if I have wilfully included in the statement anything that I know to be false or that I do not believe is true.

Signature _____
Paul Ndubueze Ugwunali

Statement taken, and signature witnessed by me at _____ on _____ at _____ in Western Australia.
Signature _____
Name _____ Senior Investigator

Services Agreement

This agreement is made between:

Access Disability Services WA, we or us:

Access Disability Services WA Pty Ltd ABN 69 642 729 422

Address: 7 Pomera Drive Byford WA 6122

Email: paulugwunali@yahoo.com

Contact: Paul Ndubueze Ugwunali and Njideka Lawrencia Ugwunali

and:

Client or you:

First Name:	Alexander
Last Name:	Reid
Phone:	
Mobile:	
Email:	
Date of Birth:	15/01/2015
Street:	Amethyst Cres
Suburb:	Armadale
State:	WA
Postal Code:	6112
NDIS Number:	430972240
Plan Start Date:	09/09/2022
Plan Expiry Date:	09/09/2023
What is your first goal? (Please copy and paste from your NDIS Plan):	This year, I want to learn to speak in 3 word sentences and want to learn to write words and my own name.
What is your second goal? (Please copy	I want to be more independent in my daily living tasks at home. I want to be able to shower, dress, put on my shoes, and use

	and paste from your NDIS Plan):	the toilet with either no or reduced support. My family would also like more support at home to assist me to achieve this goal.

Representative who can act for you (if any)	First Name:	Vida
	Last Name:	Reid
	Phone:	0478 889 648
	Mobile:	0478 889 648
	Email:	vida_reid@yahoo.com
	Relationship to Client:	Mother

Access Disability Services WA to invoice:	Us directly (self managed)/Plan Manager (plan managed)/NDIA directly (NDIA managed)/Plan Nominee (Plan nominee managed)	

Internal Use

Date of this Agreement	
Scheduled Review Date	
Has the Client been provided this Agreement? Provide details of date and method of provision	

Is the Agreement consistent with the Client Intake Form. If not, why not?	
Has the Client been supported to understand the Agreement? **Was a representative or advocate present (if applicable). Provide details.**	
Has the Client signed the Agreement?	
Have we signed the Agreement?	
Has a fully signed version of the Agreement been provided to the Client? Make a record of the circumstances if the Client did not receive a copy of their Agreement.	

Terms of Agreement

1. Purpose of this Agreement

(a) The purpose of this Agreement is to document a personalised and self-directed support arrangement between Access Disability Services WA and you. Please ensure your details and those of your Representative (if any) are accurately set out above.

(b) This Agreement is made in accordance with the rules and the goals of the NDIS and for the purpose of providing the Services to you in accordance with your Plan.

(c) This Agreement is made in the context of the NDIS, which is a scheme that aims to:

(1) support the independence and social and economic participation of people with disability, and

(2) enable people with disability to exercise choice and control in the pursuit of their goals and the planning and delivery of their supports.

2. Definitions and interpretation

2.1 Definitions

In this Agreement:

Agreement means this agreement and includes any schedules and annexures.

Access Disability Services WA, us or we means Access Disability Services WA Pty Ltd ABN 69 642 729 422

Client or you means the NDIS participant as identified on page 1 of this Agreement.

Commencement Date means the date on which you sign this Agreement.

NDIA means the National Disability Insurance Agency, which runs the NDIS.

NDIS means the National Disability Insurance Scheme as established by the NDIS act.

NDIS Act means the National Disability Insurance Scheme Act 2013 (Cth) (as amended or replaced from time to time).

NDIS Rules means any rules or other legislative instruments made under the) NDIS Act.

Other Support Services means services and supports delivered to you by other service providers.

Plan means the written Plan developed with you and on your behalf by the National Disability Insurance Agency or their delegate (for example, your Local Area Coordinator).

Principal means Paul Ndubueze Ugwunali and Njideka Lawrencia Ugwunali.

Services means the services and supports you agree for us to provide and we agree to provide to you, following the process set out in clause 4(a).

2.2 Interpretation

In this Agreement:

(a) a reference to a word includes the singular and the plural of the word and vice versa;

(b) if a word or phrase is defined, then other parts of speech and grammatical forms of that word or phrase have a corresponding meaning;

(c) a reference to a party is a reference to a party to this Agreement and includes a reference to that party's successors and permitted assigns; and

(d) the term 'including', 'e.g.', 'such as', 'particularly' or any similar expression is not used as, nor is intended to be interpreted as, a term of limitation.

3. Commencement and Review

(a) The Agreement commences on the Commencement Date and will continue until either you or Access Disability Services WA terminates it in accordance with clause 13.

(b) The terms of this Agreement will be reviewed on the Review Date specified above.

4. The Services we provide

(a) You, your Representative and Access Disability Services WA will work together to determine the specific Services that we can provide to you to meet your goals. Through your client intake form, initial consultation(s) with us, this Agreement and the support planning process, we will agree upon the specific Services, appointment times, locations and staff members that will provide the Services. We will set out the Services we agree to provide to you in writing in the form of a Services Schedule.

(b) The Services can be adjusted and adapted in consultation with us, as your needs, goals and preferences change.

(c) If your Plan details differ from the details recorded in the NDIS portal, Access Disability Services WA will provide the Services to you according to the details in the NDIS portal.

(d) You and your Representative agree to:

(1) Access Disability Services WA accessing and reviewing your Plan;

(2) Access Disability Services WA discussing your Plan with the NDIA and its contractors (like Local Area Coordinators);

(3) Access Disability Services WA discussing your Plan with service providers providing the Other Support Services;

(4) Access Disability Services WA claiming any travel time when travelling to meet you, from your NDIS funds, to the extent we are entitled to under the NDIS Rules and applicable laws;

(5) Access Disability Services WA claiming for Non-Face-to-Face supports, to the extent we are entitled to under the NDIS Rules and applicable laws;

(6) Access Disability Services WA claiming for NDIA Requested Reports supports, to the extent we are entitled to under the NDIS Rules and applicable laws;

(7) Access Disability Services WA providing you with the Services in line with the terms set out in this Agreement (as updated from time to time) and your support plan;

(8) if required for random auditing purposes, be interviewed and have your records reviewed by third party accreditation, auditors and legislative bodies; and

(9) the terms of Access Disability Services WA's Policies.

5. Your consent to Services

(a) Your informed consent is required for the Services provided by Access Disability Services WA. If the Client is a child, consent also needs to be provided by a parent or legal guardian (i.e. your Representative).

(b) You may withdraw your consent for any specific Service at any time, and the specific Service will cease immediately.

(c) The Services are designed to be effective and safe, however, like any treatment, therapy or service, there are benefits and risks. Access Disability Services WA staff working with you will discuss any foreseeable risks prior to providing any Service or administering any treatment, therapy or service (as applicable).

(d) Access Disability Services WA staff may ask personal questions relating to your individual goals and circumstances. The more information you provide, the more effective the Services will be. However, it is your choice as to what information you choose to provide.

(e) It may be necessary for the Access Disability Services WA staff to make physical contact with you for the purpose of providing the Services. Consent will be achieved through signing this Agreement, with implied consent being assumed for the duration of the Agreement (until you tell us otherwise).

(f) The risks related to some Services can increase when Access Disability Services WA is not aware of certain facts. Please inform our staff if your child has any of the following:

(1) heart condition impacting engagement in physical activity

(2) seizures

(3) severe respiratory conditions e.g. asthma

(4) severe allergies

(5) severe phobias

(6) absconding (running away, running onto busy roads, etc.).

(g) By agreeing to receive the Services, you further acknowledge the following:

(1) assessment and screening may be undertaken and any records taken will be kept in your confidential client file in accordance with the relevant privacy laws;

(2) video, photo, written records and work samples may be taken, and if taken will be kept in a confidential client file in accordance with the Privacy and Dignity Policy; and

(3) with prior permission and consent, the NDIA, local area coordinators and service providers that provide Other Support Services may be contacted to discuss your Plan to gather further information and understanding of and otherwise support your individual circumstances and goals.

6. Fees for Services

(a) Access Disability Services WA will charge you for the Services.

(b) Additional expenses (i.e. things that are not funded under your Plan) are your responsibility and to be paid by you.

(c) The prices for the specific Services that we provide to you are set out in the NDIS Price Guide. All prices are subject to change when the NDIS Price Guide changes. The prices we charge you will be automatically adjusted to reflect the prices outlined in the most up to date NDIS Price Guide and the specific Services we perform.

7. Payments

Access Disability Services WA will be paid in respect of Services provided to you by one or a combination of the below payment methods:

(a) (**Self-managed**) If you have chosen to self-manage the funding/payment for the Services, after we provide the relevant Services (or part thereof), Access Disability Services WA will send you an invoice for those Services for you to pay. You must pay the invoice within seven (7) days of the date of the invoice;

(b) (**Managed by Plan nominee**) If your nominee (i.e. the participant's nominee) manages the funding/payment for the Services, after we provide the relevant Services (or part thereof), Access Disability Services WA will send your nominee an invoice for those Services for your nominee to pay. Your nominee must pay the invoice within seven (7) days of the date of the invoice;

(c) (**NDIA managed**) If you have nominated the NDIA to manage the funding/payment for the Services, after we provide the relevant Services (or part thereof), Access Disability Services WA will claim payment for those Services from the NDIA; and

(d) (**Managed by a registered plan management provider**) If you have nominated a Plan management provider to manage funding/payments for the Services, you will need to provide their details to us and after we provide the relevant Services (or part thereof), Access Disability Services WA will claim payment for those Services from the plan management provider.

8. Our Responsibilities

During the term of this Agreement, Access Disability Services WA will:

(a) act with respect for your individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions.

(b) respect your privacy.

(c) provide Services in a safe and competent manner with care and skill.

(d) act with integrity, honesty and transparency.

(e) promptly take steps to raise and act on concerns about matters that may impact the quality and safety of Services.

(f) take all reasonable steps to prevent and respond to all forms of violence against, and exploitation, neglect and abuse of, people with disability.

(g) take all reasonable steps to prevent and respond to sexual misconduct.

(h) arrive at the location where the Services are to be provided at the appointment time, ready to deliver the Services.

(i) provide the Services in a way that is consistent with all applicable laws, including the NDIS Act and the NDIS Rules, the National Privacy Principles and the Australian Consumer Law.

(j) treat you with dignity and respect at all times and value your legal and human rights, including your right to make informed choices concerning the Services to be provided to you.

(k) make reasonable efforts to involve you in selecting your workers, including the preferred gender of workers, if we are providing personal care support to you.

(l) where you have specific needs which require monitoring and/or daily support, workers providing support to you are appropriately trained and understand the participant's needs and preferences.

(m) notify you about changes to appointment times and other changes to the delivery of Services.

(n) with your reasonable assistance, provide a safe and comfortable space for the delivery of the Services.

(o) if required, provide you with a photo of your Workers to ensure they are easily identifiable to you.

(p) treat your information as private and confidential.

(q) provide timely invoices and statements for the Services.

(r) communicate openly, honestly and promptly with you.

(s) keep accurate and up-to-date records of all the Services provided to you.

(t) make contact with the NDIA about your Plan when necessary.

9. Responsibilities of the Client

You and your Representatives agree to:

(a) let Access Disability Services WA know about any concerns you have with any of the Services which are being provided.

(b) be actively involved in designing the support plan and setting and monitoring goals.

(c) ensure the fees for the Services are able to be met within the funding available in your approved Plan.

(d) ensure all invoices are paid promptly and in full.

(e) immediately notify Access Disability Services WA if you stop being a participant in the NDIS.

(f) keep Access Disability Services WA informed of any change in circumstances that will likely affect the delivery of Services or impact this Agreement such as, where you live, medication/medical treatments and procedures, behavioural changes that are likely to impact on the safe delivery of the Services, guardianship and care arrangements.

(g) Be at the designated location where the Services are to be provided at the agreed appointment time.

(h) treat all Access Disability Services WA staff, workers and others present during the delivery of supports and services with respect and abide by Access Disability Services WA' Policies.

(i) let us know if you suspend, change, or intend to change, your Plan, or if you are no longer a participant in the NDIS.

(j) provide Access Disability Services WA with a copy of any updated or revised Plan as soon as reasonably possible.

(k) Access Disability Services WA providing documents and email updates to you electronically; and

(l) inform Access Disability Services WA if you do not want to receive documents or email updates electronically.

10. Cancellation and No Show Policy

You agree that we may charge you 100% of the relevant amount that would otherwise be payable to us if you:

(a) do not show up for a scheduled Service within a reasonable time, or are not present at the agreed place and within a reasonable time when Access Disability Services WA is travelling to deliver the Services; or

(b) have given less than two (2) clear business days' notice to the cancellation for a Service that meets both of the following conditions:

(1) the support is less than 8 hours continuous duration; and

(2) the agreed total price for the Service is less than $1000; or

(c) have given less than five (5) clear business days' notice of cancellation for any Service that does not fall under clause 10(b).

11. Privacy

(a) Your privacy is important to us. When we provide the Services to you, we will collect, use and disclose information about you. The information is known as Personal Information and Sensitive Information.

(b) Our Privacy and Dignity Policy defines what this Personal Information and Sensitive Information is and how we collect, use and disclose this information. You should read our Privacy and Dignity Policy carefully – it contains important information. You do not have to consent to us collecting, using and disclosing this information.

(c) If you do not consent, this may restrict the Services we provide to you, or may mean that we are unable to provide any Services to you.

12. Feedback and Complaints

(a) If you feel comfortable, you are encouraged to raise any feedback, concerns or complaints with us first, as this is often the best way to have your issue resolved quickly.

(b) A complaint may be made on an anonymous basis. You can make an anonymous complaint:

(1) by calling the number in section 12.1(d) below and stating that you wish to make an anonymous complaint (so we don't ask you to identify yourself); or

(2) in writing by filling out a Feedback and Complaints Form but not including your name or other details that may identify you and posting it to the address specified in section 12.1(c) below.

(c) You can make a complaint to Access Disability Services WA:

(1) in person to the Principal or a staff member;

(2) by email to paulugwunali@yahoo.com;

(3) by post to 7 Pomera Drive Byford WA 6122;

(4) on our website https://access-disability.netlify.app/;

(5) verbally by telephone to +61404007488.

For all written feedback or complaints, you are encouraged to provide your complaint in the form of our written Feedback and Complaint Form.

(d) You can make a complaint to the NDIS Commision by:

(1) Phoning: 1800 035 544 (free call from landlines) or TTY 133 677. Interpreters can be arranged.

(2) National relay Service and ask for 1800 035 544.

(3) Visiting https://www.ndiscommission.gov.au/about/complaints and completing a complaint contact form.

The NDIS Commission can take complaints about:

(1) services or supports that were not provided in a safe and respectful way.

(2) services and supports that were not delivered to an appropriate standard.

(e) We will endeavour to resolve all complaints promptly in accordance with our Feedback and Complaints Management Policy.

13. Termination

(a) Access Disability Services WA and the Client may terminate this Agreement by giving at least four weeks' written notice of termination to the other party.

(b) Access Disability Services WA may terminate this Service Agreement with immediate effect if:

(1) the Client ceases to have a source of individualised government funding (i.e. they are no longer an NDIS participant or all of their NDIS funding is used) or have a source of private funding;

(2) the Client's support plan or the Services provided by Access Disability Services WA are no longer able to meet the person's needs or assist in achieving chosen goals;

(3) the Client or their support network fails to communicate and provide information about changes to the Client's needs including in respect of the Services;

(4) the Client transfers to another service provider;

(5) the Client dies;

(6) the Client is unable or unwilling over a period of time to work towards agreed goals;

(7) the Client is unwilling to meet the reasonable conditions required in their support plan, thus affecting the safe delivery of a service to the Client and the health and safety of the staff;

(8) the Client is in breach of the terms of the Agreement

(9) the Client fails to comply with the Policies of Access Disability Services WA;

(10) changes to the Client's condition results in the supports or services they require exceeding the skills and expertise Access Disability Services WA staff can deliver or the would otherwise require services to be provided that Access Disability Services WA does not have capacity to provide;

(11) there has been no contact between the person and Access Disability Services WA for 2 months;

(12) the Client or members of their support network engage in behaviour which is unacceptable to Access Disability Services WA, such as violence, abuse, aggression, theft or property damage or which poses risks to the safe delivery of the Services or the health and safety of the staff;

(13) the Client ignores risk management procedures under the Access Disability Services WA Work Health and Safety Policy.

(14) the Client fails to pay fees due and payable to Access Disability Services WA by the due date for payment under this Agreement.

14. Goods and services tax

(a) The parties agree that:

(1) the supply of the Services under this Agreement is the supply of one or more of the reasonable and necessary supports specified in the statement included, under subsection 33(2) of the **NDIS Act**, in the Client's Plan currently in effect under section 37 of the NDIS Act;

(2) the Client's Plan is expected to remain in effect during the period the Services are provided; and

(3) the Client or their representative will immediately notify Access Disability Services WA if the Client's Plan is replaced by a new plan or if the Client stops being a participant in the NDIS.

15. General

15.1 Governing law and jurisdiction

This Agreement is governed by the laws of the jurisdiction in which Access Disability Services WA is located. The parties submit to the non-exclusive jurisdiction of the courts exercising jurisdiction there.

15.2 Amendment

The parties may only amend this Agreement if each party signs the written amendment.

15.3 Waiver

A provision of this Agreement or a right created under it may not be waived except in writing signed by the party granting the waiver.

15.4 Exercise of a right

A party may exercise a right at its discretion and separately or together with another right. If a party exercises a single right or only partially exercises a right, then that party may still exercise that right or any other right later. If a party fails to exercise a right or delays in exercising a right, then that party may still exercise that right later.

15.5 Remedies cumulative

The rights and remedies provided in this Agreement are cumulative with and not exclusive of the rights and remedies provided by law independently of this Agreement.

15.6 Assignment

(a) This Agreement is for the benefit of the parties and their permitted successors and assigns. The parties and their successors and assigns are bound by this Agreement.

(b) A party other than Access Disability Services WA may not assign its rights under this Agreement.

(c) Access Disability Services WA may assign its rights under this Agreement in its absolute discretion, subject only to compliance with relevant NDIS Rules.

15.7 Severance

If any provision of this Agreement is void, voidable, unenforceable, illegal, prohibited or otherwise invalid in a jurisdiction, in that jurisdiction the provision must be read down to the extent it can be to save it but if it cannot be saved by reading it down, words must be severed from the provision to the extent they can be to save it but if that also fails to save it the whole provision must be severed. That will not invalidate the remaining provisions of this Agreement nor affect the validity or enforceability of that provision in any other jurisdiction where it is not invalid.

15.8 Counterparts

The parties may execute this Agreement in two or more counterparts and all counterparts together constitute one instrument. A counterpart may be in electronic form.

15.9 Consent or approval

Subject to an express provision in this Agreement, a party may in its absolute discretion give its consent or approval conditionally or unconditionally, or withhold its consent or approval.

15.10 Entire agreement

This Agreement constitutes the entire agreement of the parties in respect of the subject matter of this Agreement and supersedes all prior discussions, undertakings and agreements.

15.11 Further assurances

Each party must, at its own expense, do everything reasonably necessary to give effect to this Agreement and the transactions contemplated by it, including without limitation the execution of documents.

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Nothing in this Agreement constitutes the parties as partners or agents of the other and no party has any authority to bind the other legally or equitably except as expressly stated in this Agreement.

15.13 Notices

(a) A party may send a notice in connection with this Agreement by hand delivery, pre-paid post or email transmission to another party at the recipient party's address details set out at the beginning of this Agreement or in such other way as the recipient party may have last notified each other party in writing.

(b) A notice is deemed to be received:

(1) if sent by hand delivery, at the time of delivery if on a Business Day at or before 5:30 pm, otherwise on the next Business Day;

(2) if sent by pre-paid post, on the second Business Day after the date of posting; or

(3) if sent by email transmission, at the time of sending if on a Business Day at or before 5:30 pm, otherwise on the next Business Day, provided that the sender does not receive a subsequent "Out of Office" reply or similar response or a system administrator message stating that the email did not reach its intended recipient.

Execution

Executed as an agreement on 2020

Signed for and on behalf
of Access Disability Services WA Pty Ltd
ABN 69 642 729 422, by:

……..……..
Signature

……..……..
Name (please print)

Signed by the Client

……..……..
Signature

……..……..
Name (please print)

Signed by the Representative

……..……..
Signature

Vida Reid

……..……..
Name (please print)

Services Agreement

This agreement is made between:

Access Disability Services WA, we or us:

Access Disability Services WA Pty Ltd ABN 69 642 729 422

Address: 7 Pomera Drive Byford WA 6122

Email: paulugwunali@yahoo.com

Contact: Paul Ndubueze Ugwunali and Njideka Lawrencia Ugwunali

and:

Client or you:

First Name:	Vida
Last Name:	Reid
Phone:	0478 889 648
Mobile:	0478 889 648
Email:	vida_reid@yahoo.com
Date of Birth:	11/01/1987
Street:	Amethyst Cres
Suburb:	Armadale
State:	Western Australia
Postal Code:	6112
NDIS Number:	430970696
Plan Start Date:	09/09/2022
Plan Expiry Date:	09/09/2023
What is your first goal? (Please copy and paste from your NDIS Plan):	I would like to be able to live safely and independently in my own home by maintaining and/or improving my health, mobility and well bring and participate safely in activities of daily living.
What is your second goal? (Please copy	I would like to become a fully registered NDIS provider and continue to work in my business at the highest capacity I am able to

and paste from your NDIS Plan):	

Representative who can act for you (if any)	First Name:	
	Last Name:	
	Phone:	
	Mobile:	
	Email:	
	Relationship to Client:	

Access Disability Services WA to invoice:	Us directly (self managed)/Plan Manager (plan managed)/NDIA directly (NDIA managed)/Plan Nominee (Plan nominee managed)	

Internal Use

Date of this Agreement	
Scheduled Review Date	
Has the Client been provided this Agreement? Provide details of date and method of provision	

Is the Agreement consistent with the Client Intake Form. If not, why not?	
Has the Client been supported to understand the Agreement? **Was a representative or advocate present (if applicable). Provide details.**	
Has the Client signed the Agreement?	
Have we signed the Agreement?	
Has a fully signed version of the Agreement been provided to the Client? Make a record of the circumstances if the Client did not receive a copy of their Agreement.	

Terms of Agreement

1. Purpose of this Agreement

(a) The purpose of this Agreement is to document a personalised and self-directed support arrangement between Access Disability Services WA and you. Please ensure your details and those of your Representative (if any) are accurately set out above.

(b) This Agreement is made in accordance with the rules and the goals of the NDIS and for the purpose of providing the Services to you in accordance with your Plan.

(c) This Agreement is made in the context of the NDIS, which is a scheme that aims to:

(1) support the independence and social and economic participation of people with disability, and

(2) enable people with disability to exercise choice and control in the pursuit of their goals and the planning and delivery of their supports.

2. Definitions and interpretation

2.1 Definitions

In this Agreement:

Agreement means this agreement and includes any schedules and annexures.

Access Disability Services WA, us or we means Access Disability Services WA Pty Ltd ABN 69 642 729 422

Client or you means the NDIS participant as identified on page 1 of this Agreement.

Commencement Date means the date on which you sign this Agreement.

NDIA means the National Disability Insurance Agency, which runs the NDIS.

NDIS means the National Disability Insurance Scheme as established by the NDIS act.

NDIS Act means the National Disability Insurance Scheme Act 2013 (Cth) (as amended or replaced from time to time).

NDIS Rules means any rules or other legislative instruments made under the) NDIS Act.

Other Support Services means services and supports delivered to you by other service providers.

Plan means the written Plan developed with you and on your behalf by the National Disability Insurance Agency or their delegate (for example, your Local Area Coordinator).

Principal means Paul Ndubueze Ugwunali and Njideka Lawrencia Ugwunali.

Services means the services and supports you agree for us to provide and we agree to provide to you, following the process set out in clause 4(a).

2.2 Interpretation

In this Agreement:

(a) a reference to a word includes the singular and the plural of the word and vice versa;

(b) if a word or phrase is defined, then other parts of speech and grammatical forms of that word or phrase have a corresponding meaning;

(c) a reference to a party is a reference to a party to this Agreement and includes a reference to that party's successors and permitted assigns; and

(d) the term 'including', 'e.g.', 'such as', 'particularly' or any similar expression is not used as, nor is intended to be interpreted as, a term of limitation.

3. Commencement and Review

(a) The Agreement commences on the Commencement Date and will continue until either you or Access Disability Services WA terminates it in accordance with clause 13.

(b) The terms of this Agreement will be reviewed on the Review Date specified above.

4. The Services we provide

(a) You, your Representative and Access Disability Services WA will work together to determine the specific Services that we can provide to you to meet your goals. Through your client intake form, initial consultation(s) with us, this Agreement and the support planning process, we will agree upon the specific Services, appointment times, locations and staff members that will provide the Services. We will set out the Services we agree to provide to you in writing in the form of a Services Schedule.

(b) The Services can be adjusted and adapted in consultation with us, as your needs, goals and preferences change.

(c) If your Plan details differ from the details recorded in the NDIS portal, Access Disability Services WA will provide the Services to you according to the details in the NDIS portal.

(d) You and your Representative agree to:

(1) Access Disability Services WA accessing and reviewing your Plan;

(2) Access Disability Services WA discussing your Plan with the NDIA and its contractors (like Local Area Coordinators);

(3) Access Disability Services WA discussing your Plan with service providers providing the Other Support Services;

(4) Access Disability Services WA claiming any travel time when travelling to meet you, from your NDIS funds, to the extent we are entitled to under the NDIS Rules and applicable laws;

(5) Access Disability Services WA claiming for Non-Face-to-Face supports, to the extent we are entitled to under the NDIS Rules and applicable laws;

(6) Access Disability Services WA claiming for NDIA Requested Reports supports, to the extent we are entitled to under the NDIS Rules and applicable laws;

(7) Access Disability Services WA providing you with the Services in line with the terms set out in this Agreement (as updated from time to time) and your support plan;

(8) if required for random auditing purposes, be interviewed and have your records reviewed by third party accreditation, auditors and legislative bodies; and

(9) the terms of Access Disability Services WA's Policies.

5. Your consent to Services

(a) Your informed consent is required for the Services provided by Access Disability Services WA. If the Client is a child, consent also needs to be provided by a parent or legal guardian (i.e. your Representative).

(b) You may withdraw your consent for any specific Service at any time, and the specific Service will cease immediately.

(c) The Services are designed to be effective and safe, however, like any treatment, therapy or service, there are benefits and risks. Access Disability Services WA staff working with you will discuss any foreseeable risks prior to providing any Service or administering any treatment, therapy or service (as applicable).

(d) Access Disability Services WA staff may ask personal questions relating to your individual goals and circumstances. The more information you provide, the more effective the Services will be. However, it is your choice as to what information you choose to provide.

(e) It may be necessary for the Access Disability Services WA staff to make physical contact with you for the purpose of providing the Services. Consent will be achieved through signing this Agreement, with implied consent being assumed for the duration of the Agreement (until you tell us otherwise).

(f) The risks related to some Services can increase when Access Disability Services WA is not aware of certain facts. Please inform our staff if your child has any of the following:

(1) heart condition impacting engagement in physical activity

(2) seizures

(3) severe respiratory conditions e.g. asthma

(4) severe allergies

(5) severe phobias

(6) absconding (running away, running onto busy roads, etc.).

(g) By agreeing to receive the Services, you further acknowledge the following:

(1) assessment and screening may be undertaken and any records taken will be kept in your confidential client file in accordance with the relevant privacy laws;

(2) video, photo, written records and work samples may be taken, and if taken will be kept in a confidential client file in accordance with the Privacy and Dignity Policy; and

(3) with prior permission and consent, the NDIA, local area coordinators and service providers that provide Other Support Services may be contacted to discuss your Plan to gather further information and understanding of and otherwise support your individual circumstances and goals.

6. Fees for Services

(a) Access Disability Services WA will charge you for the Services.

(b) Additional expenses (i.e. things that are not funded under your Plan) are your responsibility and to be paid by you.

(c) The prices for the specific Services that we provide to you are set out in the NDIS Price Guide. All prices are subject to change when the NDIS Price Guide changes. The prices we charge you will be automatically adjusted to reflect the prices outlined in the most up to date NDIS Price Guide and the specific Services we perform.

7. Payments

Access Disability Services WA will be paid in respect of Services provided to you by one or a combination of the below payment methods:

(a) (**Self-managed**) If you have chosen to self-manage the funding/payment for the Services, after we provide the relevant Services (or part thereof), Access Disability Services WA will send you an invoice for those Services for you to pay. You must pay the invoice within seven (7) days of the date of the invoice;

(b) (**Managed by Plan nominee**) If your nominee (i.e. the participant's nominee) manages the funding/payment for the Services, after we provide the relevant Services (or part thereof), Access Disability Services WA will send your nominee an invoice for those Services for your nominee to pay. Your nominee must pay the invoice within seven (7) days of the date of the invoice;

(c) (**NDIA managed**) If you have nominated the NDIA to manage the funding/payment for the Services, after we provide the relevant Services (or part thereof), Access Disability Services WA will claim payment for those Services from the NDIA; and

(d) (**Managed by a registered plan management provider**) If you have nominated a Plan management provider to manage funding/payments for the Services, you will need to provide their details to us and after we provide the relevant Services (or part thereof), Access Disability Services WA will claim payment for those Services from the plan management provider.

8. Our Responsibilities

During the term of this Agreement, Access Disability Services WA will:

(a) act with respect for your individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions.

(b) respect your privacy.

(c) provide Services in a safe and competent manner with care and skill.

(d) act with integrity, honesty and transparency.

(e) promptly take steps to raise and act on concerns about matters that may impact the quality and safety of Services.

(f) take all reasonable steps to prevent and respond to all forms of violence against, and exploitation, neglect and abuse of, people with disability.

(g) take all reasonable steps to prevent and respond to sexual misconduct.

(h) arrive at the location where the Services are to be provided at the appointment time, ready to deliver the Services.

(i) provide the Services in a way that is consistent with all applicable laws, including the NDIS Act and the NDIS Rules, the National Privacy Principles and the Australian Consumer Law.

(j) treat you with dignity and respect at all times and value your legal and human rights, including your right to make informed choices concerning the Services to be provided to you.

(k) make reasonable efforts to involve you in selecting your workers, including the preferred gender of workers, if we are providing personal care support to you.

(l) where you have specific needs which require monitoring and/or daily support, workers providing support to you are appropriately trained and understand the participant's needs and preferences.

(m) notify you about changes to appointment times and other changes to the delivery of Services.

(n) with your reasonable assistance, provide a safe and comfortable space for the delivery of the Services.

(o) if required, provide you with a photo of your Workers to ensure they are easily identifiable to you.

(p) treat your information as private and confidential.

(q) provide timely invoices and statements for the Services.

(r) communicate openly, honestly and promptly with you.

(s) keep accurate and up-to-date records of all the Services provided to you.

(t) make contact with the NDIA about your Plan when necessary.

9. Responsibilities of the Client

You and your Representatives agree to:

(a) let Access Disability Services WA know about any concerns you have with any of the Services which are being provided.

(b) be actively involved in designing the support plan and setting and monitoring goals.

(c) ensure the fees for the Services are able to be met within the funding available in your approved Plan.

(d) ensure all invoices are paid promptly and in full.

(e) immediately notify Access Disability Services WA if you stop being a participant in the NDIS.

(f) keep Access Disability Services WA informed of any change in circumstances that will likely affect the delivery of Services or impact this Agreement such as, where you live, medication/medical treatments and procedures, behavioural changes that are likely to impact on the safe delivery of the Services, guardianship and care arrangements.

(g) Be at the designated location where the Services are to be provided at the agreed appointment time.

(h) treat all Access Disability Services WA staff, workers and others present during the delivery of supports and services with respect and abide by Access Disability Services WA' Policies.

(i) let us know if you suspend, change, or intend to change, your Plan, or if you are no longer a participant in the NDIS.

(j) provide Access Disability Services WA with a copy of any updated or revised Plan as soon as reasonably possible.

(k) Access Disability Services WA providing documents and email updates to you electronically; and

(l) inform Access Disability Services WA if you do not want to receive documents or email updates electronically.

10. Cancellation and No Show Policy

You agree that we may charge you 100% of the relevant amount that would otherwise be payable to us if you:

(a) do not show up for a scheduled Service within a reasonable time, or are not present at the agreed place and within a reasonable time when Access Disability Services WA is travelling to deliver the Services; or

(b) have given less than two (2) clear business days' notice to the cancellation for a Service that meets both of the following conditions:

(1) the support is less than 8 hours continuous duration; and

(2) the agreed total price for the Service is less than $1000; or

(c) have given less than five (5) clear business days' notice of cancellation for any Service that does not fall under clause 10(b).

11. Privacy

(a) Your privacy is important to us. When we provide the Services to you, we will collect, use and disclose information about you. The information is known as Personal Information and Sensitive Information.

(b) Our Privacy and Dignity Policy defines what this Personal Information and Sensitive Information is and how we collect, use and disclose this information. You should read our Privacy and Dignity Policy carefully – it contains important information. You do not have to consent to us collecting, using and disclosing this information.

(c) If you do not consent, this may restrict the Services we provide to you, or may mean that we are unable to provide any Services to you.

12. Feedback and Complaints

(a) If you feel comfortable, you are encouraged to raise any feedback, concerns or complaints with us first, as this is often the best way to have your issue resolved quickly.

(b) A complaint may be made on an anonymous basis. You can make an anonymous complaint:

(1) by calling the number in section 12.1(d) below and stating that you wish to make an anonymous complaint (so we don't ask you to identify yourself); or

(2) in writing by filling out a Feedback and Complaints Form but not including your name or other details that may identify you and posting it to the address specified in section 12.1(c) below.

(c) You can make a complaint to Access Disability Services WA:

(1) in person to the Principal or a staff member;

(2) by email to paulugwunali@yahoo.com;

(3) by post to 7 Pomera Drive Byford WA 6122;

(4) on our website https://access-disability.netlify.app/;

(5) verbally by telephone to +61404007488.

For all written feedback or complaints, you are encouraged to provide your complaint in the form of our written Feedback and Complaint Form.

(d) You can make a complaint to the NDIS Commision by:

(1) Phoning: 1800 035 544 (free call from landlines) or TTY 133 677. Interpreters can be arranged.

(2) National relay Service and ask for 1800 035 544.

(3) Visiting https://www.ndiscommission.gov.au/about/complaints and completing a complaint contact form.

The NDIS Commission can take complaints about:

(1) services or supports that were not provided in a safe and respectful way.

(2) services and supports that were not delivered to an appropriate standard.

(e) We will endeavour to resolve all complaints promptly in accordance with our Feedback and Complaints Management Policy.

13. Termination

(a) Access Disability Services WA and the Client may terminate this Agreement by giving at least four weeks' written notice of termination to the other party.

(b) Access Disability Services WA may terminate this Service Agreement with immediate effect if:

(1) the Client ceases to have a source of individualised government funding (i.e. they are no longer an NDIS participant or all of their NDIS funding is used) or have a source of private funding;

(2) the Client's support plan or the Services provided by Access Disability Services WA are no longer able to meet the person's needs or assist in achieving chosen goals;

(3) the Client or their support network fails to communicate and provide information about changes to the Client's needs including in respect of the Services;

(4) the Client transfers to another service provider;

(5) the Client dies;

(6) the Client is unable or unwilling over a period of time to work towards agreed goals;

(7) the Client is unwilling to meet the reasonable conditions required in their support plan, thus affecting the safe delivery of a service to the Client and the health and safety of the staff;

(8) the Client is in breach of the terms of the Agreement

(9) the Client fails to comply with the Policies of Access Disability Services WA;

(10) changes to the Client's condition results in the supports or services they require exceeding the skills and expertise Access Disability Services WA staff can deliver or the would otherwise require services to be provided that Access Disability Services WA does not have capacity to provide;

(11) there has been no contact between the person and Access Disability Services WA for 2 months;

(12) the Client or members of their support network engage in behaviour which is unacceptable to Access Disability Services WA, such as violence, abuse, aggression, theft or property damage or which poses risks to the safe delivery of the Services or the health and safety of the staff;

(13) the Client ignores risk management procedures under the Access Disability Services WA Work Health and Safety Policy.

(14) the Client fails to pay fees due and payable to Access Disability Services WA by the due date for payment under this Agreement.

14. Goods and services tax

(a) The parties agree that:

(1) the supply of the Services under this Agreement is the supply of one or more of the reasonable and necessary supports specified in the statement included, under subsection 33(2) of the **NDIS Act**, in the Client's Plan currently in effect under section 37 of the NDIS Act;

(2) the Client's Plan is expected to remain in effect during the period the Services are provided; and

(3) the Client or their representative will immediately notify Access Disability Services WA if the Client's Plan is replaced by a new plan or if the Client stops being a participant in the NDIS.

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(a) This Agreement is for the benefit of the parties and their permitted successors and assigns. The parties and their successors and assigns are bound by this Agreement.

(b) A party other than Access Disability Services WA may not assign its rights under this Agreement.

(c) Access Disability Services WA may assign its rights under this Agreement in its absolute discretion, subject only to compliance with relevant NDIS Rules.

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(1) if sent by hand delivery, at the time of delivery if on a Business Day at or before 5:30 pm, otherwise on the next Business Day;

(2) if sent by pre-paid post, on the second Business Day after the date of posting; or

(3) if sent by email transmission, at the time of sending if on a Business Day at or before 5:30 pm, otherwise on the next Business Day, provided that the sender does not receive a subsequent "Out of Office" reply or similar response or a system administrator message stating that the email did not reach its intended recipient.

Execution

Executed as an agreement on 2020

Signed for and on behalf
of Access Disability Services WA Pty Ltd
ABN 69 642 729 422, by:

……..……..
Signature

……..……..
Name (please print)

Signed by the Client:

Vida Reid
……..……..
Signature

……..……..
Name (please print)

Signed by the Representative:

……..……..
Signature

……..……..
Name (please print)

T5.1

Gmail

Search in mail

Compose

Inbox 176

Starred

Snoozed

Sent

Drafts

Spam

More

Labels

Fwd: Giuseppe

Cassandra Burke

---------- Forwarded message ---------
From: **Pamela Cicutti**
Date: Sat, 10 Dec 2022 at 10:53
Subject: Re: Giuseppe
To: Cassandra Burke

Hello Cassandra

Thank you for your email.

I would like to inform you, I would like to cancel Giuseppe's contract with as I am going back with Vida and Simon.

Thank you for all your help.

Is there anything I need to do to cancel?

Kind regards Pamela

--
Sent from Outlook Email App for Android

Friday, 09 December 2022, 10:55am +08:00 from Cassandra Burke

Good Morning
I just wanted to touch base with you, my review request for Giuseppe was denied as I do not have enough evidence. I do
Regards

Cassandra Burke
Support Coordinator

ACCESS
Access Disability Services WA

TAX INVOICE

Vida Reid
96 Amethyst Crescent
MOUNT RICHON WA 6112
AUSTRALIA

Invoice Date
10 Nov 2022

Invoice Number
INV-0042

Reference
NDIS 430970696

Access Disability Services WA PTY LTD
7 Pomera Drive Byford
WA 6122
AUSTRALIA
ABN: 69 642 729 422

Item	Description	Quantity	Unit Price	GST	Amount AUD
01_019_0120_1_1	House or Yard Maintenance 10/11/2022 - 05/01/2023	32.40	50.87	GST Free	1,648.19
				Subtotal	1,648.19
				TOTAL AUD	**1,648.19**

Due Date: 14 Nov 2022
Access disability services WA PTY LTD'
Bsb 066131
Account No10694092

PAYMENT ADVICE

To: Access Disability Services WA PTY LTD
7 Pomera Drive Byford
WA 6122
AUSTRALIA
ABN: 69 642 729 422

Customer	Vida Reid
Invoice Number	INV-0042
Amount Due	**1,648.19**
Due Date	14 Nov 2022
Amount Enclosed	

Enter the amount you are paying above

TAX INVOICE

Vida Reid
96 Amethyst Crescent
MOUNT RICHON WA 6112
AUSTRALIA

Invoice Date
15 Nov 2022

Invoice Number
INV-0039

Reference
NDIS 430970696

Access Disability Services WA PTY LTD
7 Pomera Drive Byford
WA 6122
AUSTRALIA
ABN: 69 642 729 422

Item	Description	Quantity	Unit Price	GST	Amount AUD
01_011_0107_1_1	Assistance Self-Care Activities- Weekday Daytime - 31/10/2022	7.50	62.17	GST Free	466.28
01_799_0120_1_1	Provider Travel- non-Labour Costs (Time) - 31/10/2022	24.00	1.00	GST Free	24.00
01_011_0107_1_1	Assistance Self-Care Activities- Weekday Daytime - 01/11/2022	7.50	62.17	GST Free	466.28
01_799_0120_1_1	Provider Travel- non-Labour Costs (Time) - 01/11/2022	24.00	1.00	GST Free	24.00
01_011_0107_1_1	Assistance Self-Care Activities- Weekday Daytime - 02/11/2022	7.50	62.17	GST Free	466.28
01_799_0120_1_1	Provider Travel- non-Labour Costs (Time) - 02/11/2022	24.00	1.00	GST Free	24.00
01_011_0107_1_1	Assistance Self-Care Activities- Weekday Daytime - 03/11/2022	7.50	62.17	GST Free	466.28
01_799_0120_1_1	Provider Travel- non-Labour Costs (Time) - 03/11/2022	24.00	1.00	GST Free	24.00
01_011_0107_1_1	Assistance Self-Care Activities- Weekday Daytime - 04/11/2022	7.50	62.17	GST Free	466.28
01_799_0120_1_1	Provider Travel- non-Labour Costs (Time) - 04/11/2022	24.00	1.00	GST Free	24.00
01_011_0107_1_1	Assistance Self-Care Activities- Weekday Daytime - 07/11/2022	4.00	62.17	GST Free	248.68
				Subtotal	2,700.08
				TOTAL AUD	**2,700.08**

Due Date: 15 Nov 2022

Access disability services WA PTY LTD'
Bsb 066131
Account No10694092

PAYMENT ADVICE

Customer	Vida Reid
Invoice Number	INV-0039
Amount Due	**2,700.08**
Due Date	15 Nov 2022
Amount Enclosed	

Enter the amount you are paying above

To: Access Disability Services WA PTY LTD
7 Pomera Drive Byford
WA 6122
AUSTRALIA
ABN: 69 642 729 422

TAX INVOICE

Vida Reid
96 Amethyst Crescent
MOUNT RICHON WA 6112
AUSTRALIA

Invoice Date
4 Nov 2022

Invoice Number
INV-0019

Reference
NDIS 430970696

Access Disability Services WA PTY LTD
7 Pomera Drive Byford
WA 6122
AUSTRALIA
ABN: 69 642 729 422

Item	Description	Quantity	Unit Price	GST	Amount AUD
01_011_0107_1_1	Assistance Self-Care Activities- Weekday Daytime - 17/10/2022	7.50	62.17	No GST	466.28
01_799_0120_1_1	Provider Travel- non-Labour Costs (Time) - 17/10/2022	24.00	1.00	No GST	24.00
01_011_0107_1_1	Assistance Self-Care Activities- Weekday Daytime - 18/10/2022	7.50	62.17	No GST	466.28
01_799_0120_1_1	Provider Travel- non-Labour Costs (Time) - 18/10/2022	24.00	1.00	No GST	24.00
01_011_0107_1_1	Assistance Self-Care Activities- Weekday Daytime - 19/10/2022	7.50	62.17	No GST	466.28
01_799_0120_1_1	Provider Travel- non-Labour Costs (Time) - 19/10/2022	24.00	1.00	No GST	24.00
01_011_0107_1_1	Assistance Self-Care Activities- Weekday Daytime - 20/10/2022	7.50	62.17	No GST	466.28
01_799_0120_1_1	Provider Travel- non-Labour Costs (Time) - 20/10/2022	24.00	1.00	No GST	24.00
01_011_0107_1_1	Assistance Self-Care Activities- Weekday Daytime - 21/10/2022	7.50	62.17	No GST	466.28
01_799_0120_1_1	Provider Travel- non-Labour Costs (Time) - 21/10/2022	24.00	1.00	No GST	24.00
01_011_0107_1_1	Assistance Self-Care Activities- Weekday Daytime - 24/10/2022	7.50	62.17	No GST	466.28
01_799_0120_1_1	Provider Travel- non-Labour Costs (Time) - 24/10/2022	24.00	1.00	No GST	24.00
01_011_0107_1_1	Assistance Self-Care Activities- Weekday Daytime - 25/10/2022	7.50	62.17	No GST	466.28
01_799_0120_1_1	Provider Travel- non-Labour Costs (Time) - 25/10/2022	24.00	1.00	No GST	24.00

Item	Description	Quantity	Unit Price	GST	Amount AUD
01_011_0107_1_1	Assistance Self-Care Activities- Weekday Daytime - 26/10/2022	7.50	62.17	No GST	466.28
01_799_0120_1_1	Provider Travel- non-Labour Costs (Time) - 26/10/2022	72.00	1.00	No GST	72.00
01_011_0107_1_1	Assistance Self-Care Activities- Weekday Daytime - 27/10/2022	7.50	62.17	No GST	466.28
01_799_0120_1_1	Provider Travel- non-Labour Costs (Time) - 27/10/2022	48.00	1.00	No GST	48.00
01_011_0107_1_1	Assistance Self-Care Activities- Weekday Daytime - 28/10/2022	7.50	62.17	No GST	466.28
01_799_0120_1_1	Provider Travel- non-Labour Costs (Time) - 28/10/2022	24.00	1.00	No GST	24.00
				Subtotal	4,974.80
				TOTAL AUD	**4,974.80**

Due Date: 4 Nov 2022
Access disability services WA PTY LTD'
Bsb 066131
Account No10694092

PAYMENT ADVICE

Customer	Vida Reid
Invoice Number	INV-0019
Amount Due	**4,974.80**
Due Date	4 Nov 2022
Amount Enclosed	

Enter the amount you are paying above

To: Access Disability Services WA PTY LTD
7 Pomera Drive Byford
WA 6122
AUSTRALIA
ABN: 69 642 729 422

From: Paul ugwunali <info@adsw.com.au>
Sent: Thursday, 9 February 2023 7:06 PM
To: HAYWOOD, Keren
Subject: Fwd: FW: The Hive Current Support Workers
Attachments: The Hive Current Support Workers.xlsx

Paul Ugwunali
Team Leader

Access Disability Services WA

Tudor Arcade, 225 Jull Street, Armadale, WA 6112

Tel: +61 404 007 488 (Mobile & Whatsapp)

E-mail: **info@adsw.com.au** *Web:* **www.adsw.com.au**

Empowering Individuals with Disabilities

---------- Forwarded message ---------
From: **Virginie F-D** <virginie@hybridhive.com.au>
Date: Wed, Nov 9, 2022 at 4:57 PM
Subject: FW: The Hive Current Support Workers
To: paulugwunali@yahoo.com <paulugwunali@yahoo.com>, info@adsw.com.au <info@adsw.com.au>
Cc: Vida FFG <vida@ffg.net.au>, Simon Reid <simon@hybridhive.com.au>

Hi Paul,

Please see attached The Hive current Support Workers as required



Virginie Fanny-Dulloo
Acting Housing Manager, The Hive

2/210 Jull Street, Armadale, WA 6112

(08) 6117 7786 0478 886 706 virginie@hybridhive.com.au
hybridhive.com.au

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THE HIVE

From: Virginie F-D
Sent: Wednesday, 9 November 2022 4:12 PM
To: Vida FFG <vida@ffg.net.au>; Simon Reid <simon@hybridhive.com.au>
Subject: The Hive Current Support Workers

Hi Simon,

Please see attached the Hive current support workers.



Virginie Fanny-Dulloo
Acting Housing Manager, The Hive

2/210 Jull Street, Armadale, WA 6112

(08) 6117 7786 0478 886 706 virginie@hybridhive.com.au
hybridhive.com.au

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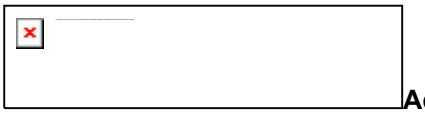
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THE HIVE CURRENT SUPPORT WORKERS

NO	THE HIVE	PHONE NUMBER	EMAIL ADDRESS
1	Grace Philips	0403 147 141	gracephilips18@yahoo.com
2	Emma-Lea Strauch	0450 873 973	emmaleastrauch2001@gmail.com
3	Namina Bangura	0404 753 944	naminabangura8@gmail.com
4	Navjot Kaur (Full Time)	0424 983 298	navjotkaur.aus@gmail.com
5	Neeru Walia	0449 549 355	neerugarry84@gmail.com
6	Ojo Oluwakemi***	0404 474 806	kemiojo16@gmail.com
7	Milos Novkovic	0422 654 240	micknovk@gmail.com
8	Cherie Stickland	0408 750 473	c_stickland73@hotmail.com
9	Deborah Phoenix	0410 095 723	letdebbielite@iinet.net.au
10	Madeline Dawson	0483 804 502	madeleinedawson91@gmail.com
11	Paula Stanford	0488 775 832	westauzgirl@gmail.com
12	Mutale Phiri	0416 483 435	mutalephiri@gmail.com
13	Barun Bhusal	0401 563 372	Planetbarun@yahoo.com
14	Emmanuel Ogbodo	0434 438 983	nduogbodo28@yahoo.com
15	Justin Hussell	0426 532 935	justinhussell7@gmail.com
16	Mateo De Leon	0430 320 458	mateo.deleon@yahoo.com
17	Edmund Mensah (NEW)	0406 482 980	edmundtawiah1978@gmail.com
18	Manfred Chipis (NEW)	0416 271 592	manfredmwape@yahoo.com

From: Paul ugwunali <info@adsw.com.au>
Sent: Thursday, 9 February 2023 7:09 PM
To: HAYWOOD, Keren
Subject: Fwd: FW: Client List Paul
Attachments: image001.gif; image001.gif; CoS-Client-Report-28-10-22 - Paul.xlsx

Paul Ugwunali
Team Leader

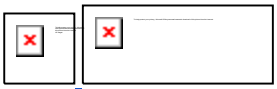

Access Disability Services WA

Tudor Arcade, 225 Jull Street, Armadale, WA 6112

Tel: +61 404 007 488 (Mobile & Whatsapp)

E-mail: **info@adsw.com.au** *Web:* **www.adsw.com.au**

Empowering Individuals with Disabilities



---------- Forwarded message ---------
From: **Paul ugwunali** <info@adsw.com.au>
Date: Fri, Oct 28, 2022 at 10:10 AM
Subject: Fwd: FW: Client List Paul
To: <cassieburke@live.com.au>

---------- Forwarded message ---------
From: **Vida Reid** <vida@ffg.net.au>
Date: Fri, 28 Oct 2022, 10:01
Subject: FW: Client List Paul
To: Ashleigh Oleksiuk <ashleigh.oleksiuk@adsw.com.au>, Paul ugwunali <info@adsw.com.au>
Cc: Blake Sadler <blake.s@ffg.net.au>, Tori Fitton <tori.f@ffg.net.au>, Simon Reid <simon@ffg.net.au>

Hi Paul,

As discussed today and agreed with Blake Sadler and Allyson in the room we agreed that you will loo after these clients as we can no longer do so.

You also agreed to take over the 2 properties of Cottesloe and safety bay on a profit share agreement with the participants residing in it.

On %50 profit share agreement after your support worker expenses.

Thank you

Kind Regards,

Vida

From: Blake Sadler <blake.s@ffg.net.au>
Sent: Friday, 28 October 2022 9:34 AM
To: Vida Reid <vida@ffg.net.au>
Subject: Client List Paul

31 in total, disincluding double ups, yourself and your son

Blake Samuel Sadler
Support Coordinator

Phone: 0478 857 815

From: Paul ugwunali <info@adsw.com.au>
Sent: Thursday, 9 February 2023 7:01 PM
To: HAYWOOD, Keren
Subject: Fwd: Client Details

Paul Ugwunali
Team Leader



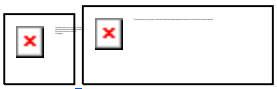
Access Disability Services WA

Tudor Arcade, 225 Jull Street, Armadale, WA 6112

Tel: +61 404 007 488 (Mobile & Whatsapp)

E-mail: **info@adsw.com.au** *Web:* **www.adsw.com.au**

Empowering Individuals with Disabilities



---------- Forwarded message ---------
From: **Paul ugwunali** <info@adsw.com.au>
Date: Thu, Nov 17, 2022 at 1:28 PM
Subject: Client Details
To: Vida Reid <vida@ffg.net.au>, <virginie.f-d@hybridhive.com.au>

Hi Vida,

Good afternoon, am yet to get the NDIS Plan for Annette OGaden at Cottesloe House.
I can't bill and pay the staff if I can't get her NDIS Plan. All blame is coming to me when I have not got the proper handover for a good transition.

Also am I getting a proper timesheet that will allow me to pay all staff for Safety Bay and Cottesloe. So I sent them off to the accountant for payment.
Kindly advise.

Kind regards,

Paul Ugwunali
Team Leader

Access Disability Services WA

Tudor Arcade, 225 Jull Street, Armadale, WA 6112

Tel: +61 404 007 488 (Mobile & Whatsapp)

E-mail: **info@adsw.com.au** *Web:* **www.adsw.com.au**

Empowering Individuals with Disabilities

From: Paul ugwunali <info@adsw.com.au>
Sent: Thursday, 9 February 2023 7:04 PM
To: HAYWOOD, Keren
Subject: Fwd: Cancelation of services

Paul Ugwunali
Team Leader

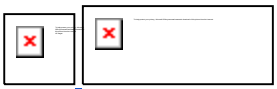

Access Disability Services WA

Tudor Arcade, 225 Jull Street, Armadale, WA 6112

Tel: +61 404 007 488 (Mobile & Whatsapp)

E-mail: **info@adsw.com.au** *Web:* **www.adsw.com.au**

Empowering Individuals with Disabilities



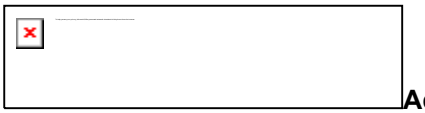
---------- Forwarded message ---------
From: **Paul ugwunali** <info@adsw.com.au>
Date: Thu, Nov 17, 2022 at 1:01 PM
Subject: Re: Cancelation of services
To: Vida Reid <vida@ffg.net.au>
Cc: Cassandra Burke <cassandra.burke@adsw.com.au>

Hi Vida,

Thanks for your email.
All sounds good. No problem at all.

Cheers,

Paul Ugwunali
Team Leader

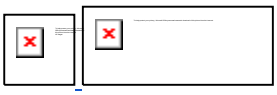

Access Disability Services WA

Tudor Arcade, 225 Jull Street, Armadale, WA 6112

Tel: +61 404 007 488 (Mobile & Whatsapp)

E-mail: **info@adsw.com.au** *Web:* **www.adsw.com.au**

Empowering Individuals with Disabilities



On Thu, Nov 17, 2022 at 12:49 PM Vida Reid <vida@ffg.net.au> wrote:

Hi Paul,

Yes and as a result I wish to advise the below formal notice which does not make any differences to your charges.

I hereby provide you with 4 weeks notice. During this 4 weeks we do not require any services or supports and as such no deductions or payments are to be made against our ndis plans. Any such action of deductions will be seen as unauthorised.

If we do require any services it will be via writing only whereby you may charge for services provided. However I doubt this will be the case.

I simply do not wish to continue as it is causing me more problems than help to be honest.

I am happy to help you where I can but submitting and asking questions about our own plans/ndis/ fighting with support staff/ support staff advising they are going to quit etc… is too much for me whilst I have a lot on my plate.

Thank you for your support thus far and I wish you all the best too.

Kind Regards,

Vida

From: Paul ugwunali <info@adsw.com.au>
Sent: Thursday, 17 November 2022 12:30 PM
To: Vida Reid <vida@ffg.net.au>
Cc: Cassandra Burke <cassandra.burke@adsw.com.au>
Subject: Re: Cancelation of services

Hi Vida,

Thank you for emailing me and letting me know about the cancellation of both your support and that of your son Alex Reid.

For the cancellation period, you know the policy more than I do.

I want to thank you and Simon for letting me into your office, and for trusting me to provide support to you and your son Alex so far.

It is unfortunate that you have decided to discontinue my support services.

I wish you good luck in your future endeavors.

Kind regards,

Paul Ugwunali
Team Leader

Access Disability Services WA

Tudor Arcade, 225 Jull Street, Armadale, WA 6112

Tel: +61 404 007 488 (Mobile & Whatsapp)

E-mail: **info@adsw.com.au** *Web:* **www.adsw.com.au**

Empowering Individuals with Disabilities

On Thu, Nov 17, 2022 at 9:57 AM Vida Reid <vida@ffg.net.au> wrote:

> Hi Paul and Cassie,

With everything going on and my staff now not able to work with fights back and forth I cannot deal with this on top of what I have going on.

They have also continuously told me they are not getting paid and this is now additional stress on me.

I'm just not going to sue NDIS anymore. Don't want it. Don't need it. I've had enough. All it has done is cause problems for me and my family.

Please take this notice period for until end of this Friday 18th/11/2022. After this Friday we will no longer require your services for our family.

Thank you for what you have done so far.

Kind Regards,

Vida

From: Paul ugwunali <info@adsw.com.au>
Sent: Wednesday, 15 February 2023 2:00 PM
To: HAYWOOD, Keren
Subject: Fwd: Paul

Paul Ugwunali
Team Leader

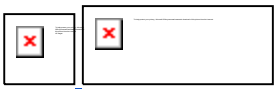
 **Access Disability Services WA**

Tudor Arcade, 225 Jull Street, Armadale, WA 6112

Tel: +61 404 007 488 (Mobile & Whatsapp)

E-mail: **info@adsw.com.au** *Web:* **www.adsw.com.au**

Empowering Individuals with Disabilities



---------- Forwarded message ---------
From: **Vida Reid** <vida@ffg.net.au>
Date: Tue, Sep 27, 2022 at 9:08 PM
Subject: RE: Paul
To: Paul ugwunali <info@adsw.com.au>
Cc: Simon Reid <simon@ffg.net.au>

Hi Paul,

It was great seeing you today. As discussed, I require the below care and hours for my son :-

Mornings

- Arrive at 6:30 am sharp
- Make lunch for my son's school and pack his school bag
- Make breakfast for my son
- Then only after that get my son up and get him ready for school
- Feed him breakfast
- Take him to school latest by 8:30 am MUST BE ON TIME

Afternoon

- Arrive at school at 2:30 pm sharp to pick him up
- Arrive home by 2:50pm
- Feed him healthy snacks for afternoon
- Look after our son not sitting on his phone on social media and no talking on phone doing personal matters. My daughter will tell me.
- Stay until 6 pm then leave when we get home. I don't want to have chit chat when I get home as I will be very tired from work.

Snacks and food allowed for kids

- Must be healthy food and snacks
- No chocolate
- No sugar
- No junk food
- No fast food (MacDonalds etc.. BIG NO)

Alex medical conditions

- Autism level 3
- ADHD
- ADD
- GDD
- SEMI-VERBAL
- Intellectual Disability
- Borderline Diabetic – MEANS CANNOT HAVE SUGAR at all

Alex needs to lose weight and should cut down on food consumption and also sugar.

Alex Behaviours

- Can be aggressive if he is annoyed or attacked. In this case step away and give him some room to calm down
- Chews on his nails and should be prompted to stop and behaviour re-directed.
- Chews buttons on t-shirts and should be prompted to stop and attention re-directed.

Male staff is prefered but if you have a strong woman that is fine too. This is because Alex is very strong and if he pushes someone we

Don't want them to get hurt.

Vida Reid
Founding Executive Director at Forward Focused Group

A 2/210 Jull street, Armadale, WA 6112

[Next to Dome Cafe]
P 08-61177786 **M** 0478889648

E vida@ffg.net.au
W https://forwardfocusedgroup.com.au

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FORWARD FOCUSED
YOU ARE OUR FOCUS

Registered NDIS Provider

Workforce Australia
Employment Services

From: Paul ugwunali <info@adsw.com.au>
Sent: Wednesday, 21 September 2022 1:11 PM
To: Vida Reid <vida@ffg.net.au>
Subject: Paul

Hi Vida,

How are you?

I did not hear from you again yesterday as discussed to support your son.

Just wondering if I can have a chat with you before leaving the training this afternoon if suits you.

Thanks,

Paul Ugwunali.

NDIS Quality and Safeguards Commission

Banning Order Policy

V1.0 – April 2022

NDIS Quality and Safeguards Commission
PO Box 210, Penrith NSW 2750.

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The relationship between banning orders and other regulatory tools....4
Banning order provisions....5
The NDIS Commissions's approach to the use of banning orders....7

Purpose of this policy

The NDIS Quality and Safeguards Commission (the NDIS Commission) is an independent government body that works to improve the quality and safety of NDIS supports and services, investigates and resolves problems, and strengthens the skills and knowledge of providers and participants.

The regulatory powers and functions of the NDIS Commission are set out in the *National Disability Insurance Scheme Act 2013* (the NDIS Act) and associated Rules.

The NDIS Commission's compliance and enforcement activities are an important part of its work as a regulator. Those activities enable the NDIS Commission to encourage best practice among NDIS providers and manage risk to NDIS participants.

The NDIS Commission has a range of tools for responding to non-compliance that are provided for in Chapter 4, Part 3A of the NDIS Act. One of those tools is a banning order. This policy is one of a number of policies that expands on the overarching information and guidance provided in the NDIS Commission's *Compliance and Enforcement Policy*.

This policy provides guidance on banning orders, the circumstances in which the NDIS Commissioner (the Commissioner) will issue a banning order and the approach that will be taken when deciding whether or not to do so. The policy is a guide only and not prescriptive. Each decision by the Commissioner to make, vary or revoke a banning order is made on a case-by-case basis on its particular facts and circumstances.

What is a banning order?

A banning order is an administrative tool available to the Commissioner and prohibits or restricts a person, either permanently or for a specified period, from engaging in, providing or being involved in the provision of specified activities, supports or services in the NDIS market.

Banning orders are considered the NDIS Commission's most serious compliance and enforcement tool and will therefore only be appropriate for the most serious cases of poor conduct.

A banning order is intended to apply in circumstances where it is the most appropriate regulatory option to protect and prevent people with disability from experiencing harm or detriment arising from poor quality, fraudulent, dishonest or unsafe services provided under the NDIS.

A banning order can be issued in a range of circumstances to past or present NDIS providers, people who are or were employed or otherwise engaged by an NDIS provider (workers) and people who are or were key personnel of an NDIS provider. A banning order can also be issued to a person who has never been or worked for an NDIS provider.

The relationship between banning orders and other regulatory tools

The NDIS Commission's Compliance and Enforcement Policy lists and discusses the various compliance and enforcement tools available to it.

When viewed as a whole, it is apparent the tools provide a range of options which allow the Commissioner to respond to situations of concern in the most appropriate way. The primary purpose of each of the tools can be characterised as follows:

1. to **protect** people with a disability from exposure to conduct which falls well

short of acceptable standards – banning orders, revocation of provider registration and injunctions;

2. to **deter** conduct which breaches the NDIS Act by imposition of a penalty - civil penalties and infringement notices; and

3. to ensure **compliance** with the NDIS Act – compliance notices and enforceable undertakings.

Looked at this way, it is apparent that a person could be subject to one or more regulatory responses in any given situation. For example, in the most serious cases, a person could be subject to both a banning order and civil penalty action, the aim being to both remove the person from operating in the disability sector and to deter the conduct giving rise to the banning order. A less serious breach might be the subject of a compliance notice, either alone or in conjunction with an infringement notice, to make sure the person is brought back into compliance with the NDIS Act. Further, different tools may be applied to different people involved in a situation of concern. For example, depending on the circumstances, it may be appropriate to take civil penalty proceedings against an NDIS provider while issuing a banning order against a worker for that provider (or vice versa).

In many cases, it may be appropriate to both revoke a provider's registration and issue a banning order. Registration is only required for a limited, higher risk range of activities provided to people with disability. A banning order can prohibit or restrict a much wider range of activities and therefore may be appropriate to provide greater protection to people with disability.

Banning order provisions

The provisions which are most relevant to banning orders are found in sections 73ZN and 73ZO of the NDIS Act. The following discussion summarises those and other relevant provisions. It is a summary only and readers should refer to the NDIS Act for precise wording.

Who can be given a banning order and in what circumstances?

Past or present NDIS providers, workers or key personnel

A banning order can be issued to a past or present NDIS provider, a person who is or was a worker for an NDIS provider or a person who is or was a member of the key personnel of an NDIS provider. The term "key personnel" is defined in section 11A of the NDIS Act and in essence means a person concerned in the senior management of the NDIS provider.

A banning order can be issued to such a provider or person if the Commissioner reasonably believes that the provider or person:

- has contravened, is contravening or is likely to contravene the NDIS Act;
- has been or is likely to become involved in the contravention of the NDIS Act by another person;
- is not suitable to provide or be involved in the provision of supports or services to people with disability; or
- in the case of a current NDIS provider, worker or member of the key personnel, poses an immediate danger to the health, safety or wellbeing of a person with disability.

A banning order can also be issued to such a provider or person if the provider or person has been convicted of an offence involving fraud or dishonesty or becomes insolvent. Finally, a banning order can be issued to a person who was a registered NDIS provider where that registration has been revoked.

Those who have never been an NDIS provider or been a member of the key personnel of or worked for an NDIS provider

A banning order can be issued to such a person if the Commissioner reasonably believes the person is not suitable to be involved in the provision of specified supports or services to people with disability.

Content and features of a banning order

A banning order prohibits or restricts the person to whom it is issued from carrying out, engaging in or being involved in the activities, supports or services specified in the order. The banning order can be of general or limited application. The order can be permanent or for a specified period and can be subject to conditions.

Unless the banning order is issued because there is an immediate danger to a person with disability or because the proposed recipient's registration as a registered NDIS provider has been revoked, the proposed recipient of an order must be given the opportunity to make submissions in response to the Commissioner's intention to issue the order.

A banning order must be issued in writing and must include a statement of reasons. Written notice of the order must be given to the person against whom it is issued. A banning order is a reviewable decision under section 99 of the NDIS Act. This means that the recipient may request an internal review of the order and, if the result of that review is that a banning order still applies either in the same or a revised form, the recipient may apply to the Administrative Appeals Tribunal for further review.

If a banning order is breached, the Commissioner can take enforcement action such as seeking an injunction, taking civil penalty proceedings or issuing an infringement notice. The maximum civil penalty for breaching a banning order is 5,000 penalty units for a corporation and 1,000 penalty units for others. This is the largest maximum civil penalty available for a breach of the NDIS Act, indicating how seriously breaches are viewed.

Revoking or varying a banning order

The Commissioner may revoke or vary a banning order if the Commissioner is satisfied it is appropriate to do so.

The revocation or variation can occur either at the Commissioner's own initiative or on the written application of the recipient of the order. A decision to vary or to refuse to vary or revoke a banning order is a reviewable decision under section 99 of the NDIS Act (see above). Before deciding to *refuse* an application to vary or revoke a banning order, the Commissioner must give the applicant an opportunity to make submissions.

The NDIS Provider Register

Section 73ZS of the NDIS Act sets out what is to be contained in the Provider Register. Banning orders that are in force must be included on the Register, with details of the identity of the provider as well as information in respect of the banning order. The Register may contain similar details in relation to banning orders that are no longer in force.

The NDIS Commission's approach to the use of banning orders

Banning orders are considered the NDIS Commission's most serious regulatory response. Given that the NDIS Commission is required to conduct compliance and enforcement activities in a risk responsive and proportionate manner and the significant impact a banning order can have on the recipient and on people with disability, it will be reserved for circumstances where it is needed to protect people with disability from the risk of being exposed to conduct that falls well short of acceptable standards.

The requirement to be proportionate means that banning orders shouldn't be for a longer period than is considered necessary in the circumstances. Further, banning orders should only be general (as opposed to limited) or prohibit (as opposed to restrict) if that is considered necessary and appropriate given the circumstances of the case.

Relevant factors and considerations

Every decision to issue a banning order will be determined on a case-by-case basis taking into account all relevant considerations in an objective and impartial way. It is not possible to list all the factors or considerations exhaustively. In the context of the decision to issue a banning order, they would include:

- the seriousness of the contravention or conduct in terms of both how far below acceptable standards it falls and also the harm or detriment it caused, particularly to people with disability or other vulnerable people;
- whether the person's employment has been terminated because of the contravention or conduct
- whether the person has committed or engaged in the same or similar contravention or conduct previously and, if so, how often;
- whether the contravention or conduct is likely to re-occur and whether it poses an ongoing or immediate risk (and, if so, the extent of that risk) to people with disability;
- the state of mind of the person who committed or engaged in the contravention or conduct - was the contravention or conduct deliberate, reckless or negligent as opposed to inadvertent;
- whether the contravention or conduct gives rise to other protections that may be considered sufficient to reduce the risk to people with disability to the extent that a banning order is not necessary or appropriate, for example where the result of a person's NDIS worker screening check is an exclusion and applicable state or territory law prohibits a person with an exclusion working in the disability sector; and
- any mitigating factors, including whether the person has shown remorse or contrition, has any reasonable explanation for the contravention or conduct or has demonstrated the steps taken to reduce the risk of re-occurrence.

Examples of circumstances where the Commissioner may be more likely to consider a

banning order to be appropriate include where:

- the conduct caused serious harm or detriment to the health, safety or wellbeing of people with disability;
- the conduct was deliberate or reckless and shows disregard for other people's health, safety or wellbeing, particularly people with disability or other vulnerable people;
- there is a reasonable belief that the conduct amounts to a serious criminal offence, for example sexual or physical assaults, fraud or criminal neglect;
- the conduct has occurred on multiple occasions or poses an ongoing risk of serious harm to people with disability; and/or
- the conduct was negligent and gives rise to a set of circumstances posing an immediate risk of serious harm to people with disability.

Examples where the issuing of a banning order would not be appropriate include where:

- the conduct was inadvertent and caused no harm to the health, safety or wellbeing of people with disability;
- the conduct was a one-off and posed no or minimal risk of harm to the health, safety or wellbeing of people with disability; and/or
- the conduct is more appropriately addressed by use of one of the NDIS Commission's other compliance and enforcement tools.

Permanent or for a specified period?

The factors the Commissioner will take into account in determining the length of a banning order are similar to those to be considered when determining whether a banning order is appropriate. In essence, the more serious the conduct and surrounding circumstances, the longer the banning order.

However, as set out above, a banning order should not be imposed for a period that is longer than is considered necessary. Accordingly, a permanent banning order will only be imposed in the most serious cases and in circumstances where it is considered appropriate that the person or provider should never be allowed to provide, or be involved in the provision of, supports or service to people with disability.

Crimes involving violence, fraud or dishonesty or criminal neglect are of particular concern to the NDIS Commission, particularly when committed against those who are vulnerable, such as the aged, children or those with disability. The NDIS Commission has received and will continue to receive information that a person involved in the disability sector has been charged with these or similar offences. These charges can relate to alleged conduct of the person in providing supports or services to people with disability but can also relate to alleged crimes committed against the general public.

Where such an offence has been charged but the charge is yet to be heard, the Commissioner may consider that a banning order is warranted. The mere fact a charge has been laid will of itself be unlikely to justify a banning order. Rather, the Commissioner will look at all available information and evidence obtained either voluntarily or through use of the NDIS Commission's investigative powers, to determine

whether a banning order is warranted and appropriate.

If a banning order is issued pending the determination of charges, the NDIS Commission's practice is for the banning order to apply for a period sufficient to allow the charge to be determined. Once the charge is determined, the Commissioner will then consider whether the banning order should be varied, for example to specify a longer period.

To whom should a banning order be issued?

The Commissioner will carefully consider the circumstances of a case in deciding on the recipient of a banning order. A key determining factor will be whether the person or provider is considered culpable and responsible for the conduct giving rise to the banning order. For example, in circumstances where the acts of a worker form the basis of the conduct justifying a banning order, it may seem obvious that the worker is the most appropriate person to receive a banning order. The NDIS provider could however also receive a banning order if, for example, it failed to properly supervise or instruct the worker or failed to ensure the worker had appropriate qualifications to perform the role in which they were engaged at the time of the conduct. The NDIS provider would however be unlikely to receive a banning order if the worker's conduct was outside the scope of his/her role and was not something the NDIS provider could have either reasonably foreseen or prevented.

Similarly, a member of the key personnel of the NDIS provider would be unlikely to receive a banning order, unless either directly involved in the conduct of concern or having failed to take appropriate steps for which they were responsible which significantly facilitated, contributed to or exacerbated the conduct.

People who have left the disability sector or have never been in it

As discussed above, it is possible to issue a banning order against a person who has left the disability sector or indeed a person who has never been in it.

While it may appear unusual for the Commissioner to consider a banning order against someone who has left the sector, it is not uncommon. For example, the person may have been employed in the sector but their employment terminated as a result of the conduct which gives rise to the banning order. Without the banning order, the person may be able to re-enter the sector.

Further, the Commissioner may become aware of conduct by someone who has never worked in the disability sector but who is employed in a similar sector (such as aged care or child care) and/or is looking to become involved in the disability sector. Depending on the circumstances, it may well be considered an appropriate response to ban the person from entering the sector.

Court Copy T7

MAGISTRATES COURT of WESTERN AUSTRALIA **PROSECUTION NOTICE** *Criminal Procedure Act 2004* *Criminal Procedure Regulations 2005 – Form 3*	Court No.	
	Magistrates Court at	
	Date Lodged	

Details of Alleged offence	Accused	Vida **REID**		
	Date or period	See Attachment 1 - Charges		
	Place	See Attachment 1 - Charges		
	Description	See Attachment 1 - Charges		
	Written Law	See Attachment 1 - Charges		
Notice to Accused	You are charged with the offence described above, or the offences described in any attachment to this notice. The charge(s) will be dealt with by the above court.			
Accused's details	Date of birth	11 January 1987	Female	
	Address	96 Amethyst Crescent Mount Richon WA 6112		
Prosecutor	**Commonwealth Director of Public Prosecutions** **PO Box B92 PERTH WA 6001** **Tel: 08 9264 7264 Fax: 08 6208 3213 Ref:**			
Person issuing this notice	Agency	National Disability Insurance Agency		
	Full Name	Marek SVARC	Official Title	Senior Investigator
	Work Address	111 Eagle Street, Brisbane	Work Telephone	1800 800 110
	Signature			
	Witness's signature	JP/Prescribed court officer Magistrate		
Date	This prosecution notice is signed on 18-10-2022			

For Court Use Only

Date	Appearance by accused	Counsel	Record of Court Proceedings	Judicial Officer
	Y/N			
	Y/N			
	Y/N			
	Y/N			

Plea	Guilty/not Guilty
Date of Plea	
Judgment	Convicted/Acquitted

☐ Victim Impact Statement available

Penalty and other Orders

Fine

Costs

Other

Judicial Officer	Date

Court No.	

T7

Date	Appearance by accused	Counsel	Record of Court Proceedings	Judicial Officer
	Y/N			
	Y/N			
	Y/N			

Accused Copy T7

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Prosecutor	**Commonwealth Director of Public Prosecutions** **PO Box B92 PERTH WA 6001** **Tel: 08 9264 7264 Fax: 08 6208 3213 Ref:**				
Person issuing this notice	Agency	National Disability Insurance Agency			
	Full Name	Marek SVARC	Official Title	Senior Investigator	
	Work Address	111 Eagle Street, Brisbane	Work Telephone	1800 800 110	
	Signature	Marek Svarc			
	Witness's signature	JP/Prescribed court officer Magistrate			
Date	This prosecution notice is signed on 18-10-2022				

Agency File Copy T7

MAGISTRATES COURT of WESTERN AUSTRALIA **PROSECUTION NOTICE** *Criminal Procedure Act 2004* *Criminal Procedure Regulations 2005 – Form 3*		Court No.		
		Magistrates Court at		
		Date Lodged		
Details of Alleged offence	Accused	Vida **REID**		
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	Place	See Attachment 1 - Charges		
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Accused's details	Date of birth	11 January 1987	Female	
	Address	96 Amethyst Crescent Mount Richon WA 6112		
Prosecutor	**Commonwealth Director of Public Prosecutions** **PO Box B92 PERTH WA 6001** **Tel: 08 9264 7264 Fax: 08 6203 3213 Ref:**			
Person issuing this notice	Agency	National Disability Insurance Agency		
	Full Name	Marek SVARC	Official Title	Senior Investigator
	Work Address	111 Eagle Street, Brisbane	Work Telephone	1800 800 110
	Signature			
	Witness's signature	JP/Prescribed court officer Magistrate		
Date	This prosecution notice is signed on 18-10-2022			

CDPP File Copy T7

MAGISTRATES COURT of WESTERN AUSTRALIA **PROSECUTION NOTICE** *Criminal Procedure Act 2004* *Criminal Procedure Regulations 2005 – Form 3*			Court No.	
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	Work Address	111 Eagle Street, Brisbane	Work Telephone	1800 800 110
	Signature	Marek Svarc		
	Witness's signature	L Woods JP/Prescribed court officer Magistrate		
Date	This prosecution notice is signed on 18-10-2022			

Charge 1 of 4

That between 1 December 2021 and 17 May 2022 at Perth in the State of Western Australia, Vida REID dealt with money or other property, it being reasonable to suspect that such money or other property was proceeds of crime and at the time of dealing the value of the money or property was more than $100,000, contrary to section 400.9(1) of the Criminal Code (Cth).

Charge 2 of 4

That between 26 December 2021 and 23 June 2022 at Perth in the State of Western Australia, Vida REID dealt with money or other property, it being reasonable to suspect that such money or other property was proceeds of crime and at the time of dealing the value of the money or property was more than $100,000, contrary to section 400.9(1) of the Criminal Code (Cth).

Charge 3 of 4

That between 30 November 2021 and 08 April 2022 at Perth in the State of Western Australia, Vida REID caused payment requests to be submitted, which he knew to be false, to the National Disability Insurance Agency, a Commonwealth entity, with the intention of dishonestly causing a loss, contrary to section 135.1(3) of the Criminal Code (Cth).

Charge 4 of 4

That between 18 November 2021 and 19 April 2022 at Perth in the State of Western Australia, Vida REID caused payment requests to be submitted, which he knew to be false, to the National Disability Insurance Agency, a Commonwealth entity, with the intention of dishonestly causing a loss, contrary to section 135.1(3) of the Criminal Code (Cth).

.....
Signature of Prosecutor

.....
Signature of Justice of the Peace / Magistrate

IN THE MAGISTRATES COURT
HELD AT PERTH

B E T W E E N

Marek SVARC (PROSECUTOR)

and

Vida **REID** (ACCUSED)

STATEMENT OF MATERIAL FACTS
PURSUANT TO SECTION 35 OF THE CRIMINAL PROCEDURE ACT 2004

Prepared by:
National Disability Insurance Agency
111 Eagle Street
BRISBANE QLD 4000

DPP Telephone: 9264 7264
DPP Reference: 2022PR01618

OVERVIEW

1. On 19 October 2020, the National Disability Insurance Agency (**NDIA**) approved Forward Focused Group Pty Ltd, trading as Forward Focused (**FFG**), to provide services to National Disability Insurance Scheme (**NDIS**) participants in Western Australia. Mrs Vida REID (**V REID**) is the Director, shareholder and joint signatory to the company bank accounts. Mr Simon REID (**S REID**) is a shareholder, joint signatory to the company bank accounts and former Director.

2. Hybrid Hive Pty Ltd (**HYBRID**) is an unregistered provider of services to **NDIS** participants in Western Australia. The sole Director of **HYBRID** is **V REID**. The sole shareholder of **HYBRID** is The HIVE Pty Ltd (**HIVE**). The sole Director of **HIVE** is **S REID**. The shareholders of **HIVE** are **V REID** and **S REID**. The joint signatories for the **HYBRID** bank account are **V REID** and **S REID**.

3. It is alleged that, between 26 November 2021 and 22 June 2020, **V REID** and **S REID** caused 81 false 'payment requests' to be submitted against the funding of two disabled

persons participating in the **NDIS**, with the intention of dishonestly causing a loss to the Commonwealth.

4. As a result of these false claims, **V REID** and **S REID** received money reasonably suspected of being proceeds of crime to the sum of **$247,484.78.**

BACKGROUND

The NDIS, NDIS Participants and Participant Plans

5. The **NDIS** is a Commonwealth Government Insurance Scheme established to provide funding to Australians with disabilities. This scheme is administratively managed by the National Disability Insurance Agency (**NDIA**). Persons assessed as being eligible to participate in the scheme each are given an individual identification number. Participants may represent themselves, in the case of children, a nominee or guardian may be appointed and in some cases a primary carer will act as the nominee or spokesperson for an adult participant.

6. Participants of **NDIS** then negotiate with the **NDIA** to formulate a funding package to support the necessary and reasonable needs of the particular individual participant. This arrangement between the **NDIS** and the participant is documented and becomes the participant plan. Plans range in duration from three months to two years. In accordance with the wishes of the participant, the funds are either **NDIS** managed, plan managed by a nominated registered service provider or self-managed. Funds of self-managed plans are released directly to the individual and are out of the control of the Commonwealth. Monetary transactions on all other plans are managed through the Public Sector Collection and Disbursement System.

7. The **NDIA** maintains a Customer Relationship Management (**CRM**) database that records participant plan data.

Service providers

8. Participants are free to choose companies, businesses or individuals to provide the services they require. A facility is available through the **NDIS** for entities to become registered service providers. To achieve a certificate of registration, the applicant submits evidence to the Commission of their qualification /capabilities relevant to the services they wish to provide. A decision is then made whether or not to accept that entity as a registered provider of supports. Registered service providers are recorded on the **NDIS** webpage to assist **NDIS** participants to locate services and supports. Responsibility for the registration of service providers to operate in WA was held by the NDIA until 30

November 2020. On 1 December 2020, the provider registration process became the responsibility of the NDIS Quality and Safeguards Commission (**Commission**).

9. Participants are free to choose unregistered service providers if their funding is "plan managed". The provisions for "plan managed" funds are contained in Division 3 of the *National Disability Insurance Act 2013*. Unregistered providers must submit invoices to a registered provider who then submit claims directly to the **NDIA**. The **NDIA** pays funds to the registered provider who then forwards those funds to the unregistered provider.

Registration with NDIA

10. On 28 August 2020, Forward Focussed Group Pty Ltd was registered as a private company limited by shares. At the time of registration, the principal place of business was recorded as 96 Amethyst Crescent Mount Richin WA.

11. **V REID** has held the position of company Director from 28 August 2020 until now. **S REID** held the position of company Director from 28 August 2020 until 3 January 2021.

12. On 9 November 2020, a declaration of suitability, purportedly signed by **V REID**, was uploaded to the **NDIA** systems.

13. On 19 October 2020, Forward Focussed Group Pty Ltd was registered as a **NDIS** provider of supports for the provision of services in Western Australia.

14. On about 19 October 2020, in the course of establishing itself as an **NDIS** provider, Forward Focussed Group Pty Ltd nominated ANZ Bank account numbered 016002 640515184, bank account for the purposes of receiving payment from the **NDIA**. The sole signatory to this account is **V REID**.

15. On 21 February 2021, Forward Focussed Group Pty Ltd nominated ANZ Bank account numbered 016253 152003884 (**the FFG ANZ Account**), held in the name **S REID** and **V REID**, for the purposes of receiving payments from the **NDIA**.

Registration with PRODA

16. To submit claims for payment to the **NDIA**, registered service providers must gain access to the *myPlace* portal, which is a secure online system.

17. To gain access to the portal, each user must create a Provider Digital Access (**"PRODA"**) account in the name of an individual, similar to a *myGov* account. This system provides a secure electronic means of identity verification for persons to engage with the Department's Health Care system, including the **NDIS**.

PRODA Account in the name of MD Rejaul ALAM

18. On 31 May 2020, at about 12.57pm, an account in the name of MD Rejaul ALAM was created in **PRODA**, with username: '***alamreja'***. (**ALAM PRODA Account**). To authenticate the identity of the person creating the account, the details of the following three documents were provided.

    - Bank Card in the name of ALAM;
    - Western Australia Drivers Licence no 7429948 in the name of ALAM; and
    - Bangladesh Passport no BL0076718 in the name of ALAM.

19. On 30 May 2022, the user ***'alamreja'*** elected to receive **PRODA** verification codes via email 'rejaul@ffg.net.au'. The **PRODA** account cannot be accessed without these codes being entered. Each time a person logs on, a unique code is sent.

20. **NDIA** systems record that **ALAM** was nominated as an account manager for **FFG** between 27 October 2021 until 5 May 2022 and between 30 May 2022 until 4 October 2022.

Unregistered NDIS providers

21. On 17 June 2021, Hybrid Hive Pty Ltd was registered as a private company limited by shares.

22. **V REID** has held the position of sole company Director and sole Secretary from 1 December 2021 until now.

23. The sole shareholder of **HYBRID** is **HIVE**. The sole Director of **HIVE** is **S REID**. The shareholders of HIVE are **S REID** and **V REID**.

INVESTIGATION

24. Between 3 February 2021 and 18 April 2022, forty separate complaints were made to the NDIA in relation to the conduct and claiming patterns of **FFG** and **HYBRID**.

25. On 3 May 2022, the **NDIA** placed a "compliance lock" on **FFG**. This means that all further "direct" claims submitted by **FFG** would be manually processed.

26. Between 20 May 2022 and 1 September 2022, twenty nine separate complaints were made to the **NDIA** in relation to the conduct and claiming patterns of **FFG** and **HYBRID**.

27. On 1 September 2022 the **NDIA** commenced an investigation into the claims submitted by **FFG** and **HYBRID**.

28. To date, twenty-seven witness statements have been taken with investigations ongoing. Further witness statements are expected and further forensic accounting analysis is required.

Registered NDIS Provider Assist Plan Managers

29. ZETTAI Pty Ltd trading as Assist Plan Managers (**ASSIST**) is an NDIS registered provider that performs the services of a Plan Manager.

30. At various times, **ASSIST** has received invoices from **FFG** and **HYBRID** for services purportedly provided to various NDIS participants. **ASSIST** has then made claims to the **NDIA** for these services, recieving funds from the **NDIA**, and then forwarding these to **FFG** or **HYBRID**.

31. Karen MARASIGAN (**MARASIGAN**) is employed as the Head of Compliance at **ASSIST** and has provided a statement relating to invoices received from **FFG** and **HYBRID**, payment software utilised and remittance advices for payments. These remittance advices include the amounts of funds transferred to **FFG** and **HYBRID** and the account details.

32. **MARASIGAN** further states that she met with **V REID** in January 2022 to discuss with her recurring errors in invoices being submitted to **ASSIST**.

33. Michael PERIERA (**PERIERA**) is employed as the Senior Head of Service Delivery at **ASSIST** since 13 June 2022. **PERIERA** has provided a statement relating to his duties at **ASSIST** and his role overseeing the client care management team.

34. **PERIERA** further states that he is the only person who will submit fraud reports to the **NDIA**.

35. **NDIA** systems record that between 26 August 2022 and 21 September 2022, **PERIERA** submitted 11 separate reports of suspicious invoices submitted by **HYBRID** and **FFG**.

V REID Background

36. **V REID** was employed by the **NDIA** as a Local Area Coordinator between 19 March 2020 and 8 October 2020. As a former employee of the **NDIA**, **V REID** has knowledge of **NDIA** systems and processes. **V REID** is herself a participant.

FFG Employee Statement

37. Leah NORMAN (**NORMAN**) was employed by **FFG** from 14 December 2020 until October 2021. **NORMAN** also held shares in **HIVE** with **V REID** between 17 June 2021 and 19 December 2021.

38. **NORMAN** states that **V REID** encouraged her to inflate the amount of time she spent coordinating support services for participants.

39. **NORMAN** also states that **V REID** would "invoice bomb", meaning claiming for the residual funds left in a participants plan towards the end of the plan expiry. **NORMAN** states she fielded complaints from three separate plan managers about this type of claiming.

40. **FFG** and **HYBRID** are responsible for $1,485,527 in claims from expired plans. This represents 31% of total successful claims.

OFFENCES

Charge 1 – s135.1(3) General dishonesty – C*ausing a loss*

False claims for service to NDIS Participant Meghan GOODWIN

41. On 30 November 2021, the **NDIA** issued a new plan for Participant **GOODWIN** (**GOODWIN**). This occurred because of an administrative error in the plan issued on 15 October 2021.

42. On 30 November 2021, **CRM** records that at 14:57pm, **V REID** contacted the **NDIA** requesting a copy of the new plan for Participant **GOODWIN**. This plan was emailed to **V REID** by an **NDIA** employee.

43. On 30 November 2021, **CRM** records that at 15:24pm, three separate claims for payment were submitted using the **ALAM PRODA** Account, purportedly provided to **GOODWIN** by **FFG**. These claims were submitted against the plan expiring on 30 November 2021.

44. The claims submitted include 398 hours of house cleaning between 15 October 2021 and 30 November 2021. This equates to 8.46 hours of cleaning everyday for 47 days. The claims also include 225 hours of House and Yard Maintenance between 15 October 2021 and 30 November 2021. This equates to 4.8 hours of maintenance everyday for 47 days.

45. On 1 December 2021, the **NDIA** made a payment of **$43,004.60** into the **FFG** ANZ account. Bank records obtained from Australia and New Zealand Banking Corporation show that the joint signatories for the **FFG** ANZ Account are **V REID** and **S REID**.

46. Between 30 December 2021 and 20 April 2022, an unknown person using FFG software "Xero" submitted 14 separate invoices to **ASSIST** for services purportedly provided to **GOODWIN**.

47. Between 30 December 2021 and 20 April 2022, **ASSIST** submitted 14 separate claims to the **NDIA** for services purportedly provided by **FFG** to **GOODWIN**.

48. The claims resulted in the payment of $5,979.64 to **ASSIST**.

49. Between 31 December 2021 and 21 April 2022, **ASSIST** transferred **$5,979.64** into the **FFG** ANZ Account.

50. Between 25 January 2022 and 10 May 2022, an unknown person using **FFG** software "Xero" submitted 20 separate invoices to **ASSIST** for services purportedly provided to **GOODWIN** by **HYBRID**.

51. Between 25 January 2022 and between 10 May 2022, **ASSIST** submitted 20 separate claims to the **NDIA** for services purportedly provided by **HYBRID** to **GOODWIN**.

52. The claims resulted in the payment of $78,491.06 to **ASSIST**.

53. Between 27 January 2022 and 17 May 2022, **ASSIST** transferred **$78,491.06** into ANZ account 016253 154173449 (**the HYBRID ANZ Account**). Bank records obtained from Australia and New Zealand Banking Corporation show that the joint signatories for the **HYBRID** ANZ Account are **V REID** and **S REID**.

Claims for services not provided

54. **GOODWIN** has provided a witness statement that she did not receive the services purportedly provided in these claims.

55. An **NDIA** forensic accountant has examined the statement of **GOODWIN**, the statement of **MARASIGAN**, NDIA payment records, the **FFG** ANZ Account statements and the **HYBRID** ANZ Account statements. The **NDIA** forensic accountant has calculated that the value of claims submitted where no service was provided is **$127,475.30**.

Charge 2 - s400.9(1) – *Dealing with property reasonably suspected of being proceeds of crime*

Proceeds deposited into the Account of V REID and S REID

56. As a result of these false claims for services, **V REID** and **S REID** received money reasonably suspected of being proceeds of crime to the sum of **$127,475.30**.

Charge 3 - s135.1(3) General dishonesty – C*ausing a loss*

False claims for service to NDIS Participant Sarah-Jane CLULOW

57. Between 24 November 2021 and 22 April 2022, an unknown person using **FFG** software submitted 30 separate invoices to **ASSIST** for services purportedly provided to **NDIS** participant Sarah-Jane CLULOW (**CLULOW**).

58. Between 24 November 2021 and 22 April 2022, **ASSIST** submitted 14 separate claims to the **NDIA** for services purportedly provided by **FFG** to **CLULOW**.

59. The claims resulted in the payment of $86,192.60 to **ASSIST**.

60. Between 15 December 2021 and 26 April 2022, **ASSIST** transferred **$86,192.60** into the **FFG** ANZ Account.

61. Between 25 May 2022 and 22 June 2022, an unknown person using **FFG** software submitted 14 separate invoices to **ASSIST** for services purportedly provided to **CLULOW**.

62. Between 25 May 2022 and 22 June 2022, **ASSIST** submitted 14 separate claims to the **NDIA** for services purportedly provided by **FFG** to **CLULOW**.

63. The claims resulted in the payment of $33,816.88 to **ASSIST**.

64. Between 26 May 2022 and 23 June 2022, **ASSIST** transferred **$33,816.88** into Westpac Account 036032 736973 (**the FFG WESTPAC Account**). Bank records obtained from Westpac Banking Corporation show that the joint signatories for the **FFG** Westpac Account are **V REID** and **S REID**.

Claims for services not provided

65. **CLULOW** has provided a witness statement that she did not receive the services purportedly provided in these claims.

66. An **NDIA** forensic accountant has examined the statement of **CLULOW**, the statement of **MARASIGAN**, NDIA payment records, the **FFG** ANZ Account statements and the **FFG** WESTPAC Account statements. The **NDIA** forensic accountant has calculated that the value of claims submitted where no service was provided is $120,009.48.

Charge 4 - s400.9(1) – *Dealing with property reasonably suspected of being proceeds of crime*

Proceeds deposited into the Account of V REID and S REID

67. As a result of these false claims for services, **V REID** and **S REID** received money reasonably suspected of being proceeds of crime to the sum of **$120,009.48**.

ARREST OF the ACCUSED

Search Warrant

68. On Wednesday 19 October 2022, members of the AFP, Services Australia and NDIA executed a search warrant at 96 Amethyst Crescent, Mount Richon.

69. At approximately 9:01am, V REID was arrested by Western Australian Police by virtue of a Warrant issued under the Criminal Procedure Act 2004 (*WA*) and advised of the caution and rights pursuant to Part 1C of the Crimes Act (*CTH*).

70. At around 09:41hrs, V REID was offered the opportunity to participate in an electronically recorded interview in relation to the alleged offences. V REID declined and stated that she does not wish to speak with NDIS investigators.

71. Shortly thereafter, Vida REID was transported to the Amadale Police Station.

72. A search of the premises is continuing.

Charging and Bail

73. V REID was charged and processed at the Amadale Police Station.

74. V REID appeared in Armidale Magistrates Court of WA on 19 October.

75. There is no tape or videotape recording of conversations between the accused and a person in authority in the possession of the prosecution.

DATED: 19 October 2022

NDIS Quality and Safeguards Commission

EXECUTIVE BRIEF

Executive: Branch Heads Operations, North Central West **PDR:** EC22-002000
Executive action: For decision
Critical date:
PDMS cc: nil

NOTICES TO SUSPEND, AND NOTICE TO REVOKE REGISTRATION OF FORWARD FOCUSED GROUP PTY LTD; NOTICE TO ISSUE BANNING ORDER TO VIDA REID

Recommendation/s	Executive Action
1. That you sign the notice suspending the registration of NDIS provider Forward Focused Group Pty Ltd with immediate effect. (Att 2A)	Signed
2. That you sign the notice of intention to revoke the registration of NDIS registered provider Forward Focused Group Pty Ltd and invite submissions in respect of this decision. (Att 2B)	Signed
3. That you sign notice of intention to make a Banning Order against Vida Reid , for a period of ten years and invite submissions in respect of this decision. (Att 2C)	Signed

19/10/2022

X

Signed by: PH0055

Philip Halton, Branch Head, Operations - North Central West Region

Comments:

Key Points

1. The Commission holds information to suggest that Forward Focused Group Pty Ltd (REG ID 4-4GHG-1073) has contravened, is contravening or is proposing to contravene, the NDIS Act.
2. For the reasons set out in documents provided, Compliance (WA) and Compliance (QLD/NT) considers there is sufficient evidence available for you to form the reasonable belief that Forward Focused Group Pty Ltd and Vida Reid, has contravened, is contravening or is proposing to contravene the NDIS Act, by failing to comply with their obligations.
3. Compliance WA and Compliance QLD/NT recommends you, as the delegate, review and consider the relevant parts of the information they provided (as referenced) in making your decision.

3.1. Documents were submitted to legal to seek confirmation regarding the drafted banning order and revocations documents. The input from Legal Services Branch is included at Attachment 55.

3.2. Upon receipt of that advice the Compliance team sought to address the concerns raised.

3.3. In particular an Evidence Matrix has been developed and completed for each of the contraventions and/or potential contraventions of the NDIS Act (Attachment 1A, 1B, 1C).

3.4. Also a considerations document (Attachment 1D) has been generated to clearly separate information being used to support a contravention from information being used to support a 'state of mind'.

3.5. Finally, information/evidence from the matrices is transposed to the Notices and letters to ensure procedural fairness for the recipients.

Risks / Sensitivities

4. It is likely that the Commission's action against the Provider and individual may be viewed as quite strong given that the complaints and breaches focus on administrative and personal errors.

5. The individuals involved have participated in local (WA) meetings with Federal Ministers. If the Commission decides to proceed to the completion of the notices then the loss of income will be substantial. Historical interactions with the individual/s indicate that the Commission should be prepared for a retaliatory response.

6. The individual/s will be provided with an email for providing written responses to the Commission. The contact centre will be advised of activity and ensure a suitable response protocol is available to their staff.

Background

7. The Delegations instrument, No. 2 of 2022 dated 21 June 2022, and effective 22 August 2022, provides the Branch Head, North Central West with delegation against NDIS Act s73N, s73P, and s73ZN.

Legislative Obligations

8. Section 73J of the NDIS Act provides that,

A person contravenes this section if the person:

(a) is a registered NDIS provider; and

(b) breaches a condition to which the registration of the person is subject.

Civil penalty: 250 penalty units.

9. The conditions include those provided at section 73F of the NDIS Act. Section 73F of the NDIS Act states that the registration of a person as a registered NDIS provider is subject to a number of conditions. These conditions include:

10. Section 73F(2)(b) - a condition that the person comply with all applicable requirements of the NDIS Code of Conduct;

11. Section 73F(2)(c) - a condition that the person comply with all applicable standards and other requirements of the NDIS Practice Standards;

12. Section 73T(1) of the NDIS Act states that the National Disability Insurance Scheme rules may make provision for or in relation to standards concerning the quality of supports or services to be provided by registered NDIS providers.

13. Further, the NDIS Act s73V provides that NDIS providers and members of the key personnel of NDIS providers must comply with the NDIS Code of Conduct, and

(3) A person contravenes this section if the person:

(a) is subject to a requirement under the NDIS Code of Conduct; and

(b) fails to comply with the requirement.

Civil penalty: 250 penalty units.

14. The NDIS Act s73N provides for the Suspension of registration on the Commission's initiative, for a specified period (not longer than 30 days) where

14.1. S73N *(1)(a) the Commissioner reasonably believes that the person has contravened, is contravening, or is proposing to contravene, this Act*; or…

14.2. S73N *(1)(e) the Commissioner is no longer satisfied that the key personnel of the person (if any) are suitable to be involved in the provision of supports or services to people with disability, having regard to any matters prescribed by the National Disability Insurance Scheme rules for the purposes of this paragraph.*

15. The NDIS Act s73P provides that registration can be revoked if the same circumstances as articulated at 14.1 are met.

16. Further, the NDIS Act s73ZN provides that Banning orders can be given if the same circumstances as articulated at 14.1 arise.

17. Both Revocation of registration and Banning orders require a process to be followed whereby a notice is issued to the relevant party affording them an opportunity to make submissions on the matter.

Financial Implications

18. Nil – activities form part of normal operations.

Regulatory Impact

19. Suspension of the registration of a provider operating in a central, city location.

20. Will be primarily determined upon receipt of submissions from the parties we are recommending documents be issued to on this occasion.

Consultation

21. Internally, Legal Services Branch, Registration team.

22. Externally, the National Disability Insurance Agency.

Kristen Walker 19 /10 / 2022
Assistant Director, Integrated compliance operations
M: 0459 906 205

Prepared by:
Katja Zerafa
Senior Compliance Officer

Attachments

Attachment 1A_Evidence matrix

Attachment 1B_Evidence matrix

Attachment 1C_Evidence matrix

Attachment 1D_considerations

Attachment 2A_Notice of suspension

Attachment 2B_Notice of intention to revoke registration and ban

Attachment 2C_Notice of intention to ban_individual

Attachment 4 - Provider Register External_Page 1 of 1_Forward Focused Group_13.09.22

Attachment 5 - NDIA Tactical Intelligence Report_18.08.22

Attachment 6 - Key Issues and Potential Breaches_FFG and Reid_13.09.22

Attachment 6A_Evidence_Information_post receipt of advice

Attachment 7 - Danica Hall Statement

Attachment 8 - DFG Legal Letter_31.03.22

Attachment 8 - DFG Legal Letter_17.08.22

Attachment 9A - Janine Hall Information_18.07.22_Part 1

Attachment 9B - Janine Hall Information_18.07.22_Part 2

Attachment 9C - Janine Hall Information_18.07.22_Part 3

Attachment 9D - Janine Hall Information_18.07.22_Part 4

Attachment 9E - Sally See FFG Counsellor Screenshot

Attachment 10 - Tabatha Sadler Email_17.07.22

Attachment 12 - Sarah-Jane Clulow Complaint_06.07.22

Attachment 13 - Jan Nuttall Complaint_11.08.22

Attachment 14 - Summary of Complaints_25.08.22

Attachment 15 _Email_Our Growth and Company structure_Forward Focused Group

Attachment 16_Email pdf attachment_Forward Focused Group_Colorful Circular Concept Map Infographic

Attachment 17_ASIC_Forward Focused Group Pty Ltd_data as at 21 September 2022

Attachment 18_ASIC_Hybrid Hive Pty Ltd_data as at 21 September 2022

Attachment 19_ASIC_The Hive_data as at 21 September 2022

Attachment 20_Forward Focused Group_CFO_Screenshot 2022-10-14

Attachment 21_Our Team_Screenshot 2022-10-14

Attachment 22_Our Team_Screenshot 2022-10-14

Attachment 23_Our team_Screenshot 2022-10-14

Attachment 24_Our team_Screenshot 2022-10-14

Attachment 25_Our Team_Screenshot 2022-10-14

Attachment 26_ Service offerings_Screenshot 2022-10-14

Attachment 27_SDA properties_Screenshot 2022-10-14

Attachment 28_SDA properties and registered provider statement_Screenshot 2022-10-14

Attachment 29_Hybrid Hive website_Screenshot 2022-10-14

Attachment 31_Hybrid Hive service offering_Screenshot 2022-10-14

Attachment 32_Searches for Counsellor Qualifications

Attachment 33_FFG_Offering SDA_Screenshot 2022-10-14

Attachment 34_FFG as overarching entity_facebook_Screenshot 2022-10-14

Attachment 35_Hive_SDA_facebook_Screenshot 2022-10-14

Attachment 36_Hive_SDA_facebook_Screenshot 2022-10-14

Attachment 37_FINAL REID Simon

Attachment 38_COS Provider Profile

Attachment 39_FFG_Offering SDA_Screenshot 2022-10-14

Attachment 40_FINAL REID Vida_Criminal and traffic

Attachment 41_7.5 NDIS-FFG_Service_Agreement - Sarah

Attachment 42_8.1 FFG is ceasing support coordination and terminating your contract

Attachment 43_8.3 FW Service termination_Sarah Jane Clulow participant

Attachment 44_8.4 RE Account Statement Clulow NDIS 430838840 Sarah - Primary Account 50854

Attachment 45_8.0 RE Alexsis Bott Changing Plan Manager

Attachment 46 - Tiffany Rose Invoices

Attachment 47 - Andrew Hahn Invoices

Attachment 48 - Marisha Lombard Invoices

Attachment 49 - Marisha Lombard Invoices

Attachment 51 - Andrew Hahn Threats of Eviction

Attachment 50 - Andrew Hahn Termination Notice

Attachment 52 - FFG Reid Consent to Act as Authorized Person

Attachment 53 - Max Teague Plan Management

Attachment 54 - Max Teague Plan Management_Email to NDIA

Attachment 55_LEX 1602 - Forward Focused Group & Vida Reid - revocation and banning order - LSB review and advice [SEC=OFFICIAL:Sensitive, ACCESS=Legal-Privilege]

NDIS Quality and Safeguards Commission

Evidence Matrix

Breach of NDIA Act s73J

S73F(2)(c) > 73T(1) > Rules > NDIS Practice Standards > Schedule 8

Forward Focus Group Pty Ltd, Vida Reid

NDIS Act 2013	*National Disability and Insurance Scheme (Provider registration and Practice Standards) Rules 2018*	Element	Information/evidence/source	Reference Location
Division 2—Registered NDIS providers **73J Registered NDIS providers must comply with conditions of registration** A person contravenes this section if the person: (a) is a registered NDIS provider; and (b) breaches a condition to which the registration of the person is subject Civil penalty: 250 penalty units **73F Registration is subject to conditions** (2) The registration of a person as a registered NDIS provider is subject to the following conditions: … (c) a condition that the person comply with all applicable standards and other requirements of the NDIS Practice Standards;	Schedule 8 **4 Complaints management and resolution** (1) Each participant has knowledge of and access to the provider's complaints management and resolution system. (2) Complaints are welcomed, acknowledged, respected and well-managed. … **6 Human resource management** Each participant's support needs are met by workers who are competent in relation to their role, hold relevant qualifications and have relevant expertise and experience to provide person-centred support.	Registered NDIS Provider	NDIS Commission provider register displayed on the website. COS provider profile. Printout and Screenshots included.	Att 4 (D22/169539) – Provider Register External Att 38 (D22/184884) – COS Provider Profile

NDIS Act 2013	*National Disability and Insurance Scheme (Provider registration and Practice Standards) Rules 2018*	Element	Information/evidence/source	Reference Location
		Breaches a condition – Complaints management and resolution	Commission records show that the Commission received 32 complaints in relation to Forward Focused Group from 13 April 2021 to 10 August 2022. The Commission has undertaken an analysis of complaints and identified 11 complaints whereby the participants lodging the complaints have stated that they wish to remain anonymous, or have faced or fear repercussions from raising their complaints directly with Ms Reid or Forward Focused Group (Att 14). The reasons stated by the complainants for not reporting their complaints directly with Ms Reid or Forward Focused Group indicate that Ms Reid and Forward Focused Group are not ensuring that complaints are welcomed, acknowledged, respected and well-managed. Example: Complaint #4-38279458621 PPT is scared to report to Police until she is able to find alternative accommodation due to staff and owner aiming their attention at her for reporting issues. Complaint #4-35886177923 "I would like to remain anonymous due to security reasons as I'm scared for my family at this moment in time with most recent events."	Att 14 (D22/169610) – Summary of Complaints
		Breaches a condition – Human Resource Management	Therapy team, Sally See (Masters in Sexology and specialises in couples-therapy) Janine Hall, former Support Coordinator FFG has alleged that a Ms Sally See was employed by FFG as a counsellor until 5 April 2022 (Att 9). This is supported by a search conducted on the FFG website (Att 25). According to searches conducted on 13 October 2022, Ms See does not hold qualifications with either the Australian Counselling Association (www.theaca.net.au) or with the Australian Health Practitioner Regulation Agency (www.ahpra.gov.au). (Att 32).	Att 6A (D22/184618) – Statement of Reasons Att 9 (D22/186518) – Sally See FFG Counsellor Att 25 (D22/184648) – FFG Website Screenshot Att 32 (D22/184671) – Searches for Counsellor Qualifications

NDIS Act 2013	*National Disability and Insurance Scheme (Provider registration and Practice Standards) Rules 2018*	Element	Information/evidence/source	Reference Location
			As at 14 October 2022 there is no record of a “Sally See” in the worker screening or contact information held by the Commission.	

NDIS Quality and Safeguards Commission

Evidence Matrix
Breach of NDIS Act s73B
Forward Focus Group Pty Ltd

NDIS Act 2013	Elements of Breach	Information/Evidence/Other	Reference Location
73B Requirement to be a registered NDIS provider (1) The National Disability Insurance Scheme rules may require that specified classes of supports provided under participants' plans are to be provided only by persons who are registered under section 73E to provide those classes of supports. Note: See also subsection 33(6), which provides that, if the funding for supports under a plan is managed by the Agency, supports are to be provided only by a registered NDIS provider. (2) A person must not provide a support under a participant's plan if: (a) the National Disability Insurance Scheme rules require the person to be registered to provide the support under the plan; and (b) the person is not so registered. Civil penalty: 250 penalty units.	Rules require registration	***National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018*** **7 Classes of supports for which NDIS providers must be registered** (1) A person must be registered under section 73E of the Act to provide specialist disability accommodation under a participant's plan.	National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018 (legislation.gov.au)
	Person is not so registered	Forward Focused Group Pty Ltd. Internal and external facing information about registration status. Including registration groups: • Household tasks • Assist – travel/transport	Att 6A (D22/184618) – Statement of Reasons Att 4 (D22/169539) – Provider Register External Att 38 (D22/184884) – COS Provider Profile

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T9.2

NDIS Act 2013	Elements of Breach	Information/Evidence/Other	Reference Location
	Services offered	• The Forward Focused Group website indicates that they are a registered NDIS provider (Att 28). The website also indicates that they can offer SDA (Att 26) at three different locations: Safety Bay, Northbridge and Stirling (Att 27 and 28). • The Forward Focus Group website links to a facebook page (Att 33). • Facebook post of 28 September 2022 at 12:43 states FFG has four SDA vacancies and provides contact details for people seeking further information. • Facebook post 18 July 2022 (Att 39) is promoting their ability to offer a wide range of accommodation including SDA. • The Hive website (Att 29) includes information about home and living support services provided (Att31). • The website states the locations as Safety Bay, Northbridge and Cottesloe. • The Hive website (Att 29) links to a facebook page (Att 35). • Facebook post five days prior to 14 October 2022 (Att 35) the business is promoting their ability to offer a wide range of accommodation including SDA. • Facebook post 5 September 2022 (Att 36) the business is promoting their ability to offer a wide range of accommodation including SDA. Accommodation at Safety Bay, Cottesloe and Northbridge	Att 26 (D22/184649) – Service Offerings FFG Website Att 27 (D22/184650) – SDA Properties Screenshot Att 28 (D22/184651) – SDA Properties and Registered Provider Statement Screenshot Att 29 (D22/184662) – Hybrid Hive website screenshot Att 31 (D22/184665) – Hybrid Hive Service Offering screenshot Att 33 (D22/184702) – FFG Facebook Screenshot Offering SDA Att 35 (D22/184706) – Hybrid Hive Facebook Screenshot Offering SDA Att 36 (D22/184707) – Hybrid Hive Facebook Screenshot Offering SDA Att 39 (D22/184915) – FFG Facebook Screenshot Offering SDA

NDIS Quality and Safeguards Commission

Evidence Matrix

Breach of NDIS Act s73V

Forward Focus Group Pty Ltd, Vida Reid

NDIS Act 2013	*National Disability Insurance Scheme (Code of Conduct) Rules 2018*	Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location
73V NDIS Code of Conduct (3) A person contravenes this section if the person: (a) is subject to a requirement under the NDIS Code of Conduct; and (b) fails to comply with the requirement. Civil penalty: 250 penalty units.	**5 Persons covered by the NDIS Code of Conduct** (1) This Part is made for the purposes of section 73V of the Act. (2) Each of the following persons is a ***Code-covered person*** for the purposes of this instrument: (a) NDIS providers; (b) all persons employed or otherwise engaged by an NDIS provider. (3) Code-covered persons must comply with the NDIS Code of Conduct set out in section 6 of this instrument.	Subject to a requirement under the Code of Conduct.	Forward Focus Group are the over-arching name for Forward Focused Group Pty Ltd and Hybrid Hive Pty Ltd directed and run by Vida Reid and Simon Reid. Code-covered person – NDIS Provider and persons employed or otherwise engaged by an NDIS provider. Forward Focused Group Pty Ltd, Vida Reid are 'code-covered person'.	Att 6A (D22/184618) – Statement of Reasons
	6 NDIS Code of Conduct	Failed to	**6(a) - Act with respect for individual rights to**	Att 6 (D22/165201) – Key

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T9.3

NDIS Act 2013	*National Disability Insurance Scheme (Code of Conduct) Rules 2018*	Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location
	In providing supports or services to people with disability, a Code-covered person must: (a) act with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions; and (b) respect the privacy of people with disability; and (c) provide supports and services in a safe and competent manner, with care and skill; and (d) act with integrity, honesty and transparency; and (e) promptly take steps to raise and act on concerns about matters that may impact the quality and safety of supports and services provided to people with disability; and (f) take all reasonable steps to prevent and respond to all forms of violence against, and exploitation, neglect and abuse of, people with disability; and (g) take all reasonable steps to prevent	comply with a requirement.	**<u>freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions</u>** • In relation to participant, Alexsis Bott, FFG sought to obtain access to and control of participant funds. The email trail is initiated by an FFG employee to a plan manager seeking release of funds. The participant confirms that they, "won't be withdrawing funds from Marc at Manage Mode. I actually never said I would do this but was advised by Vida I should." Ms Reid, as FFG Founding Executive Director, then states conflict of interest and states "we will be terminating your services with us effective immediately". (Att 45). • Series of emails 24 June 2022 to 19 June 2022 provided by a former account manager and FFG employee regarding participant Sarah-Jane Clulow advising a four week notice for service termination. (Att 43) – Ms Clulow provides notices and requests that further correspondence be directed to a different person. – In a subsequent internal email to Rejaul Alam, Vida Reid and Simon Reid it is disclosed that Ms Clulow was contacted via phone call about her email. – It also comments that the participant is seeking	Issue Identification Template Att 6A (D22/184618) – Statement of Reasons Att 45 (D22/184969) – Alexsis Bott Changing Plan Manager Att 43 (D22/184942) – Service Termination Sarah-Jane Clulow Att 44 (D22/184944) – Service Termination Sarah-Jane Clulow Att 12 (D22/169604) – Sarah-Jane Clulow Complaint_06.07.22 Att 42

NDIS Act 2013	*National Disability Insurance Scheme (Code of Conduct) Rules 2018*	Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location
	and respond to sexual misconduct.		review of 'another invoice' for services not received. – On 1 July, FFG responds to an account statement from a supplier stating that, ""we will no longer pay any invoices for Sarah. She has terminated her contract with us." [Note within four week period of ongoing service provision. Release personal client information to an external party]. (Att 44) – Complaint 430838840 – July 2022. The participant advises the Commission that FFG have claimed all of their Support Coordination funds and are acting fraudulently. The NDIA confirms overutilization of the plan. Also that FFG/Vida Reid are threatening eviction if invoices to The Hive are not paid. And on 14 July the participant advised she has received an eviction notice and has 60 days to find new accommodation. (Att 12) • Series of emails 15 June 2022 to 19 June 2022 provided by a former account manager and FFG employee regarding participant Corina Abraham ceasing some services with Hybrid Hive. (Att 42) – The participant seeks to meet to discuss their concerns. – Although not included in the original email a response is forthcoming from FFG, Vida Reid. – By email 19 June FFG through Ms Reid purports to cease support coordination and	(D22/184938) – Service Termination Corina Abraham Att 46 (D22/186568) - Tiffany Rose Invoices Att 47 (D22/186569) – Andrew Hahn Invoices Att 48 (D22/186578) – Marisha Lombard Invoices Att 49 (D22/186580) – Marisha Lombard Invoices Att 50 (D22/186592) – Andrew Hahn

NDIS Act 2013	*National Disability Insurance Scheme (Code of Conduct) Rules 2018*	Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location
			terminate the contract for all services with immediate effect. The email claims "ongoing abusive manner of our staff by yourself and the break in trust" as the grounds. – The email includes a perceived threat that invoices are to be paid immediately or be reported to the NDIS. **<u>6(d) - Act with integrity, honesty and transparency</u>** • Information about participants Tiffany Rose and Andrew Hahn on dates known between 26 November 2021 and 14 June 2022, which show that FFG generated invoices that did not match the services provided, or were generated without the necessary Plans / Services Agreements in place. (Att 46 and 47) • Emails dated 3 May and 9 May 2022, which show that Vida Reid is withholding information from other FFG staff on potentially fraudulent invoices. (Att 48 and 49) Example Email from Janine Hall, FFG Support Coordinator to Rejaul Alam, CFO dated 3 May 2022. Janine Hall's email raised a question regarding an invoice for Support Coordination services for a participant that she did not provide. The email states "My understanding is that there is $3097.71 in Support	Termination Notice Att 51 (D22/186590) – Andrew Hahn Threats of Eviction Att 52 (D22/186597) – FFG Reid Consent to Act Att 53 (D22/186600) – Max Teague Plan Management Att 54 (D22/186601) – Max Teague Plan Management Email to NDIA

NDIS Act 2013	*National Disability Insurance Scheme (Code of Conduct) Rules 2018*	Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location
			Coordination to cover this period, however I just received the end of month statement from Assist Plan Managers and I noticed that the balance remaining is only $393.87. I then noticed that a single invoice had been paid to FFG for $2027.84 for Support Coordination. This is not for any work that I have provided for Marisha or anyone else from FFG". (Att 48) Example 2 Email from Vida to employee dated 9 May 2022, "Whilst I appreciate your thoroughness in dealing with clients please remember that I do work on participants as well. I keep my work and my notes private as sometimes they may be about staff or complaints or other work clients have requested that they have advised not to be disclosed to other due to privacy and dignity."…."I am aware that you have recently gained access to some portals and kindly ask that you do not access these as they go against our policy and procedures." • Correspondence between FFG and participants which reflects a lack of integrity and honesty in dealings including accusations of non-payment or broken trust as grounds for FFG to immediately terminate engagements with participants.	

NDIS Act 2013	*National Disability Insurance Scheme (Code of Conduct) Rules 2018*	Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location
			Example 1 Termination Notice Letter from DFG Legal WA dated 31 March 2022 requesting that participant Andrew Hahn vacate a FFG-managed property due to "serious misconduct" and "failing to pay the fortnightly lodging fee". (Att 50) Email from advocate of participant Andrew Hahn dated 27 March 2022 requesting that threats of eviction from FFG cease. Email states "I have also reviewed Andy's Lodging Agreement with Forward Focused Group dated 21 January 2022. Rent payments per this agreement are paid up to date and Andy has not breached any terms of the Lodging Agreement. Please immediately discontinue unsubstantiated threats of eviction. Threats of eviction can be distressing to anybody and are particularly unwarranted in a disability housing provision context." (Att 51) Example 2 Participant Corina Abraham sought to amend her service agreement with FFG. On 19 June 2022, FFG through Ms Reid purport to cease support coordination and terminate the contract for all services with immediate effect. The email claims "ongoing abusive manner of our staff by yourself and the break in trust" as the grounds. (Att 42)	

NDIS Act 2013	*National Disability Insurance Scheme (Code of Conduct) Rules 2018*	Elements of Breach (es):	Information/Evidence/Other	Evidence Reference Location
			6(f) – Take all reasonable steps to prevent and respond to all forms of violence against, and exploitation, neglect and abuse of, people with disability Scenario of exploitation of people with disability • Seeking to act as both the service provider and the authorized person on behalf of a participant to engage with the NDIA in relation to support/funding decisions. Example FFG Document titled 'FM Consent Third Party to Act' which provides ongoing consent for any Forward Focused staff member (contact Vida Reid), including consent to request review of NDIA decision, manage a complaint made by participant Meghan Goodwin (Att 52) Letter from DFG Legal WA stating: "Ms Vida Reid holds the current appointment as Meghan's legal plan nominee and next of kin, and we enclose the relevant documentation for your review." (Att 52) • The Commission holds information that suggests that FFG are withholding information from the NDIA when requesting changes to participants' plan arrangements.	

NDIS Act 2013	*National Disability Insurance Scheme (Code of Conduct) Rules 2018*	**Elements of Breach (es):**	**Information/Evidence/Other**	**Evidence Reference Location**
			Example Evidence held by the Commission includes an email to the NDIA from a Support Coordinator at Forward Focused Group (sent on direction of Ms Reid) which requests a change to a participant's plan arrangements. The email does not disclose to the NDIA that Forward Focused have been billing the participant without a Service Agreement or NDIS Plan. (Att 53 and 54)	

THE COMMISSION'S INVESTIGATION

The Commission commenced an investigation into the matters alleged by the complainants regarding Forward Focused Group and Ms Reid.

Please note, the National Disability Insurance Agency (NDIA) and (AFP) are currently conducting investigations into Forward Focused Group and Ms Reid, the outcomes of which are pending and have not been considered further in this briefing note.

The Commission's investigation involved reviewing complaints received about Forward Focused Group to date, and reviewing the statements and information provided by the complainants and the NDIA.

Where breaches of the NDIS Act have been evidenced this is included as the evidence matrices.

The Providers and Key personnel

Forward Focused Group (FFG) is an entity which appears to operate a number of related businesses that draw financial income from the NDIS (**Attachment 6A**).

An arm of the operations is a registered NDIS Provider, Forward Focused Group Pty Ltd, trading as Forward Focused (**Attachment 4**). A second arm of the business is an unregistered provider Hybrid Hive Pty Ltd, trading as The Hive (Attachment 6A).

As described in Attachment 6A the Commission is in possession of information from a number of sources including the Australian Securities and Investment Commission, online information, copies of internal company emails and company structure documents that indicate FFG includes both registered NDIS provider and unregistered providers. FFG is owned and operated by

- The Founding Executive Director, Vida Reid.
- The Co-founding Executive Director, Simon Reid.

Vida Reid

According to the NDIA Report (Attachment 5), Ms Reid is an NDIS participant and met access in 2020 for Multiple Sclerosis after multiple access attempts. Ms Reid and Mr Reid have a child, Alexander Reid (born 2015) who met access in 2018 as a defined participant.

According to our searches of ASIC data available to the Commission (Attachment 6A, 17, 18) Ms Reid is currently a director of Forward Focused Group Pty Ltd and is a former director of Hybrid Hive Pty Ltd.

The Commission holds copies of documents where "[Ms Reid] threatens participants and ex-employees with letters from a lawyer at DFG Legal (Attachment 8). This appears to be a legitimate legal firm. It is unknown if Ms Reid is associated with any individuals at the firm or if the letters are legitimate.

A criminal history search sourced by the Commission included charges from within the past 10 years (Attachment 6A, 40).

Simon Reid

According to the searches of ASIC data available to the Commission (Attachment 6A, 17, 18, 19) Simon is listed as a former director of Forward Focused Group Pty Ltd with a role end date of 3 January 2021 (Attachment 6A, 17). And is a current director for Hybrid Hive Pty Ltd and The Hive Pty Ltd.

Despite emails for FFG and The Hive being directed to or including Simon Reid the Commission has limited information about his actual involvement in the operations.

A criminal history search sourced by the Commission included charges from within the past 10 years (Attachment 6A, 37).

ASSESSMENT

Compliance WA and Compliance QLD/NT has completed a comprehensive assessment of the evidence and information obtained in this matter. Given the large volume of evidence and multiple allegations made against Forward Focused Group and Ms Reid, the assessment of the evidence has not been replicated within this document, nor has all the evidence been provided as an attachment. The evidence of direct relevance to the alleged breaches of the NDIS Act, including the NDIS Code of Conduct and the NDIS Practice Standards has been summarised and attached.

Unfortunately, due to the recurrent or frequent nature of the some alleged conduct, Compliance WA and Compliance QLD/NT have not been able to ascertain specific dates of all of the contraventions identified. However, we can confirm that the conduct occurred after the commencement of the NDIS Code of Conduct in WA (1 December 2020).

Compliance WA and Compliance QLD/NT has placed importance on the information provided by Danica Hall and Janine Hall, regarding consideration of actions the Commission should take. The information provided is consistent and demonstrates a pattern of behaviour by FFG and Ms Reid in terms of the type of support she provides NDIS participants, and the control and manipulative behaviour she exerts over NDIS participants.

According to the NDIA Report, Forward Focused Group provided services to 141 participants **(Attachment 5**).

Compliance (WA) and Compliance (QLD/NT) hold concerns about the risk associated with Forward Focused Group Pty Ltd continuing to operate as a registered NDIS provider and supporting vulnerable NDIS participants, given the seriousness of the provider's contraventions of the NDIS Act. Particularly those relating to breaches of the NDIS Code of Conduct.

Compliance (WA) and Compliance (QLD/NT) considers Forward Focused Group's conduct, in particular, the failure to act with integrity, honesty and transparency, is serious and warrants action by the Commission.

<u>Necessary considerations</u>
Both the Suspension of registration and revocation of registration require the Commissioner (or their delegate) to have regard to the following matters:

(a) the nature, significance and persistence of any contravention, or proposed contravention, of this Act;

- The conduct of Forward Focused Group towards NDIS participants are very serious and warrants action to ensure Forward Focused Group cannot continue to operate as a registered NDIS provider.
- The evidence available to the Commission strongly suggests that the provider is committing fraud by charging participants for services not provided, or excessive amounts. According to the NDIA, it is highly likely that both Directors of Forward Focused Group (Ms Vida Reid and Mr Simon Reid) and the Chief Financial Officer (Mr Rejaul Alam) have committed the alleged fraudulent activities.
- Information held by the Commission also indicates that Forward Focused is providing supports and services that they are not registered to provide.
- The information provided by complainants also strongly indicate a pattern of bullying, harassment and intimidating behaviour displayed by the Director Ms Reid towards NDIS participants.

(b) action that can be taken to address any contravention, or proposed contravention, of this Act;

- Given the nature of the conduct described above and noting that it appears to be intentional and recurrent, Compliance (WA) and Compliance (QLD/NT) considers it unlikely that the key personnel of Forward Focused Group will fully implement any corrective action prescribed by the Commission to address the provider's contravention.

(c) the extent (if any) to which the person is conducting its affairs as a registered NDIS provider in a way that may cause harm to, or jeopardise, public trust in the National Disability Insurance Scheme;

- Based on the seriousness of Forward Focused and Vida Reid's conduct and the potential impacts on NDIS participants, the risk of not taking all measures available to the Commission may reflect poorly on the Commission and the NDIS.
- Immediately suspending the registration and seeking to revoke the registration of Forward Focused may increase community confidence in the Commission and its role to protect vulnerable persons with disability from experiencing harm, including from financial abuse or exploitation.

(d) the health, safety or wellbeing of people with disability receiving supports or services from the person;

- Forward Focused breaches of the NDIS Code of Conduct are particularly concerning. For the reasons detailed here and in the attachments, Compliance (WA) and Compliance (QLD/NT) remains of the view there is an ongoing need to protect the interests, safety and wellbeing of vulnerable persons receiving disability supports and services.

(e) any other matter the Commissioner considers relevant.

Complainant information

The Commission has received direct and indirect information from former employees, and former participants and their advocates. This information is summarised below and reflects

the ongoing nature, significance and persistence of the contraventions and proposed contraventions of the Act.

Danica Hall

Danica Hall is a previous employee of Forward Focused Group, who commenced in her role as an Accounts Officer in December 2021. Danica Hall resigned from her role on 19 July 2022.

Danica Hall provided the Commission with an 'Evidence Package' in July 2022. The 'Evidence Package' includes a statement from Danica Hall, given to the former Acting Assistant Director, Compliance (WA), Cade Brown. (**Attachment 7**)

The statement contains a number of allegations of fraudulent activity, and bullying, harassment and intimidation tactics conducted by Ms Reid and Forward Focused Group.

The key allegations made in Danica Hall's statement are summarised below. Where the Commission holds evidence, or information that suggests the validity of the allegations made in the statement, these are referenced in the Key Issue Identification document at **Attachment 6, 6A and 6B**.

The key allegations included in Danica Hall's statement include:

- Invoices sent for services never provided under participants' current plans, or from expired plans that have remaining funds available. Many invoices have been sent for excessive amounts.
- Conflicts of interest presented by:
    - Forward Focused Group and The Hive Pty Ltd being owned by the same people,
    - Ms Reid acting as the primary person for some participants with authority to approve invoices, usually without the participant knowing and/or understanding that this presents a conflict of interest.
- Ms Reid's bullying and harassment behaviours towards participants and staff. These include threats of suing people and engaging with her lawyers, and allegedly unsubstantiated threats of eviction from Forward Focused Group-managed properties.
- Charging participants without the relevant information or documentation e.g. NDIS Plans and Service Agreements
- Ms Reid limiting and removing participant with choice and control on how they want their plans to be managed
- False information posted on the Forward Focused Group's Facebook page regarding the programs offered by Forward Focused and number of staff members
- Forward Focused Group's posting of participants' photos and quotes without their consent
- Behaviours she described as workplace bullying, harassment and grooming
- No evidence of incident reporting or complaints policy in place
- That staff are provided minimal to no training, and lack formal qualifications.

Janine Hall

On or around 18 July 2022, Janine Hall, a Support Coordinator with Forward Focused Group, provided the Commission with information containing allegations against Forward Focused Group and Ms Reid. (See **Attachment 9A, 9B, 9C, 9D**).

Janine Hall provided the Commission with an 'Evidence Package' in July 2022. The 'Evidence Package' includes a written summary given to the former Acting Assistant Director, Compliance (WA), Cade Brown (Attachment 9A).

The statement contains a number of allegations of fraudulent activity, and bullying, harassment and intimidation tactics conducted by FFG and the Founding Executive Director.

The key allegations included in Janine Hall's statement include:

- Using letters from a lawyer threatening to evict participant Andrew Hahn from his accommodation Janine Hall alleges that this occurred after Mr Hahn started to ask questions about amounts he was being charged.
- Charging participants for supports they are not receiving, and overcharging participants for supports they are receiving.
- Withholding relevant information from staff, and attempting to restrict staff access to information, when questioned on the accuracy of invoices.
- Lack of honesty and integrity as referred to in the resignation letter sent from a Support Coordinator to Ms Reid dated 1 July 2022.
- Provision of irregular, ad hoc and unqualified support services to high-risk participants

In her statement, Janine Hall attaches a number of invoices from Forward Focused Group and the Hybrid Hive. She alleges that they indicate fraudulent activities by the provider/s.

<u>Tabatha Sadler</u>

- On 17 July 2022, Tabatha Sadler, a Recovery Support Worker working for another organisation contacted the Commission to raise her concerns for the welfare of Forward Focused Group participant Meghan Goodwin (who she previously provided support services to but remains in contact with) (See **Attachment 10**).
- Ms Sadler raised a number concerns regarding the safety of the supports and services provided by Forward Focused Group to Ms Goodwin, and examples of the controlling and threatening behaviour displayed by Ms Reid towards Ms Goodwin.
- Ms Sadler stated in her email that Ms Goodwin is fearful of the repercussions from Ms Reid or other staff members from Forward Focused Group if she shares any information on these issues. [See **Attachment 6**]

<u>Sarah-Jane Clulow</u>

- Participant Sarah-Jane Clulow lodged a complaint with the Commission on or around 6 July 2022 and contacted the Commission on 12 July 2022 to further discuss her complaint. (See **Attachment 12**).

- Ms Clulow made a number of allegations which are consistent with allegations received from other complainants.

Ms Clulow's allegations included:

- Forward Focused Group have claimed all of her Support Coordination funding before the expiration of her plan
    - Ms Clulow is concerned that her accommodation is not appropriate as she is in a wheelchair, and is concerned that she may be evicted
    - Ms Reid is threatening to evict Ms Clulow from her accommodation if she does not approve invoices from Hybrid Hive Pty Ltd
    - Ms Reid has requested that Ms Clulow be agency-managed (instead of plan-managed) without prior consultation or consent from Ms Clulow

    - Ms Reid is contacting other NDIS providers and making false allegations that Ms Clulow has displayed racist, aggressive behaviour towards Support Workers.
- Information from the NDIA supports Ms Clulow's allegation of overutilisation of plan funding. The NDIA stated in an email dated 12 July 2022 to the Commission:
    - "The NDIA have considered Ms Clulow's current plan and it appears 14% of time has elapsed and the budget's utilisation is 31%. This indicates that there has been overutilisation of her plan funding."
    - "The NDIA acknowledge that the current Support Coordinator (Forward Focused Group) and service provider, The Hive are known to the Agency and that the two organisations are linked, indicating a possible conflict of interest with regards to the overutilisation of funding."

Jan Nuttall

- Jan Nuttall was previously employed with Forward Focused Group as an Operations Manager. Ms Nuttall contacted the NDIA on 11 August 2022 to lodge a complaint against Ms Reid and Forward Focused Group. (**Attachment 13**)

- Ms Nuttall made a number of allegations against Ms Reid and Forward Focused Group, which are consistent with allegations received from other complainants. Ms Nuttall's allegations included:
    - Forward Focused Group is an extremely siloed organisation. Ms Reid and the CFO have control over the actions of staff to perform their duties. This includes Support Coordinators not having ready access to plan information they have consent for. This information is held by the CFO and is only provided on request
    - The CFO was the only one to generate invoices and would 'stand over' staff to ensure they were submitted through the portal and not queried or questioned
    - Ms Nuttall provided examples of several occasions where funds were claimed but no services were delivered to a participant, or excessive amounts were claimed
    - Ms Reid uses threats and intimidation towards participants to control their funds, coercing participants to sign agreements and not letting them read or have a copy of any signed documents after the fact
    - Ms Reid uses bullying and intimidation tactics via threats to evict participants from their accommodation and take legal action
    - Ms Reid threatens exiting staff with legal action, should they release information about their experiences at Forward Focused Group.

Suggested course of action

The alleged conduct occurred while Ms Reid was the Director of Forward Focused Group, a position she currently holds.

Compliance WA and Compliance QLD/NT considers the issuing of:

1. a Suspension of registration with immediate effect to Forward Focused Group Pty Ltd;
2. a Notice of Intention to revoke the registration of Forward Focused Group Pty Ltd; and
    2a. a Banning Order (which is connected to the revocation of registration).
3. a Notice of Intention to issue a Banning Order to Vida Reid

We believe this to be an appropriate and proportionate regulatory response to the alleged conduct of Forward Focused Group and Ms Reid.

- The seriousness of the alleged conduct by Ms Reid and Forward Focused Group, and the element of dishonesty in the nature of the alleged offences
- The methodical nature of the alleged offending over a period suggesting the conduct, if engaged by Ms Reid, was deliberate, particularly noting Ms Reid's experience and knowledge of the NDIS as an NDIS participant
- The alleged fraud-related offences are expected to have impacted the funds available to multiple NDIS participants.
- It is a critical role of the Commission to protect vulnerable persons with disability from experiencing harm, including from financial abuse or exploitation
- The need to ensure the financial sustainability, and maintain community confidence in the NDIS
- The need to act expeditiously to ensure other NDIS participants are not put at risk unnecessarily
- The suggested actions will provide a strong level of protection and safeguarding for NDIS participants

Banning Order/s

When determining whether a person is suitable to be providing supports and services to people with disability, the delegate does not require any relevant criminal matters to have been finalised before deciding to make a Banning Order against an individual. The service of a banning order against Ms Reid is an administrative decision. The Banning Order may be varied or revoked, should new information be provided to the Commission.

Importantly, if a Banning Order is issued to Ms Reid, the Banning Order will not prevent her or her son's access to NDIS funded supports and services. However, Ms Reid will be unable to be the provider of NDIS funded supports and services to her son, which, in any case, is discouraged by the NDIA.

A Banning Order would restrict Ms Reid's capacity to earn an income. Compliance (WA) and Compliance (QLD/NT) acknowledge the imposition of a Banning Order will affect her employment opportunities. However, it is with in the Commission's responsibilities to consider the suitability of Ms Reid, and for the delegate to weigh up the interests of Ms Reid in continuing to work in the disability sector against the interests of NDIS participants.

The NDIA has measures in place relating to Ms Reid and Forward Focused Group. Whilst it's acknowledged that Forward Focused Group was the subject of an NDIA compliance lock on 3 May 2022, the Banning Order relates to Ms Reid's suitability to be involved in the disability sector. The NDIA's action relate to the protection of government assets, while it is for the Commission to make a determination in relation to Ms Reid's suitability to remain in the disability sector.

In considering the length of any banning order, it is acknowledged that while Ms Reid has not been convicted of any criminal offence in relation to the matter set out in this brief, we need to ensure that participants are not put at risk.

The Banning Order for a period of ten years will act as a preventative and protective measure to ensure Ms Reid does not have the opportunity to engage in any activities of concern.

The compliance team, if provided with an outcome of criminal proceedings relating to Ms Reid, will assess the outcome and consider whether to make a recommendation to the delegate to consider varying the Banning Order.

Compliance has made the NDIA aware that a banning order against Ms Reid and revocation of the registration of Forward Focused Group Pty Ltd is a possible outcome of our investigation. The team continues to work with the NDIA and relevant support coordinators to ensure these NDIS participants continue to receive supports.

Alternative Options

Compliance (WA) and Compliance (QLD/NT) maintains the view that lower-level or alternative enforcement options (such as a warning letter, compliance notice or infringement notice) are not appropriate given the adverse impact of Ms Reid's and Forward Focused Group's conduct. The NDIS participants' vulnerability to this type of exploitation and the evident risk of further harm to NDIS participants if Forward Focused Group and Ms Reid remain registered and continue to provide supports to people with disability.

NDIS Quality and Safeguards Commission

Our ref: 4-HOIWASG

Forward Focused Group Pty Ltd
Att: Chief Executive Officer, Vida Reid
Unit 2 Number 210 Jull Street
Armadale WA 6112

Copy by email to: feedback@ffg.net.au; vida@ffg.net.au

Notice of Suspension of your provider registration (4-4GHG-1073) under section 73N of the *National Disability Insurance Scheme Act 2013* with immediate effect.

The *National Disability Insurance Scheme Act 2013* (NDIS Act) gives me, as the Commissioner's delegate, the power to suspend the registration of a registered NDIS provider for a specified period, no longer than thirty (30) days.

I have made the decision to suspend the registration of Forward Focused Group Pty Ltd, registration number 4-4GHG-1073, for a period of 30 days, **commencing from the date of this notice**.

I have suspended your registration as a registered NDIS provider because I reasonably believe that you have contravened sections 73V (the NDIS Code of Conduct), 73B (Requirement to be a registered NDIS provider) and 73J (compliance with conditions of your registration) of the NDIS Act, as provided for by section 73N(1)(a) of the NDIS Act.

The suspension means your registration ceases to have effect until 19 November 2022. The reasons for my decision to suspend your registration are attached to this notice (**Annexure A**).

NDIS Provider Register

Section 73ZS of the NDIS Act requires the Commissioner to maintain the NDIS Provider Register which must include certain information for each person who is a registered NDIS provider. This includes if the registration of a person is suspended, information about the suspension. As I have decided to suspend your registration with immediate effect, this information will be included on the NDIS Provider Register, and published online.

Review under section 100 of the NDIS Act

You may request a review of my decision to suspend your registration within 3 months from the date that the suspension takes effect.

Any application you may make for an internal review would be dealt with by someone other than me, the original decision-maker.

Should you wish to request a review of my decision, you may make the request in writing and email it to review@ndiscommission.gov.au or send it by post, addressed to:

Branch Head, Operations - North Central West
NDIS Quality and Safeguards Commission
PO Box 2862
BRISBANE QLD 4001

Alternatively, you may telephone my office on (07) 3237 6559 to request a review of the decision or arrange to make the request in person.

Once any review of the decision has been finalised by the reviewer, you may also seek a further review of the decision by the Administrative Appeals Tribunal as provided for under section 103 of the NDIS Act.

Non-compliance with the suspension

Please note that engaging in conduct that breaches the suspension of registration may be a contravention of section 73B of the NDIS Act, insofar as the NDIS rules may require that specified classes of supports provided under a participant's plans be provided only by NDIS providers who are registered to provide those classes of supports. A contravention of section 73B attract a civil penalty up to $55,500 for individuals.

Philip Halton
Branch Head, Operations - North Central West
NDIS Quality and Safeguards Commission

19 October 2022

Reasons for the decision to suspend your registration

Legislative provisions

Section 73J of the NDIS Act provides that registered NDIS providers must comply with conditions of registration. The conditions they are subject to include those provided at section 73F of the NDIS Act.

Section 73F of the NDIS Act states that the registration of a person as a registered NDIS provider is subject to a number of conditions. These conditions include:

- Section 73F(2)(b) - a condition that the person comply with all applicable requirements of the NDIS Code of Conduct;
- Section 73F(2)(c) - a condition that the person comply with all applicable standards and other requirements of the NDIS Practice Standards;

Section 73T(1) of the NDIS Act states that the National Disability Insurance Scheme rules may make provision for or in relation to standards concerning the quality of supports or services to be provided by registered NDIS providers.

NDIS Code of Conduct

The NDIS Code of Conduct is set out in section 6 of the *National Disability Insurance Scheme (Code of Conduct) Rules 2018* (Code of Conduct Rules). Relevantly, Code-covered persons must, when providing supports or services to people with disability:

- act with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions (section 6(a));
- act with integrity, honesty and transparency (section 6(d));
- take all reasonable steps to prevent and respond to all forms of violence against, and exploitation, neglect and abuse of, people with disability (section 6(f)).

Practice Standards

Forward Focused Group Pty Ltd is registered to provide the following classes of supports under the *National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018* (the Practice Standards Rules):

- Item 8 – Assistance with travel/transport arrangements
- Item 20 – Household tasks.

In order to remain registered for the above classes of supports, Forward Focused Group Pty Ltd must comply with the Practice Standards outlined in Schedule 8 of the Practice Standards Rules.

Relevant facts and circumstances

I have considered the following matters that give rise to the suspension:

1. Forward Focused Group Pty Ltd is a registered NDIS provider, registration number 4-4GHG-1073, trading as 'Forward Focused' (ABN 98643878639).

2. Forward Focused Group Pty Ltd is registered to provide the following services:

- Item 8 – Assistance with travel/transport arrangements; and
- Item 20 – Household tasks.

3. It is alleged that Forward Focused Group is providing supports to participants that the provider is not registered to provide. The FFG website (www.forwardfocusedgroup.com.au) in its 'Service Offerings' offers SDA (Specialist Disability Accommodation) at three suburb locations. The Forward Focus Group Facebook page posted on at least two occasions 18 July 2022 and 28 September 2022 with the SDA service offering.
4. Since September 2021, the Commission has received over 30 complaints regarding the safety and quality of supports provided by Forward Focused Group. The Commission also holds information that suggests that Forward Focused Group does not support individuals to raise any complaints they may have directly with the provider, without fear of retaliation from Forward Focused Group or its directors and key personnel.
5. This information strongly indicates that Forward Focused Group does not have a complaints management and resolution system in place that ensures that complaints are welcomed, acknowledged, respected and well-managed.

6. The Commission holds information that Forward Focused Group does not employ workers who hold the relevant qualifications for their roles. The website (www.forwardfocusedgroup.com.au) in its 'Our Team' section states that Ms Sally See was employed by Forward Focused Group as a Counsellor. Ms See does not hold qualifications with either the Australian Counselling Association (www.theaca.net.au) or with the Australian Health Practitioner Regulation Agency (www.ahpra.gov.au). The Commission could not locate any records of contact information or worker screening conducted for Ms See.
7. The Commission holds information that the Provider is not acting with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions. Across June and July 2022, participants including Corina Abraham, Sarah-Jane Clulow, and Alexsis Bott all sort to amend or cease service agreements with the Provider. The written email engagement with the Provider indicated non-compliance with the National Disability Insurance Scheme (Code of Conduct) Rules 2018 and included both veiled and direct threats, bullying and harassment. By way of example,

    a. Across May and June 2022, the Provider attempted to obtain control of participant funds and participants supports for participant Alexsis Bott. When the participant confirmed, in writing that they didn't want to take the action to release their funds from the existing manager the Founding Executive Director writes "we will be terminating your services with us effective immediately".

    b. Series of emails 24 June 2022 to 19 June 2022 regarding participant Sarah-Jane Clulow advising a four week notice for service termination. The emails show that the participant was seeking review of an invoice for services not received.

    c. On 1 July 2022, the Provider responds to an account statement from a supplier stating that, ""we will no longer pay any invoices for Sarah. She has terminated her contract with us."

    d. Series of emails 15 June 2022 to 19 June 2022 regarding participant Corina Abraham ceasing some services with Hybrid Hive. The participant seeks to meet to discuss their concerns. By email dated 19 June, the Provider through Vida Reid purports to cease support coordination and terminate the contract for all services with immediate effect. The email claims "ongoing abusive manner of our staff by yourself

and the break in trust" as the grounds. The email includes a perceived threat that invoices are to be paid immediately or be reported to the NDIS.

e. Email 16 June 2022 by the Founding Director to participant, Ms Abraham, provides that the support worker has a non compete and non disclosure contract which will prevent her for working privately for the participant. It also states that if the participant had "come to us in good faith…I would have said okay."

f. Email 16 June 2022 by the Founding Director to participant, Ms Abraham, "I would like all of your outstanding invoices paid immediately please or I will report this to the NDIS".

8. The Commission holds information that the Provider is not acting with integrity, honesty and transparency.

   It is alleged that Forward Focused Group are knowingly submitting false claims for payments to the National Disability Insurance Scheme (Scheme), with the intention of dishonestly causing a loss to another person, namely the NDIA, a Commonwealth entity. The Commission is aware of questions about invoices raised against multiple participants.

   The Commission holds information about participants Tiffany Rose and Andrew Hahn on dates known between 26 November 2021 and 14 June 2022, which show that the Provider generated invoices that did not match the services provided, or were generated without the necessary Plans or Services Agreements in place.

   The Commission also holds information, through emails dated 3 May and 9 May 2022, which show that the Founding Executive Director is withholding information from other staff of the Provider on potentially fraudulent invoices. By way of example,

   a. Internal email dated 3 May 2022 from a former employee to the Chief Financial Officer raising questions regarding an invoice for Support Coordination services for participant that Forward Focused Group had not provided.

   The Commission holds records of correspondence between the Provider and participants which reflects a lack of integrity and honesty in dealings including accusations of non-payment or broken trust as grounds for the Provider to immediately terminate engagements with participants. By way of example,

   a. Termination Notice Letter from DFG Legal WA dated 31 March 2022 requesting that participant Andrew Hahn vacate a Forward Focused Group-managed property due to "serious misconduct" and "failing to pay the fortnightly lodging fee". The Commission holds a record of an email from the advocate of the participant dated 27 March 2022, requesting that "unsubstantiated threats of eviction" from the Provider cease.

9. The Commission holds information that the Provider has not taken all reasonable steps to prevent and respond to exploitation of people with disability.

   The Commission holds information that the Provider is seeking to act as both the service provider and the authorized person on behalf of a participant to engage with the NDIA in relation to support provision and funding decisions. By way of example,

   a. The Commission holds a record of a Forward Focused Group document titled 'FM Consent Third Party to Act' which provides ongoing consent for any Forward

Focused staff member (contact Vida Reid), which includes consent to request review of NDIA decisions and manage complaints made by participant Meghan Goodwin.

Concerns about contraventions of the NDIS Act

1. The nature of the information held by the Commission strongly suggests to me that the Provider has contravened, is contravening, or is proposing to contravene the NDIS Act (as provided for by section 73P(1)(a) of the NDIS Act).

2. The NDIS Act 73J requires provides to comply with registration conditions. It is a condition of registration that providers comply with the Rules. The *National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018* (the Practice Standards Rules) section 7(1) requires providers to be registered to provide Specialist Disability Accommodation (SDA). The provider is clearly advertising the provision of supports that you are not registered to supply.

3. The allegations and information held by the Commission indicate a significant amount of false claims against the Scheme, that could have otherwise have been directed to fund essential supports and services to people with disability.

4. The Provider's practice of billing multiple NDIS participants for supports and services not provided compromised the integrity of the Scheme and deprived these NDIS participants of receiving necessary supports and services that they relied upon and were entitled to receive.

5. The information available to the Commission regarding the way in which the Provider handles complaints also suggests that the Provider has failed its obligation under the NDIS Practice Standards to implement a complaints management and resolution system that ensures that complaints made by all parties are welcomed, acknowledged, respected and well-managed. My preliminary view, based on the information available to the Commission, is that Provider does not provide a supportive environment for any person who makes complaints.

6. The matters set out above demonstrates conduct that falls well below the standard and quality of care expected from NDIS providers when providing supports or services to people with disability.

7. The information before me in relation to the protracted length of time over which this alleged conduct took place and continued as well as the instances of similar misconduct against multiple NDIS participants suggests that Provider's conduct was systemic in nature.

8. My preliminary view is that the need to protect the interests of people with disability, who may be particularly vulnerable, and ensure they are kept safe, outweighs the Provider's interest in remaining registered in these circumstances. I am also of the view that allowing the Provider to remain registered in the circumstances would jeopardise public trust in the Scheme.

9. Having considered the functions of the Commissioner, the objects of the NDIS Act, and the need to consider the financial sustainability of the NDIS in exercising the Commissioner's powers under the NDIS Act, I consider that the registration of the Provider should be suspended under section 73N(1)(a) of the NDIS Act.

In deciding whether to suspend Forward Focused Group Pty Ltd registration, I have had regard to the following matters as required by section 73N(4) of the NDIS Act:

a) With regards to the nature, significance and persistence of any contravention, or proposed contravention, of the NDIS Act (section 73N(4)(a))

- The conduct of Forward Focused Group towards NDIS participants is very serious and warrants action to ensure Forward Focused Group cannot continue to operate as a registered NDIS provider.
- The evidence available to the Commission strongly suggests that the provider is committing fraud by charging participants for services not provided, or excessive amounts. Based on information available to the Commission, it is highly likely that both Directors of Forward Focused Group (Ms Vida Reid and Mr Simon Reid) and the Chief Financial Officer (Mr Rejaul Alam) have committed the alleged fraudulent activities.
- Information held by the Commission also indicates that Forward Focused is providing supports and services that they are not registered to provide.
- The information provided by complainants also strongly indicate a pattern of bullying, harassment and intimidating behaviour displayed by the Founding Executive Director Ms Reid towards NDIS participants.

b) With regards to the action that can be taken to address any contravention, or proposed contravention (section 73N(4)(b)):

- Given the nature of the conduct described above and noting that it appears to be intentional and recurrent, the Commission considers it unlikely that the key personnel of Forward Focused Group will fully implement any corrective action prescribed by the Commission to address the provider's contraventions.

c) With regards to the extent (if any) to which the person is conducting its affairs as a registered NDIS provider in a way that may cause harm to, or jeopardise, public trust in the NDIS (section 73N(4)(c)):

- Based on the seriousness of Forward Focused and Vida Reid's conduct and the potential impacts on NDIS participants, the Commission considers that there remains a significant risk to participants if Forward Focused Group was to continue providing supports to participants.

d) With regards to the health, safety or wellbeing of people with disability receiving supports or services from the person (section 73N(4)(d)):

- Forward Focused breaches of the NDIS Code of Conduct are particularly concerning. For the reasons detailed above, the Commission remains of the view there is an ongoing need to protect the interests, safety and wellbeing of vulnerable persons receiving disability supports and services.

e) There are no other circumstances considered relevant at this time (section 73N(4)(e)).

Having regard to all of the matters set out above, I am satisfied that Forward Focus Group Pty Ltd has contravened, is contravening, or is proposing to contravene, the NDIS Act (section 73N(1)(a)).

Taking into account the totality of the circumstances and the regulatory functions of the Commissioner I have determined that it is reasonable and proportionate to suspend the registration for a period of thirty (30) days under section 73N(1)(a) of the NDIS Act.

NDIS Quality and Safeguards Commission

Our ref: 4-HOIWASG

Forward Focused Group Pty Ltd
96 Amethyst Crescent
Mount Richon WA 6112

Attention: Ms Vida Reid, Director

By email to: feedback@ffg.net.au; vida@ffg.net.au

Opportunity to make submissions about a proposed revocation of registration under section 73P(4) of the *National Disability Insurance Scheme Act 2013* (Cth)

I am a delegate of the Commissioner for the NDIS Quality and Safeguards Commission (**the Commissioner**).

Proposed revocation of registration and banning order

Section 73P of the *National Disability Insurance Scheme Act 2013* (Cth) (**NDIS Act**) gives me, as the Commissioner's delegate, the power to revoke the registration of a person as a registered NDIS provider on the grounds listed in section 73P(1) of the NDIS Act. Relevantly, in relation to this matter, I can revoke the registration of Forward Focused Group Pty Ltd ACN 643 878 639 ("the Provider") if I am satisfied that it has contravened, is contravening, or is proposing to contravene the NDIS Act (as provided for by section 73P(1)(a) of the NDIS Act).

A banning order, which can prohibit or restrict specified activities by an NDIS provider, if the Commissioner has revoked the registration of the person as a registered NDIS provider (as provided for by section 73ZN(1)(a) of the NDIS Act.

Opportunity to make submissions

Before deciding to revoke the registration of a registered NDIS provider, the Commissioner (or a delegate of the Commissioner) must give the person an opportunity to make submissions on the matter, in accordance with section 73P(4) of the NDIS Act. A separate submission process in relation to any proposed banning order made under section 73ZN(1)(a) is not required as set out in section 73ZN(8)(b) of the NDIS Act.

The purpose of this letter is to inform the Provider of relevant facts and the matters that I have considered in reaching the view the Provider has contravened, is contravening, or is likely to contravene the NDIS Act and to give it the opportunity to make a submission about this before I make a final decision.

I have also formed the preliminary view that the Provider should be banned from providing NDIS-funded supports or services to people with disability in the event that I decide to revoke the Provider's registration.

I will not make a final decision about whether to revoke the Provider's registration as a registered NDIS provider until the Provider has had an opportunity to make submissions to me. This gives the Provider an opportunity to tell me anything that you, as a representative of the Provider, believe may be appropriate to bring to my attention, to dispute any of the facts of this matter, to comment on the seriousness of it or to put your view as to decision I propose to make. You may also wish to make comment on the banning order I am proposing.

Relevant facts and information

As a result of information provided to the Commission and the Commission's own enquiries, I understand the following:

1. Forward Focused Group is a registered NDIS provider, registration id 4-4GHG-1073, trading as 'Forward Focused' (ABN 98 643 878 639).

2. Forward Focused Group is registered to provide the following services:

   Item 8 – Assistance with travel/transport arrangements; and
   Item 20 – Household tasks.

3. It is alleged that Forward Focused Group is providing supports to participants that the provider is not registered to provide. The FFG website (www.forwardfocusedgroup.com.au) in its 'Service Offerings' offers SDA (Specialist Disability Accommodation) at three suburb locations. The Forward Focus Group Facebook page posted on at least two occasions 18 July 2022 and 28 September 2022 with the SDA service offering.

4. Since September 2021, the Commission has received over 30 complaints regarding the safety and quality of supports provided by Forward Focused Group. The Commission also holds information that suggests that Forward Focused Group does not support individuals to raise any complaints they may have directly with the provider, without fear of retaliation from Forward Focused Group or the key personnel.

5. This information strongly indicates that Forward Focused Group does not have a complaints management and resolution system in place that ensures that complaints are welcomed, acknowledged, respected and well-managed.

6. The Commission holds information that Forward Focused Group does not employ workers who hold the relevant qualifications for their roles. The FFG website (www.forwardfocusedgroup.com.au) in its 'Our Team' section states that Ms Sally See was employed by Forward Focused Group as a Counsellor. Ms See does not hold qualifications with either the Australian Counselling Association (www.theaca.net.au) or with the Australian Health Practitioner Regulation Agency (www.ahpra.gov.au). The Commission does hold any records of contact information or worker screening conducted for Ms See.

7. The Commission holds information that the Provider is not acting with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions. Across June and July 2022, participants including Corina Abraham, Sarah-Jane Clulow, and Alexsis Bott all sort to amend or cease service agreements

with the Provider. The written email engagement with the Provider indicated non-compliance with the National Disability Insurance Scheme (Code of Conduct) Rules 2018 and included both veiled and direct threats, bullying and harassment. By way of example,

a. Across May and June 2022, the Provider attempted to obtain control of participant funds and participants supports for participant Alexsis Bott. When the participant confirmed, in writing that they didn't want to take the action to release their funds from the existing manager the Founding Executive Director writes "we will be terminating your services with us effective immediately".

b. Series of emails 24 June 2022 to 19 June 2022 regarding participant Sarah-Jane Clulow advising a four week notice for service termination. The emails show that the participant was seeking review of an invoice for services not received.

c. On 1 July 2022, the Provider responds to an account statement from a supplier stating that, ""we will no longer pay any invoices for Sarah. She has terminated her contract with us."

d. Series of emails 15 June 2022 to 19 June 2022 regarding participant Corina Abraham ceasing some services with Hybrid Hive. The participant seeks to meet to discuss their concerns. By email dated 19 June, the Provider through Vida Reid purports to cease support coordination and terminate the contract for all services with immediate effect. The email claims "ongoing abusive manner of our staff by yourself and the break in trust" as the grounds. The email includes a perceived threat that invoices are to be paid immediately or be reported to the NDIS.

e. Email 16 June 2022 by the Founding Director to participant, Ms Abraham, provides that the support worker has a non compete and non disclosure contract which will prevent her for working privately for the participant. It also states that if the participant had "come to us in good faith…I would have said okay."

f. Email 16 June 2022 by the Founding Director to participant, Ms Abraham, "I would like all of your outstanding invoices paid immediately please or I will report this to the NDIS".

8. The Commission holds information that the Provider is not acting with integrity, honesty and transparency.

   It is alleged that Forward Focused Group are knowingly submitting false claims for payments to the National Disability Insurance Scheme (Scheme), with the intention of dishonestly causing a loss to another person, namely the NDIA, a Commonwealth entity. The Commission is aware of questions about invoices raised against multiple participants.

   The Commission holds information about participants Tiffany Rose and Andrew Hahn on dates known between 26 November 2021 and 14 June 2022, which show that the Provider generated invoices that did not match the services provided, or were generated without the necessary Plans or Services Agreements in place.

   The Commission also holds information, through emails dated 3 May and 9 May 2022, which show that the Founding Executive Director is withholding information from other staff of the Provider on potentially fraudulent invoices. By way of example,

a. Internal email dated 3 May 2022 from former employee to the Chief Financial Officer raising questions regarding an invoice for Support Coordination services for participant that Forward Focused Group had not provided.

The Commission holds records of correspondence between the Provider and participants which reflects a lack of integrity and honesty in dealings including accusations of non-payment or broken trust as grounds for the Provider to immediately terminate engagements with participants. By way of example,

a. Termination Notice Letter from DFG Legal WA dated 31 March 2022 requesting that participant Andrew Hahn vacate a Forward Focused Group-managed property due to "serious misconduct" and "failing to pay the fortnightly lodging fee". The Commission holds a record of an email from the advocate of the participant dated 27 March 2022, requesting that "unsubstantiated threats of eviction" from the Provider cease.

9. The Commission holds information that the Provider has not taken all reasonable steps to prevent and respond to exploitation of people with disability.

The Commission holds information that the Provider is seeking to act as both the service provider and the authorized person on behalf of a participant to engage with the NDIA in relation to support provision and funding decisions. By way of example,

a. The Commission holds a record of a Forward Focused Group document titled 'FM Consent Third Party to Act' which provides ongoing consent for any Forward Focused staff member (contact Vida Reid), which includes consent to request review of NDIA decisions and manage complaints made by participant Meghan Goodwin.

Concerns about contraventions of the NDIS Act

1. The nature of the information held by the Commission strongly suggests to me that the Provider has contravened, is contravening, or is proposing to contravene the NDIS Act (as provided for by section 73P(1)(a) of the NDIS Act).

2. The NDIS Act 73J requires provides to comply with registration conditions. It is a condition of registration that providers comply with the Rules. The *National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018* (the Practice Standards Rules) section 7(1) requires providers to be registered to provide Specialist Disability Accommodation (SDA). The provider is clearly advertising the provision of supports that you are not registered to supply.

3. The allegations and information held by the Commission indicate a significant amount of false claims against the Scheme, that could have otherwise have been directed to fund essential supports and services to people with disability.

4. The Provider's practice of billing multiple NDIS participants for supports and services not provided compromised the integrity of the Scheme and deprived these NDIS participants of receiving necessary supports and services that they relied upon and were entitled to receive.

5. The information available to the Commission regarding the way in which the Provider handles complaints also suggests that the Provider has failed its obligation under the NDIS

Practice Standards to implement a complaints management and resolution system that ensures that complaints made by all parties are welcomed, acknowledged, respected and well-managed. My preliminary view, based on the information available to the Commission, is that Provider does not provide a supportive environment for any person who makes complaints.

6. The matters set out above demonstrates conduct that falls well below the standard and quality of care expected from NDIS providers when providing supports or services to people with disability.

7. The information before me in relation to the protracted length of time over which this alleged conduct took place and continued as well as the instances of similar misconduct against multiple NDIS participants suggests that Provider's conduct was systemic in nature.

8. My preliminary view is that the need to protect the interests of people with disability, who may be particularly vulnerable, and ensure they are kept safe, outweighs the Provider's interest in remaining registered in these circumstances. I am also of the view that allowing the Provider to remain registered in the circumstances would jeopardise public trust in the Scheme.

9. Having considered the functions of the Commissioner, the objects of the NDIS Act, and the need to consider the financial sustainability of the NDIS in exercising the Commissioner's powers under the NDIS Act, I consider that the registration of the Provider should be revoked under section 73P(1)(a) of the NDIS Act.

NDIS Provider Register

Section 73ZS of the NDIS Act requires the Commissioner to maintain the NDIS Provider Register which must include certain information for each person who is a registered NDIS provider. Relevant to this matter, section 73ZS(5)(e) permits the NDIS Provider Register to include information about a former NDIS provider, including information about the revocation of a person's registration.

Should I proceed to determine to revoke the Provider's registration and make a banning order, information about the revocation and banning order will be included on the NDIS Provider Register, available on the Commission's website.

Making a submission

I have not made a final decision in respect of this matter and I will not until the Provider has had an opportunity to make submissions in writing to me. This gives the Provider the opportunity to tell me anything it believes may be appropriate to bring to my attention, to dispute any of the facts of this matter or to comment on the seriousness of it.

Section 73P(4)(b) of the NDIS Act provides that the Provider may make submissions within 28 days after receiving this notice. If no submissions are made within that time period, any revocation may take effect as early as 7 days after the end of the 28 day-period. The Provider will be notified in writing of any decision made in relation to the proposed revocation.

Any submissions the Provider may wish to make must be received by the Commission within **28 days** of its receipt of this notice unless it seeks, and is granted, an extension.

Should the Provider wish to make a submission in relation to anything contained in this letter, please do so in writing and either:

- deliver it by hand or post it to:
  NDIS Quality and Safeguards Commission
  Level 1, 200 St Georges Terrace, Perth WA 6000
  Marked for the attention of:
  Compliance Western Australia

- email it to wacompliance@ndiscommission.gov.au or

In order to have any written submission considered in my decision-making please ensure that the submission is sent to the email address, delivered to the street address or arrives at the postal address as set above, **by no later than 5:00pm (AWST) on 16 November 2022.**

If a submission is not received from the Provider by this time, I will proceed to make my final decision.

The Provider may wish to seek legal or other professional advice before deciding not to make a submission.

Yours sincerely

Philip Halton
Branch Head, Operations - North Central West
NDIS Quality and Safeguards Commission

19 October 2022

NDIS Quality and Safeguards Commission

Our ref: 4-GJDV78G

Ms Vida Reid
Unit 2 Number 210 Jull Street
Armadale WA 6112

Copy by email to: vida@ffg.net.au; feedback@ffg.net.au

Dear Ms Reid,

Opportunity to make submissions about a proposed Banning Order under section 73ZN of the *National Disability Insurance Scheme Act 2013* (Cth)

I am a delegate of the Commissioner for the NDIS Quality and Safeguards Commission (the Commission).

Section 73ZN(2) of the *National Disability Insurance Scheme Act 2013* (Cth) (NDIS Act) gives me, as the Commissioner's delegate, the power to make an order known as a Banning Order. A Banning Order can prohibit or restrict a person who is or was employed or otherwise engaged by an NDIS provider under the National Disability Insurance Scheme (NDIS) from engaging in specified activities.

Proposed Banning Order

I have formed the preliminary view that it may be appropriate in all the circumstances to make a Banning Order prohibiting you for a period of ten (10) years from being involved in the provision of supports or services to people with disability. However, should a banning order be made it will not apply in relation to any supports or services that you may seek for yourself or that you may provide to your son.

The basis for this preliminary view is that I reasonably believe you have contravened, are contravening, or are likely to contravene the NDIS Act, as referred to in section 73ZN(2)(a)(i) of the NDIS Act. Please refer to Annexure A for more information.

Opportunity to make submissions

The purpose of this letter is to inform you of relevant facts and the matters I have considered in reaching my preliminary view and to give you the opportunity to make a submission about this before I make a final decision.

I will not make a final decision whether to make a Banning Order until you have had an opportunity to make submissions to me. This gives you an opportunity to tell me anything that you believe may be appropriate to bring to my attention, to dispute any of the facts of this matter, to comment on the seriousness of it or to put your view as to the terms of any Banning Order that I may make.

Relevant facts and information

As a result of information provided to the Commission and the Commission's own enquiries, I understand the following:

1. You are a Director and one of the key personnel of Forward Focused Group Pty Ltd, ABN 98 643 878 639 (Forward Focused Group).

2. Forward Focused Group Pty Ltd is a registered NDIS provider with registration ID 4-4GHG-1073.

3. According to information available to the Commission, you have assigned yourself with authority to make decisions on behalf of NDIS participants. This information suggests that you are not taking all reasonable steps to prevent and respond to all forms of exploitation of people with disability. By way of example,

    a. The Commission holds a record of a Forward Focused Group document titled 'FM Consent Third Party to Act' which provides ongoing consent for any Forward Focused staff member (contact Vida Reid), which includes consent to request review of NDIA decisions and manage complaints made by participant Meghan Goodwin.

4. The Commission has received information and allegations that strongly suggest that you frequently engage in bullying, harassment and intimidation behaviours directed at NDIS participants and Forward Focused Group staff. Your alleged conduct towards participants and staff have created an environment whereby participants and staff do not feel supported or safe to raise any concerns they have about the quality and safety of supports provided by Forward Focused Group.

5. Since September 2021, the Commission has received over 30 complaints regarding the safety and quality of supports provided by Forward Focused Group. The Commission holds information that suggests that you, as a representative of the Provider, and the Provider do not support individuals to raise any complaints they may have directly with the provider, without fear of retaliation from yourself or Forward Focused Group. This information strongly indicates that you, as a director and key personnel, are not ensuring that complaints are welcomed, acknowledged, respected and well-managed.

6. The Commission also holds information that you are not acting with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions. Across June and July 2022, participants including Corina Abraham, Sarah-Jane Clulow, and Alexsis Bott all sort to amend or cease service agreements with the Provider. Your email correspondence indicated non-compliance with the National Disability Insurance Scheme (Code of Conduct) Rules 2018 and included both veiled and direct threats, bullying and harassment. By way of example,

    - Across May and June 2022, the Provider attempted to obtain control of participant funds and participants supports for participant Alexsis Bott. When the participant confirmed, in writing that they didn't want to take the action to release their funds from the existing manager you, as key personnel, write "we will be terminating your services with us effective immediately".

- Series of emails 24 June 2022 to 19 June 2022 regarding participant Sarah-Jane Clulow advising a four week notice for service termination. The emails show that the participant was seeking review of an invoice for services not received.

- On 1 July 2022, you, as key personnel, respond to an account statement from a supplier stating that, ""we will no longer pay any invoices for Sarah. She has terminated her contract with us."

- Series of emails 15 June 2022 to 19 June 2022 regarding participant Corina Abraham ceasing some services with Hybrid Hive. The participant seeks to meet to discuss their concerns. By email dated 19 June, you, as key personnel, purport to cease support coordination and terminate the contract for all services with immediate effect. The email claims "ongoing abusive manner of our staff by yourself and the break in trust" as the grounds. The email includes a perceived threat that invoices are to be paid immediately or be reported to the NDIS.

- Email 16 June 2022 sent by you to participant, Ms Abraham, provides that the support worker has a non-compete and non-disclosure contract which will prevent her for working privately for the participant. It also states that if the participant had "come to us in good faith…I would have said okay."

- Email 16 June 2022 sent by you to participant, Ms Abraham, "I would like all of your outstanding invoices paid immediately please or I will report this to the NDIS".

7. The Commission holds additional information that indicates that you have played a central role in the alleged fraudulent activities engaged in by Forward Focused Group, in particular the submission of false claims for payments to the National Disability Insurance Scheme (Scheme). I am of the view that this demonstrates a failure by you to act with integrity, honesty and transparency.

   It is alleged that Forward Focused Group are knowingly submitting false claims for payments to the National Disability Insurance Scheme (Scheme), with the intention of dishonestly causing a loss to another person, namely the NDIA, a Commonwealth entity. The Commission is aware of questions about invoices raised against multiple participants.

   The Commission holds information about participants Tiffany Rose and Andrew Hahn on dates known between 26 November 2021 and 14 June 2022, which show that the Provider generated invoices that did not match the services provided, or were generated without the necessary Plans or Services Agreements in place.

   The Commission also holds information, through emails dated 3 May and 9 May 2022, which show that you are withholding information from other staff of the Provider on potentially fraudulent invoices. By way of example,

   a. Internal email dated 3 May 2022 from former employee to the Chief Financial Officer raising questions regarding an invoice for Support Coordination services for participant that Forward Focused Group had not provided. In your response dated 9 May 2022, you replied "Whilst I appreciate your thoroughness in dealing with clients please remember that I do work on participants as well. I keep my work and my notes private as sometimes they may be about staff or complaints or other work clients have requested that they have advised not to be disclosed to other due to privacy and dignity."…."I am aware that you have recently gained access to some

portals and kindly ask that you do not access these as they go against our policy and procedures."

The Commission holds records of correspondence between yourself and participants which reflects a lack of integrity and honesty in dealings including accusations of non-payment or broken trust as grounds for you to immediately terminate engagements with participants. By way of example,

a. Termination Notice Letter from DFG Legal WA dated 31 March 2022 requesting that participant Andrew Hahn vacate a Forward Focused Group-managed property due to "serious misconduct" and "failing to pay the fortnightly lodging fee". The Commission holds a record of an email from the advocate of the participant dated 27 March 2022, requesting that "unsubstantiated threats of eviction" from the Provider cease.

Proposed Banning Order

The information available to the Commission indicates that you engage in dishonest and intimidating conduct that falls below the standard expected from key personnel of a registered NDIS provider and the director of a company that provides disability supports and services.

The need to protect the interests of people with disability, who may be particularly vulnerable, and ensure they are kept safe, outweighs your interest in continuing to be involved in the provision of supports or services to people with a disability.

Therefore, my preliminary view is that I should make a Banning Order that prohibits you from being involved in the provision of supports or services to people with disability for a period of ten (10) years, on the basis that you have contravened, are contravening, or are likely to contravene the NDIS Act, as per section 73ZN(2)(a)(i) of the NDIS Act.

I am of the view that making a Banning Order against you would provide a strong level of protection for people with disability and maintain community confidence in the Scheme.

In forming this preliminary view, I have placed significant weight on the following matters:

- The nature of your alleged breaches of the NDIS Act are serious, as they involve instances of verbal and emotional abuse involving threats towards vulnerable persons with disability to whom you were providing services and supports on a regular basis. The Commission holds information that suggested that you exerted undue influence over a number of participants that limited them from exercising their choice and control over their own supports and services;

- I am particularly concerned by recent reports to the Commission that indicate your breaches of the NDIS Act are still occurring. The Commission holds information that suggests that you have been using your position to exploit participants who are in vulnerable situations despite your knowledge of your obligations under the NDIS Act. For these reasons, I am concerned your breaches will continue to occur in future;

- I also hold concerns about your willingness to deliver substandard services to NDIS participants considering you and your child are also participants. This shows a distinct lack of empathy and care for people who share common challenges.

- The matters set out above demonstrates conduct that falls well below the standard and quality of care expected from key personnel of NDIS providers when providing supports or services to people with disability. The information before me in relation to the protracted length of time over which the alleged conduct took place suggests that your conduct was systemic in nature. Allowing you to continue providing supports or services to people with disability poses a continuing risk to people with disability.

For the avoidance of doubt, the proposed Banning Order will prevent you from having any involvement whether directly or indirectly in the delivery, coordination and management of NDIS funded supports and services to people with disability. The ban will therefore preclude you from remaining a director and shareholder of Forward Focused Group while it remains an NDIS provider or have any involvement in any other entity that provides supports and services to NDIS participants. For example, the banning order will also preclude you from remaining as one of the listed officeholders of the Hive Pty Ltd, Hybrid Hive Pty Ltd, Infinity Living Options Pty Ltd, Malibuhouse Pty Ltd or Exact Financial Solutions Pty Ltd if they provide any supports or services to people with disability.

NDIS Provider Register

Section 73ZS of the NDIS Act requires the Commissioner to maintain the NDIS Provider Register which includes certain information about NDIS providers and other persons.

Under section 73ZS(2A) of the NDIS Act, the NDIS Provider Register must include certain information in relation to a person against whom a Banning Order is in force. The information that must be included on the NDIS Provider Register is:

- The name of the person
- The person's ABN (if any); and
- Information about the Banning Order.

Sections 17 and 18 of the *National Disability Insurance Scheme (Provider Registration and Practice Standards) Rules 2018* provides that the whole of the NDIS Provider Register may be published on the NDIS Commission's website unless:

- the Commissioner considers that the publication of part of the NDIS Provider Register would be contrary to the public interest; or

- the Commissioner considers that the publication of part of the NDIS Provider Register would be contrary to the interests of one or more persons with disability receiving supports or services.

If I decide to make a Banning Order against you, information about the Banning Order will be included on the NDIS Provider Register and published on the NDIS Commission's website.

Making a submission

I have not made a final decision in respect of this matter and I will not do so until you have had an opportunity to make submissions in writing to me. This gives you the opportunity to tell me anything you believe may be appropriate to bring to my attention, to dispute any of the facts of this matter or to comment on the seriousness of it.

Section 73ZN(7) of the NDIS Act provides that the Commissioner may only make a banning order against a person after giving the person an opportunity to make submissions to the Commissioner on the matter.

Any submissions you wish to make must be received by the Commission within 28 days of your receipt of this notice.

You will be notified in writing of any decision made in relation to the proposed revocation and banning order.

Should you wish to make a submission about the proposed Banning Order against you, please do so in writing and either:

- Deliver it to:

  NDIS Quality and Safeguards Commission
  Level 1, 200 St Georges Terrace, Perth WA 6000
  Marked for the attention of:
  Compliance Western Australia

- email it to wacompliance@ndiscommission.gov.au or
- send it by post addressed to:

  Compliance Western Australia
  NDIS Quality and Safeguards Commission
  Level 1, 200 St Georges Terrace, Perth WA 6000

In order to have any written submission considered in my decision-making please ensure that the submission is sent to the email address, delivered to the street address or arrives at the postal address as set above, **by no later than 5 pm (AWST) on 16 November 2022.**

If a submission is not received from you by this time, I will proceed to make my final decision. However, you may wish to seek legal or other professional advice before deciding not to make a submission.

Yours sincerely

Philip Halton
Branch Head, Operations - North Central West
NDIS Quality and Safeguards Commission

19 October 2022

Annexure A

NATIONAL DISABILITY INSURANCE SCHEME ACT 2013 - SECT 73ZN

Banning orders—NDIS providers

(1) The Commissioner may, by written notice, make an order (a ***banning order***) prohibiting or restricting specified activities by an NDIS provider, or by a person who was an NDIS provider, if:

(a) the Commissioner has revoked the registration of the person as a registered NDIS provider; or

(b) the Commissioner reasonably believes that:

(i) the person has contravened, is contravening, or is likely to contravene this Act; or
(ii) the person has been involved in, or is likely to become involved in, a contravention of this Act by another person; or
(iii) the person is not suitable to provide supports or services to people with disability; or
(iv) in the case of an NDIS provider—there is an immediate danger to the health, safety or wellbeing of a person with disability if the person continues to be an NDIS provider; or

(c) the person is convicted of an offence involving fraud or dishonesty; or

(d) the person becomes an insolvent under administration.

Note: A person who is subject to a banning order cannot be registered as an NDIS provider in a way that is inconsistent with the order (see subsection 73E(3)).

Banning orders—persons employed or otherwise engaged by NDIS providers

(2) The Commissioner may, by written notice, make an order (a banning order) prohibiting or restricting a person who is or was employed or otherwise engaged by an NDIS provider, or a person who is or was a member of the key personnel of an NDIS provider, from engaging in specified activities if:

(a) the Commissioner reasonably believes that:
(i) the person has contravened, is contravening, or is likely to contravene this Act; or
(ii) the person has been involved in, or is likely to become involved in, a contravention of this Act by another person; or
(iii) the person is not suitable to be involved in the provision of supports or services to people with disability; or
(iv) there is an immediate danger to the health, safety or wellbeing of a person with disability if the person continues to engage in the specified activities; or

(b) the person is convicted of an offence involving fraud or dishonesty; or

(c) the person becomes an insolvent under administration.

Application of banning orders

(3) A banning order may:

(a) apply generally or may be of limited application; and

(b) be permanent or for a specified period.

(4) However, a banning order cannot prohibit or restrict activities that a registered NDIS provider is registered to provide under 73E.

(5) A banning order takes effect from the day specified in the order.

(6) A banning order is not a legislative instrument.

Process

(7) The Commissioner may only make a banning order against a person after giving the person an opportunity to make submissions to the Commissioner on the matter.

(8) However, subsection (7) does not apply if the Commissioner's grounds for making the banning order are, or include, the following:

(a) that there is an immediate danger to the health, safety or wellbeing of a person with disability;

(b) that the Commissioner has revoked the registration of the person as a registered NDIS provider.

(9) The Commissioner must:

(a) give the banning order to the person against whom the order is made; and

(b) include in the banning order a statement of reasons for the order; and

(c) if the banning order is against a person who is employed or otherwise engaged by an NDIS provider—notify the NDIS provider of the order as soon as possible.

Civil penalty

(10) A person contravenes this subsection if:

(a) the person engages in conduct; and

(b) the conduct breaches a banning order that has been made against the person.

Civil Penalty: 1,000 penalty units.

List of registered providers

Listen

NDIS Provider Register

Search for a provider's registration details by using one or more of the fields below.

You can search for a provider:

- that is currently registered, or
- whose registration has been suspended or revoked.

This register will only display providers that have registered with the NDIS Commission.

To view a list of currently registered providers, search using the Registration status 'Approved'.

Search for a registered NDIS Provider

You can search for a provider that is currently registered, or whose registration has been suspended or revoked.
To view a list of currently registered providers, search using the Registration status 'Approved'.

Provider's business name

e.g. Red cross

Provider's legal name

Provider’s ABN

Registration status

Please select

Search now

× Clear all

Forward Focused

Legal name: FORWARD FOCUSED GROUP PTY LTD.

ABN: 98643878639

Head office address: ARMADALE [NEXT TO DOME CAFE], WA, 6112

Website: https://forwardfocusedgroup.com.au

Registration status: Approved

Period of registration is in force until: 01 December 2021

Additional conditions of registration:

No additional conditions of registration.

Approved registration groups:

- Household Tasks
- Assist-Travel/Transport

Outlets 208

Filter outlets by state:

All states | ACT | NSW | NT | QLD | SA | TAS | VIC | WA

Showing 2 outlets in all states

Forward Focused - Head Office

Unit 2 Number 210, Jull Street, ARMADALE, WA, 6112

Phone: +610861177786

Forward Focused - West Perth Office

Unit 14 , Level 1, 4 ventnor avenue, KINGS PARK, WA, 6005

Phone: +610861177786

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Related pages

Compliance and enforcement actions (part 2 of the NDIS Provider Register)

Make a complaint

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We acknowledge the Traditional Owners of the land where we work and live. We pay our respects to Elders past, present and emerging. We celebrate the stories, culture and traditions of Aboriginal and Torres Strait Islander Elders of all communities who also work and live on this land.

Key Issue Identification Template

Key Issues	SOA	Issue Description	Evidence (ARC #) and/or information to suggest non-compliance	Potential Breach of the NDIS Code of Conduct and/or Practice Standards
Issue 1	Forward Focused Group	Invoices sent for services never provided under participants' current plans, or from expired plans that have remaining funds available. Many invoices have been sent for excessive amounts	D22/136380 - Refer Danica Hall Evidence Package (Financial Abuse – Tiffany Rose) Email from the nominee of participant Tiffany Rose to Forward Focused dated 26 November 2021, requesting review of an invoice requesting payment for 39 hours "when practically no work has been done for Tiffany's plan". The nominee, who is also a Forward Focused participant, also mentions errors on multiple invoices for herself and another participant and advises that she may need to report to the Commission if the incorrect invoices continue to occur. D22/136380 - Refer Danica Hall Evidence Package (Financial Abuse – 1.2 Andrew Hahn) Email from advocate of participant Andrew Hahn dated 27 March 2022 stating that "After reviewing these invoices, we found no evidence that the services indicated on those invoices have been provided to Mr 'Andy' Andrew Hahn, nor that Andy had agreed to provision of those services, nor that those services form part of a category funded on Andy's NDIS plans for 2021/2022 or 2022/2023." D22/136380 - Refer Danica Hall Evidence Package (Financial Abuse – 1.6 Andrew Hahn) Email from advocate of participant Andrew Hahn dated 14 June 2022 which makes a number of allegations, including: - "Despite many communications and requests for evidence that these attached invoiced services that FFG (Forward Focused Group) allegedly provided, no evidence has been supplied to my company (Joshua Davidson Therapy), the client Mr Andrew Hahn, or NDSP (the fund managers)." - "At the time of some of these invoiced services, Mr Hahn was not present at the facility that FFG allege the service was provided."	Code of Conduct Section 6(d) – Failure to act with integrity, honesty and transparency

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			- "Mr Hahn not only did not ask for many of the services being billed for, Mr Hahn never received the invoiced services." - "Mr Hahn does not have funding for SIL accommodation and FFG was well aware of this when they offered him emergency accommodation." - "FFG have since evicted him after FFG failed to secure the NDIS Plan increase." - "FFG have failed to provide any refutation to these issues, that we have presented to them many times, over many FFG staff. They just keep invoicing the same things with escalating threats."	
Issue 2	Vida Reid	Ms Reid acting as the primary person for some participants with authority to approve invoices, usually without the participant knowing and/or understanding that this presents a conflict of interest	D22/136380 - Refer Danica Hall Evidence Package (Conflict of Interest – Maxwell Reid) Email from Ms Reid dated 2 February 2022 stating that "we have consent to act on her (participant's mother) and her son's (participant) behalf as coordinators". D22/136380 - Refer Danica Hall Evidence Package (Financial Abuse – 1.1 Andrew Hahn) Email from Ms Reid to NDSP Plan Managers dated 15 February 2022 stating to not send invoices to Andy as it "really sets his anxiety through the roof" and to "ensure these are all ONLY sent to myself as Andrew's appointed representative". D22/158182 Letter from DFG Legal WA stating: "Ms Vida Reid holds the current appointment as Meghan's legal plan nominee and next of kin, and we enclose the relevant documentation for your review." D22/158182 Document titled 'Meghan consent to act and consent to share' which provides Ms Reid with full consent to act and to give information about participant Meghan Goodwin to any third party or parties Meghan has as they see fit as Meghan's next of kin and as Meghan's plan nominee, so they can take the identified action/s on Meghan's behalf. D22/158182	Code of Conduct Section 6(d) – Failure to act with integrity, honesty and transparency Code of Conduct Section 6(a) – act with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions

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			Document titled 'FM Consent Third Party to Act' which provides ongoing consent for any Forward Focused staff member (contact Vida Reid), including consent to request review of NDIA decision, manage a complaint made by participant Meghan Goodwin D22/136380 - Refer Danica Hall Evidence Package (Financial Abuse – 6.0 Meghan Goodwin) Email from Ms Reid to Assist Plan Managers' invoice department dated 1 December 2021. Ms Reid's email states "Please onboard this client. Please do not call her as she gets overwhelmed. I look after everything for this client." This email indicates that Ms Reid is attempting to restrict communication between Assist Plan Managers and participant Meghan Goodwin and not give the participant an opportunity to question invoices	
Issue 3	Vida Reid / Forward Focused Group	Lack of honesty and integrity demonstrated by Ms Reid and Forward Focused. Bullying, harassment and intimidation tactics displayed by Ms Reid towards participants and FFG staff, which include alleged threats of suing people and bringing in her lawyers, and allegedly unsubstantiated threats of eviction from Forward Focused-managed properties	D22/136380 - Refer Danica Hall Evidence Package (Financial Abuse – 1.3 Andrew Hahn) Termination Notice Letter from DFG Legal WA dated 31 March 2022 requesting that participant Andrew Hahn vacate a FFG-managed property due to "serious misconduct" and "failing to pay the fortnightly lodging fee". D22/136380 - Refer Danica Hall Evidence Package (Financial Abuse – 1.2 Andrew Hahn) Email from advocate of participant Andrew Hahn dated 27 March 2022 requesting that threats of eviction from FFG cease. Email states "I have also reviewed Andy's Lodging Agreement with Forward Focused Group dated 21 January 2022. Rent payments per this agreement are paid up to date and Andy has not breached any terms of the Lodging Agreement. Please immediately discontinue unsubstantiated threats of eviction. Threats of eviction can be distressing to anybody and are particularly unwarranted in a disability housing provision context." D22/147869 – Refer Documents from Janine Hall Part 4 – pp. 45-46 Resignation letter from Support Coordinator to Ms Reid dated 1 July 2022.	Code of Conduct Section 6(d) – Failure to act with integrity, honesty and transparency Code of Conduct Section 6(c) – Provide supports and services in a safe and competent manner, with care and skill

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			The email states "However, I strongly believe that this company is not the right fit for me. There are certain values I prioritise in a workplace which I have struggled to pick up within this space i.e. honesty, integrity, and structure." D22/133673 Email from Recovery Support Worker to the Commission dated 17 July 2022. The Recovery Support Worker (who works for another organisation) previously provided support services to FFG participant Meghan Goodwin and maintains contact with Ms Goodwin. The email raises a number of concerns for the welfare of Ms Goodwin. The email makes the following statements: "Fortunately, Meghan has built trust in herself and within me to feel safe with sharing her experiences and to share the Mental, Emotional & physical difficulties she is constantly struggling with while residing with FFG Group." "The interactions she has had with Vida and the experiences she has had while residing with FFG are alarming, raising my concerns for Meghan's Mental, Physical, Emotional wellbeing." The email raises a number of concerns regarding the safety of accommodation for the participant, lack of support staff, irregular medication, and Ms Reid's breaches of client confidentiality. The attachments to the email also contain a number of allegations regarding the controlling and threatening behavior displayed by Ms Reid towards Ms Goodwin. The email states that Ms Goodwin is fearful of the repercussions from Ms Reid or other FFG staff members if she shares any of this information.	
Issue 4	Forward Focused Group	Forward Focused is providing supports and services that they are not registered to provide, including specialist disability accommodation. Forward Focused Group is only registered to	D22/136380 – Refer Danica Hall Evidence Package (Financial Abuse – 6.2 Meghan Goodwin) Email from Ms Reid to Forward Focused staff dated 5 April 2022 stating "It is 1:1 support STA from FFG account" D22/158182 Letter from DFG Legal WA dated 17 August 2022 stating: "A Meghan Goodwin has been a recipient of our client's services since December 2020, including supported independent living at one of our client's properties in Safety Bay."	Code of Conduct Section 6(d) – Failure to act with integrity, honesty and transparency

		provide the following classes of supports: • Item 8 – Assistance with travel / transport arrangements • Item 20 – Household tasks.		
Issue 5	Forward Focused Group	Forward Focused has been charging participants without the relevant information or documentation e.g. NDIS Plans and Service Agreements.	D22/136380 – Refer Danica Hall Evidence Package (Financial Abuse – 5.0 Max Teague) Email from Danica Hall, Accounts Manager FFG dated 31 March 2022 which refers to the nominee of participant Max Teague not providing authorisation to process an invoice. Danica Hall states in her email to FFG staff that "we've not got a copy of Max's plan and also no Service Agreement, but yet you've been billing them. They are now refusing to pay the attached invoice and we have no contract in order to ask them to pay this. We also have another unpaid invoice (also attached) that's for over $3,000. Again, without a Service Agreement, we're stuck. In future, can we please make it part of standard practice to make it a priority to get a copy of the participants plan ASAP and for a Service Agreement to be done before we start billing a participant for heaps of time."	Code of Conduct Section 6(d) – Failure to act with integrity, honesty and transparency
Issue 6	Forward Focused Group / Vida Reid	Forward Focused is withholding information from the NDIA when lodging complaints and requesting changes to participants' plan arrangements	D22/136380 – Refer Danica Hall Evidence Package (Financial Abuse – 5.1 Max Teague) Email from Support Coordinator, FFG to the NDIA dated 31 March 2022. The email was sent on direction of Ms Reid in response to the concerns raised by Danica Hall, Accounts Manager (see Issue 5). The email requests that the participant Max Teague's future plans change from being plan-managed to NDIA-managed. The email does not disclose to the NDIA that Forward Focused have been billing the participant without a Service Agreement or NDIS Plan. The email states "NDIS Client Max Teague has not been paying invoices from services provided. Attached are the invoices with service and dates from what Forward Focused Group have provided and have had pushed back from the client.	Code of Conduct Section 6(d) – Failure to act with integrity, honesty and transparency

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			We have attempted to contact the mother of the participant multiple times through emails, phone calls and attempted arrangements for meetings which the participants mum has not attended. Please be advised to change to Agency Managed for future services acquired as this could cause potential risk providing to this client."	
Issue 7	Vida Reid	Ms Reid is not providing participant with choice and control on how they want their plans to be managed	D22/136380 – Refer Danica Hall Evidence Package (Financial Abuse – 5.0 Max Teague) Email from Ms Reid dated 31 March 2022 to FFG staff. Ms Reid's email is in response to the concerns raised by Danica Hall, Accounts Manager (see Issue 5). Ms Reid directs staff to send an email to the NDIA to request that participant Max Teague's future plans change from being plan-managed to NDIA-managed. It appears that Ms Reid's decision was made without consultation with the participant or the participant's nominee.	Code of Conduct Section 6(a) – act with respect for individual rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions
Issue 8	Vida Reid	Ms Reid is withholding relevant information from FFG staff, and attempts to restrict staff access to information, when questioned on the accuracy of invoices	D22/147869 – Refer Documents from Janine Hall Part 1 – pp. 42-43, p. 46 Email from Janine Hall, Support Coordinator, FFG to Rejaul Alam, CFO, FFG dated 3 May 2022. Janine Hall's email raised a question regarding an invoice for Support Coordination services for a participant that she did not provide. The email states "My understanding is that there is $3097.71 in Support Coordination to cover this period, however I just received the end of month statement from Assist Plan Managers and I noticed that the balance remaining is only $393.87. I then noticed that a single invoice had been paid to FFG for $2027.84 for Support Coordination. This is not for any work that I have provided for Marish or anyone else from FFG". Ms Reid replied to Janine Hall in an email dated 9 May 2022. Ms Reid's email states "Whilst I appreciate your thoroughness in dealing with clients please remember that I do work on participants as well. I keep my work and my notes private as sometimes they may be about staff or complaints or other work clients have requested that they have advised not to be disclosed to other due to privacy and dignity." "These from my understanding were about Marish Lombard. I am still working on a few [of] her requests and have been for the last 2 years. So in terms of funding	Code of Conduct Section 6(d) – Failure to act with integrity, honesty and transparency

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	or charges again please leave this to accounts and they will manage it accordingly." "I am aware that you have recently gained access to some portals and kindly ask that you do not access these as they go against our policy and procedures."

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Post-legal advice considerations of Evidence, information and considerations.

1. Summary of tip-Offs
   1.1 The NDIA received fifty-seven tip-offs between 3 February 2021 and 16 August 2022, alleging:
      a. Serious allegations including intimidating and provoking participants.
      b. Claiming for services not provided.
      c. Directing staff to create false invoices.
      d. Overcharging for services.
      e. Misuse of funds – claiming for services from incorrect line items and supports not reasonable and necessary.
      f. Forgery – cutting and pasting participant/nominee signature onto service. agreements and forgery of a signature
      g. Bullying and harassment of participants and staff.
      h. Exhausting funds from expired plans.
      i. Participant neglect – required supports were not provided.

2. Company structure
   2.1 In an email dated 31 May 2022 (Att 15) the Founding Executive Director of Forward Focused Group advised that at the end of 2021 the executive team comprised of "Simon, Rejaul and I". It includes information about new staff being brought in and an attached file to show the company future.
   2.2 The email is issued to "ffg.net.au and hybridhive.com.au" email addresses.
   2.3 The attached file (Att 16) shows Parent Company "Forward Focused Group" with linking arrows to four sub groups including: Forward Focused with I [heart] NDIS logo, and The Hive Support Services with "The Hive" logo.
   2.4 Based on this and additional information provided by staff about access to accounts of both Forward Focused and The Hive it is reasonable to conclude that the entities the Commission knows as Forward Focused Group Pty Ltd (Att 17), Hybrid Hive Pty Ltd (Att 18) form part of "Forward Focused Group".
   2.5 The news section of the Forward Focused Group website includes a note about the expansion into employment services under the banner of "Workforce Australia Employment Services" which is included on the company subgroups (Att 16)
   2.6 The Forward Focused Group website links to a Facebook page (Att 33).
   2.7 Service Agreements for participant and provider "Forward Focused Group" (Att 41 and Att 46) includes no ABN, ACN or registration number.
   2.8 Emails of 23 June 2022 shows email from Teams Coordinator @hybridhive email address to both @hybridhive.com.au and @ffg.net.au staff including Rejaul Alam and Vida Reid.

   Given the information presented it is reasonable to conclude that Forward Focused Group (FFG) is a catch all term for the companies which include the known entities referred to as Forward Focused and The Hive.

3. Companies interrelated

The information available both publicly and provided to the Commission demonstrates that Forward Focused Group (FFG) is a name-only entity led by Vida Reid, Simon Reid and Rejaul Alam. The name-only entity has a number of businesses including the NDIS registered Forward Focused Group Pty Ltd also known as "Forward Focused", and the non-registered entity Hybrid Hive also known as The Hive.

4. Commission records
   4.1 The commission operating system (Att 38) shows Forward Focused Group Pty Ltd is registered under id 4-4GHG-1073 with a registration expiry date of 1 December 2021.
   4.2 The company has an extension provided by NDIS Act s73K.
   4.3 Commission records show
      - the business name as “Forward Focused”.
      - The address as “Unit 2 Number 210 Jull Street Armadale (next to Dome café) WA 6112.
      - The postal address as “96 Amethyst Crescent, Mount Richon, WA 6112”
      - Vida Reid as Chief Executive Officer.
      - Simon Reid as Director.

5. ASIC searches – data as at 21 September 2022
   5.1 Internal data searches available to the Commission of data held by ASIC show that:
   5.2 Forward Focused Group Pty Ltd, ACN 643 878 639, registered since 28 August 2020 has one current director, Vida Reid, and one former director, Simon Reid (Att 17).
   5.3 Hybrid Hive Pty Ltd, ACN 651 140 108, registered since 17 June 2021, has one current director and secretary, Simon Reid, one former director and secretary, Vida Reid and one former director, Steven Norman (Att 18).
      5.3.1 Steven Norman was originally the sole director from 17 June 2021 to 1 December 2021. From 1 December 2021 he was replaced by Vida Reid.
   5.4 ASIC search for Hybrid Hive Pty Ltd also indicated a linked company, The Hive Pty. Ltd, ACN651 138 528 (Att 19). Again Steven Norman was sole director from registration 17 June 2021 to 7 November 2021 where he was replaced, on this occasion by Simon Reid.

6. Company locations
   6.1 ASIC records (Att 18 and 19) show Hybrid Hive Pty Ltd and The Hive Pty. Ltd have the principal place of business and registered office for as
      - Unit 2, 210 Jull St, Armadale 6112 WA.

   ASIC records show the officer holder address/es as
      - 96 Amethyst Cres, Mount Richon 6112 WA
   6.2 ASIC records (Att 17) show Forward Focused Group Pty Ltd have the principal place of business, register office and officeholder address as
      - 96 Amethyst Cres, Mount Richon 6112 WA
   6.3 Vida Reid’s email signature for Forward Focused Group shows the address is
      - 2/210 Jull street, Armadale, WA 6112

7. Key Personnel
   7.1 The email signature of Ms Vida Reid on this email and a number of others provided to the Commission includes her role or title as “Founding Executive Director at Forward Focused Group” and is connected to website https://forwardfocusedgroup.com.au
   7.2 The Forward Focused Group website includes information about the Founding Executive Director, Vida Reid and Co-Founding Executive Director, Simon Reid (Att 21).
   7.3 It also includes details of:

- Chief Financial Officer, Rejaul Alam (Att 22).
- People and Culture, Jess Goile (Att 23) also mentioned in the email (Att 15)
- Recovery Coach/Support Coordinators, Alex Bowers and Blake Sadler (Att 24)
- Therapy team, Sally See (Masters in Sexology and specialises in couples-therapy) (Att 25). According to information provided by a former employee (Att 9E) Ms See is no longer employed by the group.

7.4 The news section of the website (Att 20) includes the appointment of the CFO, Rejaul Alam.

8. Criminal History check Simon Reid and Vida Reid

8.1 On 23 August 2022 by email the Commission sought information from the Australian Federal Police. Specifically, the criminal history of Mr Simon Reid (Att. 37)

8.2 The response from Western Australia Police Force, via AFP, included charges beginning in 2003. Of particular note are the four charges from 2022 which relate to possession of prohibited drugs.

8.3 On 23 August 2022 by email the Commission sought information from the Australian Federal Police. Specifically, the criminal history of Ms Vida Reid (Att. 40)

8.4 The response from Western Australia Police Force, via AFP, included charges related to trespass and duty to identify person from 2018 and 2015 respectively.

9. Service offerings – SDA website and Facebook

9.1 The Forward Focused Group website indicates that they are a registered NDIS provider (Att 28). The website also indicates that they can offer SDA (Att 26) at three different locations: Safety Bay, Northbridge and Stirling (Att 27 and 28).

9.2 The Forward Focused Group website links to a Facebook page (Att 33).

9.2.1 Facebook post of 28 September 2022 (Att 33) at 12:43 states FFG has four SDA vacancies and provides contact details for people seeking further information.

9.2.2 Facebook post 18 July 2022 (Att 39) is promoting their ability to offer a wide range of accommodation including SDA.

9.3 The Hive website (Att 29) includes information about home and living support services provided (Att 31).

9.4 The website states the locations as Safety Bay, Northbridge and Cottesloe.

9.5 The Hive website (Att 29) links to a Facebook page (Att 35).

9.5.1 In the Facebook post five days prior to 14 October 2022 (Att 35) the business is promoting their ability to offer a wide range of accommodation including SDA.

9.5.2 In the Facebook post 5 September 2022 (Att 36) the business is promoting their ability to offer a wide range of accommodation including SDA. Accommodation at Safety Bay, Cottesloe and Northbridge

Information from NDIA, tip-offs and copies of emails and invoices provide a consistent view that Forward Focused Group is providing poor quality supports, not in the interest of participants.

10. Ceasing of service and support delivery

10.1 Series of emails 15 June 2022 to 19 June 2022 (Att 42) provided by a former account manager and FFG employee regarding participant Corina Abraham ceasing some services.

10.1.1 The initial email from the participant indicates ceasing supports delivered by the Hive. It also references hearing a phone conversation on speaker between the support worker and Jess (H.R. Dept) (most likely FFG People and Culture, Att 23). It comments that the call was threatening including legal threats and repayment of pay.

10.1.2 The participant also seeks to meet the following day to discuss the concerns.

10.1.3 Although not in the original list of recipients there is a reply to the email from the Founding Executive Director, Vida Reid on 16 June 2022.

10.1.4 The reply states that the support worker has a non-compete and non-disclosure contract which will prevent her for working privately for the participant. It also states that if the participant had “come to us in good faith…I would have said okay.”

10.1.5 The reply talks about the personal impact on Ms Reid of sending the support worker to assist the participant.

10.1.6 It references the 4 week termination clause of the contract or exit fee of $4000.

10.1.7 On 19 June 2022, FFG through Ms Reid purport to cease support coordination and terminate the contract for all services with immediate effect. The email claims “ongoing abusive manner of our staff by yourself and the break in trust” as the grounds.

10.1.8 The email includes a perceived threat that invoices are to be paid immediately or be reported to the NDIS.

10.2 Series of emails 24 June 2022 to 19 June 2022 (Att 43) provided by a former account manager and FFG employee regarding participant Sarah-Jane Clulow advising a four week notice for service termination.

10.2.1 Ms Clulow provides notices and requests that further correspondence be directed to a different person.

10.2.2 In a subsequent internal email to Rejaul Alam, Vida Reid and Simon Reid it is disclosed that Ms Clulow was contacted via phone call about her email.

10.2.3 It also comments that the participant is seeking review of ‘another invoice’ for services not received.

10.3 Series of emails 1 July 2022 (Att 44) provided by a former account manager and FFG employee regarding participant Sarah-Jane Clulow, service agreement and invoices.

10.3.1 On 1 July, Vida Reid responds to an account statement from a supplier stating that, “we will no longer pay any invoices for Sarah. She has terminated her contract with us.”

10.3.2 Ms Clulow replies includes a statement that, “you had assured me that the invoices would be sorted and you would not leave me in a position like this.”

10.3.3 Ms Reid replies including, “we are happy to continue supporting Sarah if our invoices are approved so we can pay the bill and continue the supports.”

10.3.4 Email time stamped 9.14pm is issued to a Tammy Mogg and copies Ms Clulow. The email references “Jan previous Operations Manager” it also references personal information about Ms Clulow’s circumstances including the number of invoices to be paid and that she is “at risk of potentially losing her house”. Whilst also stating, “we do not provide coordination to yourself

to communicate with you" and "we are happy to include you in our emails to Sarah" and "I am obligated under law to address communication to Sarah".

10.4 Series of emails 25 May 2022 to 10 June 2022 (Att 45) provided by a former account manager and FFG employee regarding participant Alexsis Bott.

10.4.1 The email trail is initiated by an FFG employee to a plan manager seeking release of funds.

10.4.2 The participant confirms that they, "won't be withdrawing funds from Marc at Manage Mode. I actually never said I would do this but was advised by Vida I should."

10.4.3 Ms Reid then states conflict of interest and states "we will be terminating your services with us effective immediately".

The above information indicates that where clients seek to take their funds and decisions into their own hands FFG, through Ms Reid, appear to take action to immediately terminate service delivery.

11. Overcharging for services

11.1 Information provided by the NDIA states that, "$1,485,527 has been claimed from participant plans following their conclusion. This accounts for 31% of total successful payments.

11.2 By email (D22/169591) FFG (Vida) provide instruction to supplier on information to be included in quote to increase the draw down against the NDIS.

11.3 Email of 1 July 2022, statements by Founding Executive Director of FFG that support provision is contingent on payment of invoices.

11.3.1 However, as evidenced by invoices below some participants were invoiced for services months after services had been delivered, at significant cost.

11.4 Copy of tax Invoice dated 13 April 2022 the provider has sought to invoice a participant (BAH) for:

- "Counselling by Sally See, counsellor at Forward Focused Group"
- For Quantity "2.00"
- On consecutive days from 14 February 2022 – 18 February 2022, 21 February to 25 February 2022, and 3 March 2022.
- Total cost of $4,655.76

11.5 Also on 13 April 2022 Hybrid hive (a Forward Focused Group entity) invoiced the participant (BAH) for

- "Assistance self-care activities – Standard – Weekday Daytime" six hours per day from 23 September 2021 to 20 October 2021, including public holiday (27/09/2021) and travel at a total cost of $7,475.16
- "Assistance self-care activities – Standard – Weekday Daytime" six hours per day from 21 October 2021 to 17 November 2021 plus travel at a total cost of $7,061.10
- "Assistance self-care activities – Standard – Weekday Daytime" six hours per day from 18 November 2021 to 15 December 2021 plus travel at a total cost of $7,061.10
- "Assistance self-care activities – Standard – Weekday Daytime" six hours per day from 16 December 2021 to 12 January 2022, public holidays (27/12 and 3/1) plus travel at a total cost of $7,889.22

- "Assistance self-care activities – Standard – Weekday Daytime" six hours per day from 13 January 2022 to 9 February 2022, public holiday (26/01/22) plus travel at a total cost of $7,475.16
- "Assistance self-care activities – Standard – Weekday Daytime" six hours per day from 10 March to 4 April 2022 plus travel at a total cost of $6,368.69
- "Assistance self-care activities – Standard – Weekday Daytime" six hours per day from 10 February 2022 to 7 March 2022, public holiday (7/3/22) plus travel at a total cost $7,481.58
- "House cleaning and other household activities" from 3 September 2021 to 31 March 2022 plus travel at a total cost of $3,442.91
- On 7 April 2022 "Access Community, Social and Rec Activities – Standard – Weekday Daytime (04/03/2021 to 13/08/2021) total cost $2,542.55.

11.6 Copy of tax Invoice dated 12 April 2022 the provider has sought to invoice a participant (SJC) for:
- "Counselling by Sally See, counsellor at Forward Focused Group"
- For Quantities of either "3.50" or "4.00"
- On consecutive days from 14 March 2022 – 18 March 2022, 21 March 2022 – 25 March 2022, 28 March 2022 – 31 March 2022.

11.7 Copy of tax invoice dated 13 April 2022 the provider has sought to invoice a participant (SJC) for
- "STA And Assistance (Inc. Respite) - 1:1 – Weekday (Day)"
- Quantity of 1.00 at a cost of $1781.49
- And Saturday at a cost of $2,202.221, Sunday at a cost of $2782.77
- On Days 15 March 2022 to 24 March 2022.
- Total cost $19,236.90

Given that the participant (SJC) spent at least 3.5 hours each day in counselling one or both of these invoices has been incorrectly submitted.

12. Services provided in a skilled manner

Janine Hall, Support Coordinator FFG has alleged that a Ms Sally See was employed by FFG as a counsellor until 5 April 2022 (Att 9).

According to searches conducted on 13 October 2022 (Att 32), Ms See does not hold qualifications with either the Australian Counselling Association (www.theaca.net.au) or with the Australian Health Practitioner Regulation Agency (www.ahpra.gov.au).

As at 14 October 2022 there is no record of a "Sally See" in the worker screening or contact information held by the Commission.

13. Services provided and alignment to invoices raised

13.1 By email dated 3 May 2022 Janine Hall, FFG Support Coordinator to Rejaul Alam (D22/147869). The support coordinator is advising she can see that FFG has invoiced for support coordination for a participant however, neither she (as support coordinator) or any other FFG officer provided that support.

13.1.1 In what appears to be a response to Janine's query a email response from Vida Reid as Founder dated 9 May 2022 provides that Ms Reid claims is undertaking support coordination activities and keeping private notes about these requests and her work.

13.2 By email 13 June 2022 a plan manager (Lea W) questions invoices raised by FFG for participant Kara Negus (Att 9).

13.3 By email 20 June 2022 plan manager (Richard P) questions invoices raised for participant Charlie Harrison (Att 9).

13.4 By email 13 July 2022 (Lenni Duffield) questions invoicing for participant Suzanne Shepard. Email trail includes comment from FFG that invoices will be sent off to debt collectors if a conclusion is not reached.

14. Incident under separate investigation

Ms Janine Hall has also made a written statement via email to the NDIA alleging that on 12 April 2022 a support worker was assigned to undertake an overnight shift at a property containing two participants (this incident is being investigated separately).

Statement
By Danica Hall

Forward Focused Group [FFG] (ABN 98 643 878 639) is owned and operated by married couple, Vida and Simon Reid. This is in partnership with Rejaul Alam, who is also the Chief Financial Officer [CFO]. Vida and Simon also own 'sister company' the Hybrid Hive, or 'The Hive (ABN 96 651 140 108). Vida is named as the Director of FFG while Simon is named as the Director of The Hive, however, in reality, they both contribute to both companies and Vida is the main one running both companies, with Simon being an absent boss most of the time. In addition to this, there is progress happening towards starting a Plan Management company called Exact Financial Solutions (ABN 50 656 716 497) *(refer to folder '1 Exact Financial Solutions')*. This is to be run by Rejaul. So, three different companies; three different people, but all connected and benefitting *(refer to folder '2 Companies')*.

I first started at FFG in December 2021 as an Accounts Officer. I was brought into the role with very limited experience in NDIS and no qualifications or training in accounting, and that's a consistent trend I've noticed; they hire people with little knowledge and understanding of the NDIS and limited relevant qualifications, seemingly and evidently to allow Vida to mould / groom them and train them up with what they want us to know and do. The few staff that have been employed with experience and / or qualifications, don't last very long in their employment once it becomes evident that they are getting too close to the truth of what is happening in these companies. They tend to just miraculously disappear from the workplace. A good example of this was Jan Nuttal who was employed as FFG's Operations Manager. She was there for approximately 9 weeks, before being fired on 29/06/2022.

Although coming in on an extremely low wage, I was just glad to have a job in what at first appeared to be with an exciting, growing, fun company. However, things started to come to light when early on my employment (just a couple of weeks in), three staff were fired / resigned all on the same day (Grant and Melissa Williams and Toby). Since I started my employment with FFG, I have seen 24 staff leave:

- Grant Williams (fired - 16/12/2021).
- Toby (resigned - 16/12/2021).
- Melissa Williams (resigned, but would have been fired - 16/12/2021).
- Emma Imani.
- Rachael Thomas (resigned).
- Shadi Norouzi (resigned).
- Rebecca Bowers (resigned, but was going to be fired - 08/03/2022).
- Hassan Zia (resigned - 16/03/2022, after 2 days).
- Nakita Toia (resigned - 28/03/2022).
- Elanor Smith (resigned - 29/03/2022).
- Sally See (resigned - 05/04/2022).
- Jaimi Lee Smith (fired - 06/04/2022).
- Roshni Kaur (resigned - 26/04/2022).
- Cori (resigned - 26/04/2022, after 3 days).
- Brodie Hall (resigned - 06/05/2022).

- Ally Oleksiuk (resigned).
- Blesson Varghese (resigned - 23/06/2022).
- Jan Nuttal (fired / resigned - 29/06/2022).
- Louise (resigned).
- Tanya Gukwa (resigned - 05/07/2022).
- Nassam (resigned - 05/07/2022, after a week).
- Brooke (fired - 11/07/2022).
- Sarah King (resigned - 15/07/2022).
- Jodie Salmon (resigned - 15/07/2022).

For most of these people, they've disappeared without any explanation, leaving the remaining staff to just work out that they've left or find out from another employee. On few occasions, we have been informed, but with most of those, the person has been spoken about negatively. The high turnover of staff is alone an indication of the kind of company they are running.

The next red flag was the New Year's cruise. Something didn't quite add up, but I put it down to my lack of knowledge of the NDIS, however when I heard that we were charging $7,500 per person, something didn't sound right. I wasn't too involved with this as I was still fairly new and it didn't make sense to me so I left it to the other Accounts Officer, Virginie Fanny-Dulloo, to handle it while I focused on the other parts of our role. I was still aware of what was happening and the conversations happening in the office - Support Coordinators were asked on several occasions to just 'call all of the participants' to see who wanted to go, even though participants had already been asked before (and declined), while also being charged for each call - Participants didn't seem to want to use $7,500 of their plan on a one-night event (understandably) so Vida and Rejaul were scrambling to get numbers and were pressuring staff to, in my opinion, harass participants into coming.

Following a two week break over Christmas, I returned and this was when I started to see things a lot more clearly. With the number of staff coming and going and then seeing and hearing certain conversations and behaviours, I started to see that while most of us were in this job for the participants, the people running these companies were just there to make money for their own financial gain, and weren't there to support the participants. As it was, Vida and Simon were both coming home with a $140,000 salary and Rejaul was on $100,000 per annum - Not bad for a company that was less than a year old. In my time at FFG, I've seen participants get discarded once they can no longer steal their money (e.g. Andrew Hahn, Madeline Robinson, Suzanne Shepherd, Alexsis Bott, Corina Abraham and Sarah-Jane Clulow - All participants who are no longer with FFG / The Hive).

In my time at FFG, I have been disgusted and appalled at the way I've seen Vida treat staff and participants. Her unprofessionalism in the workplace around how she behaves is unlike anything I've seen before. This include: Swearing, laughing hysterically, disclosing unnecessary private information about other staff and participants and making fun of certain situations, which I'll discuss later. I've heard Vida make phone calls to our stakeholders, other companies and even participants where she has been rude, disrespectful and threatening (she often threatens suing people and bringing in her lawyers, of which she has actually done on a few occasions). For Rejaul, he doesn't even seem to have the appropriate accounting qualification based on what I've seen of his work. He

seems to be the mastermind in bringing in all of the stolen, fraudulent money and I've seen him lie straight to mine and my colleagues faces about the reasons for an invoice, even though he and I both knew that the services weren't provided. Rejaul has been rude and disrespectful to our partners and Plan Managers we work with, and is simply incompetent to be managing any part of a business with his lack of management and communication skills and no understanding of how to lead. Simon is just simply absent and seemingly unaware at the extent of what's going on, but he also doesn't seem to mind reaping the financial benefits. He seems to have very little say in what happens and I've seen Vida shut him down on several occasions. Based on my experiences, Simon does seem to have some moral compass though and appears to have the participants best interest in mind. I've been in meetings where he's been more interested in the wellbeing of a participant than in our financial gain.

The workplace has become so toxic, unprofessional and hostile that during the drive to work each day I can feel my anxiety increase the closer I get, wondering what I was going to be walking into and what that day would hold. During the day I feel like I am walking on eggshells, scared of doing anything wrong in fear of being scolded, like I'd seen happen many times before to other staff and have had happened to me for simple misunderstandings. I'd hear Vida's footsteps and hold my breath, not knowing if she was coming to see me and if so, what it was about or what dodgy task she was going to ask me to do. I then go home each evening emotionally drained and exhausted, with no interest or energy to even see my friends. It's taking a toll on my physical health with having to take sick leave due to getting migraines. There are days where it just gets too much and I have had breakdowns at home.

Based on my experience, I have witnessed many situations where FFG / The Hive have broken the Code of Conduct, which I list below.

Financial Abuse

Since starting at FFG as one of the Accounts Office, I noticed early on that questionable invoices were being sent out for services that were never provided. Many of these invoices have been for excessive amounts:

1. Some from participants' current plans, despite services not being provided, and;
2. Others from participants old plans that have remaining funds available.

These are a complete misuse of NDIS funding and financial abuse, especially if it means that participants are then left with no funding to use on services they actually need. False information is being told to the NDIS in order for participants to get new plans so that FFG / The Hive can then take the remaining funding from the previous plan. An example of this is Meghan Goodwin (NDIS number 431576199, D.O.B 14/05/1990) who has had seven NDIS Plans since May last year:

- 19/05/2021 - 19/05/2022.
- 26/05/2021 - 26/05/2022.
- 15/10/2021 - 15/10/2023.
- 01/12/2021 - 01/12/2023.
- 02/12/2021 - 02/12/2023.
- 13/12/2021 - 03/12/2023.

- 04/04/2022 - 03/04/2024 (of which over $45,000 from Core had already been used in just over 3 months).

Meghan Goodwin is also a perfect example for point 1 above, where weekly invoices of up to $6,500 were sent and paid for when the services had not been provided.

For point 2 above, Yvonne Harrison (NDIS number 431664181, D.O.B 27/10/1965) got a new plan which left round $40,000 remaining in her previous plan. Around $30,000 of that was then invoiced by The Hive and sent to the Plan Manager, Reserve Wealth. This was disputed by Yvonne's Plan Manager as the services weren't provided, but also, the invoices were dated back to before Yvonne was even a participant at FFG - The invoices went back to March 2021 even though Yvonne only became a FFG participant on 17/11/ 2021. But also, as these invoices were sent from The Hive, based on when The Hive's ABN was registered, The Hive only existed from August 2021, NOT March 2021. After the Plan Manager disputed the invoices, most of the invoices were voided and only the invoices from November 2021 onwards were paid (even though, again, these supports were not even provided; Yvonne only started using Support Workers from The Hive from March 2022, and only for a few hours a week). Yvonne was then convinced to change Plan Managers (to Assist Plan Managers) and similar invoices to those that had been voided, for similar amounts and with service dates going back to early 2021, were again sent to Assist Plan Managers, in order to deplete Yvonne's old plan.

Other examples and further evidence of financial abuse occurring includes *(refer to folder '3 Financial Abuse' and then the relevant participants name)*:

- *Andrew Hahn* (NDIS number 431173013, D.O.B 15/10/1983) - Andy was a participant living in the Safety Bay house, and was the participant I was most concerned about based on how he was being victimised. Since making it known that he was aware of being falsely charged, he was targeted, mistreated and threatened with eviction - He has since been removed from the property and is no longer a participant of FFG or The Hive. I have evidence of several communications:
    - *Document 1.0* - Emails between Andy and Vida where Andy states "I didn't use any Support Worker" and makes it known that he's aware of this "6 hours a day thing". This was the start of everything.
    - *Document 1.1* - An email from Vida to Andy's Plan Manager, NDSP, stating to not send invoices to Andy as it "really sets his anxiety through the roof" and to "ensure these are all ONLY sent to myself as Andrew's appointed representative". I am aware that Andy had expressed for invoices not to be sent to him, but I'm unaware of any communication from Andy where he'd given Vida permission to approve invoice on his behalf. This is a Conflict of Interest, for Vida to approve invoices that are coming from her own companies.
    - *Document 1.2* - An email from Andy's advocate, Joshua Davidson, regarding rejected invoices and requesting evidence that the services were provided, and requesting that threats of eviction cease due to Andy not breaching his Tenancy Agreement. It is my understanding that Joshua did not get a response to his email. Despite Joshua's requests of clearly stating for staff to not speak directly with Andy without Joshua present, I am aware of Vida approaching Andy's door on Tuesday 05/04/2022. Andy did not open the door in this situation, and said through the door that all communication needs to go through Joshua. It was at this point that Vida informed Andy that

he was now required to vacate the property in a few days, on Friday 08/04/2022, not within the 30 days' notice originally given. I have also been informed by a staff member who was with Vida at that time that Vida had filmed this attempted interaction, without Andy's knowledge.

- *Documents 1.3* - An email from a lawyer with a termination letter for Andy attached, with mention of 'non-payment' and 'serious misconduct'. The only non-payment I'm aware of is for the invoices for supports that didn't happen; Andy had paid his accommodation fees via Centrepay consistently and has no outstanding Board & Lodging payments. I'm also unaware of any serious misconduct. The termination letter from the lawyer is extremely hard to understand for anyone, let alone someone with a disability. It makes false claims of non-payment and certain behaviours where there are no Incident Reports for. It also puts the blame on Andy for his housemate, Meghan Goodwin, requiring emergency services - The REAL reason for Meghan's behaviour on that day was that she was ignored by the staff member in the office as said staff member had brought her 15-month-old daughter (not "6 months old") to work with her. The lawyer appears to have been misinformed and has written this letter with the lies they have been given.
- *Document 1.4* - Text messages to Andy from his Support Coordinator, Alex Bowers, one of which is hard to understand and mentions complaints from Andy's housemate, Meghan Goodwin, which are unsubstantiated.

It even got to the point where Andy was accused of threatening his housemate, Meghan Goodwin, with a sword. There is no evidence of this happening and after overhearing a phone conversation between Vida and Simon, the police's response was that they can request a VRO if it did occur (I'm yet to hear of a VRO being requested, probably due to the lack of evidence or truth). My question would be, if the Safety Bay house is staffed 24/7 (as it is claimed to be, in *document 1.5*), where are the witnesses of this incident. I'd also ask where the Incident Report is of this occurring. It also seems coincidental that this situation occurred after the termination letter was issued that states that immediate eviction can occur when "the participant causes or threatens serious injury to a member of staff or another housemate" or "should there be a restraining order in place affecting and involving other occupants and / or support staff". It's also interesting to note that this claim only came out on Thursday 07/04/2022, despite Meghan having been on Short Term Accommodation [STA] at a hotel from the Tuesday 05/04/2022. On a separate occasion, on Monday 11/04/2022, Vida made staff aware of her sending in a Support Worker, Ousman ("Ozzy"), to the Safety Bay house. She described Ozzy as "of African descent" and a "big man", "so have fun with that Andy" (which was said sarcastically). The next day, on Tuesday 12/04/2022, I overheard a phone call Vida was having with Ozzy where she said she "just needs videos" and "if he starts shouting, just call the police" and "all jokes aside, I need this to happen" (I don't know what 'this' is). Following the incident on 14/04/2022 with Ozzy being naked in the house (described below), I overheard a conversation between Vida, Simon and Rejaul that they "wished Andy saw his [Ozzy's] thing [penis]… That would have scared him" and "we put Ozzy in the house to scare Andy, but it's done that to Meghan instead. Recently, on 20/07/2022, Vida forwarded an email *(document 1.6)* that she had sent to Andy's Plan Manager, NDSP, on 14/07/2022. In this email, Vida

mentions that Andy stayed in our SIL house “rent free”, however, I know that Andy paid his Board & Lodging fortnightly via Centrepay. Vida also states that Andy demanded “support staff tend to him round the clock and even after hours” - Firstly, Andy received no Support Workers during his time at FFG / The Hive (and this can be verified by the Teams Coordinator who rostered the Support Workers at the time). Secondly, this house was advertised as 24/7 support anyway so it shouldn’t matter if Andy did request Support Workers ‘after hours’. Vida also mentioned the alleged incident of Andy pulling out samurai swords on the resident, however she provides no evidence of this incident occurring. In this email, Vida also attached a photo *(document 1.7)* of the aforementioned samurai swords. I’m uncertain if permission was given for FFG staff to enter Andy’s space. In an earlier email from Vida, sent 17/06/2022, Vida states that Andy was removed by police, however to my knowledge, this did not occur.

- *Angelus Regali-Park* (NDIS 431035309, D.O.B 30/03/2002) - I have an email *(document 2.0)* that gives evidence of a Plan Manager from Manage Mode speaking on behalf of this participant's nominee (mother), Gina, regarding an invoice *(document 2.1)* for services not provided. Gina has since pulled Angelus (and his brother, Indiana Regali-Park) out of FFG due to invoices like this.
- *Bassam Haidar* (NDIS number 431524488, D.O.B 24/12/1956) - As of 14/04/2022, Bassam had $4,752.80 remaining in Capacity Building - Improved Daily Living Skills and $54,729.57 remaining in Core - Assistance with Daily Life *(document 3.0)* - I made sure I got a screenshot of this as Bassam had just gotten a new plan and myself and a colleague had overheard plans to invoice the remaining amount from his expired plan after Vida had seen how much was remaining. Based on this, the following invoices were sent:
    - *Document 3.1* - 1 invoice from FFG for $4,655.76 for counselling (invoice sent 13/04/2022) - These services were not provided. If they were, they would have been invoiced weekly from when these services first occurred in February. Also, no one gets 2 hours of counselling done every day. It is also not coincidental that this invoice was sent on 13/04/2022 or that the invoiced amount is close to the amount that was remaining.
    - *Document 3.2* - 8 invoices from The Hive totalling $54,254.92 for house cleaning and Support Work (invoices sent 13/04/2022 - Ignore the last invoice sent 07/04/2022) - Again, these services were not provided. If they were, they would have been invoiced weekly from when these services first occurred in September 2021 - Why would they wait until April 2022 to invoice services from September 2021? If these services also occurred, there would be names of the cleaner/s and Support Worker/s that worked those shifts. It is also not coincidental that these invoices were all sent on 13/04/2022 or that the total invoiced amount is close to the amount that was remaining.
    - *Document 3.3* - An email from Vida. This was regarding Bassam’s refusal to pay some invoices for services not provided (unrelated to the above invoices). In the email, Vida says that “no action is to be made without me overlooking everything and no further comments to be made to Bassam as I am handling the matter”.

- *Janine Craig* (NDIS number 431081450, D.O.B 19/11/1957) - Janine Craig is not and has never been a participant of The Hive up until recently, but yet she has been invoiced for services not provided since August 2021 *(document 4.0)*. Each invoice is the same and for $2,924.80 each. All invoices combined total $40,947.20. None of the invoices list each date on a separate line (the hours are just lumped) and there are no names of the Support Worker/s who worked those shifts.
- *Max Teague* (NDIS 431754820, D.O.B 25/02/2009) - I have an email thread *(document 5.0)* where a Plan Manager from Provider Choice has informed us of Max's nominee (mother), Rhiannon, refusing payment for an invoice and of me then asking the Support Coordinator, Blake Sadler, for information we should have had before charging this participant (e.g. A copy of the NDIS Plan and a signed FFG Service Agreement). You'll then see a response from Vida asking that we email a complaint to feedback@ndis.gov.au and request that Max's next plan not be plan-managed. In a following email *(document 5.1)*, the Support Coordinator, Blake, does this, requesting Max's future plans be NDIA-managed. This is a breach of our role and completely takes away Max's choice and control for how he may want future plans managed. Max should not be punished for something that was our fault, for not properly onboarding him, getting the correct documentation and then not providing adequate services leading to the non-payment of invoices. So it should not be a consequence to this participant that future NDIS Plans cannot be plan-managed. I should also add that this participant is no longer with FFG, which happened prior to these emails.
- *Meghan Goodwin* (NDIS 431576199, D.O.B 14/05/1990) - Meghan is another participant living in the Safety Bay house (she is now the only resident living there). I have evidence of several communications:
    - *Document 6.0* - An email from Vida to Assist Plan Managers to onboard Meghan. Vida instructed Assist to not call Meghan "as she gets overwhelmed" and that she (Vida) is looking after everything for this client. This is Vida's way of getting invoices paid without giving the participant the opportunity to question invoices. Again, this is a Conflict of Interest.
    - *Document 6.1* - An email from Vida saying that Meghan "just put her head through a wall" and having an ambulance called (neither of which happened) - This email was sent while I was sitting in a meeting with Vida. Vida had informed us that she was doing this in order to get Meghan's plan 'refreshed' in order to get more funding; this is after Meghan's funds had been exhausted by their fraudulent invoicing mind you.
    - *Documents 6.2* - An email from Vida asking Accounts to charge Meghan for STA while she's in a hotel for 6 nights while ALSO charging 2:1 support from The Hive, even though a) The price for STA includes Support Work, b) Meghan does NOT get (or need) 2:1 support, and c) Meghan should not be charged for something she isn't using while she's on respite. Vida's justification in the email is that Meghan still used and kept her supports in the SIL house whilst she went for respite - This is an absolute lie and simply does not make sense how someone can use supports while they were not even present. I'd also question how many of these ambulances were called and I'd also like to clarify that where Vida said that Meghan was going to hospital the day prior (Monday 11/04/2022), it was to collect her medication

that she takes for her mental health. This is not out of the ordinary. I'll also add that this email confirms that Meghan was on STA from 05/04/2022, days before Andy allegedly threatened her with a sword.

- Seyed Yunus Hashimi (NDIS number 431174406, D.O.B 21/08/2001) - This participant went overseas from 21/03/2022 and stayed for several months. During this time, Yunus was still being charged for supports he was apparently receiving over in Iran - This was also apparently approved by the NDIA. I'm unsure of the truth to this for several reasons. Firstly, I don't see how money from the Australian Government could be used overseas. Secondly, I didn't see any evidence of such support being provided over there (i.e. I didn't see any bills of FFG or The Hive paying Support Workers over in Iran). Interestingly, Yunus was being charged from FFG AND The Hive for these supports. Recently, on 20/07/2022, I overheard Vida telling the Support Coordinator, Sharyn Curr, and Service Manager, Janine Hall, that Yunus' plan was actually locked during this time he was away and no funds were used at that time, which is incorrect.
- *Tiffany Rose* (NDIS 431024430, D.O.B 30/06/2016) - I have an email *(document 7.0)* from Tiffany's nominee (foster mother), Tegan Bonham (who is also a FFG participant), requesting our review of a paid invoice for services not provided. Tegan also mentions sending emails regarding invoices from her own plan (NDIS 431035097, D.O.B 26/11/1985) and her son, Ethan Bonham's (NDIS 431081130, D.O.B 11/03/2013). In this email, Tegan states, "if these incorrect invoices continue to occur I will have no choice but to report the situation to the NDIS Quality and Safeguards Commission". I'm unsure if she has done so.

Being new to the industry, it took me some time to learn about NDIS and the funding structure, however some of this was moulded by the other Accounts Officer, Virginie, who was training me, who has no issue with sending false invoices. Once I started to see what was actually happening, and that we were being made to:

- Send invoices for services not provided,
- Send invoices from old plans to deplete the funding (again, for services not provided),
- Change invoices to be from different / new plans that were originally from old plans but couldn't be paid due to depleted funding,

I did start to begin questioning some of the invoices and mentioned the lack of evidence for some - I did this 'innocently' and played dumb when I asked these questions to not give away that I was becoming aware. In mid-March, this led to the responsibility of invoicing for certain participants being taken out of my hands and was then overseen by Rejaul. My access to the Plan Managers portals was also removed, so that only Rejaul had access to this information to see the funding levels for plan-managed participants. At this point, I had already been promoted to Accounts Manager (on 28/03/2022, however, I never got a job description for this role or a pay rise), so for the Accounts Manager to have certain tasks removed from my portfolio and not have access to certain information is a little bit suspicious.

Earlier on in the year when I started to see what was happening, I had a short conversation with my colleague, Virginie, and I said how uncomfortable I was invoicing for services that weren't being provided. Virginie just laughed and said, "I started out like that too, but you just learn to get over it and just do it". I didn't continue this conversation any further and have since never talked to Virginie about what I know.

There have also been cases where Vida, who is also an NDIS participant (NDIS number 430970696, D.O.B 06/01/1987), has charged Support Work from her plan to pay for personal expenses, such as work done on her house; work that does not fall into Home Modifications that come under the NDIS *(documents 8.0 - 8.3)*. Vida was also using her NDIS Plan to pay the wages of two staff members (her Personal Assistant, who was also doing Support Coordination work and has recently been promoted to Business Development Manager, and a Software Engineer to build FFG's new CRM, app, website and intranet). I have seen bills and receipts come through for personal expenses (such as meals, online clothing from Aliexpress and holiday expenses), that are being paid for by the business.

Vida's son, Alexander Reid, is also a NDIS participant (NDIS number 430972240, D.O.B 15/01/2015) and Alex's plan is also being used to pay for Support Workers for his sister (Vida's daughter), who is NOT a NDIS participant.

False Information

In mid-March, FFG was awarded the employment services contract. On their Facebook post announcing this, there were a few non-factual bits of information *(refer to folder '4 Social Media')*:

- "As one of the leading providers of employment programs, our dedication FFG Employment Services team have already assisted over 47 job seekers into employment and back into work during the past year" - Firstly, I was unaware of FFG offering any employment programs at that time and can confirm that at that point in time, I was not aware of any participants accessing this program and gaining employment. I'm not sure how this has been occurring either when this program wasn't even due to start until the 1st July 2022. There were definitely no staff members employed with the role of assisting participants to seek employment (and I would know considering I was doing payroll at that time - Another job that was taken off me earlier this year).
- "We would like to thank our 56 committed team members..." - I can confirm that FFG (including The Hive) did not have 56 staff members at that time (and still don't). At that time, what we did have was 12 full timers, 2 part timers and the rest were Casual Support Workers (which still didn't equal 56).

Consents

FFG have posted photos of participants without their permission. One photo has since been deleted after the participant complained about it *(refer to folder '5 Consents')*. This post also mentioned a 'Cook, Eat, Repeat' program being run by "Nakita our wonderful chef". Firstly, Nakita was just a Support Worker / cook and had no formal chef qualifications. Secondly, this program doesn't exist and Nakita did not run said program. Thirdly, cooking with this participant was a rare occasion and Nakita was not "engaging with them to build their capacity to cook for themselves". This participant does not yet cook for herself.

FFG have also used 'quotes' from participants on their website that participants have never even said and definitely didn't get permission to use. Vida's response to this is "because we're not putting their full name, it's okay to use these without permission".

Conflict of Interest

There are many Conflicts of Interest going on within these companies. Firstly, there is limited transparency about FFG and The Hive being owned by the same people. In fact, I have seen emails from Vida who has asked people to contact The Hive directly as 'although we work closely together, we are two separate companies / I do not run that company' (even though she does). There is no disclosure in either company's Service Agreement that divulges this conflict.

Another conflict of interest is the family members that are supported by FFG / The Hive, including Vida's son (as previously mentioned) and Simon's father's partner, Linda (Mini) Bill, who also has bills paid for that aren't covered until the NDIS (e.g. Haircuts, medication), which get invoiced as Support Work in order to get reimbursed. We also have / have had participants parent's work for The Hive:

- Mark Edmonds mother, Kelly Edmonds.
- Seyed Yunus Hashimi's father.

As previously mentioned, Vida is also the primary person for some participants and has the authority to approve invoices, sometimes (usually) without the participant knowing and / or understanding how this is a conflict of interest. An example of this is participant Maxwell Reid *(refer to folder '6 Conflict of Interest')*. There is an email from Vida which states "participant mother has requested that I overlook all invoices and payment please for approval" when in fact, in an earlier email, the mother had simply said "I want to take my son's plan to another plan manage provider. I don't want them contacting me at all and I want my coordinator to talk to them on our behalf" and nothing to do with Vida approving invoices on their behalf.

Falsifying Documents and Signatures

On Friday 08/04/2022, I discovered a number of saved signatures in our Hellosign account *(refer to folder '7 Falsifying Documents and Signature')*. In *Documents 7.0 - 7.2*, there are signatures. I can't tell who they all belong to but I could clearly see some saved for a Barry Davis and Myra Davis (NDIS 431248908, D.O.B 09/05/1957) - Myra is a current participant, and Barry is her nominee (husband). By having signatures saved in Hellosign meant that those signatures could be imported into documents at any time. I have previously heard of situations within the company of signatures being used like this so this is just further evidence of my suspicions. This also linked up with an email I received *(document 7.3)* the day prior on Thursday 07/05/2022 from a Local Area Coordinator [LAC] from APM who mentioned the suspicion of a participants' nominee's signature being cut and pasted into a new Service Agreement (Kylie White, mother of Tyler White - NDIS 431027426, D.O.B 03/07/2011).

I also caught one of our Support Coordinators, Blake Sadler, doing this *(document 7.4)*. Blake had originally sent through a Service Agreement, however I picked up that he had used the wrong plan dates and there was no line item included. Blake's response was "I've tried editing it so hopefully it is correct". So instead of doing up a new Service Agreement for the participant to sign, he amended the original Service Agreement and sent it back to me *(document 7.5)*. Not only should signed Service Agreement's not be able to be amended, Blake did this without any thought or concern of the fact that he just amended a legal, signed document.

Invoices have also been sent with staff members names on them even though services weren't provided. This includes counselling invoices for Meghan Goodwin, where:

- Sally See's name was used AFTER she had left the company on the 05/04/2022. These services were also never provided.
- Cori's name was then used even though she was only employed with us for three days, and again, these services were never provided.
- More recently, Hazel Carbungco's name has been used, despite her not being employed as a allied health practitioner, not being APHRA registered and again, these services not being provided *(documents 7.6 - 7.13)*.

I also saw draft invoices in Xero for counselling for participant Maria Staltari, again with Hazel's name used. I again reiterate that Hazel is employed as a Support Coordinator, is not APRHA registered and these services were definitely not provided, especially considering this participant lives in Bunbury (2.5 hours south of Perth). Fortunately, these invoices were never sent and were deleted from drafts in Xero. I suspect the reason these weren't sent is due to Maria's husband, Dean, recently querying other fraudulentinvoices and Rejaul being informed of this and told that Dean overlooks EVERY invoice that is sent to the Plan Manager.

Other

Other situations *(refer to folder '8 Other')* worth noting include:

- Alexsis Bott - I have an email thread *(document 8.0)* where Alexsis' Support Coordinator, Tanya Gukwa, has emailed the Plan Manager, Manage Mode, on 'Alexsis' behalf' about changing Plan Managers; the story prior to this email is that Tanya had been informed by Rejaul that Alexsis had been spoken to and that Alexsis had made this request (I overhead this conversation). Alexsis' reply to this email makes it clear that while Vida had spoken to Alexsis about this, and she was "advised by Vida I should", Alexsis never said she would do this and that she will not be moving from Manage Mode. The next email from Vida (who doesn't even appear to have been included in these emails) is that FFG are terminating Alexsis's services with us effective immediately due to choosing to stay with Manage Mode and not changing Plan Managers. Vida mentions a Conflict of Interest with Manage Mode, of which Vida never says what this Conflict of Interest is, and I am unaware of any Conflict of Interest with this Plan Manager. Vida also lies about Alexsis being FFG's last client remaining with Manage Mode. Vida ends the email with "we respect your choice and control and wish you well", however this email has not at all given Alexsis any choice and control and has in fact taken that away by terminating services due to her decision and right to not change Plan Managers.
- Corina Abraham - I have an email thread *(document 8.1)* where Corina ceases services with The Hive and explains a phone conversation she had overheard between her Support Worker, Janice, and Jessica Goile, where Jess apparently threatened Janice with legal action, calling the police and to pay back $5,000+. Corina makes it clear that she is only ceasing services with The Hive, and not her Support Coordinator through FFG, and also asks to meet with staff the next day to discuss this. Corina instead gets a reply from Vida (who doesn't even appear to have been included in this email) explaining how she took her own family's Support Worker away to give to Corina and that she is a person with a disability and also has

a child with “6 different disabilities” - This is guilt tripping and manipulative. Vida also talks about the misuse of “tax payer money and government funds” and that it “needs to be reported as it is fraudulent activity” - This is threatening. Vida then states that she “would have hoped that someone like yourself would have educated Janice to go about things the right way”, however it is not Corina’s responsibility as a participant, to train or educate a Support Worker being provided by a company - A Support Worker is there to assist and support the participant, not the other way round. Vida requests 4 weeks’ notice OR an exit fee of $4,000. Corina’s response is that she knows her rights too and challenges Vida to take her to court for fraud as she hasn’t committed any offence and has proof. She ends the email calling Vida “very disrespectful”. Two days later, Vida responds and informs Corina that we will no longer be providing services and threatens to report this to the NDIS if Corina does not pay any outstanding invoices immediately. Vida also says “there appears to be no moral compass in your approach to a respectful business relationship” and “what you have done is wrong”. While Corina’s behaviour may have been challenging and arguably disrespectful, this can often be expected when working with participants who are dealing with disabilities. Either way, as the provider, we must always act with respect and professionalism towards our participants and this has not occurred in this case. Following Vida withdrawing our services from Corina, I then saw an invoice *(document 8.2)* sent to the Plan Manager for $6,004.56 with Jan Nuttal’s name put next to up to 60 hours of Support Coordination. I was later informed that this was for the cancellation fee, however this is not clear on the invoice and it is false information putting Jan’s name to those hours. I challenged Rejaul on whether we can even request payment of this invoice considering we were the ones to cancel our services, however the only thing that has come of this is the invoice has been reduced to $650.90 (4-weeks’ worth of Support Coordination according to her plan) and Jan’s name has been removed. Accounts are still chasing payment of this invoice. I have not been involved with this and have been openly against requesting payment.

- Sarah-Jane Clulow - I have an email thread *(document 8.3)* where Sarah-Jane ceases services with FFG and gives her ‘required’ 4-weeks’ notice and requests for all further communication to be sent to her Next of Kin, Tammy. Jan Nuttal then forwards this email to the relevant staff, informing us that she has already contacted Sarah who has confirmed she is adamant in her decision and that she is also querying an invoice for over $1,000 for Support Coordination she apparently never received. Following this email, there was pressure from Vida and Rejaul for staff to call Sarah and ‘convince her’ not to cease services. I’m unaware of whether these calls did occur, but I do know that Sarah’s Support Coordinator, Alex Bowers, was asked to do this (ignoring that Sarah had requested for all communication to go through Tammy). In another email thread *(document 8.4)*, Vida has disregarded Sarah’s request for communication to go through Tammy, and Vida has directly emailed Sarah. Sarah replies and reminds Vida of this. Vida’s reply from here is to Tammy and it also states that Jan has advised Vida that Sarah has requested immediate termination, however Jan has since informed me that this is not true and never happened. Tammy replies to Vida and clears up the confusion around this, confirming that Sarah gave 4-weeks’ notice and to continue communication to Tammy only, not Sarah. Vida then replies to Tammy AND Sarah saying that Sarah’s

request for communication to go through Tammy cannot be done. Vida also makes mention of Sarah placing herself at risk of potentially losing her house - This is bullying and harassment.

The Company - Systems and Processes / Policies & Procedures / Work Environment / Bullying / Harassment

Other issues, more on a company level, include:

- The structure is confusing around who's in charge, and this causes inconsistencies, confusion and changes. Vida is too controlling and doesn't have trust in her staff so gets involved in all aspects of the company, meaning people are undermined and micromanaged.
- There are very limited systems and processes in place, impacting on efficiency and consistency of work and a lack of clarity around what and how something should be done. I have had to implement and put into place my own guides and manuals for Accounts.
- There is far too much expectation on us with very little guidance; based on our role titles and pay levels, we are being asked to do things that are outside of our roles (e.g. For myself and Accounts, applying for grants we aren't even eligible for and assisting with the audit process. We also have unrealistic deadlines that are then replaced with other deadlines with no understanding of which deadline now needs to be completed first).
- Despite having three staff in Human Resources, some of the staff being hired are inefficient, unqualified and simply unable to do the job.
    - Some staff aren't clear on their roles and there is minimal to no training provided.
    - Some staff don't even have Job Descriptions for their roles (e.g. Janine Hall as the Service Manager and me as the Accounts Manager).
    - They are not following the Award (particularly around the payment of kilometres) and there are pay inconsistencies (e.g. As the Accounts Manager, I was on $5,000 less than one of the new Accounts Officers that started. We've also recently just had another Accounts Officer start who is only on $55,000).
    - There are different rules for different people and different expectations; some staff are 'protected species' and rules don't apply to them.
- Communication is poor. There's been many times where I haven't had replies or responses to an email or query and had to follow it up (usually more than once). I've also seen emails and queries from other stakeholders not get a response.
    - Depending on who you ask and sometimes when you ask, responses and decisions change or are simply inconsistent; we may be told one thing one day and then a different thing the next day. This is also due to the structure and there being 'too many cooks in the kitchen'.

While these have more of an impact on the staff, there are some concerns around safety when there are no systems and processes or Policies & Procedures and unqualified staff are being employed and used.

I haven't directly questioned all of these issues within the workplace as I have seen what has happened previously when someone has done this and it has involved their termination of employment and / or their name being slandered in the office. In one situation when a colleague was fired, Vida involved the police, and I have heard of a previous employee who had to move houses due to the threatening abuse they were getting from Vida. Hence the decision to not address these internally. I have also very little belief that addressing these issues internally would bring about any change due to the aforementioned reasons.

I have seen workplace bullying, harassment and grooming. This company is unprofessional, with very limited structure, there are no proper Policies & Procedures in place, no known incident reporting or complaints policy and inconsistent Human Resources practices. Not just that, as previously mentioned, very few of the staff have any formal qualifications and have very limited knowledge on disability and mental health. Prior to this job, I worked in Mental Health (and homelessness) for 8+ years and FFG and The Hive's knowledge and understanding of Mental Health as a disability is very limited. Support Workers are not hired with any certification in community services, disability or mental health, which is dangerous for the staff and the participant.

Based on what I know and have witnessed, Vida, Simon and Rejaul are not fit to be working in the NDIS sector, or any sector that involves working with vulnerable people, and need to be held accountable for the impact they have had on staff and participants. The money they have stolen is excessive (estimated at over $1,000,000.00) and they should be made to pay it all back. There are some employees who also need to be held accountable for the part they've played in allowing this to happen without speaking up. That includes:

- Alex Bowers.
- Ousman Kamara.
- Blake Sadler.
- Virginie Fanny-Dulloo.
- Honey Nguyen.
- Jessica Goile.
- Leigh McClennan.

Many of the people mentioned earlier left for varied reasons. Most due to the bullying and workplace culture. Others because they became aware of the fraudulent and abusive activity and couldn't remain being a part of that. However, the above mentioned employees are still working at FFG / The Hive and know what is happening and to my knowledge, are doing nothing to stop it and are just as liable.

DFG LEGAL

Ph: 08 9367 3331
admin@dfglegal.com.au

Postal Address
PO Box 8091
Angelo Street
SOUTH PERTH WA 6151

Your Ref:
Our Ref: RR:211021

31 March 2022

Mr Andrew Hahn
25/19 Malibu Road
SAFETY BAY WA 6169

Without Prejudice Save as to Costs

By email only: alpha.hyde@gmail.com

Dear Mr Hahn

Re: Residence at 25/19 Malibu Road, Safety Bay

We refer to the above referenced property and confirm we act on behalf of Forward Focused Group Pty Ltd on instructions from Ms Vida Reid.

On 21 January 2022 you entered into a lodging agreement with our client, to occupy premises located at 25/19 Malibu Road, Safety Bay.

The lodging agreement is part of the services that, as a NDIS provider, our client provides to eligible participants.

The fortnightly lodging fee is totalled at $332.08.

The terms of the agreement provide that you are required to pay a fortnightly accommodation fee of $262.08 and a utility fee of $70.00. Therefore, the total fee payable each fortnight is $332.08.

Under clause 17.3 of the agreement, our client maintains the right to terminate the agreement in a number of circumstances, including, but not limited to –

(a) The condition of the participant changes to the extent that the participant no longer needs the providers services, or their needs can be met more appropriately by other services or care.

(b) The participants needs can not me met at the premises.

(c) The participant cannot be cared or within the services due to unmanageable occupational safety and health risk, which puts Forward Focused Group staff and / or Service providers at high/extreme risk of injury or harm to health. This may include non-compliance with safety equipment and or safe work practices.

(d) The participant breached policies and procedures and accommodation rules.

(e) …

Further, clause 17.4 provides that our client may terminate the agreement immediately and without notice in cases of "serious breaches" which include.

(f) The participant fails to pay any accommodation fees within fourteen (14) days of due date for any reason within the participants control.

(g) The participant causes or threatens serious injury to a member of staff or another housemate.

(h) The participant causes or threatens damage to the premises or any other property at the premises.

(i) Should there be a restraining order in place affecting and involving other occupants and / or support staff.

We are instructed that on entering in the agreement with our client and taking up residence at the property you informed Ms Vida Reid that you were not going to pay the fees, as you preferred to spend the funds received through the NDIS on "other things".

On being informed by Ms Reid that your funding was, firstly, subject to being utilised for your care and living expenses, and secondly, that you had agreed to be bound by the terms of the agreement, you commenced acting in an antisocial manner engaging in such conduct as follows –

1. verbally abusing people who attend the premises;

2. verbally abusing your fellow lodgers;

3. punching tables and other items within the premises; and

4. falsely informing vulnerable residents that our client is acting contrary to their interests for your own means.

On 30 March 2022, your actions resulted in emergency services being called to the premises, and a distressed resident requiring immediate assistance.

A number of people were adversely affected as a result of your conduct, including our client's employee, who was in attendance with her 6-month-old child, and your fellow boarders.

Unfortunately, your actions amount to serious misconduct, and you have breached the terms of the agreement, and continue to breach the terms of the agreement, by failing to pay the fortnightly lodging fee.

We put you on notice that your conduct is not confined to the lodging agreement, and in law, also amounts to potential criminal conduct and breach of contract.

While our client is keen to support and assist participants, the situation has simply become untenable, and our client is left with no alternative other than to terminate your agreement.

While our client is entitled to effect immediate termination, Ms Reid is agreeable to providing you with a reasonable amount of time to find a new residence and to vacate the property.

Therefore, you are to vacate the property within thirty (30) days from the date of this correspondence, being, 30 April 2022.

We put you on notice that if you fail to vacate the property, our client will commence to take the appropriate actions against you without further notice.

You have the right to seek independent legal advice regarding this correspondence and the termination of your agreement with our client.

Moving forward, please direct all further queries to our office.

Yours sincerely



Rachel Robson
DFG Legal WA
Associate

DFG LEGAL

Ph: 08 9367 3331
admin@dfglegal.com.au

Postal Address
PO Box 8091
Angelo Street
SOUTH PERTH WA 6151

Your Ref:
Our Ref: RR:211021

17 August 2022

Ms Candice Jonker
Petherick Cottrell
PO Box 1891
MANDURAH WA 6210

By email only: candice@petherickcottrell.com.au

Dear Ms Jonker

Re: Forward Focused Group; Incident 12 August 2022 and 17 August 2022

We confirm we have been retained by Forward Focused Group, on instructions from Ms Vida Reid., and have to hand your correspondence dated 16 August 2022.

A Meghan Goodwin has been a recipient of our client's services since December 2020, including supported independent living at one of our client's properties in Safety Bay.

Ms Vida Reid holds the current appointment as Meghan's legal plan nominee and next of kin, and we **enclose** the relevant documentation for your review.

We are instructed that on Friday 12 August 2022, Meghan was covertly removed from the property by an ex-employee of our client, who was posing as a support worker. As correctly stated in your correspondence, Meghan is a vulnerable person, and our client, being responsible at the time for Meghan, was understandably concerned for her welfare, and contacted the police.

Shortly after Meghan was covertly removed from her accommodation, our client lost all access to Meghan's plan management portal and received an email from Meghan's personal email account, which stated that she was ceasing all services from our client and their associated company, The Hive.

Our client then received correspondence from a Ms Sukhi Tear, of Diversitas WA, who informed our client that she was Meghan's current support coordinator.

Prior to Meghan's removal from her accommodation, our client had not been informed by your client, or the relevant agencies, as to any changes with respect to her care services or provider. As we

are sure you will appreciate, there is a process to be followed, and said process does not justify the covert removal of a vulnerable person from safe accommodation at night.

Whether or not Meghan has freely elected to cease receiving services with our client is irrelevant. Correct procedure was not followed, and at the time Meghan was taken from her supported independent living coordination, she was under the care and support of our client. Consequently, it is our client that, at the time of Meghan's covert removal, held a duty of care for Meghan, and was therefore responsible for her safety and wellbeing.

Our client wholly rejects that they have harassed or pressured Meghan to return to them. We are instructed that Meghan has directly contacted Ms Vida Reid several times since her removal and has informed her that she is scared and that she does not know where she is or what is happening.

Our client takes no issue with participants electing to move to another service provider. What they take issue with is the proper channels of communication being bypassed.

Participants are not "clients". They are vulnerable people in need, receiving a service, and due care and process must be taken with respect to them, and the supports they receive. In particular, Meghan, having a highly psychosocial support need, should not have been removed in the manner she was.

Further, as the appropriate channels of communication have been disregarded by your client and other involved parties, there is no way of knowing whether Meghan has left of her own accord, and whether she herself sent the email requesting our client cease their services.

No relevant documentation or authorities have been provided to confirm the change in Meghan's services and provider. Given the absence of such, our client naturally holds grave concerns for Meghan's wellbeing.

Communication regarding any changes with respect to Meghan's care services or provider should have been provided to our client, with proper procedure followed, prior to Meghan being removed from our client's care.

Unfortunately, this is now the third time your client has removed participants from our client without any communication. It is disappointing that your client continually disregards correct procedure and we put your client on notice that we have informed the NDIS of same.

We are further instructed that earlier today, one of our client's support workers, Madeline Dawson, was approached and physically assaulted by the director of your client, Amanda Damon.

At the time of the assault, Ms Dawson was in attendance with Mr Shapira, an elderly participant, who has recently undergone heart surgery and is recovering from a stroke.

We are instructed that Ms Dawson has reported the incident to the police and provided a statement, and that Mr Shapiera has lodged a formal complaint with the NDIS.

Given the recent events, we are instructed to request that your client, and any associated parties, cease and desist approaching or otherwise communicating with our client's employees, officers, or participants.

Moving forward, any communication with respect to participants and a potential change in their service provider must be done through the appropriate channels, with all involved parties duly informed.

Yours sincerely



Rachel Robson
DFG Legal WA
Associate

Hayden Trantham NDIS 431194185

- Being charged the minimum 6 hours per day for Support workers as per SIL contract
- The amount of Support work provided by FFG/The Hive is irregular and rarely meets the required hours
- Hayden has complained a few times about not having Support workers attending regularly
- Support workers are provided adhoc and are not required to have mental health experience even though Hayden has a psychosocial diagnosis
- Hayden was hospitalised a couple of months ago due to a suicide attempt.
- Even when Hayden was discharged, the Support Workers provided by the Hive were irregular.
- Hayden once again complained about not having supports
- Hayden sent several text messages to his Psychosocial recovery coach, that indicated suicidal intent. She arranged for him to be hospitalised, where he has been for the last month, being reassessed and receiving treatment.
- Hayden is being financially abused, by regularly being charged for supports he is not receiving. He is being physically, emotionally and mentally abused by not receiving the qualified supports he requires to the point that he felt so unsupported he became suicidal.

another - participant's father employed as S.W. - no experience or qualifications in mental health.

Meghan Goodwin NDIS 431576199 and Andrew Hahn NDIS

Meghan and Andrew were both residents of a property in Safety Bay, provided by Forward Focused Group/The Hive. While they wouldn't have been considered friends, they had a respectful relationship as housemates, conversing at times, but also having their private space. They were both being charged for 8 hours of Support Work per day, but only received a cook for approx. 9 hours per week and a cleaner for the same. Andrew began to ask questions about the amount he was being charged, while not receiving the corresponding supports. Andrew has an advocate who assisted him to question the validity of the charges being invoiced, and when no answers were forthcoming from the company, Andrew refused to pay any further invoices related to supports. Vida Reid (Director) became abusive toward Andrew. She arranged for letters from her lawyers to threaten him with eviction, which she did eventually do. Andrew owned a couple of Japanese Samurai swords which he used for decoration, but Vida told Meghan that Andrew was dangerous and had threatened to use the swords to harm her. Meghan didn't know what to believe so sometimes she wouldn't go home because she was afraid and would sleep on the trains or spend the night at the gym. At one point Vida arranged STA for Meghan at a local motel, for approximately a week, but only allowed her to sleep there, and made no provision for food. Obviously this was charged from her plan, but she didn't receive the food or support work that should have been included as part of STA.

On Tuesday 12th April, Vida Reid arranged for one of the male Support Workers employed by The Hive, to do a night shift as "security" in the house, under the guise of providing "protection" for Meghan from Andrew. The Support Worker is quite a large, imposing man and Vida joked that this would "set Andy off". During the night of Wednesday 13th April, Meghan was in the kitchen and the Support Worker came out of his bedroom naked, which naturally freaked Meghan out. The next morning, Meghan reported this to her Support Coordinator when he arrived at work, and she was still agitated and distressed. The Support Coordinator rang and told Vida Reid, who could be heard laughing as the incident was relayed to her. She then went into the office and described the incident to her husband Simon Reid, and the Chief Financial Officer, Rejaul Alam, and once again the response was one of hilarity. Vida made the comment "we put him in there to scare Andy and its

instead done that to Meghan". Vida came out and shared the "hilarious" story with the rest of the staff in the office – some staff laughed, others were quiet, and I suggested that Meghan might actually choose to report it to the police. Clearly this is totally inappropriate behaviour by the Support Worker, but apart from pulling him out of the house, there was no other action taken by FFG or The Hive around this incident. In fact, the support worker is still working for the company in the role of support worker as well as other office roles. It also highlights the lengths that they are prepared to go to in setting Meghan and Andrew against each other and causing them to be suspicious of each other's behaviour and intentions. The whole situation is detrimental to the mental health of both of them, particularly Meghan, who is scared to go home at night and finds the option of staying out for the whole night a safer option.

Even though Andrew had no other accommodation, Vida gave him an eviction notice and changed the locks on the house so he couldn't get back in.

Neither Meghan or Andrew had SIL approved in their NDIS plan, so their plans were constantly having to be renewed due to being overcharged for supports. Vida has regularly submitted a Change of Circumstance when Meghan's funds run low and makes up different reasons for requiring extra funds. For example, she once rang NDIA and said Meghan required emergency funding because she was such a complex case. She said that Meghan was so unstable that she had had a meltdown and put her head through a wall. This had not actually happened, but was similar to an incident that had happened a few years earlier while Meghan was in different accommodation and was using drugs. Meghan has had 6 or 7 plans within less than a 12 month period and her current plan has had over $40,000 used within a 2 month period. Meghan is now aware of this and is questioning Vida's motives. Vida is constantly reminding her that she would have nothing of it wasn't for Vida. For example, she told Meghan that she had personally purchased her a set of Apple Noise Cancelling headphones, however the Support Coordinator arranged for the purchase and they were paid for from Meghan's Plan. There is a letter of support from her psychologist and the invoices, etc to prove it. Vida attempts to control Meghan via her personal finances – she has called an ambulance so many times when it has not been necessary and Meghan now has a debt of thousands of dollars with St John's Ambulance that she is paying off out of her pension, to the point that she barely has any remaining funds. Vida pays for her phone, but uses it as a form of control. Meghan feels "indebted" to Vida and is trapped by this.

There are multiple other examples of financial, emotional, mental and physical abuse to participants. Some of them are aware and have removed Forward Focused Group and The Hive as their provider. Many others, though, have an intellectual disability and are unaware that they are being defrauded out of their NDIS funds, however, the fact that they don't know, does not make it any more acceptable. They are still being financially abused.

From: Janine Hall
Sent: Saturday, 16 July 2022 9:47 PM
To: Janine
Subject: Fwd: Case number IA0000031700RE

Sent from my iPhone

Begin forwarded message:

> **From:** Janine <janinehall09@gmail.com>
> **Date:** 18 April 2022 at 3:58:04 pm AWST
> **To:** fraudreporting@ndis.gov.au
> **Subject: FW: Case number IA0000031700RE**
>
> To whom it may concern,
>
> I have previously lodged information for the case number above and would like to add further information regarding invoices from Forward Focused Group (FFG) and Hybrid Hive (The Hive) that are being raised for services that were not provided.
>
> On Tuesday the 12th April, I overheard the Director of FFG, Vida Reid, on the phone commenting that a participant had received a new plan (Bassam Haidar, NDIS 431524488, DOB 24/12/1956). Within minutes, Vida approached the two new Accounts Officers (one for FFG and the other for The Hive) and directed them to open the Provider Choice portal to see the remaining balance of funds from the old plan. Based on the amount remaining they were instructed to raise invoices for a two-week period for counselling (FFG) and also cleaning and Support Work (The Hive) - None of these services even occurred. These were completed and sent, and I attach them for your perusal. You will see that most of The Hive invoices for Support Work were all raised on 13/04/2022. These amount to $53,354.56. All of the invoices total $61,453.23. Coincidentally, there is $74,967.12 remaining in the old plan.
>
> Hayden Trantham (NDIS 431194185, DOB 03/11/1986) moved into a SIL property in early April. He has only been provided with occasional Support Workers since moving in but has still been invoiced for the 6 hours a day he was promised (see attached). Also, with regard to the names listed on the invoice - Honey is his Support Coordinator, not a Support Worker, and David is not even a member of The Hive staff. David had provided Hayden with support on one day but that had already been accurately invoiced previously and David has not provided support work since then as David is employed by another provider and lives in the southwest (where Hayden previously resided before moving to Rockingham).
>
> The new Accounts Officer for FFG was also directed to raise invoices for Sarah-Jane Clulow (NDIS 430838840, DOB 16/05/1987) for counselling and STA. I have attached

these for you. You will see that for invoice INV-0983, counselling is invoiced for 3.5 to 4 hours each day, but also, that these dates overlap with those from INV-0986 when Sarah-Jane was apparently on 'respite'. It should also be known that the counsellor they have referred to, Sally See, WAS a counsellor at FFG, however she has recently resigned (her last day being 05/04/2022). While Sally was still an employee for the dates invoiced, I don't know how she would feel about her name being used for a fraudulent invoice. Vida Reid had also directed the Accounts Manager, Danica Hall (who has also been emailing you about all this), to also do an invoice for Support Work for Sarah-Jane for up to $60,000.00, after Vida noticed that the remaining balance in Sarah-Jane's old plan was $81,533.06 for Core and $14,160.45 for Capacity Building. Danica questioned this and stated that she believed those dates had already been invoiced for Support Work and also mentioned that she couldn't do it that day as she was working on something else. Vida said to "look into it" and to just do it the next day. Danica has not, and will not, do this invoice and has since looked at previous invoicing to find that FFG had already invoiced for the dates requested and those invoices had been paid (however, this Support Work was never provided by FFG). It's possible that Vida may direct one of the other finance team members to invoice for this amount of $60,000 for Sarah-Jane Clulow once she realises that Danica hasn't done it. Upon further investigation, I have attached the following invoices:

1. INV-0895 - Support Work for 14/03/2022 to 20/03/2022 for 6 hours each day.
2. INV-0924 - Support Work for 21/03/2022 to 27/03/2022 for 6 hours each day.
3. INV-0942 - Support Work for 28/03/2022 to 03/04/2022 for 6 hours each day.

These dates overlap with the invoices that were raised for STA and counselling. We suspect that she has also been charged Support Work from the Hive also, however the Accounts Manager that was sourcing this information has now been removed access from the Hive's Xero.

For another participant, Daniel Clark (NDIS 430901549, DOB 02/06/1992), it came up in conversation with Vida that I was doing his SIL application. Knowing that I was requesting 1:1 supports, Vida suggested that I could do it as a 2:1. I said that he didn't need 2:1, he only requires 1:1 and Vida's response was "have you met him?" I responded saying that I had but that I believe he only required 1:1 and this was reflected in my Roster of Care (ROC) and the SIL request. She objected but I stated that the behavioural assessment I had arranged, also confirmed the need for 1:1 and that's how I would be presenting the application. This is a common trend - Support Coordinators are being directed by Vida to process SIL requests at a higher ratio of need in order to be able to charge for higher supports, while never actually providing them. These Support Coordinators are either unaware as they are inexperienced, or aware, but not brave enough to speak up due to potential ramifications. What has happened in the past appears that anyone who questions the legitimacy of procedures have been sacked or have resigned under bizarre circumstances, and their reputations smeared within the company by Vida. I don't think any of them have actually made an official complaint about suspected fraud prior to this current one by myself and my colleagues.

I would also like to add to the information previously provided regarding the physical and emotional abuse towards the residents of the Safety Bay house, Meghan Goodwin and Andrew Hahn. On Tuesday 12th April, Vida Reid arranged for one of the male

Support Workers employed by The Hive, to do a night shift as "security" in the house, under the guise of providing "protection" for Meghan from Andrew. The Support Worker is quite a large, imposing man and Vida joked that this would "set Andy off". During the night of Wednesday 13th April, Meghan was in the kitchen and the Support Worker came out of his bedroom naked, which naturally freaked Meghan out. The next morning, Meghan reported this to her Support Coordinator when he arrived at work, and she was still agitated and distressed. The Support Coordinator rang and told Vida Reid, who could be heard laughing as the incident was relayed to her. She then went into the office and described the incident to her husband Simon Reid, and the Chief Financial Officer, Rejaul Alam, and once again the response was one of hilarity. Vida made the comment "we put him in there to scare Andy and its instead done that to Meghan". Vida came out and shared the "hilarious" story with the rest of the staff in the office – some staff laughed, others were quiet, and I suggested that Meghan might actually choose to report it to the police. Clearly this is totally inappropriate behaviour by the Support Worker, but apart from pulling him out of the house, I don't believe any other action was taken by FFG or The Hive around this incident. It also highlights the lengths that they are prepared to go to in setting Meghan and Andrew against each other and causing them to be suspicious of each other's behaviour and intentions. The whole situation is detrimental to the mental health of both of them, particularly Meghan, who is scared to go home at night and finds the option of staying out for the whole night a safer option.
I once again stress the need for remaining anonymous in providing this information. Whilst this is quite a toxic workplace, I am choosing to remain here for the time being as I am trying to protect my participants as much as I can, as well as being able to provide this kind of information without arousing suspicion. My main safety concerns are around Meghan and Andrew in the Safety Bay house, particularly Meghan who has no external or informal supports. Myself and my colleagues are trying to continue to provide her with a staff member and a Support Worker who she trusts and are aware of this situation.
Regards,
Janine Hall

Sent from Mail for Windows

From: Janine
Sent: Wednesday, 30 March 2022 11:00 PM
To: fraudreporting@ndis.gov.au
Subject: Case number IA0000031700RE

TO WHOM IT MAY CONCERN

I am writing to add comment to the above Case Number relating to suspected fraudulent activity by The Hybrid Hive (The Hive) and parent company, Forward Focused Group. My comment adds weight to those of my colleagues who work across various sections of these companies, who have already emailed you with their suspicions.

I would ask that my name remain anonymous as I am still employed by Forward Focused Group and I am concerned about the potential ramifications if my employers are aware I have sent this email. I have chosen to remain at Forward Focused Group as I am concerned about my participants and the impact that this fraudulent activity may have on them if I leave.

I have worked at Forward Focused since 1st December 2021 and it wasn't until February 2022 that I was alerted to fraudulent activity. One of my participants, Yvonne Harrison, NDIS 431664181, DOB 27/10/65, was nearing the end of her plan, with approx. $40,000 remaining in her plan. Yvonne's Plan Manager queried a number of invoices from The Hive for support workers that were sent at around the same time, for large and uncharacteristic amounts. She forwarded copies of these to me, and she was confused because some of them were for thousands of dollars and they were dated from early 2021, even though Yvonne had not signed on with Forward Focused until October 2021. I was suspicious that the invoices were raised in order to use up the funds that were remaining in Yvonne's plan. I approached the head of finance and queried the invoices and he told me there must be an error and leave it to him. I overheard a phone call where Vida Reid (Director) was explaining the "mistake" to Yvonne and was reassuring her that she needn't worry about dealing with the Plan Manager as it made her too anxious. The invoices in question were then voided and not charged to Yvonne. Yvonne was encouraged to change Plan Managers and the balance of her plan was transferred accordingly. Shortly afterwards her new plan was approved, and the invoices were raised again and amounts totaling over $30,000 for support workers were charged to Yvonne's old plan, again with service dates prior to when she started with Forward Focused.

The Hive had never provided support workers for Yvonne until 15/03/22 and have never provided a cleaner. Since 15/03/22, Yvonne has received 6 hours of support per week and yet The Hive are invoicing regularly for 44 hours of support per month plus 8 hours of cleaning.

Early in March 2022 I took a phone call from Johnathon Shapiera, NDIS 431201599, DOB 02/09/1956. He was querying why his plan funds seemed to be depleted so quickly. He mentioned that he had used STA for respite recently so he was aware that cost had come out of his funding but thought he should have more than what was showing on his portal. As his Support Coordinator was on leave, I told him I would look into it for him. I approached a member of the finance team and discovered that three different amounts for STA had been invoiced in recent months. Once again, I referred this to the head of finance and he said he would deal with it and get back to Johnathon. I'm not sure of the outcome of this.

I recently assisted a new Support Coordinator to complete a separate Roster of Care for two participants. In each case she had been instructed by the Director to complete these showing 2:1 supports being required 24/7 when I know that one participant is currently only receiving 1:1 support for a few hours a day and the other one currently has no supports. I believe that the intention is to place these participants in SIL housing with funding in place for high level supports and then provide no or very few supports as is already happening with Andrew Hahn and Meghan Goodwin. (This situation has already been highlighted to you by my colleagues.)

I am happy to provide you with any further information, if required. I again request that you keep my identity anonymous.

Regards,
Janine Hall

TAX INVOICE

Hayden Trantham
Attention: Hayden Trantham
Hilary Caravan Park
BUNBURY WA 6230
AUSTRALIA

Invoice Date
13 Apr 2022

Invoice Number
INV-0985

Reference
NDIS 431194185

ABN
98 643 878 639

Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

Item	Description	Quantity	Unit Price	GST	Amount AUD
01_011_0107_1_1	Assistance with Self-Care Activities - Standard - Weekday Daytime 06/04/2022 -Honey	6.00	57.23	GST Free	343.38
01_011_0107_1_1	Assistance with Self-Care Activities - Standard - Weekday Daytime 07/04/2022-Honey	6.00	57.23	GST Free	343.38
01_011_0107_1_1	Assistance with Self-Care Activities - Standard - Weekday Daytime 08/04/2022-Honey	6.00	57.23	GST Free	343.38
01_013_0107_1_1	Assistance with Self-Care Activities - Standard - Saturday 09/04/2022 - David	6.00	80.28	GST Free	481.68
01_014_0107_1_1	Assistance with Self-Care Activities - Standard - Sunday 10/04/2022 - David	6.00	103.34	GST Free	620.04
01_011_0107_1_1	Assistance with Self-Care Activities - Standard - Weekday Daytime 11/04/2022-Honey	6.00	57.23	GST Free	343.38
01_011_0107_1_1	Assistance with Self-Care Activities - Standard - Weekday Daytime 12/04/2022-Honey	6.00	57.23	GST Free	343.38
				Subtotal	2,818.62
				TOTAL AUD	2,818.62

Due Date: 19 Apr 2022
Forward Focused Group
Please Pay to
Account Name: Forward Focused Group PTY LTD.
BSB:016253
Account No:152003884

PAYMENT ADVICE

Customer	Hayden Trantham
Invoice Number	INV-0985
Amount Due	2,818.62
Due Date	19 Apr 2022
Amount Enclosed	

Enter the amount you are paying above

To: Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

Bassam Abou Haidar

T9.14

NDIS Number

431524488

Address

6108, WA

NDSP Payment Terms

Our staff are highly committed to continue delivering services to ensure your invoices are paid however, we will be seeing a delay in processing of approximately 1 extra day as we manage and support the wellbeing of our staff due to the recent impact of Omicron.

This will mean our regular payment period may extend to 4 – 6 business days until our staff are able to return to full capacity.

Plan Funding By Category

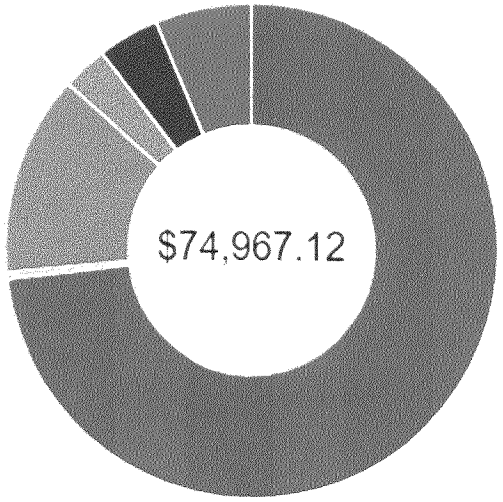
Chart Type

Remaining Funding

Plan

23rd Sep 2021 - 4th Apr 2022 (Expired) (Region: WA)

(1) Assistance with daily life	$54,729.57
(3) Consumables	$357.37
(4) Assistance with social and community participation	$9,846.59
(5) Assistive technology	$2,251.74
(14) Improved life choices	$3,029.05
(15) Improved daily living skills	$4,752.80



TAX INVOICE

Bassam Haidar
72 Lester Dr
THORNLIE WA 6108
AUSTRALIA

Invoice Date
7 Apr 2022

Invoice Number
INV-0469

Reference
NDIS 431524488

ABN
96 651 140 108

Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact:
accounts@hybridhive.com
.au

Item	Description	Quantity	Unit Price	GST	Amount AUD
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime (04/03/2021 to 13/08/2021	41.00	57.10	GST Free	2,341.10
04_799_01 25_6_1	Provider Travel - Non-Labour Costs (04/03/2021 to 13/08/2021)	237.00	0.85	GST Free	201.45
				Subtotal	2,542.55
				TOTAL AUD	2,542.55

Due Date: 14 Apr 2022
Please pay to :

Account Name: The Hive
BSB:016253
Account No: 154173449

PAYMENT ADVICE

Customer	Bassam Haidar
Invoice Number	INV-0469
Amount Due	2,542.55
Due Date	14 Apr 2022
Amount Enclosed	

Enter the amount you are paying above

To: Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact: accounts@hybridhive.com.au

TAX INVOICE

Bassam Haidar
72 Lester Dr
THORNLIE WA 6108
AUSTRALIA

Invoice Date
13 Apr 2022

Invoice Number
INV-0488

Reference
NDIS 431524488

ABN
96 651 140 108

Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact:
accounts@hybridhive.com
.au

Item	Description	Quantity	Unit Price	GST	Amount AUD
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 23/09/2021 to 29/09/2021 (6 hours/day) - (4 days week - excluded Public holiday 27 Sept)	24.00	57.10	GST Free	1,370.40
01_012_0107_1_1	Assistance with Self Care Activities - Public Holiday 27/09/2021 - (6 Hours/Day)	6.00	126.11	GST Free	756.66
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 30/09/2021 to 06/10/2021 - (6 Hours/Day)	30.00	57.10	GST Free	1,713.00
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 07/10/2021 to 13/10/2021 - (6 Hours/Day)	30.00	57.10	GST Free	1,713.00
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 14/10/2021 to 20/10/2021 - (6 Hours/Day)	30.00	57.10	GST Free	1,713.00
04_799_0125_6_1	Provider Travel - Non-Labour Costs - 23/09/2021 to 20/10/2021	246.00	0.85	GST Free	209.10
	This invoice covers 4 weeks from 23/09/2021 to 20/10/2021)				
				Subtotal	7,475.16
				TOTAL AUD	7,475.16

Due Date: 19 Apr 2022
Please pay to :

Account Name: The Hive
BSB:016253
Account No: 154173449

PAYMENT ADVICE

Customer	Bassam Haidar
Invoice Number	INV-0488
Amount Due	7,475.16
Due Date	19 Apr 2022
Amount Enclosed	

Enter the amount you are paying above

To:
Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact: accounts@hybridhive.com.au

TAX INVOICE

Bassam Haidar
72c Lester Dr
THORNLIE WA 6108
AUSTRALIA

Invoice Date
13 Apr 2022

Invoice Number
INV-0987

Reference
NDIS 431524488

ABN
98 643 878 639

Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

Item	Description	Quantity	Unit Price	GST	Amount AUD
15_056_01 28_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 14/02/2022 Counselling by Sally See, counsellor at Forward Focused Group	2.00	193.99	GST Free	387.98
15_056_01 28_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 15/02/2022 Counselling by Sally See, counsellor at Forward Focused Group	2.00	193.99	GST Free	387.98
15_056_01 28_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 16/02/2022 Counselling by Sally See, counsellor at Forward Focused Group	2.00	193.99	GST Free	387.98
15_056_01 28_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 17/02/2022 Counselling by Sally See, counsellor at Forward Focused Group	2.00	193.99	GST Free	387.98
15_056_01 28_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 18/02/2022 Counselling by Sally See, counsellor at Forward Focused Group	2.00	193.99	GST Free	387.98
15_056_01 28_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 21/02/2022 Counselling by Sally See, counsellor at Forward Focused Group	2.00	193.99	GST Free	387.98
15_056_01 28_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 22/02/2022 Counselling by Sally See, counsellor at Forward Focused Group	2.00	193.99	GST Free	387.98

Item	Description	Quantity	Unit Price	GST	Amount AUD
15_056_0128_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 23/02/2022 Counselling by Sally See, counsellor at Forward Focused Group	2.00	193.99	GST Free	387.98
15_056_0128_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 24/02/2022 Counselling by Sally See, counsellor at Forward Focused Group	2.00	193.99	GST Free	387.98
15_056_0128_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 25/02/2022 Counselling by Sally See, counsellor at Forward Focused Group	2.00	193.99	GST Free	387.98
15_056_0128_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 28/02/2022 Counselling by Sally See, counsellor at Forward Focused Group	2.00	193.99	GST Free	387.98
15_056_0128_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 3/03/2022 Counselling by Sally See, counsellor at Forward Focused Group	2.00	193.99	GST Free	387.98
				Subtotal	4,655.76
				TOTAL AUD	4,655.76

Due Date: 19 Apr 2022
Forward Focused Group
Please Pay to
Account Name: Forward Focused Group PTY LTD.
BSB:016253
Account No:152003884

PAYMENT ADVICE

Customer	Bassam Haidar
Invoice Number	INV-0987
Amount Due	4,655.76
Due Date	19 Apr 2022
Amount Enclosed	

Enter the amount you are paying above

To: Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

TAX INVOICE

Bassam Haidar
72 Lester Dr
THORNLIE WA 6108
AUSTRALIA

Invoice Date
13 Apr 2022

Invoice Number
INV-0495

Reference
NDIS 431524488

ABN
96 651 140 108

Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact:
accounts@hybridhive.com
.au

Item	Description	Quantity	Unit Price	GST	Amount AUD
01_020_0120_1_1	House Cleaning And Other Household Activities Performing essential house cleaning activities that the participant is not able to undertake - Period from 03/09/2021 to 30/09/2021	6.00	50.20	GST Free	301.20
01_020_0120_1_1	House Cleaning And Other Household Activities Performing essential house cleaning activities that the participant is not able to undertake - Period from 01/10/2021 to 31/10/2021	8.00	50.20	GST Free	401.60
01_020_0120_1_1	House Cleaning And Other Household Activities Performing essential house cleaning activities that the participant is not able to undertake - Period from 01/11/2021 to 30/11/2021	8.00	50.20	GST Free	401.60
01_020_0120_1_1	House Cleaning And Other Household Activities Performing essential house cleaning activities that the participant is not able to undertake - Period from 01/12/2021 to 31/12/2021	8.00	50.20	GST Free	401.60
01_020_0120_1_1	House Cleaning And Other Household Activities Performing essential house cleaning activities that the participant is not able to undertake - Period from 01/01/2022 to 31/01/2022	8.00	50.20	GST Free	401.60
01_020_0120_1_1	House Cleaning And Other Household Activities Performing essential house cleaning activities that the participant is not able to undertake - Period from 01/02/2022 to 28/02/2022	12.00	50.20	GST Free	602.40

Item	Description	Quantity	Unit Price	GST	Amount AUD
01_020_0120_1_1	House Cleaning And Other Household Activities Performing essential house cleaning activities that the participant is not able to undertake - Period from 01/03/2022 to 31/03/2022	12.00	50.33	GST Free	603.96
04_799_0125_6_1	Provider Travel - Non-Labour Costs - Period from 03/09/2021 to 31/03/2021 Cleaning service provided from 03/09/2021 to 31/03/2022	387.00	0.85	GST Free	328.95
				Subtotal	3,442.91
				TOTAL AUD	3,442.91

Due Date: 19 Apr 2022
Please pay to :

Account Name: The Hive
BSB:016253
Account No: 154173449

PAYMENT ADVICE

Customer	Bassam Haidar
Invoice Number	INV-0495
Amount Due	3,442.91
Due Date	19 Apr 2022
Amount Enclosed	

Enter the amount you are paying above

To: Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact: accounts@hybridhive.com.au

TAX INVOICE

Bassam Haidar
72 Lester Dr
THORNLIE WA 6108
AUSTRALIA

Invoice Date
13 Apr 2022

Invoice Number
INV-0494

Reference
NDIS 431524488

ABN
96 651 140 108

Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact:
accounts@hybridhive.com
.au

Item	Description	Quantity	Unit Price	GST	Amount AUD
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 10/03/2022 to 16/03/2022 -(6 Hours/Day)	30.00	57.23	GST Free	1,716.90
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 17/03/2022 to 23/03/2022 - (6 Hours/Day)	30.00	57.23	GST Free	1,716.90
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 24/03/2022 to 30/03/2022 - (6 Hours/day)	30.00	57.23	GST Free	1,716.90
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 31/03/2022 to 04/04/2022	18.00	57.23	GST Free	1,030.14
04_799_0125_6_1	Provider Travel - Non-Labour Costs - 10/03/2022 to 04/04/2022	221.00	0.85	GST Free	187.85
				Subtotal	6,368.69
				TOTAL AUD	6,368.69

Due Date: 19 Apr 2022
Please pay to :

Account Name: The Hive
BSB:016253
Account No: 154173449

PAYMENT ADVICE

Customer	Bassam Haidar
Invoice Number	INV-0494
Amount Due	6,368.69
Due Date	19 Apr 2022
Amount Enclosed	

Enter the amount you are paying above

To:
Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact: accounts@hybridhive.com.au

THE

TAX INVOICE

Bassam Haidar
72 Lester Dr
THORNLIE WA 6108
AUSTRALIA

Invoice Date
13 Apr 2022

Invoice Number
INV-0493

Reference
NDIS 431524488

ABN
96 651 140 108

Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact:
accounts@hybridhive.com
.au

Item	Description	Quantity	Unit Price	GST	Amount AUD
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 10/02/2022 to 16/02/2022 (6 Hours/Day)	30.00	57.10	GST Free	1,713.00
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 17/02/2022 to 23/02/2022 - (6 Hours/Day)	30.00	57.10	GST Free	1,713.00
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 24/02/2022 to 28/02/2022 - (6 Hours/Day)	18.00	57.10	GST Free	1,027.80
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime -01/03/2022 to 02/03/2022 - (6 Hours/day)	12.00	57.23	GST Free	686.76
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 03/03/2022 to 09/03/2022 (6 hours/day) - (4 days week - excluded Public holiday 07 March)	24.00	57.23	GST Free	1,373.52
01_012_0107_1_1	Assistance with Self Care Activities - Public Holiday - 07/03/2022 - (6 Hours/Day)	6.00	126.40	GST Free	758.40
04_799_0125_6_1	Provider Travel - Non-Labour Costs - 10/02/2022 to 09/03/2022	246.00	0.85	GST Free	209.10
	This invoice covers 4 weeks from 10/02/2022 to 09/03/2022				
				Subtotal	7,481.58
				TOTAL AUD	7,481.58

Due Date: 19 Apr 2022
Please pay to :

Account Name: The Hive
BSB:016253
Account No: 154173449

PAYMENT ADVICE

Customer	Bassam Haidar
Invoice Number	INV-0493
Amount Due	7,481.58
Due Date	19 Apr 2022
Amount Enclosed	

Enter the amount you are paying above

To:
Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact: accounts@hybridhive.com.au

TAX INVOICE

Bassam Haidar
72 Lester Dr
THORNLIE WA 6108
AUSTRALIA

Invoice Date
13 Apr 2022

Invoice Number
INV-0492

Reference
NDIS 431524488

ABN
96 651 140 108

Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact:
accounts@hybridhive.com
.au

Item	Description	Quantity	Unit Price	GST	Amount AUD
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 13/01/2022 to 19/01/2022 (6 Hours/Day)	30.00	57.10	GST Free	1,713.00
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 20/01/2022 to 25/01/2022 (6 Hours/Day)	24.00	57.10	GST Free	1,370.40
01_012_0107_1_1	Assistance with Self Care Activities - Public Holiday - 26/01/2022 - (6 Hours/Day)	6.00	126.11	GST Free	756.66
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 27/01/2022 to 02/02/2022- (6 Hours/Day)	30.00	57.10	GST Free	1,713.00
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 03/02/2022 to 09/02/2022 - (6 Hours/Day)	30.00	57.10	GST Free	1,713.00
04_799_0125_6_1	Provider Travel - Non-Labour Costs - 13/01/2022 to 09/02/2022	246.00	0.85	GST Free	209.10
	This invoice covers 4 weeks from 13/01/2022 to 09/02/2022				
				Subtotal	7,475.16
				TOTAL AUD	7,475.16

Due Date: 19 Apr 2022
Please pay to :

Account Name: The Hive
BSB:016253
Account No: 154173449

PAYMENT ADVICE

Customer	Bassam Haidar
Invoice Number	INV-0492
Amount Due	7,475.16
Due Date	19 Apr 2022
Amount Enclosed	_____

Enter the amount you are paying above

To:
Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact: accounts@hybridhive.com.au

TAX INVOICE

Bassam Haidar
72 Lester Dr
THORNLIE WA 6108
AUSTRALIA

Invoice Date
13 Apr 2022

Invoice Number
INV-0491

Reference
NDIS 431524488

ABN
96 651 140 108

Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact:
accounts@hybridhive.com
.au

Item	Description	Quantity	Unit Price	GST	Amount AUD
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 16/12/2021 to 22/12/2021 - (6 hours/Day)	30.00	57.10	GST Free	1,713.00
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 23/12/2021 to 29/12/2021 (6 hours/day) - (4 days week - excluded Public holiday 27 Dec)	24.00	57.10	GST Free	1,370.40
01_012_0107_1_1	Assistance with Self Care Activities - Public Holiday - 27/12/2021 - (6 Hours/Day)	6.00	126.11	GST Free	756.66
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 30/12/2021 to 05/01/2022 - (6 hours/day) - (4 days week - excluded Public holiday 03 Jan)	24.00	57.10	GST Free	1,370.40
01_012_0107_1_1	Assistance with Self Care Activities - Public Holiday - 03/01/2022 - (6 Hours/Day)	6.00	126.11	GST Free	756.66
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 06/01/2022 to 12/01/2022 - (6 Hours/Day)	30.00	57.10	GST Free	1,713.00
04_799_0125_6_1	Provider Travel - Non-Labour Costs - 16/12/2021 to 12/01/2022	246.00	0.85	GST Free	209.10
	This invoice covers 4 weeks from 16/12/2021 to 12/01/2022				
				Subtotal	7,889.22
				TOTAL AUD	7,889.22

Due Date: 19 Apr 2022
Please pay to :

Account Name: The Hive
BSB:016253
Account No: 154173449

PAYMENT ADVICE

Customer	Bassam Haidar
Invoice Number	INV-0491
Amount Due	7,889.22
Due Date	19 Apr 2022
Amount Enclosed	

Enter the amount you are paying above

To:
Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact: accounts@hybridhive.com.au

TAX INVOICE

Bassam Haidar
72 Lester Dr
THORNLIE WA 6108
AUSTRALIA

Invoice Date
13 Apr 2022

Invoice Number
INV-0490

Reference
NDIS 431524488

ABN
96 651 140 108

Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact:
accounts@hybridhive.com
.au

Item	Description	Quantity	Unit Price	GST	Amount AUD
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 18/11/2021 to 24/11/2021 - (6 Hours/Day)	30.00	57.10	GST Free	1,713.00
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime- 25/11/2021 to 01/12/2021 - (6 Hours/Day)	30.00	57.10	GST Free	1,713.00
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 02/12/2021 to 08/12/2021 - (6 Hours/Day)	30.00	57.10	GST Free	1,713.00
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 09/12/2021 to 15/12/2021 - (6 Hours/Day)	30.00	57.10	GST Free	1,713.00
04_799_0125_6_1	Provider Travel - Non-Labour Costs - 18/11/2021 to 15/12/2021	246.00	0.85	GST Free	209.10
	This invoice covers 4 weeks from 18/11/2021 to 15/12/2021				
				Subtotal	7,061.10
				TOTAL AUD	7,061.10

Due Date: 19 Apr 2022
Please pay to :

Account Name: The Hive
BSB:016253
Account No: 154173449

PAYMENT ADVICE

Customer	Bassam Haidar
Invoice Number	INV-0490
Amount Due	7,061.10
Due Date	19 Apr 2022
Amount Enclosed	

Enter the amount you are paying above

To:
Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact: accounts@hybridhive.com.au

TAX INVOICE

Bassam Haidar
72 Lester Dr
THORNLIE WA 6108
AUSTRALIA

Invoice Date
13 Apr 2022

Invoice Number
INV-0489

Reference
NDIS 431524488

ABN
96 651 140 108

Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact:
accounts@hybridhive.com
.au

Item	Description	Quantity	Unit Price	GST	Amount AUD
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 21/10/2021 to 27/10/2021 - (6 Hours/Day)	30.00	57.10	GST Free	1,713.00
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 28/10/2021 to 03/11/2021 - (6 Hours/Day)	30.00	57.10	GST Free	1,713.00
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 04/11/2021 to 10/11/2021 - (6 Hours/Day)	30.00	57.10	GST Free	1,713.00
01_011_0107_1_1	Assistance self-care activities- Standard - Weekday Daytime - 11/11/2021 to 17/11/2021 - (6 Hours/Day)	30.00	57.10	GST Free	1,713.00
04_799_0125_6_1	Provider Travel - Non-Labour Costs - 21/10/2021 to 17/11/2021	246.00	0.85	GST Free	209.10
	This invoice covers 4 weeks from 21/10/2021 to 17/11/2021)				
				Subtotal	7,061.10
				TOTAL AUD	**7,061.10**

Due Date: 19 Apr 2022
Please pay to :

Account Name: The Hive
BSB:016253
Account No: 154173449

PAYMENT ADVICE

Customer	Bassam Haidar
Invoice Number	INV-0489
Amount Due	7,061.10
Due Date	19 Apr 2022
Amount Enclosed	

Enter the amount you are paying above

To:
Hybrid Hive
ABN:96651140108
ACN: 651 140 108
Contact: accounts@hybridhive.com.au

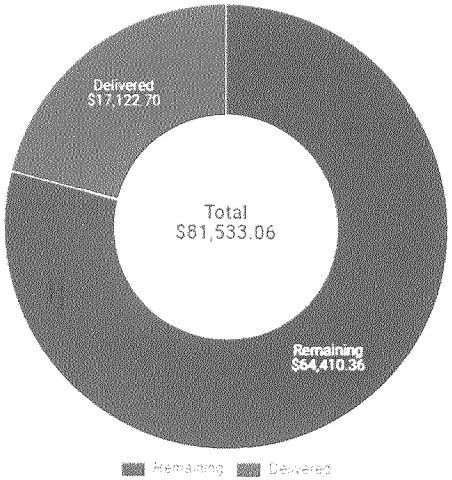
Sarah Lane Clulow

Start Date
13/03/2022

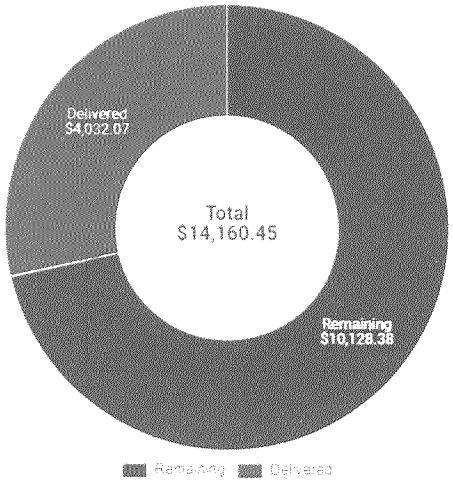
End Date
31/03/2022

$21,154.77 (22.11%) Delivered

Core Budget



Capacity Building Budget



TAX INVOICE

Sarah-Jane Clulow
Attention: Sarah-Jane Clulow
30/14 Westralia Gardens
ROCKINGHAM WA 6171
AUSTRALIA

Invoice Date
21 Mar 2022

Invoice Number
INV-0895

Reference
NDIS 430838840

ABN
98 643 878 639

Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

Item	Description	Quantity	Unit Price	GST	Amount AUD
01_011_0107_1_1	Assistance with Self-Care Activities - Standard - Weekday Daytime - 14/03/2022	6.00	57.23	GST Free	343.38
01_011_0107_1_1	Assistance with Self-Care Activities - Standard - Weekday Daytime - 15/03/2022	6.00	57.23	GST Free	343.38
01_011_0107_1_1	Assistance with Self-Care Activities - Standard - Weekday Daytime - 16/03/2022	6.00	57.23	GST Free	343.38
01_011_0107_1_1	Assistance with Self-Care Activities - Standard - Weekday Daytime - 17/03/2022	6.00	57.23	GST Free	343.38
01_011_0107_1_1	Assistance with Self-Care Activities - Standard - Weekday Daytime - 18/03/2022	6.00	57.23	GST Free	343.38
01_013_0107_1_1	Assistance with Self-Care Activities - Standard - Saturday - 19/03/2022	6.00	80.28	GST Free	481.68
01_014_0107_1_1	Assistance with Self-Care Activities - Standard - Sunday - 20/03/2022	6.00	103.34	GST Free	620.04
	Support for the period of 14/03/2022 to 20/03/2022				

Subtotal	2,818.62
TOTAL AUD	2,818.62
Less Amount Paid	2,818.62
AMOUNT DUE AUD	0.00

Due Date: 27 Mar 2022
Forward Focused Group
Please Pay to
Account Name: Forward Focused Group PTY LTD.
BSB:016253
Account No:152003884

PAYMENT ADVICE

Customer	Sarah-Jane Clulow
Invoice Number	INV-0895
Amount Due	0.00
Due Date	27 Mar 2022
Amount Enclosed	

Enter the amount you are paying above

To: Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

TAX INVOICE

Sarah-Jane Clulow
Attention: Sarah-Jane Clulow
30/14 Westralia Gardens
ROCKINGHAM WA 6171
AUSTRALIA

Invoice Date
28 Mar 2022

Invoice Number
INV-0924

Reference
NDIS 430838840

ABN
98 643 878 639

Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

Item	Description	Quantity	Unit Price	GST	Amount AUD
01_011_0107_1_1	Assistance with Self-Care Activities - Standard - Weekday Daytime - 21/03/2022	6.00	57.23	GST Free	343.38
01_011_0107_1_1	Assistance with Self-Care Activities - Standard - Weekday Daytime - 22/03/2022	6.00	57.23	GST Free	343.38
01_011_0107_1_1	Assistance with Self-Care Activities - Standard - Weekday Daytime - 23/03/2022	6.00	57.23	GST Free	343.38
01_011_0107_1_1	Assistance with Self-Care Activities - Standard - Weekday Daytime - 24/03/2022	6.00	57.23	GST Free	343.38
01_011_0107_1_1	Assistance with Self-Care Activities - Standard - Weekday Daytime - 25/03/2022	6.00	57.23	GST Free	343.38
01_013_0107_1_1	Assistance with Self-Care Activities - Standard - Saturday - 26/03/2022	6.00	80.28	GST Free	481.68
01_014_0107_1_1	Assistance with Self-Care Activities - Standard - Sunday - 27/03/2022	6.00	103.34	GST Free	620.04
	Support for the period of 21/03/2022 to 27/03/2022				

Subtotal	2,818.62
TOTAL AUD	2,818.62
Less Amount Paid	2,818.62
AMOUNT DUE AUD	**0.00**

Due Date: 3 Apr 2022
Forward Focused Group
Please Pay to
Account Name: Forward Focused Group PTY LTD.
BSB:016253
Account No:152003884

PAYMENT ADVICE

Customer	Sarah-Jane Clulow
Invoice Number	INV-0924
Amount Due	0.00
Due Date	3 Apr 2022
Amount Enclosed	

Enter the amount you are paying above

To: Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

TAX INVOICE

Sarah-Jane Clulow
Attention: Sarah-Jane Clulow
30/14 Westralia Gardens
ROCKINGHAM WA 6171
AUSTRALIA

Invoice Date
4 Apr 2022

Invoice Number
INV-0942

Reference
NDIS 430838840

ABN
98 643 878 639

Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

Item	Description	Quantity	Unit Price	GST	Amount AUD
01_011_0107_1_1	Assistance with Self-Care Activities - Standard - Weekday Daytime - 28/03/2022	6.00	57.23	GST Free	343.38
01_011_0107_1_1	Assistance with Self-Care Activities - Standard - Weekday Daytime - 29/03/2022	6.00	57.23	GST Free	343.38
01_011_0107_1_1	Assistance with Self-Care Activities - Standard - Weekday Daytime - 30/03/2022	6.00	57.23	GST Free	343.38
01_011_0107_1_1	Assistance with Self-Care Activities - Standard - Weekday Daytime - 31/03/2022	6.00	57.23	GST Free	343.38
01_011_0107_1_1	Assistance with Self-Care Activities - Standard - Weekday Daytime - 01/04/2022	6.00	57.23	GST Free	343.38
01_013_0107_1_1	Assistance with Self-Care Activities - Standard - Saturday - 02/04/2022	6.00	80.28	GST Free	481.68
01_014_0107_1_1	Assistance with Self-Care Activities - Standard - Sunday - 03/04/2022	6.00	103.34	GST Free	620.04
	Support for the period of 28/03/2022 to 03/04/2022				

Subtotal	2,818.62
TOTAL AUD	2,818.62
Less Amount Paid	2,818.62
AMOUNT DUE AUD	0.00

Due Date: 10 Apr 2022
Forward Focused Group
Please Pay to
Account Name: Forward Focused Group PTY LTD.
BSB:016253
Account No:152003884

PAYMENT ADVICE

Customer	Sarah-Jane Clulow
Invoice Number	INV-0942
Amount Due	0.00
Due Date	10 Apr 2022
Amount Enclosed	_____
	Enter the amount you are paying above

To: Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

TAX INVOICE

Sarah-Jane Clulow
Attention: Sarah-Jane Clulow
30/14 Westralia Gardens
ROCKINGHAM WA 6171
AUSTRALIA

Invoice Date
12 Apr 2022

Invoice Number
INV-0983

Reference
NDIS 430838840

ABN
98 643 878 639

Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

Item	Description	Quantity	Unit Price	GST	Amount AUD
15_056_0128_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 14/03/2022 Counselling by Sally See, counsellor at Forward Focused Group	4.00	193.99	GST Free	775.96
15_056_0128_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 15/03/2022 Counselling by Sally See, counsellor at Forward Focused Group	4.00	193.99	GST Free	775.96
15_056_0128_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 16/03/2022 Counselling by Sally See, counsellor at Forward Focused Group	4.00	193.99	GST Free	775.96
15_056_0128_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 17/03/2022 Counselling by Sally See, counsellor at Forward Focused Group	4.00	193.99	GST Free	775.96
15_056_0128_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 18/03/2022 Counselling by Sally See, counsellor at Forward Focused Group	3.50	193.99	GST Free	678.97
15_056_0128_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 21/03/2022 Counselling by Sally See, counsellor at Forward Focused Group	4.00	193.99	GST Free	775.96
15_056_0128_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 22/03/2022 Counselling by Sally See, counsellor at Forward Focused Group	3.50	193.99	GST Free	678.97

Item	Description	Quantity	Unit Price	GST	Amount AUD
15_056_0128_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 23/03/2022 Counselling by Sally See, counsellor at Forward Focused Group	3.50	193.99	GST Free	678.97
15_056_0128_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 24/03/2022 Counselling by Sally See, counsellor at Forward Focused Group	3.50	193.99	GST Free	678.97
15_056_0128_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 25/03/2022 Counselling by Sally See, counsellor at Forward Focused Group	3.50	193.99	GST Free	678.97
15_056_0128_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 28/03/2022 Counselling by Sally See, counsellor at Forward Focused Group	4.00	193.99	GST Free	775.96
15_056_0128_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 29/03/2022 Counselling by Sally See, counsellor at Forward Focused Group	3.50	193.99	GST Free	678.97
15_056_0128_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 30/03/2022 Counselling by Sally See, counsellor at Forward Focused Group	3.50	193.99	GST Free	678.97
15_056_0128_1_3	Assessment, Recommendation, Therapy or Training (including Assistive Technology) - Other Therapy 31/03/2022 Counselling by Sally See, counsellor at Forward Focused Group	3.50	193.99	GST Free	678.97
				Subtotal	10,087.52
				TOTAL AUD	10,087.52

Due Date: 18 Apr 2022
Forward Focused Group
Please Pay to
Account Name: Forward Focused Group PTY LTD.
BSB:016253
Account No:152003884

PAYMENT ADVICE

Customer	Sarah-Jane Clulow
Invoice Number	INV-0983
Amount Due	10,087.52
Due Date	18 Apr 2022
Amount Enclosed	

Enter the amount you are paying above

To: Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

TAX INVOICE

Sarah-Jane Clulow
Attention: Sarah-Jane Clulow
30/14 Westralia Gardens
ROCKINGHAM WA 6171
AUSTRALIA

Invoice Date
13 Apr 2022

Invoice Number
INV-0986

Reference
NDIS 430838840

ABN
98 643 878 639

Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

Item	Description	Quantity	Unit Price	GST	Amount AUD
01_058_01 15_1_1	STA And Assistance (Inc. Respite) - 1:1 - Weekday (Day) 15/03/2022	1.00	1,781.49	GST Free	1,781.49
01_058_01 15_1_1	STA And Assistance (Inc. Respite) - 1:1 - Weekday (Day) 16/03/2022	1.00	1,781.49	GST Free	1,781.49
01_058_01 15_1_1	STA And Assistance (Inc. Respite) - 1:1 - Weekday (Day) 17/03/2022	1.00	1,781.49	GST Free	1,781.49
01_058_01 15_1_1	STA And Assistance (Inc. Respite) - 1:1 - Weekday (Day) 18/03/2022	1.00	1,781.49	GST Free	1,781.49
01_059_01 15_1_1	STA And Assistance (Inc. Respite) - 1:1 - Saturday 19/03/2022	1.00	2,202.21	GST Free	2,202.21
01_060_01 15_1_1	STA And Assistance (Inc. Respite) - 1:1 - Sunday 20/03/2022	1.00	2,782.77	GST Free	2,782.77
01_058_01 15_1_1	STA And Assistance (Inc. Respite) - 1:1 - Weekday (Day) 21/03/2022	1.00	1,781.49	GST Free	1,781.49
01_058_01 15_1_1	STA And Assistance (Inc. Respite) - 1:1 - Weekday (Day) 22/03/2022	1.00	1,781.49	GST Free	1,781.49
01_058_01 15_1_1	STA And Assistance (Inc. Respite) - 1:1 - Weekday (Day) 23/03/2022	1.00	1,781.49	GST Free	1,781.49
01_058_01 15_1_1	STA And Assistance (Inc. Respite) - 1:1 - Weekday (Day) 24/03/2022	1.00	1,781.49	GST Free	1,781.49
				Subtotal	19,236.90

TOTAL AUD	19,236.90

Due Date: 19 Apr 2022
Forward Focused Group
Please Pay to
Account Name: Forward Focused Group PTY LTD.
BSB:016253
Account No:152003884

PAYMENT ADVICE

Customer	Sarah-Jane Clulow
Invoice Number	INV-0986
Amount Due	19,236.90
Due Date	19 Apr 2022
Amount Enclosed	

Enter the amount you are paying above

To: Forward Focused Group
ABN: 98 643 878 639
ACN: 643 878 639
NDIS Registration No: 4050074913
Please refer to the below for all invoice enquiries :-
Email: accounts@ffg.net.au
Phone: 08-61177786

From: Janine H
Sent: Tuesday, 3 May 2022 10:12 AM
To: janinehall09@gmail.com
Subject: FW: Marisha Lombard



Janine Hall
Support Coordinator at Forward Focused Group

A 2/210 Jull Street, Armadale WA 6112
[Next to Dome Cafe]
P 08-61177786 **M** 0478 886 280
E janine.h@ffg.net.au
W https://forwardfocusedgroup.com.au

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FORWARD FOCUSED
YOU ARE OUR FOCUS

Registered NDIS Provider

From: Janine H
Sent: Tuesday, 3 May 2022 10:11 AM
To: Rejaul Alam <rejaul@ffg.net.au>
Cc: accounts <accounts@ffg.net.au>
Subject: Marisha Lombard

Hi RJ
I have a query about the funding for Marisha Lombard.

The background to this is that her plan expired on 7/4/22 and we were aware of this and were happy to allow this to just rollover for the time being as we are preparing all the documents for home modifications. The idea is that we would use the extension plan to cover everything until we submit for the home mods and a new plan is approved. My understanding is that there is $3097.71 in Support Coordination to cover this period, however I just received the end of month statement from Assist Plan Managers and I noticed that the balance remaining is only $393.87. I then noticed that a single invoice had been paid to FFG for $2027.84 for Support Coordination. This is not for any work that I have provided for Marisha or anyone else from FFG and this leaves insufficient funds for me to be able to continue to provide the level of Support Coordination required for Marisha. Can you please advise what the invoice was for and how I am to proceed in terms of providing Support Coordination services for Marisha. I have attached the relevant screen shots for your info.
Thanks.



Janine Hall
Support Coordinator at Forward Focused Group

A 2/210 Jull Street, Armadale WA 6112
[Next to Dome Cafe]
P 08-61177786 **M** 0478 886 280
E janine.h@ffg.net.au
W https://forwardfocusedgroup.com.au

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Registered NDIS Provider

Coordination of Supports

Invoice Date	Date Paid	Invoice Number	Service Provider	Support Item No.	Description	Claim Type	Amount
/04/2022	28/04/2022	INV-1028	Forward Focused Group (Acc# 152003884)	07_002_0106_8_3	Level 2: Coordination Of Supports	STAND	$2,027.84
						Total	**$2,178.06**

Capacity Building	$14,014.83	$14,014.83	$3,570.41	$150.22	$3,420.19	76%
Coordination of Supports	$3,097.71	$3,097.71	$544.09	$150.22	$393.87	87%
Improved daily living skills	$10,917.12	$10,917.12	$3,026.32	$0.00	$3,026.32	72%

T914

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By Date

10:21 AM

9:59 AM

9:00 AM

8:56 AM

8:56 AM

8:56 AM

8:44 AM

accounts and finance

VR

Vida Reid
To Janine H
Cc Rejaul Alam; Jan Nuttal

Reply | Reply All | Forward

Mon 9/05/2022 8:55 AM

Hi Janine,

Rejaul has forwarded me a few emails and queries you have sent about charges and accounts.

Whilst I appreciate your thoroughness in dealing with clients please remember that I do work on participants as well. I keep my work and my notes private as sometimes they may be about staff or complaints or other work clients have requested that they have advised not to be disclosed to other due to privacy and dignity.

These from my understanding were about Marisha Lombard. I am still working on a few on her requests and have been for the last 2 years.
So in terms of funding or charges again please leave this to accounts and they will manage it accordingly.

I am aware that you have recently gained access to some portals and kindly ask that you do not access these as they go against our policy and procedures.

We highly value you in as a team member and hope to see you grow within our business whilst adopting and learning our way of doing things 😊

Kind reg

Vida Reid

290

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TAX INVOICE

Maria Staitan

Invoice Date
29 Dec 2021

Invoice Number
INV-0717

Reference
NDIS 431030831

ABN
96 651 140 108

Hybrid Hive
ABN 96651140108
ACN 651 140 108
Contact
accounts@hybridhive.com
.au

Item	Description	Quantity	Unit Price	GST	Amount AUD
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime - 25/08/2021	5.00	57.10	GST Free	285.50
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime - 01/09/2021	5.50	57.10	GST Free	314.05
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime - 29/09/2021	5.00	57.10	GST Free	285.50
04_799_01 04_6_1	Provider Travel - Non-Labour Costs - activities - Sep 2021	20.00	0.85	GST Free	17.00
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime - 06/10/2021	5.50	57.10	GST Free	314.05
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime - 27/10/2022	5.00	57.10	GST Free	285.50
04_799_01 04_6_1	Provider Travel - Non-Labour Costs - activities - Oct 2021	15.00	0.85	GST Free	12.75
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime - 03/11/2021	5.50	57.10	GST Free	314.05
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime - 24/11/2021	5.00	57.10	GST Free	285.50
04_799_01 04_6_1	Provider Travel - Non-Labour Costs - activities - Nov 2021	15.00	0.85	GST Free	12.75
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime - 01/12/2021	6.50	57.10	GST Free	371.15
04_104_01 25_6_1	Access Community, Social And Rec Activities - Standard - Weekday Daytime - 22/12/2021	6.75	57.10	GST Free	385.43
04_799_01 04_6_1	Provider Travel - Non-Labour Costs - activities - Dec 2021	25.00	0.85	GST Free	21.25
				Subtotal	2,904.48